

THE THEORY AND PRACTICE OF ARGUMENTATION AND DEBATE

BY
VICTOR ALVIN KETCHAM

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THE THEORY AND PRACTICE
OF
ARGUMENTATION AND DEBATE



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TORONTO

THE THEORY AND PRACTICE
OF
ARGUMENTATION AND DEBATE

BY
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PREFACE

The object of this book is to furnish practical directions for the preparation and presentation of oral and written arguments. Teachers of Argumentation and Debate have come to realize that interest can best be stimulated and practical results best secured by omitting the theoretical forms of reasoning at first, and leading the student directly to the actual work of building up an argument. The technical name of a logical process has little to do with its practical application. This fact is well illustrated by the constant use of arguments in our conversation: moreover, the student who enters upon this work is sufficiently advanced to appreciate the difference between truth and error. For these reasons the book is divided into two parts, the first of which deals with the Practice of Argumentation and Debate. After the student has had some experience in constructing and presenting arguments he is better fitted to make practical application of the theoretical principles of argumentation which are presented in the second part of this book under the head of the Theory of Argumentation and Debate. Those teachers who prefer to follow the old order of presentation can do so by taking up the Theory of Argumentation and Debate after completing the chapter on Collecting Evidence and before taking up the chapter on Constructing the Brief.

Since Argumentation and Debate has come to be a regular course of study in almost every college and university and in many of our larger preparatory and high schools, there has been a tendency among text-book writers to multiply rules regarding every phase of the subject. By consulting various works it will be found that no less than sixteen different rules have been formulated for the construction of the brief alone. One book contains as many as thirteen of these. To the average student the result is confusion rather than enlightenment. One of the objects of the author has been to

remedy this condition of affairs by attempting to state clear-cut rules, which, though covering all contingencies, are limited to what is essential and practical. In regard to illustrations and examples the same idea has been carried out.

The order in which the subjects are discussed is that dictated by actual practice. The object has been to lead the student step by step, to point out all the difficulties along the way, and to show by precept and example how they may be overcome. After the essential definitions are given and the importance of the subject upon which he is entering is set forth, the student is shown where to find, and how to choose and express, a proposition for argument. He is then directed how to analyze that proposition for the purpose of finding out what he must do in order to establish its truth or falsity. Next, he is informed of the sources of evidence bearing upon the proposition, and how such evidence is to be collected and used. Directions for constructing a brief out of this evidence are then presented and the way in which the finished argument is to be developed is set forth. The psychological development of an argument is here for the first time given full consideration. Following this the student is shown how to defend his own argument and overthrow that of his opponent. Finally, instructions are given for delivering the argument in the most effective manner. Even without the aid of an instructor the student could follow the argumentative process through to the end.

The exercises given are intended to be practical and to assure a thorough working knowledge of the discussion. The material in the appendix may be used at the discretion of the instructor. The prevalence of references to the Lincoln-Douglas Debates is intentional and arises from the fact that the circumstances under which these debates occurred, the personalities of the participants, and the argumentative excellence of the discussions make them especially useful to the student.

The writer wishes to acknowledge his indebtedness to all those who have heretofore written upon this subject as well as to the students whom it has been his pleasure to instruct. He wishes especially to acknowledge the assistance of Professor Raymond M. Alden, who gave a careful reading to the greater part of the manuscript and made many helpful suggestions.

VICTOR ALVIN KETCHAM.

COLUMBUS, OHIO, *February 1, 1914.*

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PART I
THE PRACTICE OF ARGUMENTATION AND
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THE THEORY AND PRACTICE OF ARGUMENTATION AND DEBATE

CHAPTER I DEFINITION AND IMPORTANCE OF ARGUMENTATION

I. Definitions.

Argumentation is the art of persuading others to think or act in a definite way. It includes all writing and speaking which is persuasive in form. The salesman persuading a prospective customer to buy goods, the student inducing his fellow-student to contribute to the funds of the athletic association, the business or professional man seeking to enlarge his business and usefulness, and the great orator or writer whose aim is to control the destiny of nations, all make use of the art of argumentation to attain their various objects. These illustrations serve but to indicate the wide field of thought and action which this subject includes. Each instance in this broad field, which demands the use of the art of argumentation, is subject to the same general laws that govern the construction and presentation of formal arguments. Formal arguments may be either written or oral, but by far the greater benefit to the student of argumentation results from the delivery of oral arguments, for it is in this form that he will be most frequently railed upon to use his skill.

Debating is the oral presentation of arguments under such conditions that each speaker may reply directly to the arguments of the opposing speaker.

The debate is opened by the first speaker for the affirmative. He is then followed by the first speaker for the negative, each side speaking alternately until each man has presented his main speech. After all the main speeches have been delivered the negative opens the rebuttal. The speakers in rebuttal alternate negative and affirmative. This order gives the closing speech to the affirmative. Practice in this kind of formal debate should go hand in hand with the study of the text after the first five chapters have been mastered. The first arguments, however, should be individual arguments written out for the purpose of enabling the student to apply the rules regarding their form and development.

A proposition in argumentation is the formal statement of a subject for debate. It begins with the word “Resolved,”—followed by the statement of the subject matter of the controversy, and worded in accordance with the rules laid down in the next chapter. In formal debate it is always expressed; as for example, “Resolved, that the Federal Government should levy a progressive income tax.” In other forms of argumentation it may be only implied, as in the case of the salesman selling goods, the student soliciting subscriptions, the business man arguing for consolidation, or the politician pleading for reform. Nevertheless, it is always advisable for the speaker or writer to have clearly in mind a definite proposition as a basis upon which to build his argument. The proposition for the salesman might be, “Resolved, that James Fox ought to buy a piano;” for the student solicitor, “Resolved, that George Clark ought to give ten dollars to the athletic fund;” for the business man, “Resolved, that all firms engaged in the manufacture of matches should consolidate;” and for the politician, “Resolved, that the tariff schedule on necessities should be lowered.” This framing of a definite, clear-cut proposition will prevent wandering from the subject and give to the argument the qualities of clearness, unity, and relevancy.

Referring to the definition with which this chapter opened the student should note that it defines argumentation as an art. While it is true that argumentation must be directed in accordance with scientific principles, and while it is also true that it has an intimate relation with the science of logic, yet it is primarily an art in which skill, tact, diplomacy, and the finer sensibilities must be utilized to their fullest extent. In this respect argumentation is an art as truly as music, sculpture, poetry, or painting. The successful debater must be a master of this art if he hopes to convince and persuade real men to his way of thinking and thus to direct their action.

II. The object of argumentation.

The object of argumentation is not only to induce others to accept our opinions and beliefs in regard to any disputed matter, but to induce them to act in accordance with our opinions and beliefs. The end of argumentation is action. The form which this action is to take depends upon the nature of the disputed matter. It may be only an action of the mind resulting in a definite belief which will exert an influence in the world for good or evil. It may be the desire of the one who argues to persuade his hearers to advocate his opinions and beliefs and thus spread his doctrines to many other individuals. It may be that some more decided physical action is desired, such as the casting of a vote, or the purchase of a certain article or commodity. It may be the taking up of arms against a state, race, or nation, or the pursuit of a definite line of conduct throughout the remainder of the life of the individual addressed. These and many other phases of action may be the objects of the debater.

III. Educational importance of argumentation.

From the standpoint of mental discipline no study offers more practical training than does argumentation. It cultivates that command of feeling and concentration of thought which keeps the mind healthily active. The value of this kind of mental exercise cannot be overestimated. Especially is it valuable when the arguments are presented in the form of a debate, in which the speaker is assigned to defend a definite position and must reply to attacks made on that position. Such work brings forth the best powers of mind possessed by the student. It cultivates quickness of thought, and the ability to meet men on their own ground and conduct a successful encounter on the battlefield of ideas.

Another faculty of mind which debating develops is tact in the selection and presentation of material. Since the object of debate is action, it is not enough that the speaker show his position to be the correct one. He must do more than this; he must make the hearer desire to act in accordance with that position. Otherwise the speaker will be in the same position as the savage who induces his fellows to conform to his ideas by the use of a club, —the moment the influence of the club is removed the subject immediately

reverts to his former habits of thought and action. If you convince a man that he is wrong by the mere force of argument, he may be unable to answer your argument but he will feel like a man who has been whipped in a physical encounter—though technically defeated he still holds to his former opinions. There is much truth in the old saying that, “He who is convinced against his will is of the same opinion still.” Therefore, the debater must do more than merely convince his hearer; he must persuade him. He must appeal to the reason, it is true, but he must also appeal to the emotions in such a way as to persuade his hearer to take some definite action in regard to the subject of dispute. Thus there are two things which the debater must attempt—conviction and persuasion. If he convinces his hearer without persuading him, no action is likely to follow. If he persuades his hearer by appealing to his emotions, the effect of his efforts will be short lived. Therefore, the debater must train himself to persuade his hearer to act in accordance with his wishes as well as to find reasons for such action and give them.

Finally, debating cultivates the ability to use clear and forcible language. Practice of this kind gives the student a wealth of expression and a command of language which is not otherwise possible. The obligation to reply directly to one’s opponents makes it necessary for the student to have such command of his material that he can make it apply directly to the arguments he has just heard.

The educational value of debating is greater than that of any other form of oral or written composition because it cultivates: (1) The command of feeling and concentration of thought which keep the mind healthily active, (2) The ability to state a clear-cut proposition, and to analyze it keenly by sifting the essential from the trivial, thus revealing the real point at issue, (3) The ability to find reasons and give them, (4) The power to state facts and conditions with that tact and diplomacy which success demands, (5) The power to persuade as well as convince, (6) The power of clear and forcible expression. Certainly any subject which tends to develop these qualities ought to receive the most careful attention of the student.

IV. Practical importance of argumentation.

From the practical standpoint no study offers better preparation for the everyday affairs of life than does argumentation and debate. Success in life is largely a matter of reducing every situation to a definite, clear-cut proposition, analyzing that proposition or picking out the main points at issue, and then directing one's efforts to the solution of the problem thus revealed. To be more concrete: One young man accepts the first situation which is brought to his notice when he graduates, and stays in a mediocre position for years; another young man thinks carefully over the matter, picks out a place where he is most likely to succeed, and secures rapid promotion. Instances might be multiplied indefinitely to show the practical value of argumentative training. The man who is an expert in the use of argument holds the master key to success in all lines. It is an invaluable asset to every one who has to deal with practical affairs. It matters not whether you are to address one individual or a thousand—whether you wish to persuade to a certain course of action, your employer, a committee, a board of directors, a town council, the senate of the United States, or an auditorium full of people, knowledge of the use and application of the rules of argumentation, and good training in the art of debate is a most valuable asset. The business world, the professional world, and the political world eagerly welcome the man who can think and who can effectively present his thoughts. In every business, in every profession, and in every department of government the skilled debater becomes the leader of men.

CHAPTER II

THE PROPOSITION

I. The subject-matter of the proposition.

Argumentation demands a definite concrete subject. This subject must be one about which there is a dispute; as for example, the liquor question. There is a great controversy as to what ought to be done in this matter. Many people contend that Prohibition, or the absolute forbidding of the making or selling of all intoxicating liquors, is the best method of procedure. On the other hand many people contend that High License, or the regulating of the sale of such liquor, is the best method of procedure. This is a proper subject for a written argument or an oral debate, because the writer or speaker may take either Prohibition or High License and show why, and in what way, it would benefit the community. If he defends Prohibition he must prove that it will benefit the community more than High License. If he defends High License he must prove that it will benefit the community more than Prohibition. This example illustrates what is meant by a definite, concrete subject about which there is a dispute.

In selecting a subject for debate the following requirements should be carefully observed:

1. The subject must be interesting.

The subject must be one in which both speaker and audience have a real interest. If the argument is written the subject must be one in which the readers are interested. With this object in view, the question selected should be practical rather than theoretical. That is, it should be a question the final determination of which will affect the welfare of the individual, the community, or the nation. No longer can interest be aroused in a discussion of whether the pen is mightier than the sword, or whether fire is more

destructive than water. Objectionable in like manner are the following questions taken from a book on debating published in 1869: "Who is the most useful to society: the farmer or the mechanic?", "From which do we derive the greatest amount of pleasure: hope or memory?", "Are lawyers a benefit or a curse to society?", "Is there more pleasure in the pursuit than in the possession of a desired object?", "Who most deserves the esteem of mankind: the poet, the statesman, or the warrior?", and "Whether there is more pleasure derived from the eye or the ear?" These and all similar subjects should be avoided chiefly because they lack interest, since no practical result can follow their determination. As well might one try to interest a modern audience in the discussions of the ancient schoolmen, who grew eloquent over a dispute as to how many angels could dance on the point of a needle, whether there could be two hills without an intervening valley, and whether God could make a yardstick with only one end. If men are to be interested the speaker or writer must get close to the questions which affect their everyday life at home and at work. If he does this and his ideas are worth defending he will always find willing hearers and readers.

Among interesting subjects for debate, questions of a local character hold an important place. The advisability of building a town hall, an athletic field, or a new bridge is very often more productive of genuine interest than some weighty problem of national politics. Such questions come close to the tax-payers and residents of any community, and at the same time appeal to their pride, prejudice, and ambition. If the student will but look about him he will find an abundance of controverted local matter which will furnish excellent subjects for oral or written arguments.

After the student has exhausted local subjects he may turn his attention to the broader controversies of state and nation. Here the questions of taxation, tariff, commerce, and international affairs afford ample scope for the full development of the debater's powers. The list of subjects in the appendix may be found helpful in making a proper selection, but preference should always be given to questions in which the people at large are showing an active interest at the time of the debate. What this interest is may be determined by consulting the current numbers of the most widely circulating magazines and newspapers, such as the "Independent," "Nation," "Harper's Weekly," and the various city newspapers.

2. Subjects for first practice should be those of which the debater has a general knowledge:

Since the object of the first few debates is to make the student familiar with rules and forms, the subjects chosen should be within the range of his information and experience. For this purpose subjects of a local character are best adapted. The student should have had some actual practice in debating before he attempts to take up questions which require extended investigation. Such propositions as those relating to the tariff, taxation, municipal problems, and Federal control of industrial and commercial activities should be reserved for more mature efforts.

The following subjects are fair examples of desirable questions for first practice: (1) Should students who attain a rank of ninety per cent, or higher, in their daily work be excused from examinations?, (2) Should gymnasium work be made compulsory?, (3) Should first year students at —— be allowed to engage in intercollegiate athletics?, (4) Should the class rushes at the beginning of the college year be discontinued?, (5) Should the game of football be abolished?

3. The subject must be debatable.

If the first two requirements in regard to the choosing of a subject are observed it is not probable that the question will be undebatable. However, since it is always advisable to keep as far as may be from one-sided questions, it is well to give this requirement some consideration.

In the first place, the question must not be obviously true or obviously false. The clearest examples of subjects objectionable because obviously true are found in geometry. It is plain that an intelligent debate cannot be held on the proposition, “Resolved, that the sum of the three angles of a triangle is always equal to two right angles.” Equally useless from the standpoint of argumentation is it to dispute that “All men are mortal,” that “Huxley was a great scientist,” or that “Health is more desirable than sickness.” Nevertheless questions just as obvious as these are sometimes debated because their real character is concealed under cover of confused language. The following question is a good example of this, “Resolved, that

breach of trust in high office is reprehensible.” A moment’s thought will convince the reader that such a proposition is not debatable because obviously true. On the other hand propositions which are obviously false are sometimes worded so as to have an appearance of validity. Such is the following, “Resolved, that the only way to benefit humanity is to destroy the trusts.” To prove this proposition it is necessary to show that education, religion, and commerce cannot be made to benefit humanity. The proposition is not debatable because it is obviously false.

In the second place, the question must be one which is capable of approximate proof. It is not debatable if it cannot be proved approximately true or false. The debater must be able, by means of reasoning based upon the facts of the case, to arrive at a conclusion either for or against the proposition. To make this possible, there must be a common standard of comparison. This common standard does not exist in the proposition “Resolved, that the lawyer is of more use to society than the doctor,” because their work is entirely unlike and both are necessary to the well-being of modern society. On the other hand it does exist in the proposition “Resolved, that Federal control of life insurance companies is preferable to State control.” This question hinges on the comparative efficiency of the two means of control, namely,—Federal and State, both of which are governmental in character. Therefore a common standard of comparison exists which enables the debater to show why one or the other method should be adopted.

Thus far we have dealt with the subject-matter of the proposition and have seen that it must meet the three foregoing requirements. We must now turn our attention to the phrasing of this subject in such a way that it will form a suitable proposition for debate.

SUMMARY OF REQUIREMENTS FOR THE SUBJECT-MATTER OF A PROPOSITION

1. The subject must be interesting.
2. Subjects for first practice should be those of which the debater has a general knowledge.
3. The subject must be debatable.

II. The wording of the proposition.

To those unfamiliar with the art of debate it often seems that when the subject is chosen but a moment's time is required to whip it into the form of an acceptable proposition for a debate. This, however, is not the case; the work is only half done. After an interesting, suitable, and debatable subject has been chosen there still remains the important task of expressing that subject in proper form.

The subject for debate should be stated in the form of a resolution. One form of such resolution would be, "Resolved, that the Federal government should levy a progressive income tax." A mere statement of the subject is not enough. One may write a description of "The Panama Canal," or a narrative on "The Adventures of a Civil Engineer in Panama," or an exposition on "The Cost of Building the Panama Canal," but for an argument one must take one side or the other of a resolution, as for example, "Resolved, that the United States should fortify the Panama Canal." This resolution is usually termed the Proposition, and corresponds to the motion, resolution, or bill presented in deliberative assemblies such as state legislatures or the branches of Congress. The proposition must contain one definite issue. In it there must be no ambiguous words or phrases. Otherwise the debate is liable to degenerate into a mere quibble over words or a dispute as to the meaning of the proposition. Hence no issues will be squarely joined and after the debate is over, neither the debaters, the judges, nor the audience will feel satisfied or have reason to believe that any progress has been made toward a right solution of the question.

The proposition for debate should be worded in accordance with the following rules:

1. The proposition should be so narrowed as to embody only one central idea.

In the beginning there is always a tendency to make the proposition cover too broad a field. This is rather a defect of wording than of subject-matter. Let us take a proposition which is too broad, and narrow it so that it will contain but a single idea. For this purpose we may select the proposition, "Resolved, that freshmen should not be permitted to take part in athletics."

As it stands, this proposition includes all freshmen everywhere and prohibits them from taking part in athletics of every kind. In other words the field which it covers is too broad. The proposition treats of two things, freshmen and athletics. Let us first make the provision in regard to freshmen definite, that is, narrow it down to a field with definite limits. We can do this by making it apply only to the freshmen of Columbia University or of any other specified institution. Thus the collecting of material as well as the determination of the issues involved becomes a much simpler matter. In the second place let us make the provision in regard to athletics more definite. As the proposition stands it excludes freshmen from all athletics whatsoever, including inter-class and inter-society as well as intercollegiate. Here again the field is too wide and some restriction must be placed upon the subject-matter. Therefore we insert the word “intercollegiate” before the word “athletics” in order that the field for discussion may be narrowed down to a single, definite issue. With these modifications the proposition now stands, “Resolved, that freshmen at Columbia University should not be permitted to take part in intercollegiate athletics,” which is an entirely satisfactory proposition because it narrows the field of discussion to one definite, central idea.

Though this difficulty will doubtless present itself in a variety of forms, the principles stated above as well as the illustration, if kept in mind by the student, will enable him to keep clear of this fault.

2. The proposition should be stated in the affirmative.

The first argument is always presented by the affirmative. Upon the affirmative rests the burden of proof and if the affirmative proves nothing the decision goes to the negative. “He who affirms must prove.” The affirmative has the burden of proving the proposition to be true, the negative that of proving it false. Therefore the proposition must be worded in the affirmative. This insures that some progress will have been made at the end of the first speech.

The burden of proof rests upon the party who has the risk of non-persuasion. The risk of non-persuasion rests upon the party who would fail if no evidence were introduced. We have seen that the affirmative would

fail if no evidence were introduced, because he who alleges must prove. Therefore the risk of non-persuasion rests on the affirmative. To be more concrete, if you are attempting to prove to a friend that he ought to do (or ought not to do) a certain thing, you take the risk of not persuading him to do the thing that you ask, i. e. the risk of non-persuasion is on you. Likewise the salesman who approaches a customer with the purpose of selling him a bill of goods incurs this same risk of non-persuasion, because he may not be able to induce the customer to buy. Since, as in the above cases, the affirmative must be given a chance to prove something before the negative can reply, the proposition should always be worded in the affirmative.

3. The proposition should contain no ambiguous words.

After the proposition has been narrowed down to a single idea and has then been stated in the affirmative, it should be carefully scrutinized in order to determine whether it contains any ambiguous words. Ambiguous words have a meaning so broad that they may be taken in more than one sense. Such a word is "Anarchist." This word may refer to a lawless individual bent on assassination, or to a peaceable individual who has merely the beliefs of an anarchist with no intention of putting them into practice. Almost all general terms such as "Anarchist," "Monroe Doctrine," "Civilization," "Policy," and "Trusts," should be avoided because they tend to make the proposition ambiguous. When such terms are used they should be almost invariably accompanied by explanatory words. The words selected for use in the proposition should have but one meaning and should be so plain that there can be no reasonable dispute as to their significance. If this rule is not complied with the discussion will become a foolish quibble over the meaning of the proposition rather than an intelligent debate upon the merits of the question.

In the question, "Resolved, that trusts should be suppressed by law," there are three ambiguous words, (1) trusts, (2) suppressed, and (3) law. While these words may not be ambiguous in ordinary speaking or writing, they are not sufficiently definite to be used in a proposition. The word "Trust" has several meanings and several shades of meaning. Among these is the meaning which has recently been given to it, indicating a combination

of firms engaged in some special line of business, as for example, “The Sugar Trust”, “The Oil Trust”, “The Steel Trust”, etc. Even this one meaning has different variations. The term “trust” as used in this sense may refer to a mere combination of manufacturers, to a monopoly, or to a monopoly in restraint of trade. In order to make the meaning of the proposition clear we may strike out the ambiguous term “trusts” and insert “monopolies in restraint of trade.”

The word “suppressed” in this connection may have two well defined meanings. It may mean either destruction or regulation. If the intent is that the question shall hinge on whether or not monopolies in restraint of trade should be destroyed or wiped out altogether, the word “dissolved” or “destroyed” should be used. If, on the other hand, it is intended that the issue shall be whether such organizations be allowed to exist in their present form, but subject to governmental regulation which will suppress their evil effects on trade, the word “regulated” should be used. For the purpose in hand let us choose the latter meaning.

The term “law” is also somewhat ambiguous, because there is more than one legal agency which could deal with such organizations. Therefore we will make plain which agency is intended by modifying the word “law” by the word “Federal.” This makes the proposition, as corrected, read, “Resolved, that monopolies in restraint of trade should be regulated by Federal law.” The proposition as thus worded is fairly free from ambiguity and leaves little opportunity for quibbling over the meaning of the words in which it is stated.

The proposition must be so worded as to have the same meaning for both the affirmative and the negative, and this meaning must be absolutely clear and unambiguous.

4. The proposition should be worded as briefly and simply as is consistent with the foregoing requirements.

After the proposition has been worded in accordance with the foregoing rules it should be carefully scrutinized to determine whether or not there is a simpler form in which it may be cast without sacrificing any of its excellencies. The simpler the wording of the proposition the easier will be

the work of determining the main issues and the subsequent work of preparing the argument.

In dealing with broad general problems such as questions of finance, commerce, and taxation, it sometimes happens that some issue is brought in which is aside from the real merits of the controversy and yet so vitally connected with it as to be logically inseparable. Either side may present such material, with disastrous results if their opponents have dealt solely with the real merits of the controversy. An instance of this difficulty appeared in the debates of one of the Inter-State leagues. For three or four successive years the questions chosen for the annual debates were of the character indicated above. In many of the debates one or the other side of the controversy would bring up the constitutionality of the proposed measures. The charge would be made that the proposition could not be decided in the affirmative because the proposed measure was contrary to the constitution of the United States. In almost every case this question vitally affected the final adoption of the resolution, although it could well be excluded from a discussion on the merits of the problem. The question was especially exasperating, inasmuch as the judges for the debates were almost always selected from the bench of the Supreme Court of the states composing the league and from the Federal Courts. It was finally determined by the official board of the league to append the phrase "Constitutionality conceded," to all propositions in which there was any likelihood that the question of constitutionality could be made an issue. Thus in one instance the proposition adopted was, "Resolved, that the Federal Government should levy a progressive inheritance tax. Constitutionality conceded."

This did not in any way interfere with the simple wording of the proposition, and it did effectually prevent the debate from hinging on an issue which would have prevented a full discussion of the merits of the question. This method of excluding undesirable matter is preferable to an attempt to include any restriction in the body of the proposition. The latter method is quite likely to lead to difficulties, in the form of ambiguities and their attendant evils, almost impossible to foresee when the proposition is framed.

In conclusion, the debater must not forget that time spent in selecting a proper subject and wording it in accordance with the foregoing rules is time

well spent. It will make the great task which lies before him much easier, and it will enable him to arrive at definite conclusions.

SUMMARY OF REQUIREMENTS FOR WORDING THE PROPOSITION

1. The proposition should be so narrowed as to embody only one central idea.
2. The proposition should be stated in the affirmative.
3. The proposition should contain no ambiguous words.
4. The proposition should be worded as briefly and simply as is consistent with the foregoing rules.

EXERCISES IN SELECTING AND PHRASING THE PROPOSITION

1. Write out three propositions in accordance with the rules stated in this chapter. The subject-matter of these propositions should be purely local in character as suggested in the first and second sections.

2. Phrase, in proper form, one proposition on each of the following subjects.

- A. Sunday baseball.
- B. Interstate commerce.
- C. Labor unions.
- D. United States Senators.
- E. Prohibition.
- F. Reciprocity.

3. Apply the appropriate rules to each of the following propositions and point out where each is defective.

Resolved, that—

- A. We derive more pleasure from hope than from memory.
- B. Wit and humor are the same.
- C. Education ought to be compulsory.
- D. The law is a better profession than medicine.
- E. The Federal Government should levy a tax on large incomes and limit the amount of wealth which one man may possess.
- F. It is expedient for the United States to build a larger navy.

CHAPTER III

ANALYZING THE PROPOSITION

I. The importance of analysis.

The subject for argument has been determined and it has been reduced to a satisfactory proposition. The next step is to analyze this proposition. It is well to consider first the importance of this analysis in order that its true value may be appreciated, and this preliminary step be not passed over hurriedly. Upon the success of the analysis depends in large measure the success of the argument. This is true because the analysis shows just what must be proved in order to sustain or overthrow the proposition. If the work has been done carefully the student will have confidence in the solidity of his argument. He cannot feel secure if he suspects that his analysis is defective.

The question of analysis is not only of supreme importance in relation to a particular proposition for discussion, but it is also of the greatest importance in all the practical affairs of life. No mental quality is so necessary as the analytical habit of mind. Practically all the men whom history calls great have possessed in a large degree the habit of analyzing everything. Lincoln was in the habit of applying this analytical process not only to great affairs of state but to anything and everything which came beneath his notice. He analyzed the actions of his fellow men, the workings of a machine, the nature of moral principles, and the significance of political movements. He was continually penetrating to the point of things, visible and invisible, and laying it bare.

Everything which comes up for personal action should be analyzed and the vital point at issue determined. Nothing should be done blindly or in a spirit of trusting to luck or chance. Instead of voting as the majority seem to be voting in a class meeting, analyze the issue and vote according to the light revealed by that analysis. Instead of entering some business or

profession blindly and in the hope that something will turn up, analyze the situation and determine rationally what ought to be done. For the right determination of these practical affairs no better preparation can be made than the careful analysis of propositions for debate.

II. Essential steps in analysis.

1. A broad view of the subject.

In the first place the student must know something about the subject-matter of the proposition. If the question is of a local character and one with which he is familiar, the work of analysis may be begun at once. The proposition can be scrutinized, its exact meaning determined, and the proof for its establishment or overthrow decided upon. If the question be one with which the student is not familiar, his first duty is to become acquainted in a general way with the subject-matter. He should carefully examine the proposition to see just what subject-matter is included and then consult someone familiar with its substance, or read some material which appears to treat the subject in a general way. Here confusion is likely to result if an attempt is made to substitute reading for thinking. The mind of the investigator should be kept open, free, and independent. He should not allow the opinions of men, either oral or written, to cause him to depart from the precise wording of the proposition. His present object is to determine its limits, meaning and significance.

When a general knowledge of the subject has been acquired, sufficient to enable the student to reason about the question, he should next consider the origin and history of the question.

2. The origin and history of the question.

The meaning of a question must be determined in the light of the conditions which gave rise to its discussion. For this reason it is well to find out just how this question came to be a subject of debate. For example, the people of this country a few years ago were debating the proposition,

“Resolved, that the Federal Government should control all life insurance companies operating within the United States.” To one unacquainted with the facts of the case at that time the proposition appears at first glance to lack point. Why should anyone want Federal control of insurance companies? What difference does it make as to who controls them or whether they are controlled at all? These questions are answered directly when we come to study the origin of the proposition. Until within a few months of the discussions no one had thought of debating this proposition. The insurance companies had always been under the control of the states in which they operated. Then suddenly it came to light that these companies were grossly mismanaged. Dishonesty had characterized the administration of their affairs. This served to cast grave doubt on the efficiency of state control. Therefore the stronger arm of the Federal government was suggested as a remedy for the evils which the states had been unable to prevent. The real heart of the controversy, which a study of the origin of the question revealed was “Will the control of insurance companies by the Federal government be more efficient than that exercised by the state governments?” Thus the real point at issue was made clear through the origin of the question.

In the search for the main issues, the history of the question is often important. However, the tendency of the inexperienced debater is to dwell too long upon this part of the argument. Actual practice often reveals the fact that such a history causes the audience or reader to lose interest. This is especially true if its bearing on the argument is not immediately shown.

The history of the question should, however, receive serious consideration, and any facts which bear directly upon its solution should be stated in brief and concise form. When the question has undergone a change because of shifting conditions, its history becomes especially important. Very often the original significance of a controversy becomes entirely changed by subsequent happenings. In such a case the history of the question should be resorted to for the purpose of finding out the changes through which the original dispute has passed and determining the exact issues involved at the present time.

3. Definition of terms.

Before proceeding farther it is well to examine each word in the proposition. Now that a general idea of the significance of the proposition has been obtained, and the main point of the controversy reached through the study of the origin and history of the question, the task of defining terms may be undertaken in an intelligent manner.

Let it be understood at the outset that a dictionary definition is not satisfactory. A dictionary gives every meaning which can be attached to a given word and thus covers a broad, general field. But when a word is used in a proposition for debate it is used in a special and restricted sense. The meaning depends largely on the context of the proposition. The origin and history of the question, the meaning which expert writers on this particular subject have attached to the words, and the present conditions must be considered in determining the precise meaning of the terms.

The words of a proposition which need definition are very often so grouped that the meaning of a phrase or combination of words taken as a whole must be determined. Here it is plain that dictionary definitions, even if satisfactory in other respects, would be entirely inadequate. In the question in the last chapter, "Resolved, that monopolies in restraint of trade should be regulated by Federal law," we find a necessity for the definition of both a term and a phrase. The term "regulate" may not in this instance be given the broad meaning which a dictionary definition attaches to it. We must first look at the context of the proposition in order to find out to what field of authority we should go for a proper definition.

The proposition specified regulation by Federal law; therefore we must go to the law for our definition of the term which indicates the action the law is to take. But even here we need not be satisfied with the broad legal definition of the term "regulate." The field included by the question is obviously a commercial field. The agencies which would come under this regulation are for the most part engaged in interstate commerce. Therefore the power to regulate would be placed under that clause of the United States constitution which expressly gives Congress the power to regulate commerce. We may then rely upon the definition which the courts have placed upon the term "regulate" when used in this connection. By consulting *Black's Constitutional Law*,^[1] an eminent authority on this subject, we find that the power to "regulate" has never been held to include the power to destroy. This eliminates a possible meaning. By consulting

some of the decisions of the United States courts in which this term has been defined, we are given to understand that to “regulate” commerce implies that “an intention to promote and facilitate it, and not to hamper or destroy it, is naturally to be attributed to Congress.” (*Texas & P. R. Co. v. Interstate Commerce Commission*, 162 U. S., 197; *Interstate Commerce Commission v. Alabama Midland Ry. Co.*, 74 Fed., 715). Therefore we are warranted in concluding that to “regulate” in this proposition means such control by the Federal law as will promote the best commercial interests of the country at large.

[1. P. 194.](#)

It is thus seen that both the definition of the term and the source from which it is taken are determined by the context of the proposition. If the context of the proposition shows that legal definitions are required, legal authorities must be consulted. If the context of the proposition shows that an economic definition is required, economic authorities should be consulted. In whatever field of knowledge the context of the proposition lies, the authoritative definitions generally accepted in these branches of learning should be consulted.

In defining the phrase “monopolies in restraint of trade” the student should consult the same class of authorities utilized in defining the term “regulate.” The generally accepted definitions used by prominent writers may be relied upon with safety, since they are usually taken directly from authoritative reports and decisions.

One of the most important requisites of a definition is that it be reasonable. It must appear, in the light of all the circumstances of the case, to be the most obvious and natural definition which can possibly be produced. In no case must it appear that the speaker or writer has laboriously searched for a definition which will conform to his view of the proposition. Equally fatal is a highly technical definition which ignores its evident meaning. No trickery based upon a technicality should be tolerated. The definition presented must be so reasonable that everyone concerned (with the possible exception of one’s opponents) will willingly admit its validity.

4. Narrowing the question.

The next step in the analysis of the question is to narrow it down to the points which must be proved. Now that the meaning of the question is well understood this task ought not to be difficult. Nevertheless it demands the most earnest efforts of the student. There are two steps in this process, (a) Excluding irrelevant matter, (b) Admitting matters not vital to the argument.

(a) Excluding irrelevant matter.

The first task is to cut away all surplusage. The proposition as it now stands, should be closely examined in order to determine just what must be proved. Neither the affirmative nor the negative should undertake the burden of proving more than is necessary. In the discussion of the proposition "Resolved, that Prohibition is preferable to High License," it is not necessary for the affirmative to prove that temperance is a virtue. The task before these debaters is to show only that prohibition is preferable to high license as a method of dealing with the liquor traffic. It is not necessary for the negative to attempt to prove that temperance is not a virtue; their task is to show only that high license is preferable to prohibition. It is true that temperance as an abstract virtue is very closely related to the subject-matter of the proposition, but it is not one of the real points at issue. When the question has been narrowed down to the method of dealing with the liquor traffic, each side may prove this point in the way which appears most effective. Each may assert that its method of control is preferable because theory and practice show it to be better for (a) social, (b) political, and (c) economic reasons. Any other division of the subject which seems effective may be adopted.

It is evident from the above illustration that certain matters which are relevant to the general subject should be eliminated in order that the audience may understand just what must be proved. Everything that is not relevant to the proposition as stated should be excluded.

(b) Admitting matters not vital to the argument.

Since the debater should not attempt to prove more than is necessary he should admit, in the beginning, such matters as may be admitted without detriment. Great care should be exercised at this point; nothing should be admitted the full bearing and significance of which the debater does not understand. Only matters which may be admitted with safety should be included. Otherwise an opponent may seize upon the admitted matter and turn it to his own advantage. Furthermore, the language used in making an admission should be carefully guarded lest an opponent ingeniously attach to it a meaning which was not intended.

With these cautions in mind it is well to continue the process of narrowing the question by admitting matters not vital to the argument. These admissions should be made in the beginning in order that they may appear in their true light as free admissions. For example, in the last question discussed both sides may safely admit that neither plan will wholly eliminate intemperance. The object is to adopt the plan which will minimize the effect of this evil. In the question, "Resolved, that physical valuation of the property of a corporation is the best basis for fixing taxation values," the affirmative may safely admit that no basis for fixing taxation values will work absolute justice to all tax-payers. This places the affirmative speakers in position to make plain to their hearers that the method advocated will come nearer to the goal of absolute justice than any other plan. In advocating any reform it is usually best to admit that it is not a cure-all for existent evils, but that it will remedy such evils to a greater extent than any other measure.

In conclusion, it is well to remember that these admissions and exclusions should be made plain rather than elaborate. They should be stated in the introduction of the argument with such brevity and clearness that the audience will realize that it is being led directly to the vital issues.

5. Contrasting the affirmative arguments with those of the negative.

Thus far we have been concerned with finding out the vital point at issue. It is here that the term question is most aptly applied to the proposition for debate, because when this vital point is revealed it is always found to appear in the form of a question. To be more specific, we found that in

analyzing the proposition, “Resolved, that the Federal Government should control all life insurance companies operating within the United States,” the vital point at issue as revealed by a study of the origin of the question was “Will the control of insurance companies by the Federal Government be more efficient than that exercised by the State Governments?” This treatment reveals the main point at issue in the form of a question. It shows that the issue is between State control on one side as compared with Federal control on the other. The affirmative must advocate Federal control and the negative must defend State control. The burden of proof is on the affirmative, for it must show that a change should be made in existing conditions. The risk of non-persuasion is upon the affirmative, because, if the position advocated cannot be maintained, existing conditions will continue.

It is well to remember that the burden of proof remains with the affirmative throughout the debate. It is frequently said that the burden of proof “shifts,” that is, that when the affirmative has produced enough evidence to make out a *prima facie* case, and has shown reason why the plan ought to be adopted, then the burden of proof shifts to the negative and it becomes the duty of the negative to show why the plan should not be adopted. This is not the correct view of the situation, for the affirmative is bound to prove the proposition in the face of all opposition. Therefore the burden of proof never “shifts;” it is the duty of producing evidence which “shifts.” When the affirmative shows reason why the proposition should be maintained, it puts upon the negative the duty of producing evidence to show that the affirmative reasoning is unsound or that there are more weighty arguments in favor of the negative. Thus it is that the duty of producing evidence shifts from one side to the other, but the burden of proof remains on the same party throughout the discussion.

The question upon which the debate hinges must be answered in one way by one side and in just the opposite way by the opponents of that side. In the question above referred to, “Will the control of insurance companies by the Federal Government be more efficient than that exercised by the State Governments?”, the affirmative must answer “Yes” and the negative must answer “No.”

At this point the next task of the analyst begins. He must determine the main reasons why the affirmative should answer “Yes” and the negative

should answer “No.” These main reasons when discovered and contrasted, those on the affirmative with those on the negative, will reveal the main issues of the proposition. When these are found the process of analysis is completed.

In undertaking the task of contrasting the affirmative contentions with those of the negative, the student must assume an absolutely unbiased attitude toward the proposition. The importance of this impartial viewpoint cannot be too strongly emphasized. To be able to view any subject with a mind free from prejudice is a most valuable asset.

With this proper mental attitude toward the proposition the analyst must take up both sides of the question and find the main arguments in support of each. He should not be deluded into thinking that it is only necessary to study one side of the question. A lawyer in preparing his case always takes into consideration the position of his opponent. In fact, so important is this task that many lawyers develop their antagonist’s case before beginning work on their own, and it frequently happens that more time is devoted to the arguments of the opposition than to the case upon which the lawyer is engaged. This careful study of an opponent’s arguments must always be included in the work of the debater, not only in the analysis of the question but throughout the entire argumentative process.

The way in which this part of the analytical process should be carried out is best made plain by a concrete example. We will take the proposition “Resolved, that immigration into the United States should be further restricted by law.” The origin of the question is found in the alarm shown by some people over the large number of undesirable foreigners coming to our shores. The question is “Should any of the immigrants now coming to our shores be prohibited from coming?” The affirmative say “Yes,” and the negative, “No.” Now to take the impartial viewpoint, why should there be any further restriction of immigration; why should the affirmative say “Yes” and the negative “No”? One of the chief affirmative arguments is that some of these immigrants are having a bad effect upon our country. Some of them are anarchists; some are members of criminal societies such as the Black Hand; some group by themselves in certain portions of large cities and form what are known as “Little Germanys”, “Little Spains”, “Little Italys”, etc.; some have contagious diseases; some have a very low standard of living and thus tend to drag down the standard of living of the American

workman; some are illiterate and do not make good citizens; some are easily made the dupes of city bosses and ward “heelers” and thus exert a harmful influence in our political affairs. These and various other reasons may be brought to support the affirmative argument that immigration is having a bad effect upon our country.

In considering the matter carefully we come to the conclusion that these are the chief reasons why immigration should be further restricted. Now, the unskilled debater would probably be content with framing these reasons into an argument and would proceed with a feeling that his position was impregnable. The skilled debater, however, does not feel content until he has viewed the whole subject impartially. Why do we not have more stringent immigration laws? It must be that the present laws are thought to be satisfactory. Why are they satisfactory? It must be because they now exclude the worst class of immigrants. Upon investigation we find this to be true. Let us look at the problem from a slightly different point of view. Why do we allow all of these immigrants to come in? They must be necessary to our welfare. They are necessary to develop the natural resources of our country; they add to the national power of production, they possess a money value as laborers; they ultimately become American citizens, and their children, educated in our public schools, become the most ardent of young Americans.

The above reflections from the standpoint of the negative lead us to ask a few questions which must be answered before we can answer the main question upon which the proposition hinges, namely: “Should any of the immigrants now coming into the United States be prohibited from coming?” These questions are, so far as we have been able to determine: “Are the present immigration laws satisfactory?”, “Do we need all the immigrants now coming to us?”, “Do the immigrants now coming to us have a bad effect upon our country?” These questions if answered “Yes” will establish the affirmative, and likewise if answered “No” will establish the negative. We may therefore conclude that these three questions contain the main issues of the proposition. The issues may be stated in different forms, but, if resolved to their essential elements, they will ultimately be found in these three questions.

The next step in contrasting the arguments is to write them down in such form that corresponding arguments can be set over against each other. For

convenience we adopt the following form:

Proposition:—Immigration should be further restricted by law.

Affirmative argument

Immigration should be further restricted, because

- I. It is a detriment to the country, for
 - 1. We now admit extreme socialists and anarchists.
 - 2. They form undesirable groups of foreigners in the congested parts of cities.
 - 3. They lower the standard of living of the American workman.
 - 4. Many of the immigrants now admitted do not make good citizens.
- II. The present laws are not satisfactory, for
 - 1. Black Hand societies show that undesirable persons are admitted.
 - 2. Diseased persons are admitted.
 - 3. Steamship lines help to evade the immigrant laws.
 - 4. Paupers are admitted.
- III. We do not need all the immigrants now coming to us, for
 - 1. The great necessity for laborers to develop our natural resources has passed.

Negative argument

Immigration should not be further restricted, because

- I. It is a benefit to the country, for
 - 1. The worst elements are now excluded.
 - 2. They are soon assimilated.
 - 3. They furnish examples of thrift to American workmen.
 - 4. They ultimately become good citizens.
- II. The present laws are satisfactory, for
 - 1. No law would exclude all undesirable immigrants.
 - 2. All persons having contagious diseases are excluded.
 - 3. Custom house officials are diligent in enforcing the laws.
 - 4. Paupers are not admitted.
- III. We need all the immigrants now coming to us, for
 - 1. We need them to develop our natural resources.

By contrasting the arguments thus tabulated we derive the following main issues.

I. Is immigration under existing conditions a detriment or a benefit to the country?

(The answer depends upon the answers to these subordinate questions.)

- 1. Is the undesirable element excluded?
- 2. Have the immigrants assimilated readily?
- 3. Do they exert a detrimental influence upon the standard of living of the American workman?

4. Do they make good citizens?

II. Are the present laws satisfactory?

1. Are they the most effective in excluding undesirable immigrants that it is possible to enact?

2. Do they exclude diseased persons?

3. Do the present laws exclude paupers?

4. Are the present laws enforced?

III. Do we need all the immigrants now coming to us?

1. Do we still need all the immigrants we can get to develop our natural resources?

This arrangement of the affirmative and negative arguments places the whole matter, so far as it has been worked out, before the student in tangible form. It also affords a basis for the formal statement of the main issues. The plan of analysis thus set forth should now be examined with a critical eye. Here arise some of the most difficult problems of argumentation. In the first place, is the analysis presented an exhaustive one? Does it include the entire field of argument? It includes the proposed immigration laws and their probable effects. It includes the present laws and their effects. From these two facts it is evident that the analysis covers the entire field of the proposed change in the immigration laws.

Before passing final judgment upon the thoroughness of the analysis, there are at least two other plans which may be applied to the question to see whether either of them will afford a better method of treatment than the foregoing. The first of these plans includes the division of the question into three parts; viz. (1) political, (2) social, and (3) economic. An examination of the question just discussed will show that all the material suggested in the formal analysis could be grouped under one or the other of these heads. For example, the anarchists, Black Hand societies, etc. would come under "political;" the question of assimilation would come under "social;" while the effect upon the American workman and the question of the development of our natural resources would come under "economic."

This division may be applied to many questions, but it is well suited to only a limited number. In fact, some eminent authorities are of the opinion that it is almost never to be recommended. It is not as well adapted to the immigration question as the division already made, for the reason that it would be necessary to include some of the subject-matter under two separate heads. For example, the Little Spains, Little Italys, etc., mentioned

above, might require treatment under the social and political divisions and even under the heading of economics. This is objectionable, because it requires a duplication of the statement of facts under each head, and also because it is not conducive to the clean, clear-cut thinking which is the result of a sharp division of the subject into parts which do not overlap.

The second plan of analysis, which forms a good working basis for many propositions, is that of dividing the subject into three parts, namely, (1) Necessity, (2) Practicability, and (3) Justice. This division of the subject is often applicable to propositions which advocate the adoption of some new plan of action, as, "Resolved, that the Federal Government should levy a progressive inheritance tax," or "Resolved, that cities of the United States, having a population of over 5,000, should adopt the commission form of government."

These and similar questions may be analyzed by one of the two plans stated above, but it is well to beware adopting one or the other of these methods merely because it affords an easy way out of the task of analyzing the proposition. That analysis of a question should be adopted which reveals the main issues of the proposition in the clearest and most direct manner.

SUMMARY OF ESSENTIAL STEPS IN ANALYSIS

1. A broad view of the subject.
2. The origin and history of the question.
3. Definition of terms.
4. Narrowing the question.
 - (1) Excluding irrelevant matter.
 - (2) Admitting matters not vital to the argument.
5. Contrasting the affirmative arguments with those of the negative.

III. The main issues.

The process of analysis with which we are dealing has revealed the main issues of the proposition. It now becomes the duty of the debater to arrange the issues in logical and climactic order. The most forcible array of argument should come at the end. For example, in the question just

analyzed the logical as well as the climactic order of arrangement for the main issues on the affirmative would be as follows:

- I. The present laws are not satisfactory.
- II. We do not need all the immigrants now coming to us.
- III. Immigration (under the present system) is a detriment to the country.

This analysis should be the result of a thorough study of both sides of the whole proposition. If the task has been well done no change in the essential elements of the analysis will become necessary. However, as the investigation of the subject progresses, and the work of collecting evidence leads the student into a more intimate acquaintance with the proposition, it may be found advisable to make some alterations in the analysis first written out. Such alterations should be made only after careful deliberation, for it often happens that, in investigating a subject at close range, one loses the broad general view which is necessary to an intelligent analysis. It may even become necessary for a beginner to change his entire plan after he has made a more thorough investigation of the subject. In such an event the work originally spent in analysis should not be regarded as lost, because it is absolutely necessary that the student have some definite plan as a basis for his investigation. If it does no more than show him that he is wrong, the time spent on it cannot be said to be wasted. In any event, the student should keep his mind open for the reception of ideas which will make his analysis clearer, briefer, and more forcible.

EXERCISES IN ANALYSIS

1. Write out a complete analysis of one of the local questions phrased for Exercise 1, Chapter II.
2. Show the importance of the origin and history of the question in the analysis of each of the following propositions:
 - (1) Three-fourths of a jury should be competent to render a verdict in all criminal cases.
 - (2) Public libraries should be open on Sundays.
 - (3) The growth of large fortunes should be checked by a graduated income tax.
 - (4) United States senators should be elected by direct vote of the people.
 - (5) National party lines should be discarded in municipal elections.
 - (6) The membership of the national House of Representatives should be considerably reduced.
3. Define the terms which need defining in the above propositions. From what source or sources should these definitions be taken?
4. Write out a complete analysis of one of the questions given under Exercise 2.

CHAPTER IV

EVIDENCE

The analysis of the question has revealed the main issues. The next step in the argumentative process is to prove the truth of these main issues by producing evidence. Evidence consists of the material by which the truth or falsity of a proposition is proved. It is an error to use the terms “proof” and “evidence” as synonymous. Proof is the result or effect of evidence; evidence is the material of proof. A thing is not proved until sufficient evidence has been produced to establish it. The most accurate logicians make this distinction and it is well to observe it in the study of argumentation. A given fact is not proof of the truth of a statement unless it alone is sufficient to establish such truth; otherwise it is merely evidence tending to show that the statement is true. This distinction should be kept clearly in mind, and no fact should be offered as complete proof when it is only evidence tending to support a given proposition.

The student is now confronted with the necessity of establishing his proposition by presenting evidence in support of the main issues. The first problem which naturally comes to him is: “Where shall I go to find this evidence?” In answering this question the student should consult carefully, one by one, each of the following:

I. Sources of evidence:

1. Personal knowledge.

Before turning to outside sources the student should carefully examine the contents of his own mind to determine just how much he really knows about the subject. He should, however, distinguish between exact knowledge and mere conjecture. His exact knowledge, gained from

whatever source, is perfectly valid from the standpoint of evidence providing it can be proved. The line between exact knowledge and mere conjecture is determined by the ability of the student to lay his hands upon sufficient evidence to prove the thing that he believes to be true.

2. Personal interviews.

If the question is a local one personal interviews are both practicable and valuable. Interviews with persons who are connected in some way with the subject of dispute, or who are in a position to have exact knowledge of the subject-matter, or who are taking an active part in the local discussion of the subject, are a most important source of evidence. Interviews with such persons not only give the student facts, reasons, and opinions, but they usually reveal other sources to which he can go directly. For example, in a local debate on the question of whether the city, or the street railway company should bear the expenses of building a bridge which they used in common, the debaters obtained personal interviews with all the city officials having anything to do with the bridge, and with the officials of the street railway company. Prominent citizens and business men of the city were also interviewed. These interviews were productive of a large amount of material in the form of facts, reasons, illustrations, opinions, and references to other sources of material. In the discussion of any local question the debater will usually find the parties concerned willing, and even eager to give him “ammunition” for the debate.

In collecting evidence on questions which deal with the problems of commerce, taxation, economics, politics, and education, the student will usually find some men whose opinions are entitled to careful consideration and with whom interviews may be arranged. Whether these men are quoted as authority will, of course, depend upon their known reputation in the branch of knowledge upon which their opinion is asked. Even if the debater does not think it best to quote the person interviewed, he may gain from him much valuable help. Arguments reasoned out from the facts of a case depend for their worth upon the validity of the reasoning process and not upon their source. Therefore the arguments of any well-informed, intelligent person, if based upon facts and logically sound, can be utilized. Moreover, such persons are often able to give information regarding sources

of evidence which may have escaped notice. The college student would do well to consult the members of the faculty whose work would make them familiar with the subject-matter of the argument. The student should by no means pass lightly over this source of material. In fact, such sources should be exhausted before a more extended search for evidence is entered upon. Furthermore, a discussion of the subject with these well-informed people will beget new ideas and give a breadth of view regarding the subject which will be helpful in subsequent investigation.

3. Personal letters.

After the student has gained some knowledge regarding the most eminent authorities on the subject under discussion, he may feel at liberty to address some of them with a personal letter. This letter should be brief and to the point, stating just what is wanted. If questions are asked they should be brief and plain. The use to which the reply is to be put should be stated.

If the question is one with which national, state, or municipal officials are concerned personal letters may be written to them. If this is carefully done in accordance with the foregoing suggestions, a prompt reply is almost always assured. An opinion expressed in a personal letter from a national or state official, or any information given by him, is usually looked upon with considerable respect.

Still another class of men to whom personal letters may be written with profit consists of the well known officials of large sectional and national associations such as the American Bar Association, the American Federation of Labor, and the National Manufacturers Association. The officials of these and other similar associations are usually well pleased to be consulted upon the questions in which their opinions are regarded with respect. Although the debater should not carry on a correspondence campaign for material, yet he should not hesitate to write for facts and opinions which are of vital importance.

4. Current literature.

Current literature offers the most prolific field of information on subjects of general interest. This source of material is always available to the debater. His first efforts should be directed to finding out what this field contains that bears directly on the subject. With this object in view he should consult *The Reader's Guide*, *Poole's Index* and the *Annual Library Index*. Here he will find all the important magazine articles that have been written on any subject. The title of the article, the name of the writer, the magazine in which it is found, together with the date, volume, and page, are given exactly. This opens a great storehouse of information. In consulting these guides to periodic literature the investigator should exercise his ingenuity as well as his imagination in determining under what topics he will find his material listed. In investigating the proposition "Resolved, that Congress should immediately provide for an increase in the navy," the student must not be content with merely looking up the articles found listed in the guide under the topic "Navy." He should also look under "Battleships", "Warships", "Dreadnoughts", "International Peace", "Foreign Affairs", etc. At the end of these lists cross-references to related subjects will be found and these should also be consulted.

The student should go over the list of articles carefully and make out a bibliography^[2] of magazine references. Titles of all articles which appear to have a bearing on the subject should be taken down in full. This process of going over the lists in search of pertinent articles should be repeated from time to time throughout the investigation, because as the student's knowledge of the subject broadens he will get more clearly in mind the exact nature of the information which he requires. The bibliography will save much time in getting at the most valuable material in current literature.

². A bibliography (as the term is here used) is a list of books and periodicals on any one subject with exact references to volumes, page, etc.

The student can now select from the great number of articles before him those which appear to be most valuable. The most valuable articles are those which (a) bear directly upon some main issue of the question and (b) are written by recognized authorities on the subject. If the writer of any particular article is unknown to the student he should consult "*Who's Who in America*." Here are arranged in alphabetical order the names of all the men in America who have attained distinction in any line of endeavor. In connection with each name there is given a brief biography which sets forth

the positions that individual has held, honors which have been bestowed upon him, important work in which he has been engaged, and any other facts which might tend to give weight to his utterances. Foreign authorities should be investigated by consulting the encyclopedias, the *Who's Who* volume (if available) of the particular country to which the writer belongs, or by referring to other prominent writers. Throughout the entire investigation "*Who's Who in America*" should be consulted as an authority on the standing of men to whose work the debater wishes to refer. This method of using "*Who's Who*" and the bibliography brings the student directly to the best sources of material which can be found in current literature.

As indicated above, the real criterion of the value of an article in a magazine is the standing of the man who wrote it. However, certain periodicals have come to be looked upon with such respect by students and scholars that all articles appearing in them are given considerable weight. This reputation which is sustained by certain publications results from the care with which the editors have selected the material put into the magazine. They have been careful to allow only capable writers to contribute to their periodicals in the past, and, we may assume (although this is sometimes a violent assumption) that this careful supervision will continue in the future. Moreover, the editorials of these magazines are looked upon as good authority. For the convenience of the student the following list of magazines is suggested as reliable sources of evidence.

- (1) *The North American Review.*
- (2) *The Literary Digest.*
- (3) *The Independent.*
- (4) *World's Work.*
- (5) *Review of Reviews.*
- (6) *The Annals of the American Academy of Political and Social Science.*
- (7) *Columbia University Studies in History, Economics, and Public Law.*

The last two publications are somewhat different from the others mentioned in the list, but they are included because they are important and are usually available in libraries having the other publications enumerated. This list is not intended as a complete and exhaustive list but merely as a suggestion to the student in search of material. It is not intended to depreciate the value of any publication not included in the list. However,

the student should beware of relying upon material found in any magazine merely because the publication poses as a magazine instead of as a newspaper or story book. Some of the popular magazines which appear to be manufactured for the sole purpose of being sold, make an attempt at sensationalism rather than truth. Such periodicals should never be relied upon as authority.

Another source of evidence found in current literature is the technical and professional magazine. Almost every trade and profession has one or more reliable magazines. In the fields of medicine, law, banking, contracting, engineering, etc., are many periodicals. Each offers articles by reliable writers on almost all phases of the particular branch of learning to which the magazine is devoted. Prominent among the technical magazines that may be quoted as authority is the *Engineering News*. This periodical offers much valuable material on all the important engineering problems of the day.

Magazine articles, outside of the technical and professional magazine, are usually written for the layman; hence the subjects are usually presented in a manner easy to understand. This is especially important to the student at the beginning of his investigation when his knowledge of the subject is limited. Simplicity of treatment and accuracy of statement combined with an almost boundless range of subject-matter make current literature a most valuable source of evidence.

5. *Standard literature.*

Under this head are included all the reliable encyclopedias, reference works, text-books, and books on special subjects written by experts and authorities. For brief, accurate, and authoritative articles of a general character, the encyclopedias are most valuable. The best works of this class are *Britannica*, *Chambers'*, *Nelson's*, *Johnson's*, *Appleton's*, *Appleton's Annual Cyclopedia*, and *Bliss' Encyclopedia of Social Reform*. Text-books and special works by authorities on all subjects are very numerous. For this source of material it is best to consult the catalogue of a library. Here will be found under the author's name all of his works that are in the library. After the student has found out by personal interviews, reading current literature, etc., who are the most reliable writers on the subject in hand, he

should always consult this index of authors to determine whether any of their books are available. The catalogue of the library usually classifies the books also according to subject-matter. Therefore by consulting this catalogue all the books on this particular subject contained in the library may be made accessible. Here again, as in the case of the index to periodic literature, the investigator must use his ingenuity in determining under what heads he may find his most valuable material.

6. *Special documents.*

(1) *Reports and pamphlets issued by organizations.*

In order to gain access to this sort of material it is usually necessary to write to the headquarters of the organizations. In most cases their reports and other printed matter may be had for the asking, although in some cases a charge is made. The student, however, can usually obtain sufficient material of this character without any cost to himself other than the small outlay necessary for postage. In the larger schools and colleges it is now becoming customary for the debating teams to have letter heads printed. These state the name of the institution or of the debating league to which the institution belongs, the names of the members of the team, and the question for debate. While this procedure is unnecessary for class debates or written arguments, or even for society or college debates, it is at least desirable in the preparation for an intercollegiate debate such as is held between members of large debating leagues. By this use of letter heads in writing to the officials of organizations, as well as to private individuals, a full and more careful response is almost always secured. However, in most cases a request for reports or other material, with a statement of the use to which they are to be put, is all that is necessary to bring a prompt reply. Almost all the important trades and professions have national organizations which are ready to aid in the distribution of knowledge in their several spheres. Among organizations of a professional character may be mentioned the American Bar Association, the American Chemical Society, and the National Education Association. Among industrial organizations, the

American Federation of Labor, and the National Manufacturers Association are probably the most important.

Organizations having for their object the bringing about of certain reforms in our social or political life are always willing to send material for use in the discussion of questions in which they are interested. Among these may be mentioned the International Reform Bureau, the Anti-Saloon League, the Lake Mohonk Conference on International Arbitration, the American Peace Society, and the New York Reform Club. It is well worth while for the student who is investigating any of the questions in which these associations are interested to write them for material.

In special branches of learning there are various organizations which publish both reports of their meetings and special reports on subjects connected with their work. The American Historical Association, and the American Economic Association belong to this class. Other organizations of this character will be brought to the attention of the student before he has advanced far in the study of any proposition.

(2) Reports and documents issued by the government.

Government documents and reports, especially those issued by the Federal government, are among the most valuable sources of evidence. The authors or compilers of these reports are men whose official positions enable them to obtain accurate information. Furthermore, these men have usually passed a civil service, or other examination, and thus demonstrated their ability to perform the tasks assigned; or on account of favorable reputation have been elected or appointed to fill the positions for which they are well qualified. Their action is taken purely as governmental agents and, from the nature of their office and the requirements of public opinion, that action and all information gathered conform approximately to the facts. For these reasons governmental reports and documents are looked upon as the highest authority on the subjects with which they deal, and anyone who argues can offer no better evidence than a basis of fact backed up by definite references to official government documents.

One of the most useful documents of this class is the *United States Census Report*. This report contains not only the *population statistics* but

also other funds of information even more valuable to the student. In it there are vital statistics, statistics on labor, manufacturing, commerce, and a multitude of other subjects which the student dealing with any economic or commercial proposition cannot overlook. If accurate information is required regarding any phase of our national growth or present activity the census report should be consulted before any other source of evidence.

Another most important source of evidence is the *Report of the United States Industrial Commission*. This report comprises nineteen volumes, the last of which (Vol. 19) contains valuable material, together with the recommendations of the commission, in regard to almost all the leading industrial and economic questions which are now being discussed. The report as a whole covers the entire industrial field in this country and offers a reliable and exhaustive fund of information.

In the *Congressional Record* can be found discussions, both affirmative and negative, of all the public questions which have come before either branch of Congress. This source of material is very suggestive but it is not always trustworthy. It should not be quoted in itself as an authority. The mere fact that one may refer to a certain volume and page of the *Congressional Record* on which a certain statement appears is no proof of the truth of that statement. The material which it contains is mainly the reports of speeches. The record is official and authoritative so far as concerns what was said in those speeches. However, the value of the thing said depends upon the man who said it. Therefore, the debater should quote Representative Douglas, or Senator Burton as saying so-and-so which is found in such a volume and on such a page of the *Congressional Record*. With this caution in mind, viz., that it is the man who is quoted and not the mere fact of its appearance in the *Congressional Record* that gives weight to a statement, the student should utilize this source of evidence. The index of these records is decidedly awkward for a beginner, but the material contained therein is so important that some little time may well be spent in making the acquaintance of the indexing system. The *Congressional Record* is indexed under three heads, (1) names, (2) subjects, and (3) bills by their official numbers. A great mass of material will be found under subjects, but after the student has accustomed himself to using the index he can readily find the material which he desires to read. The *Congressional Documents* which contain reports from the executive departments and the legislative committees are divided for each session of Congress into six groups: (1)

Senate Executive Documents, (2) *Senate Miscellaneous*, (3) *Senate Reports* (of committees), (4) *House Executive Documents*, (5) *House Miscellaneous*, (6) *House Reports* (of committees). A *Document Index* for each session of Congress will be found in connection with these volumes.

Any school or library, or in fact any individual, may obtain valuable lists of government publications by writing to the Library of Congress or to the Superintendent of Documents. From time to time the Library of Congress publishes special books and articles on such subjects as Taxation of Inheritance, Tariffs of Foreign Nations, Capital and Labor, and many other questions of national importance.

In addition to the publications of the national government, reports issued by the various states and municipalities should be investigated. For example, in discussing a question of taxation the amount of tax derived by each state from a certain source may become important. If this information cannot be found already compiled, it may be obtained by writing to the secretary, treasurer, or auditor of each state and asking for the report in which such information is published. If it be a source of taxation used only in a part of the states, the student should compile a list of the states in which it is used and write to the officials in those states only.

In the discussion of municipal problems, such as municipal ownership of public utilities, the commission form of city government, etc., it is well to write to the cities in which these plans have been tried and get such reports as will show the results.

A careful investigation of all the sources here set forth will yield information sufficiently broad and varied for the argumentative discussion of any subject. However, the student may well consult other text-books on Argumentation and Debate for the purpose of getting suggestions regarding the sources of material which will be useful to him. Books of briefs for debates and reports of debates are published, which give helpful suggestions regarding material or evidence on many of the most important questions. As advancement is made in the practical work of investigating subjects for argumentative treatment, facility in utilizing the sources of evidence will be acquired. At first the time spent in the investigation of some sources, especially standard literature and government documents, may not appear to yield the practical results which time well expended ought to yield. Here a word of caution is necessary, for time spent in this

manner should never be regarded as wasted. It is not wasted, because the student is acquiring the power to investigate subjects on his own responsibility, and the ability to skim rapidly over large masses of material and select only the things that are really useful. It is only after long periods of such diligent work that the student can feel himself master of the resources of great libraries, and an expert in the use of the sources of evidence.

SUMMARY OF THE SOURCES OF EVIDENCE

1. Personal knowledge.
2. Personal interviews.
3. Personal letters.
4. Current literature.
5. Standard literature.
6. Special documents.
 - (1) Reports and pamphlets issued by organizations.
 - (2) Reports and documents issued by the government.

II. Recording evidence.

After an acquaintance with the sources of evidence is gained the necessity for some orderly method or system of taking notes becomes apparent. This is the next important step in argumentation. The investigator should not rely upon his memory. Notes should be taken on every source of evidence discussed in the preceding section. An idea rarely becomes our own until it has been expressed in our own words. As ideas on the subject for discussion occur to the debater's mind they should be recorded in order that they may be at hand when required. Opinions expressed and information acquired in personal interviews should be recorded either during the interview or immediately after. It is preferable to devote one's attention exclusively to an interview, and then record the results as soon as possible after its termination. Even the ideas expressed in personal letters and extracts from them should be written down by the student in order that he may have them in convenient form for reference. The futility of reading without taking notes is apparent at first thought. Notes should be taken at

the time the reading is done. All important matters of fact and all quotable matters should be recorded during the reading. Even if a particular fact does not appear to bear directly on the phase of the subject under discussion, it should, nevertheless, be recorded. It may later prove to be valuable evidence.

The notes taken should be full and complete. This requirement applies to the substance of the material and not to its form. In most cases the reader should be able to condense the contents of a page into a few words. The point or points which the writer regarded as vital should be grasped by the reader and put down in a brief note. Statistics found in different places should be assembled and reduced to tabular form. The student must not only read, but he must think as well. New ideas, new combinations of circumstances, new relations made evident by grouping facts should all be carefully investigated and noted. Reading should be an intelligent process, not mere drudgery. The reader should assimilate, not merely store up, the knowledge gained from books.

In the recording of evidence the following rules should be strictly observed:

1. Use small cards or sheets of paper of uniform size.

A note-book or large sheets of paper should never be used. To do so is to invite confusion. With several points on one sheet of paper or in a note-book and recorded in the order in which they were found in the reading, the student is not left free to group the ideas or points to form his argument; no classification is possible, and the notes taken become mere masses of material. The best form in which to record material is by the use of the ordinary filing cards which may be obtained at almost any book store. These cards should be about three by five inches in size and of fairly heavy stock. Ruled cards with a red line at the top are the kind most frequently used. If these cards cannot be obtained, small pieces of paper of this same convenient size should be used.

2. Place only one fact or point on each card.

Never put more than one fact or point on the same card. Even though the facts to be recorded are intimately related in their present position, the reader should use a separate card for each. When the investigator is ready to use these facts the relation may be unimportant or may be entirely changed by the manner in which he wishes to use them. One statement may be used to support one argument, while another may be used to support an entirely separate argument. Furthermore, when this material is utilized in constructing the brief, the student must be left free to arrange his material in the most logical manner. To put more than one point on a card greatly hampers this work.

3. Write on only one side of the card.

The handling of these cards becomes a very awkward process if writing is placed on both sides. Otherwise the process is simplicity itself. To depart from this rule in a single instance may involve the loss of an important point of evidence. This point may remain forgotten on the back of a card used frequently.

4. Express the idea to be put on the card in the simplest and most direct terms.

In the reading, an idea should be considered only in its relation to the reader's present purpose. When this view is taken the condensation of lengthy articles into a few terse expressions becomes an easy matter. Moreover, it trains the reader to grasp the point, and to express that point in the simplest and most direct manner. This training enables the reader to cover a much wider field than would otherwise be possible.

5. Each card should be complete in itself.

By a strict application of Rule 4 the student ought soon to acquire such facility in condensation that each card will be complete in itself. It is very

awkward to have one idea or point written on several cards. When such an arrangement cannot be avoided the cards should, of course, be lettered or numbered to indicate their proper order. These cards should be placed by themselves in company with other like series and kept separate from the single cards. Some manner of distinguishing such series of cards should be devised. The first series which it is necessary to make in order to record a complete point, or idea, or argument may be marked A1, A2, A3, etc. The second series may be marked B1, B2, B3, etc. While this method may be adopted in unusual cases, the general rule should seldom be departed from. By diligent efforts at intelligent condensation, almost every point, idea, fact, or argument may be put upon a single card. The observance of this rule will insure a good command of the material on the part of the investigator and will reduce the evidence to convenient form.

The same rule should apply to the use of quotations. Seldom if ever should a lengthy quotation be used. If some passages are especially clear and forcible they should be quoted exactly and put in quotation marks. Omissions should be indicated by the use of dots, thus: ... Condensations by the student, included in the quotation, or any comments or explanations, should be enclosed in brackets, [thus].

6. Material for refutation should be preceded (at the top of the card) by an exact statement of the argument to be refuted.

In some cases a single word or phrase may be sufficient to indicate the argument to which the refutation is intended to apply, but in most cases this argument should be indicated fully by means of a complete statement. This condensing of the arguments of the opposition into brief, intelligible statements will also be of great use when the material is put into either the main argument or the rebuttal.

7. The main issue or subject to which the evidence relates should be stated at the top of the card.

The subject stated at the top of the card should represent exactly the subject-matter on the card. If this subject-matter comes clearly under one of the main issues which the analysis has revealed this main issue may be stated at the top of the card as its subject. If, however, the student is unable to determine exactly under what main issue the fact recorded on the card will come, he should state a subject at the top of the card which will indicate precisely the material found upon it. The classification of the card can then be left to a later part of the process. In investigating a subject in which the main issues have been determined to be (1) Necessity, (2) Practicability, and (3) Justice, a card which states one of the evils which the proposed plan is designed to remedy should not be marked "Justice;" it should be marked "Necessity," because it is this particular evil and like evils which make the adoption of the proposed measure necessary.

If the card relates to some special topic that the main issue is too broad to identify, then that special topic and not the broad main issue should be stated at the top of the card. For example, a card coming under Necessity may still more appropriately be classed under Political Influence, because that title more nearly indicates the evidence stated on the card. Therefore the subject should be Political Influence. Later, when the cards are being used in the construction of the brief, this card may be placed with others under the title Political Influence and then all the cards under this topic placed with those covering other topics under the head of Necessity.

8. The source from which the evidence is taken should be definitely stated at the bottom of the card.

This should be done at the time the cards are written out. Otherwise the reference when wanted, either cannot be found or can be found only with great loss of time. The exact reference is important not only to show definitely the source of authority from which the evidence is taken, but also to enable the student to return to the same source for further details in case they become necessary. In the case of a letter or a personal interview the name of the authority consulted should be given together with the date of the letter or the time and place of the interview. A magazine article should be referred to by the name of the magazine, with the volume and page. The name of the writer should also be given unless the article is an editorial, in

which case that fact should be stated. A report or document in several volumes should be quoted by volume and page. Books should be referred to by their author, title, and page.

The following diagram shows the form in which evidence should be recorded:

<i>Subject</i>		<i>Authority</i>
<i>Evidence</i>		
<i>Source of Evidence.</i>		

For example, a student in preparing for a class debate on the tariff question handed in a number of cards on the necessity for protection, of which the following is a sample:

<i>Subject:</i> <i>Protection not needed.</i>	<i>Authority:</i> <i>Richard T. Ely.</i>
“Our quondam infant industries have for the most part, attained a very vigorous maturity, and in some instances have become belligerent and prone to monopolistic bullying.”	
<i>Source:</i> Outlines of Economics, p. 312.	

SUMMARY OF THE REQUIREMENTS FOR RECORDING EVIDENCE

1. Use small cards or sheets of paper of a uniform size.
2. Place only one fact or point on each card.
3. Write only on one side of the card.
4. Express the idea to be put on the card in the simplest and most direct terms.
5. Each card should be complete in itself.
6. Material for refutation should be preceded at the top of the card by an exact statement of the argument to be refuted.
7. The main issues or subjects to which the evidence relates should be stated at the top of the card.
8. The source from which the evidence is taken should be definitely stated at the bottom of the card.

III. Selecting evidence.

All the reliable evidence obtainable should be collected before the selection of the exact evidence which is to go into the argument is begun. If

the student has confined his collecting to the sources of evidence suggested in the first section of this chapter, the presumption will be in favor of its reliability. This presumption may be strengthened and in some instances turned into certainty by a selection made in accordance with the rules which it is the object of this section to present.

It is of the utmost importance that a large amount of evidence from which to construct the brief and argument be available. It is only in this way that the strongest evidence obtainable can be brought to the support of the argument. All the evidence used must be relevant but not all the evidence that is relevant need be used. The following rules should be observed in the selection of evidence:

1. The evidence must come from the most reliable source to which it can be traced.

All the evidence collected must have back of it some reliable source, as indicated in the discussion of Sources of Authority. The more trustworthy this source the more valuable is the evidence and the greater the weight given to it. Therefore "the evidence must come from the most reliable source to which it can be traced." Every fact offered in evidence comes from some definite source. If this source cannot be found the fact should be discarded as worthless. To illustrate, in the investigation of a subject, a fellow-student may know some fact which is a most important piece of evidence in your favor. He may tell you about this fact, but you would not think of going into the debate and quoting one of your fellow-students as authority. Therefore you will at once ask the student from what source he obtained knowledge of the fact. He may reply that he has seen it in a newspaper article. But since a newspaper is usually of little value as an authority, you cannot rely upon its statement. Therefore you inquire from what source the newspaper obtained it. By consulting the newspaper it is found that the statement is made in an editorial which comments upon an article found in the *North American Review*. You must then consult the number of the *North American Review* to which reference is made. This is fairly reliable, and anyone would feel justified in quoting it as the source of his evidence, although he would not feel justified in quoting the statement of a fellow-student or the statement of a newspaper.

If the statement is one which is an opinion of the editor of the *North American Review*, or if for any other reason it cannot be traced back of this source, *North American Review*, volume and page, should be quoted as the source of the evidence. But suppose that the statement can be traced to its original source. To be more concrete, let us assume that the statement is to the effect that there is a surplus of over one million dollars in the United States treasury. For such a statement the *North American Review* is not the most reliable source. In this case the most reliable source is the *Report of the Treasurer of the United States*, which can be found in almost any library. When this fact is located the student should make an exact statement of the amount of the surplus and refer to the *Report of the United States Treasurer*.

Thus the fact to be used is traced through the statement of a fellow-student, through the editorial in the newspaper, through the article in the *North American Review*, back to its original and trustworthy source—the *Report of the Treasurer of the United States*. In this manner every fact presented must be traced to its most trustworthy source. In quoting the opinions of individuals the same principle should be applied. The greater the learning, ability, and reputation of the person quoted, the greater is the weight attached to his opinions.

In almost every branch of human endeavor and in every field of knowledge there are a few men who possess especial ability. By common consensus of opinion these men are regarded as authorities and their statements of fact or judgment are accepted as the most trustworthy. For example, the statements of Ely, Seligman, and Seager in the field of economics, and the statements of J. P. Morgan, and Andrew Carnegie in the field of industry and finance, are regarded as good authority. In chemistry the statements of Dr. Ira Remsen would be considered good, while in regard to psychology one could do no better than to quote the opinions of Hugo Münsterberg. Regarding the wireless telegraph, Marconi would be the most reliable source, while in the field of aërial navigation the opinion of the Wright brothers could be quoted as the most reliable. Instances of reputable sources of evidence could be cited sufficient in number to cover many pages, but the few here suggested will serve to illustrate the class of authority to which all points of evidence should be traced.

2. A person quoted as authority must be unprejudiced, in full possession of the facts, and capable of giving expert testimony on the point at issue.

In the preceding section reliable sources of evidence have been indicated in a general way. It is, however, by no means possible in the treatment of all subjects to cite authorities so universally accepted. The opinions of persons who are not known to the general public may be given weight by means of their official position, their special work or investigation in any line, or by the favorable statements of recognized authorities regarding them or their work. As previously suggested, *Who's Who in America*, is a storehouse of information regarding such people.

An opinion or even a statement of fact is not likely to be looked upon with favor unless it comes from an unprejudiced source. It is not so much the question of actual prejudice existing in the mind of the person quoted as it is the surrounding circumstances which would naturally tend to cause prejudice. For example, the statement of John D. Rockefeller, in regard to the beneficent effect of monopolies on trade and commerce, might be perfectly sincere, but since John D. Rockefeller has a financial interest in the maintaining of a monopoly, it would not be advisable to quote his statements in their favor. Such statements are not only easily refuted but they lack weight because they do not appear to come from an unprejudiced source. In like manner the President of the Brewers' Association would not be accepted as authority on any matter connected with the prohibition of the liquor traffic. From the very circumstance of his position he is presumed to be prejudiced against such prohibition. The person cited as authority should have no financial interest in the subject on which he is quoted. He should be in a position to be unprejudiced.

The person quoted as authority must be in full possession of all the necessary facts. Very often this knowledge of facts may be presumed from the position which the authority occupies. The Secretary of the Navy is presumed to be in full possession of all the general facts concerning his department. The captain of a battleship would be presumed to know all the essential facts in regard to his ship. An engineer on the Panama Canal would be presumed to be in a position to know, and actually to know, facts connected with the duties of his position. The authority quoted must be in

full possession of the facts which he is quoted to prove, or upon which his opinion is based.

Regarding the capability of an authority to give expert evidence much has been said. It is well to remember, however, that the opinion of fact or judgment must be in the field of the authority's professional knowledge. The most eminent chemist in the United States would not be considered proper authority on an economic question; much less would the most eminent economist be considered good authority on some problem in chemistry. The President of the United States might be quoted as the highest authority on the political situation, while his opinion on some technical problem of engineering would fall before a counter opinion by an eminent engineer. In quoting an authority to establish an important point in evidence it is often advisable to show directly that he is unprejudiced, in full possession of the facts, and capable of giving expert testimony.

3. Evidence should be examined to determine whether there are attendant circumstances which will add to its weight.

It often happens that evidence which is good in itself is given still greater weight by some special circumstances. The law recognizes and gives much weight to "Declarations against Interest," and such declarations are as valuable in argumentation as in law. A declaration against interest is a statement of fact or opinion made by a party before the subject became a matter of controversy, which statement is now against the interest of the person making it. To illustrate, let us suppose that John D. Rockefeller had made a statement opposing the formation of monopolies. At present he wishes to argue in favor of monopolies. The statement which he previously made and which was an expression against monopolies now becomes a "declaration against interest." Likewise any statement made in regard to a subject before the party making it becomes interested therein financially may be used against him when the matter becomes one of controversy and he wishes to take a different position.

Of equal value is the opinion frankly expressed, by one whose personal interests are opposed to the statement made. Such statements are sometimes made by public spirited men in the interests of right and justice. An

illustration in point is that of the banker who admitted that the postal savings bank would be a benefit to the people at large, although he recognized the fact that it would injure the business of the private banker, a class to which he himself belonged. Such statements are of the utmost importance when they come from leading members of the class against which they constitute admissions. Statements made by persons who express their views in accordance with what appears to them to be right and without the knowledge that they are talking against their own interests may likewise be used as admissions. Such were the statements of a citizen who favored the building of an elevated railroad in his city. He believed that such a highway would relieve the congested condition of the streets and thus benefit the public. When the route for the proposed road was definitely located he found that it would result in irreparable damage to his private business. Although he at once changed his view on the subject, his previous admissions were used against him with such effect that his new arguments had no weight in the final determination of the matter.

It very often happens that a well known authority frequently used by the opponents of a proposition has changed his opinions or expressed himself more definitely in such a way as to favor the speaker's contentions. Advantage should always be taken of such a state of affairs. It is a most strategic move to be able to quote an opponent's authority against him. One should be sure, however, that the authority quoted is such as will be accepted. Otherwise it is better to attack the validity of this authority.

The above suggestions and illustrations are offered purely by way of inducing the student to keep a sharp lookout for points in his favor. There are many ways in which the attendant circumstances may be used to give greater weight to the evidence offered.

4. The selection of evidence must be fair and reasonable.

An advocate of any cause, public or private, must have as a basis for his argument a genuine regard for right and justice. Therefore he is bound to exercise due care in making sure that the selection of evidence is fair and reasonable. No one who argues can gain any permanent advantage from the use of unfair methods. In using quotations from authority be sure that the

words used indicate exactly the position of that authority. By skillful omissions a reputable authority may be made to defend almost any position. In the use of statistics the temptation to juggle is sometimes strong. Statistics, by skillful combinations and omissions, can be made to prove an absolute lie. In discussing the income from a kind of state tax which is utilized in all the most important states in the Union, the student who selected the states of Nevada, South Dakota, and Rhode Island to show that the income derived from the tax was a substantial source of revenue, must have succeeded only in proving to his audience that he had had great difficulty in finding states in which the tax had proved to be a success. Had he been able to produce statistics to show that Massachusetts, New York, Pennsylvania, Ohio, Illinois and other large and populous states were using his form of taxation with success, his chance of persuading his hearers would have been incalculably increased.

Not only must evidence be fairly selected but it must be reasonable as well. No statement which is contrary to the usual experience of the individuals addressed should be made unless it is based upon indisputable authority. Facts outside the pale of usual human experience are always regarded with distrust. Abnormal conditions, such as the existence of unusual misery or vice among certain classes, oppression, glaring social, industrial, or political evils, must always be kept within the bounds of possibility and based upon reliable authority. The temptation is often strong to cite instances on account of their sensational character and the probable striking effect upon the audience or readers. Such material is sometimes very important, but if it even approaches the border of impossibility it should be fortified by the strongest evidence.

The value of certain evidence may be greatly increased if it can be shown to be reasonable. If surrounding circumstances can be introduced to show that the evidence is either cause or effect and therefore something naturally to be expected under the conditions stated, it will be accepted almost without question. All evidence should be carefully considered from the two standpoints of fairness and reasonableness. To offer unfair evidence is dishonorable. It is the method of the swindler and the trickster. It is especially reprehensible in the student of argumentation, whose first duty is to uphold the truth.

5. The position and arguments of the opposition should be taken into consideration.

Argument implies opposition. It may not be active opposition, it may be only passive. Arguments advanced for the purpose of inducing a change meet conservatism, prejudice, and the natural feeling of distrust with which any change is contemplated. These obstacles to success must be met squarely. It is by this means alone that they can be overcome. In the analysis of the question the necessity of finding the main contentions on both sides was made plain. We have now reached a point at which these contentions become of great importance. The arguments of the opposition must never be disregarded. Many important advantages besides the economy of time and material, come from the selection of such evidence as will uphold the constructive argument and at the same time overthrow the opposition. The selection and rejection of evidence must be determined from this standpoint.

6. That evidence should be selected which will appeal most strongly to those to whom the argument is to be addressed.

In presenting an argument the writer or speaker must not always rely upon his own judgment as the criterion of the value of evidence. He must take the standpoint of those who are to hear or read. This attitude presupposes that the evidence offered is reliable. If a speaker or writer knows that evidence presented is unreliable but will nevertheless be accepted by his auditors or readers, he is perpetrating a fraud if he offers it. That reliable evidence which is most likely to appeal to those before whom it is to be placed should be selected. The arguer should put himself in the position of the persons to be persuaded, and ask himself the question, "What evidence would most strongly appeal to me and induce me to believe and act in the manner desired if I were the person to be persuaded?" The accuracy with which the advocate can perform this feat often measures his success. It requires the highest order of constructive imagination. He must view his position with all the prejudices and preconceived ideas, as well as the personal interests, of the persons to be persuaded. He must, for the time

being, lose his character as an advocate and assume that of the reader or hearer.

In quoting opinions of authority this attitude of mind becomes most important. If the argument is to be addressed to an individual, the opinion or action should be cited of some person in whom that individual reposes confidence. If you wish to persuade John Jones to follow a certain course of action, and you are aware that his most intimate friend and the one to whom he looks as a model of discretion and good judgment is Smith, you can do no better than to quote the opinion of Smith, if Smith has expressed himself as favoring your contentions or if he has followed the course of action which you desire Jones to follow.

In addressing an organization of workmen it is effective to quote the opinions of their high officials in whom they repose trust and confidence. Likewise in addressing the members of any trade, profession, business, religious faith, or political party, the opinions of persons high in their particular field of endeavor may always be quoted. Sources of authority with which the audience is likely to be in sympathy should be especially emphasized.

In selecting evidence with which to prove the truth or falsity of a proposition too much care cannot be exercised. The foregoing rules should be adhered to strictly. They should assert themselves automatically. It is not enough for the student to have these rules of argumentation so well in mind that he can recite them in class and give them when asked for in an examination; he should have them so well in mind that they become a part of the argumentative process. If these rules can be remembered only with difficulty they will not be used, because it would involve too much trouble to stop and apply each rule to every fact and opinion offered in evidence. After the rules are thoroughly mastered, a half-hour's practice in their application will serve to fix the habit of judicious selection of evidence so well in mind that the process will become automatic.

These suggestions in regard to the rules for selecting evidence apply with equal aptness to all other rules in this book. The person who wishes to become a master of argumentation must be able to command the rules of the art.

SUMMARY OF RULES FOR SELECTING EVIDENCE

1. The evidence must come from the most reliable source to which it can be traced.
2. A person quoted as authority must be unprejudiced, in full possession of the facts, and capable of giving expert testimony on the point at issue.
3. The evidence should be examined to determine whether there are any attendant circumstances which will add to its weight.
4. The selection of evidence must be fair and reasonable.
5. The position and arguments of the opposition should be taken into consideration.
6. That evidence which will appeal most strongly to those to whom the argument is to be addressed should be selected.

IV. The amount of evidence required.

The investigator must not stop collecting evidence until he has amassed a sufficient amount to prove his proposition. Naturally the question is at once asked, "What is the amount of evidence required to prove a proposition?" To answer this question in a satisfactory manner some careful thought is required. Since we are regarding argumentation as a practical art, and since when we consider it in this way we must conclude that its end is action, we are forced to admit that the amount of evidence is not sufficient unless it actually produces the result aimed at,—namely, the action of the person or persons addressed in a manner which conforms to the wishes of the arguer. It is therefore plain that the amount of evidence required varies with individual cases. The arguer must consider the importance of the question to those to whom the argument is addressed, as well as their prejudices and personal interests. He must consider these things in their relation to the present situation and then determine the amount of evidence in accordance with what his judgment tells him is required. If the argument is to be passed upon by judges whose duty it is to reach a conclusion but who are not personally interested in the result, the following rule may be applied: *Sufficient evidence must be produced to satisfy an unprejudiced mind beyond a reasonable doubt.*

In relying upon the above rule we must eliminate prejudice, personal interest, and results terminating in active or prolonged action. Therefore if prejudice or personal interest exists in any particular case, the first duty is to remove this prejudice or nullify the personal interest. If active or prolonged action is desired evidence sufficient in amount to induce this action must be produced. With these two limitations the rule stated above may be accepted

as the measure of the amount of evidence required. There are, of course, some facts which may be presented without relying upon any special evidence or authority for their truth. All facts which are matters of common knowledge come within this class. Geographical facts, such as the fact that Boston, New York, and Savannah are seaports; historical facts, such as the fact that Alaska was purchased from Russia; political facts, such as the fact that the Southern States are largely adherents of the Democratic Party; and things which must have happened in the ordinary course of nature, such as the presumed death of a person born two hundred years ago, all may be stated without evidence to support them.

In determining the amount of evidence to be offered it is sometimes necessary to consider the different sources from which it is derived. Care should be taken not to place too great reliance upon one source. For example, in a debate on the prohibition question one speaker quoted statistics from a bulletin issued by the Anti-Saloon League, he relied for proof of his facts upon a committee report of the Anti-Saloon League, he offered the opinion of the President of the Anti-Saloon League, and finally quoted from the argument of a lawyer who is employed by the Anti-Saloon League. Aside from the charge of prejudice which might be made against this evidence, it is readily seen that too much reliance is placed in one authority. It might well be termed "an Anti-Saloon League argument." No person is willing to accept some other person's opinion or evidence in preference to his own, but if a number of authorities have arrived at substantially the same conclusion, or can offer evidence which points to the same conclusion, and there has been no collusion between them, any reasonable person will give such conclusions his most serious consideration. Furthermore, if the speaker or writer indicates that his evidence comes from various sources, it inspires confidence in his words, since the variety of the evidence offered indicates that the investigation has been broad and thorough.

The process of collecting evidence set forth in this chapter may be used in other fields besides that of argumentation. Every individual has frequent occasion to collect evidence regarding certain subjects connected with his business or occupation. Whatever the occasion for investigation the method of collecting evidence herein presented can be used to great advantage.

The student of argumentation is cautioned to follow explicitly the directions contained in this chapter. All the available sources of evidence should be consulted. The rules regarding the recording of evidence should be adhered to strictly. The recorded evidence should be carefully studied, with the view of determining its relative importance, according to the rules laid down for the selection of evidence. The student should feel satisfied in his own mind that he has secured an amount of evidence sufficient to establish each main issue. Then after these tasks are completed he can turn his attention to the next great step in argumentation,—the Construction of the Brief.

EXERCISES IN COLLECTING EVIDENCE

1. Make out a list of topics under which you would look for material on the following propositions:
 - a. The United States should impose a tariff for revenue only.
 - b. The United States should provide for an immediate increase in the navy.
 - c. Intercollegiate football should be abolished.
 - d. Children under fourteen years of age should be prohibited by law from working in factories.
 - e. Marriage and divorce should be controlled by Federal law.
2. What sources of evidence would you consult in regard to each of the above propositions? State one or more items (books, magazine articles, persons, or documents) under each source.
3. Write out and hand in for inspection ten cards on one of the above propositions. These cards should show the application of all the rules given for recording evidence.
4. Apply to these cards the rules to be observed in selecting evidence. Does any one of these cards or any combination of the cards show evidence sufficient in amount to prove any one contention?

CHAPTER V

CONSTRUCTING THE BRIEF

The construction of a brief is a most interesting task, for the bringing of order out of chaos always gives a thrill of satisfaction to the active thinker. It indicates the mastery of the human mind over material facts and conditions. In this as in all other spheres of endeavor the joy of victory possesses him who overcomes.

The work of constructing a brief is usually looked upon by the uninitiated with considerable apprehension. It is regarded as a most difficult task, and so it is. But the difficulty of the task is greatly overshadowed by the pleasure which may be derived from it, providing the preliminary work has been done thoroughly. Every step in the argumentative process up to this point must have been taken with diligence. If this work has been well done the student finds himself in the possession of a large amount of evidence. The analysis of the proposition and the collecting of the evidence have given the student a broad outlook over the field to be covered by the brief. Now, to get the most comprehensive view of this field, he must look at it from the standpoint of the Purpose of the Brief.

I. The purpose of the brief.

The purpose of the brief is to furnish a solid framework for the argument. It indicates definitely the path which the argument is to follow. It maps out a continuous course of procedure ending at the conclusion which it is the purpose of the argument to establish. To develop one of the above figures of speech still further, we may regard the brief as the framework of the vehicle which carries the argument along the straight road which leads to persuasion.

The brief enables the writer or speaker to present his arguments in logical order, to indicate the relation which the evidence bears to the arguments,

and to give unity and coherence to the finished product. Without a well constructed brief an argument will inevitably be more or less rambling and incoherent; with a well constructed brief each piece of evidence can be utilized in the place where it will do the most good. The facts of evidence can be arranged in climactic order and the proper proportion given to the completed structure. By keeping these objects in mind the work of building a brief out of the evidence collected may be intelligently begun.

II. Method of constructing the brief.

The work of constructing the brief should be begun with all the evidence, which has been collected and recorded on cards or slips of paper, ready at hand. By this time the investigator has probably determined whether he wishes to make any alteration in his original analysis. If any alterations seem advisable they should be made before proceeding.

The analysis of the question reveals the main issues. In order to make the work of construction as simple as possible let us suppose that the evidence has been collected on the affirmative of the following proposition: "Resolved, that all cities in the United States having a population of over 5000 should adopt the commission form of city government." The analysis of the question has shown that in order to establish the truth of this proposition it is necessary to prove these three main issues: (1) That the proposed plan is necessary, (2) That the proposed plan is good in theory, and (3) That the proposed plan works well in practice. Each of these three main issues should be written on a separate piece of paper, an extra slip of paper should be marked "Introduction," and still another "Refutation." These five slips of paper should be spread out on a table and the work of classifying the cards begun. All cards containing facts or opinions which show the necessity for the plan should be placed on the paper marked "The proposed plan is necessary," those dealing with theory should be placed on the paper marked "The proposed plan is good in theory," and those dealing with the practical side of the question should be placed on the paper marked "The proposed plan works well in practice." To be more concrete, suppose we have one card which contains a statement from the mayor of Galveston, Texas, in which he says that the commission form of city government has worked successfully in that city; another card on which are statistics

showing that the practical operation of the commission plan in Des Moines, Iowa, has resulted in reducing the governmental expenses of that city; and still another card which shows that Grand Rapids, Michigan, has successfully used the commission form of city government for ten years. All of these cards would, of course, be placed under the heading "The proposed plan works well in practice." Cards treating the origin, history, and other matters discussed in the analysis of the question should be placed under "Introduction," while cards containing material for refutation should be placed under "Refutation."

Sometimes there will arise a question as to which of two heads most properly includes the material on a particular card. In such a case the student must use his best judgment. If the point is very important and the doubt great, a duplicate card may be made out and one card placed under each heading. Then when the brief is being written out a more intelligent decision can be made. Such difficulties as this, however, are infrequent, providing proper care has been taken in making the analysis of the question. The main issues should be distinct from each other and the line of demarcation between them should be clear cut. If this requirement is complied with, the classification of the cards in the manner above described is a comparatively simple matter.

Now that the cards have been divided, each pile can be more easily studied than could the large original pile. A half-hour spent in arranging and rearranging the cards and in reading them over in various connections will yield more information regarding the way in which the argument should be put together than a whole day spent in unaided pondering.

The cards should be examined with the object in view of making a subdivision of the material under each main issue. To illustrate, an examination of the cards under the first main issue above discussed, viz. "That the proposed plan of city government is necessary," reveals the fact that this main issue "necessity" may be discussed under three heads: (1) Political necessity, (2) Social necessity, (3) Financial necessity. Now we proceed to divide the pack of cards on necessity into three parts, corresponding to the above division. This is done in the same manner in which the original pack was divided into five packs. Each of these smaller packs should then be carefully examined in order to determine whether a further subdivision is advisable. The process should be continued until all

the recorded evidence is classified. Then each pack of cards should be carefully labelled with the name of the subdivision to which it belongs, and kept, with its fellows of the same subdivision, under the division to which they belong, and all the members of each division should be kept under the main issue to which they belong. The student must in the same way make himself familiar with, and classify, the cards under the headings of "Introduction" and "Refutation." Next comes the task of arranging these groups of cards in their proper order. In making this arrangement two principles should be kept constantly in mind. In the first place the order of arrangement must be logical; in the second place the divisions should be arranged in climactic order wherever possible. The strongest argument should be put last unless there is an important logical objection to putting it in that position. In arranging the order of the main issues above discussed, "necessity" should be placed first, because the necessity for a thing paves the way for its adoption. It is the logical beginning. Theory should be placed second, and last of all the argument "practice," because nothing can constitute a stronger argument in favor of the adoption of a plan than to show that it has already worked well in many instances. This arrangement is not only the climactic order, but from the psychological standpoint it makes the strongest impression. The process of arranging groups in their logical order should be carried on until the cards comprising the smallest group are placed in what appears to be the order dictated by logical sequence and climactic effect.

After the evidence has been duly arranged in accordance with the method just explained, the task of writing out the brief formally may be commenced.

III. Rules for constructing a brief.

1. A brief should be composed of three parts: Introduction, Proof, and Conclusion.

The three parts of the brief, Introduction, Proof, and Conclusion, should bear a well regulated proportion to each other. The tendency of the beginner is to make the introduction too long: a two page introduction to a three page

brief is absurd. The proof should occupy by far the greater part of the brief, the introduction should be as compact as is consistent with its purpose, and the conclusion should be shorter than the introduction.

2. Each statement in a brief should be a single complete sentence.

The sentences of the brief must be grammatically correct. Each idea should be carefully thought out and presented in a short, simple, direct, and comprehensive sentence, for long and complicated sentences lead to ambiguity. Moreover, the sentence must contain but one central idea, which must be stated completely. Mere topics are not sufficient. The word “Practicable” should not be made to represent the entire statement that “The commission form of city government is practicable,” but the complete statement should be written out.

3. The relation which the different statements in a brief bear to each other should be indicated by symbols and indentations.

Every statement in the brief must stand either directly or indirectly as a reason for the truth of the proposition. If a statement stands as direct proof of the proposition, this fact must be indicated; if as indirect, this fact must also be indicated. The statements which stand as direct proof should be marked with the same kind of symbols and indented in the same way. This enables the reader to glance over the brief and see the main issues standing out distinctly from the subordinate statements.

The system of symbols used is immaterial, providing they serve the purpose above indicated. For the sake of uniformity, however, it is suggested that the student adhere to the following plan:

This proposition is true, for
 I....., for
 A....., for
 1....., for
 a....., for
 (1)....., for
 (a)....., for
 (x)....., for
 (y)....., for
 B....., for
 1.. etc.
 II....., for
 A.....
 etc.
 B.....
 etc.

The above symbols with their appropriate indentations are sufficient in variety for almost any brief. To make this plan more concrete let us suppose that the proposition is held to be true for two reasons. These reasons then are the main issues, and are coördinate so far as subject-matter is concerned; therefore they are placed with the symbols I and II, which are next to the left hand margin of the paper. There are two main reasons for I, and these are marked A and B, with a greater indentation from the left hand margin than I. There is one reason for A and it is marked 1 with a slightly greater indentation from the margin than A. If there were two reasons the second one would be marked 2 with the same indentation as 1. That is, the same arrangement applies throughout the entire system that applies to I and II, and A and B. There is one reason for 1 and it is marked a with a slightly greater indentation; the reason for a is marked (1), and the reason for (1) is marked (a). There are two facts which prove the truth of (a) and they are marked (x) and (y). In this way the entire brief, whether long or short, is worked out and the relation existing between all its parts clearly shown.

4. The introduction should contain the main issues, together with a brief statement of the process of analysis by which they were found.

As previously stated, in making the analysis of a proposition an unprejudiced standpoint must be taken. This is true because the object is to find the statements which if proved will establish the truth of the proposition. Since it is the object of the introduction to set forth the main issues it must contain nothing but the process of analysis by which these issues were derived. There must be no statements which require proof and none which indicate a prejudice in favor of one side or the other.

A long introduction must be avoided, because it is almost sure to contain irrelevant matter. Furthermore, a reader or hearer is not going to keep in mind all the history, conditions, definitions, and limitations which a long introduction may properly include, unless they are briefly expressed and lead straight to the heart of the controversy. Again, a long introduction is tiresome. The writer once heard a prominent United States Senator say, after acting as judge of a college debate: "Boil down your introduction. The men who pass on what you have to say, whether in business, politics, or education, want to know what you believe and why you believe it. Get at the 'because' part of your speech without delay."

The process of analysis may have been long and laborious, but once the main issues have been found it is easy to point out the way to them. In the Lincoln-Douglas Debates, which are masterpieces of this kind of work, the introductions are exceedingly short as compared with the length of the speeches. No time is wasted in getting to the points at issue. A carefully worked out analysis may be presented briefly for it is seldom necessary to an understanding of the question to discuss its origin, its history, the admitted matter and the contentions of both sides. Seldom is it important to discuss more than two of these topics. Those phases of analysis which afford the shortest route to the main issues should be chosen. While some brief writers prefer to give the whole process of analysis, this makes the brief unnecessarily long. Suppose that you went into the forest for the purpose of finding a certain tree. You began a systematic search in which you traveled back and forth through the forest for three days. At last you found the tree. It is but a half-hour's walk from the edge of the forest. Would you take those to whom you wish to show the tree over the path which you traveled in the three days' search, or would you lead them directly to it? The answer is obvious. Why, then, should we weary the reader or hearer with a long introduction in which all the steps taken in

search of the main issues are set forth, when we can state one or two of these steps and arrive at the main issues without delay?

Lincoln, in his first inaugural address, shows the virtue of a brief introduction. He might have dwelt long upon the origin of the question which he feared would sever the Union; he might have given extensively the history of slavery and the controversies resulting from it; he might have compounded definitions based upon the highest authorities; and all of this would have been relevant matter for the introduction of his speech. Moreover, there is no doubt that all of these matters had been considered by him in his analysis of the question. But when he wished to lead his hearers to the main issues which his analysis revealed, he chose the simplest and most direct route. After a brief introductory sentence he employed the process of elimination to cut away all extraneous matter by saying:

“I do not consider it necessary at present for me to discuss those matters of administration about which there is no special anxiety or excitement.”

Then he at once took up the subjects of slavery and secession, to which his elimination of extraneous material had narrowed the question.

The same brevity and directness characterizes Lincoln’s introduction to his Cooper Institute speech. Here a statement of admitted matter forms the means by which the point at issue is reached. This offers an introduction which is impartial, since both sides indorsed it, and the main issues arose out of the different interpretation which the Lincoln-Republicans and the Douglas-Democrats placed upon it. The crucial part of the introduction is as follows:

“In his speech last autumn at Columbus, Ohio, as reported in the New York ‘Times’ Senator Douglas said: ‘Our fathers, when they framed the government under which we live, understood this question just as well, and even better, than we do now.’ I fully indorse this, and I adopt it as a text for this discourse. I so adopt it because it furnishes a precise and an agreed starting-point for a discussion between Republicans and that wing of the Democracy headed by Senator Douglas. It simply leaves the inquiry: What was the understanding those fathers had of the question mentioned?”

It is seen that these statements bring us directly to the point at issue through the statement of admitted matter. The adoption of this admitted matter makes necessary some definitions. Lincoln gives these with clearness and exactness. “The frame of government under which we live,”

is the Constitution of the United States. “The fathers” that framed this constitution were the thirty-nine men who signed the original instrument. The “question” which these fathers understood, “just as well, and even better, than we do now,” was: “Does the proper division of local from Federal authority, or anything in the constitution, forbid our Federal Government to control as to slavery in our Federal Territories?” Then Lincoln continues: “Upon this, Senator Douglas holds the affirmative, and the Republicans the negative. This affirmation and denial form an issue; and this issue—this question—is precisely what the text declares our fathers understood “better than we.” Let us now inquire whether the “thirty-nine,” or any of them, ever acted upon this question; and if they did, how they acted upon it—how they expressed that better understanding.” Thus Lincoln brings his hearers to the proof of his argument—to the point where it introduces evidence to show that the great majority of these men answered the question by voting for the prohibition of slavery.

Now let us write out a formal brief of this introduction and thus determine just what matters it really includes.

NEGATIVE BRIEF

PROPOSITION: Resolved, that the proper division of local from Federal authority or the Constitution, forbids our Federal Government to control as to slavery in our Federal territories.

INTRODUCTION

I. Statement of admitted matter.

A. The framers of the Constitution understood this question better than we do.

II. Definition of terms.

A. “The frame of government under which we live” is the Constitution of the United States.

1. The original Constitution.

2. The amendments.

B. “The fathers” were the thirty-nine men who signed the original document.

C. The “question” which these fathers understood “just as well, and even better, than we do now,” is: “Does the proper division of local from Federal authority, or anything in the Constitution, forbid our Federal Government to control as to slavery in our Federal Territories?”

III. The question is, therefore, “Did the framers of the constitution understand that the Federal Government is prohibited from controlling slavery in the territories?”

The affirmative answers Yes, for:

1. their words and actions prove that the Federal Government is prohibited from controlling slavery in the territories.
2. The first Congress framed annulments which deny this power.

The negative answers No, for:

1. their words and actions prove that the Federal Government is given power to control slavery in the territories.
2. The first Congress which contained sixteen of the "thirty-nine" exercised this power.

IV. The special issues resulting from this clash of opinion are:

1. Did the words and actions of the framers of the Constitution show that the Federal Government is prohibited from controlling slavery in the territories?
2. Did the First Congress, which contained a part of these framers and which understood their intentions, show that it believed the Federal Government to be prohibited from controlling slavery in the territories?

The foregoing introduction shows well the brevity and directness which should characterize the first division of a brief. The subject-matter indicates the impartial manner in which the subject is discussed throughout the introduction. Nothing is stated which requires proof. The speaker selects common ground upon which both parties to the controversy have agreed to stand. From this position he leads his opponents by logical steps to the arguments which he advances. When the student has once found the main issues he should eliminate all useless steps in the analysis and present with clearness and force the necessary parts of the process which lead directly to the proof.

5. The main statements in the proof should correspond to the main issues set forth in the introduction, and should read as reasons for the truth of the proposition.

The object of the introduction to the brief is to set forth the main issues. In like manner the object of the proof is to set forth the evidence which supports these main issues. Therefore the main issues constitute the main headings of the second division of the brief. Moreover, these main issues must all read directly as reasons for the truth of the proposition. To illustrate this rule, let us consider the following example.

BRIEF

PROPOSITION: Resolved, that the policy of protection should be abandoned by the United States.

INTRODUCTION

- I. }
 } (First part of introduction omitted)
- II. }

III. The clash of opinion reveals the following issues:

- A. Is protection sound in theory?
- B. Is protection sound in practice?

PROOF

- I. Protection is unsound in theory, for
 - A. ...
 - B. ..., etc.
- II. Protection is unsound in practice, for
 - A. ...
 - B. ..., etc.

The above example sets forth the form in which these main issues appear in the proof of the brief. The validity of the reasoning which connects the main issues with the proposition may be tested by putting the word “because” or “for” after the proposition and reading it in connection with each main issue; thus:

- A. The policy of protection should be abandoned by the United States because (or for) protection is unsound in theory.
- B. The policy of protection should be abandoned by the United States because (or for) protection is unsound in practice.

Each main issue should be tested in the manner suggested above. This will show whether the proper logical relation exists between the main issues and the proposition. A further test may be applied by inverting the order of the main issues and the proposition and joining the two by the word “therefore,” as follows: A. Protection is unsound in theory; therefore the policy of protection should be abandoned by the United States. B. Protection is unsound in practice; therefore the policy of protection should be abandoned by the United States. But the words “hence” or “therefore,” should never be used in a brief, because they reverse the natural order and make the main statements subordinate.

After making sure that each main issue is stated so that it reads as a reason for the truth of the proposition, the arguer must next amass the evidence, which has been classified, in support of each of the main issues.

6. Every statement in the proof must read as a reason for the statement to which it is subordinate.

In the same way in which the main issues must read as reasons for the truth of the proposition, every statement in the proof, down to the smallest subdivision, must read as a reason for the statement of the next higher order. There must be no break in this firm logical structure. A chain is only as strong as its weakest link. If any break or weakness shows in the chain of argument, reaching from the detailed facts up to the proposition itself, the whole argument must be discarded and a new one built in its place. To illustrate this rule clearly, let us take a section from the proof of the following proposition:

Resolved, that all combinations of capital intended to monopolize industries should be prohibited by the Federal Government.

INTRODUCTION

(Omitted)

PROOF

- I. Combinations of capital are unnecessary, for
 - A. The concentration of capital is possible without them, for
 - 1. Many individuals and partnerships have enough capital to produce commodities in the most economical units.
 - 2. Trades are sufficiently large to admit many great competitors.
 - B. Combinations of capital are not necessary to resist labor organizations, for
 - 1. Labor unions do not have a complete monopoly of labor, for
 - a. Strikes are often a failure, for
 - (1) (Here cite specific instances from your personal knowledge in which strikes have failed.)
 - 2. Associations for the purpose of resisting labor unions are possible without combinations of capital.
- II. Combinations of capital are a social evil, for
 - A. They encourage gambling and speculation, for
 - 1. They practice “watering stock,” for
 - a. (Cite a number of specific instances.)
 - 2. They inflate or depress the value of stocks at will.

- B. They concentrate wealth in the hands of a few men, for
 - 1. John D. Rockefeller gained his immense wealth from the Standard Oil monopoly.
 - 2. (Cite several other specific examples like the above.)
- C. They discourage individual enterprise, for
 - 1. Independent producers are driven out of business.
 - 2. An individual cannot build up a business for himself.
- III. Combinations of capital are an economic evil, for
 - A. They limit natural production.
 - B. They destroy competition, for
 - 1. They absorb large producers.
 - 2. They crush small producers.
 - C. They raise prices, for
 - 1. They gain control of the market for this purpose.
- IV. The prohibition of combinations of capital by the Federal Government is practicable, for
 - A. The power is given to the Federal Government by the Constitution, for
 - 1. Congress is given power to regulate interstate commerce, for
 - a. Art. 1, Sec. 8 grants this power.
 - 2. The United States courts have jurisdiction over these matters, for
 - a. Art. 1, Sec. 8 confers this power upon them.

In the above section taken from a completed brief enough evidence is introduced to show clearly the relation which must exist between each statement. Numbers I, II, III, and IV indicate the main issues. Under I, A and B read as reasons for the truth of I. Under A, 1 and 2 read as reasons for the truth of A and so on throughout the brief. Each statement is connected with the preceding statement, to which it is subordinate, by means of the conjunction “for.” These statements must make complete sense and show their logical relation when connected by this conjunction: as in II. Combinations of capital are a social evil, for

A. They encourage gambling and speculation.

The rule stated at the beginning of this section is one of the most important guides to correct brief making and every part of the proof should be thoroughly tested by reference to it.

7. Statements introducing refutation must show clearly the argument to he refuted.

Refutation may be introduced at any point in the brief where objections arise in connection with the constructive argument. It should always be placed in its logical position, which is under the argument to which the objection is made. Only the strong objections which appear to be obvious hindrances to logical progress should be considered. Any stubborn objections which need to be cleared away before the argument can proceed with safety should be introduced. The argument to be refuted should be clearly stated, and the refutation should be set forth in the same way and subject to the same rules as the other parts of the brief.

An example of the proper introduction of refutation in a constructive argument is shown in the speech of Roscoe Conkling delivered at the Republican Convention in Chicago in 1880, in which he nominated Ulysses S. Grant for President of the United States. The chief objection to Grant's candidacy was that he had already served two terms as President. The precedent, set by Washington, that no man should serve more than two terms as President, had always been followed and had become one of the well established political customs of the country. Here was certainly a strong objection to the constructive argument of the speaker. Therefore the refutation is introduced where the speaker attempts to show that Grant's character as a man and his great services to his country entitle him to the presidency. In brief form a statement of the refutation would be as follows:

A. Refutation. The argument that Grant should not be nominated because he has already served two terms as President is unsound, for

1. It is absurd to say that because we have tried Grant twice and found him faithful we ought not to trust him again.

Refutation should always be introduced in the manner which the above illustration indicates. First the series of symbols under which it should come should be determined; then the word Refutation should be placed opposite that symbol, followed by the formal statement that "The argument that ... is unsound, for." For a further illustration of the manner in which refutation ought to appear the student should consult the completed brief at the end of this chapter.

8. The conclusion should be a summary of the main arguments just as they stand in the proof of the brief, and should close with an affirmation or denial of the proposition in the exact words in which it is phrased.

A conclusion must be forcible and to the point. It should review the main issues and show at a glance their relation to the proposition. The conclusion to the brief given at the end of this chapter is a good example of the form in which a conclusion should be stated.

SUMMARY OF THE RULES FOR CONSTRUCTING THE BRIEF

1. A brief should be constructed in three parts: Introduction, Proof, and Conclusion.
2. Each statement in a brief should be a single complete sentence.
3. The relation which the different statements in a brief bear to each other should be indicated by symbols and indentations.
4. The introduction should contain the main issues together with a brief statement of the process of analysis by which they were found.
5. The main statements of the proof should correspond to the main issues set forth in the introduction and should read as reasons for the truth of the proposition.
6. Every statement in the proof must read as a reason for the statement to which it is subordinate.
7. Statements introducing refutation must show clearly the argument to be refuted.
8. The conclusion should be a summary of the main arguments just as they stand in the proof of the brief, and should close with an affirmation or denial of the proposition in the exact words in which it is phrased.

The following brief written by a student taking his first course in argumentation shows clearly the application of all the above rules. It is not given as an example of a perfect brief on the proposition stated but it furnishes proper suggestions to the person whose experience in drawing briefs is not extensive. In studying this brief the student should observe the relation between the statements under each main topic, the method of building up the structure of the brief so that the relation of the various parts to the proposition is clear, and the fact that in each case every statement rests upon a sound foundation. The citation of good authority and the reliable source from which it was obtained are given wherever an authority is required. The brief may be criticised on the ground that too much reliance is placed upon one source of evidence. As suggested in the chapter on Evidence the exact reference to authority should always be given in order that its value may lend weight to the argument. Furthermore, the student is

thus enabled to refer again to his source of evidence for further information in case it becomes necessary.

In conclusion, the student must not forget that these rules should be thoroughly mastered and that a conscious application of them must be made in the actual practice of brief-drawing. It is only by this means that they can be made a part of the argumentative equipment. After the brief is drawn it should be carefully examined and tested by the above rules. If certain parts evince weakness, these should be strengthened by rearrangement, or by supplying more and stronger evidence. The student may be compelled to return again and again to his source of evidence in order to find material of which he has need. If the steps preceding the construction of the brief have been carefully attended to, he will find himself so familiar with the subject-matter of the proposition that such work will be undertaken with the delight and interest which the keen investigator feels when he is close on the trail of matter which will prove his conclusions.

AFFIRMATIVE BRIEF

PROPOSITION: Resolved, that the Federal Government should levy a progressive income tax.

INTRODUCTION

I. Recently the question of an income tax has aroused great interest.

A. An amendment to the constitution has been proposed recently which will provide for this tax.

B. The proposed amendment has caused the matter to be considered carefully by the public.

C. Many eminent men have given opinions regarding the advisability of adopting the proposed tax.

II. The following definition is adopted,

The progressive income tax is simply a tax levied upon the income of an individual, the rate of tax increasing as the amount of the income of the individual increases.

III. The contentions of the affirmative and the negative are as follows:

Those who advocate the adoption of this income tax support the following contentions:

- A. The income tax is necessary.
- B. The income tax is practicable.
- C. The income tax is just.

Those who oppose the adoption of this income tax support the following contentions:

- A. The income tax is not necessary.
- B. The income tax is impracticable.
- C. The income tax is unjust.

IV. Through this clash of opinions we reach the following issues:

- A. Is the income tax necessary?
- B. Is the income tax practicable?
- C. Is the income tax just?

PROOF

I. The progressive income tax is necessary, for

A. It is necessary in meeting national exigencies, for

1. In case of war the customs duties would cease or be impaired and the government would be without another source from which to draw revenue were not the income tax available. (Norris Brown, U. S. Senator from Neb. in *Outlook*, 94: 217.)
2. Governor Hughes of New York believes this power (that of levying the income tax) should be held by the Federal Government so as to equip it with the means of meeting national exigencies. (*Outlook*, 94: 110.)
3. Refutation. The argument that the income tax is not necessary on the grounds that other taxes can be made to cover all necessities is unsound, for
 - a. In case of war with a great commercial nation when the country would be in the greatest need of revenues, the collection of imposts would cease or be materially diminished. (Justice Harlan of the U. S. Supreme Court in his dissenting opinion in the Pollock Case. *Outlook*, 94:217.)

II. The progressive income tax is practicable, for

A. Experience shows it to be practicable, for

1. During the great Civil War millions of dollars were collected from this source when the government was in need. (Norris Brown in *Outlook*, 94:216.)
2. It has proved practicable in England and Italy. "Income taxation gains in economy and productiveness and wins increasing approbation as the years go by." (Professor Ely, Professor of Economics in the University of Wisconsin, in *Outlines of Economics*, p. 635.)

III. The progressive income tax is just, for

A. The tax bears upon the individual according to his ability to pay, for

1. It tends to relieve the poor from taxation and place it upon the rich who are able to bear it. (Philip S. Post in *Outlook*, 85:504.)

B. It makes each individual bear his share of taxation, for

1. Income is as good, and perhaps better than any other single measure of ability to pay and the tax is in accordance with this idea. (Professor Ely in *Outlines of Economics*, p. 635.)
2. The income tax reaches certain members of the professional class who under existing laws largely escape taxation through lack of tangible property. (Philip S. Post in *Outlook*, 85:594.)

CONCLUSION

I. Since the income tax is necessary in meeting national exigencies where other revenues fail;

II. Since experience shows that the income tax is practicable;

III. Since the progressive income tax is just because it bears upon the individual according to his ability to pay;

Therefore, the Federal Government should levy a progressive income tax.

EXERCISES IN CONSTRUCTING THE BRIEF

1. Let each student select some subject in which he is interested and follow the argumentative process up to and including, the construction of the brief.

2. Write out a full and complete brief of one of the arguments given in the appendix.

3. After the briefs have been written out the instructor should have the students exchange, and give them an opportunity in class to point out the defects in each other's work.

4. Without regard to order or form, let the instructor dictate all the statements in a short brief, and let the student reconstruct a correct brief out of these statements.

CHAPTER VI

CONSTRUCTING THE ARGUMENT

The last step has left us with the completed brief,—sound, logical, and comprehensive. In some cases the task ends here, the brief being constructed for its own sake and left to stand as a cold, formal, logical framework upholding the truth of the proposition. In this form it may be laid by for those who are to pass upon its validity, or the advisability of adopting or rejecting the proposition which it supports; or the author may explain its structure in an extemporaneous speech. More often, however, the brief is but the framework of the argument which is to be built upon it, giving the whole structure grace and strength.

In this final process great care must be taken to make sure that the naked framework is entirely covered. No rough edges or angular corners should be left protruding from the finished product. The whole structure must be made attractive, and impressive, just as the steel framework of a great building is enveloped in solid walls of stone and marble made elegant by the sculptor's art.

The distinction between conviction and persuasion, which was pointed out in a previous chapter, again enters into the argumentative process. For purposes of discussion we may assume that the brief itself produces conviction because it shows clearly that the proposition is right. But the naked brief is as cold and formal as a proposition in geometry. Hence it is the task of the written or spoken argument, based upon that brief, to arouse the emotions so that it may move the will and thus end in persuasion. Now, if every individual were a perfectly rational being the brief would be all that would be necessary to arouse to action, because by itself it shows what is right and what ought to be done. But real men in everyday life are not perfectly rational beings. Their reasoning processes are influenced by environment, education, prejudices, and acquired habits of thought. The emotions of men, too, play a large part in shaping their conduct. Therefore,

a process must be instituted in their minds which reaches persuasion through their combined thoughts and feelings.

From the psychological standpoint we may divide this process into three stages, I., Attention; II., Interest; and III., Desire. From the argumentative standpoint we may divide the process into three parts corresponding to the three parts of the brief, viz., I., Introduction; II., Proof; and III., Conclusion. Now it will be seen that the psychological process bears a logical relation to the argumentative process, and that this relation is one of cause and effect. The end of all argument is action. If the argument is successful it creates in their order the mental and emotional conditions of attention, interest, and desire. That is, the introduction, proof, and conclusion of the argument result in the attention, interest, and desire of the individual mind. These processes begin at the same point, since the introduction secures the attention of the reader or hearer; they proceed along the argumentative road together, since the proof must maintain the active interest of the reader or hearer; and they end at the same point, because the conclusion, if successful, leaves the mind with a desire for action. Briefly stated, the introduction arouses the attention; the proof maintains the interest; and the conclusion creates the desire.

I. Attention—aroused by the introduction.

The first duty of a written argument is to get itself read; the first duty of an oral argument is to get itself heard; therefore the argument must attract the attention of the reader or listener in the beginning or introduction and must hold his attention throughout the proof. If attention is not secured at the beginning of the argument it is seldom secured at all, for the reader will throw the uninteresting argument aside in disgust, while the listener will allow his thoughts to wander to other subjects. Thus it is evident that the necessity for arousing the attention by means of the introduction is very great.

In order that we may clearly apprehend the relation which should exist between the introduction and attention let us consider, 1. The kinds of attention, and 2. The methods of securing proper attention by means of the introduction.

1. Kinds of attention.

A. Natural attention.

Natural attention requires no effort of the will to bring the mind to bear upon the subject in hand. The human mind, when not engaged on some definite object, attends in an effortless way to practically every marked change in the circumstances with which it is surrounded. To things that meet our approval we give our attention willingly, but if we are displeased or bored by any happening we give our attention unwillingly. Therefore the object of the introduction is to please in order that attention may be given willingly.

When a speaker walks out on a platform and faces the audience he at once attracts the spontaneous attention of practically everybody in that audience. This much is easy. The problem that now confronts the speaker is to begin his speech by saying something which will turn this spontaneous attention into fixed attention. By fixed attention is meant such attention as willingly follows the train of thought which the speaker has to present. If the introduction is properly prepared this fixed attention will be the result, but if the introduction is not properly prepared the natural attention of the audience quickly degenerates into what we may term Assumed Attention.

B. Assumed attention.

This kind of attention is not given willingly, but is assumed by the audience merely because it happens that the speaker has placed himself on the platform and there is nothing left for the audience to do but to listen to him. Now this assumed attention on the part of the listeners may pass through several degrees of intensity, depending upon the kind of audience and the degree of the lack of skill with which the speaker proceeds. At first the speaker is treated to the ordinary manner of any audience not especially interested in what is being said. This attitude quickly degenerates into indifference, a point at which the audience does not care what the speaker

says or whether he says anything. Such a condition as this often continues throughout an entire speech, and the sooner the speaker realizes that fact and brings his argument to an end the better. The next stage of assumed attention is that of abstraction. At this stage the speaker does not even receive the indifferent attention of the listeners. The mind of each individual before him wanders off to some subject in which he is interested personally and the speaker might just as well be talking to empty seats. Usually this is the least desirable stage of assumed attention. Under some conditions, however, it is possible to reach a still less desirable stage, which we may call, for the purpose of making an exhaustive division of this subject, incivility. At this stage the individuals of the audience manifest their displeasure by talking among themselves, and making uncomplimentary remarks about the speaker.

The above discussion will serve to make clear the kind of attention the speaker must attempt to create by means of his introduction. We shall now consider some of the methods by which the proper kind of attention may be secured.

2. Methods of securing proper attention.

A. Immediate statement of purpose.

One of the most effective methods of securing the natural attention of the audience is by an immediate statement of the purpose of the discourse. It will be remembered that in the preparation of the brief the student was cautioned against the evils of a long introduction. He will also recall that the introduction was to contain only the main issues and the essential steps in the analysis by which they were reached. This same brevity should characterize the introduction to the argument. The audience is naturally interested in what the speaker believes and the reasons for his arguing in favor of or against the proposition. Therefore he may gain the fixed attention by stating at once just what he purposes to do. An extreme form of this kind of introduction would be as follows:

“There are two reasons why we maintain that the Federal Government should levy a progressive inheritance tax; first, because the national government needs it as a source of revenue; and second, because it will remedy the evils resulting from ‘swollen’ fortunes.

“The Federal Government needs this tax as a source of revenue because, etc.”

This introduction is an immediate statement of the purpose of the argument and will secure the attention of either reader or hearer.

In addressing an audience there are some cases in which just such an introduction should be used; for example, when previous speakers have dwelt upon the analysis of the question, or have given full dissertations on the origin or history of the subject, or lengthy definitions of terms and explanations of processes of reasoning. Again, such an introduction may be used when the time limit is very short or where the audience is presumed to be thoroughly familiar with the subject under discussion. Lincoln uses this method in introducing his discussion on the necessity of a settlement of the slavery struggle, as the following introduction to his Springfield speech will show:

“If we could first know where we are, and whither we are tending, we could better judge what to do and how to do it. We are now far in the fifth year since a policy was initiated with the avowed object and confident promise of putting an end to the slavery agitation. Under the operation of that policy, that agitation has not only not ceased, but has constantly been augmented. In my opinion it will not cease until a crisis shall have been reached and passed. ‘A house divided against itself cannot stand.’ I believe this government cannot endure permanently half slave and half free. I do not expect the Union to be dissolved; I do not expect the house to fall; but I do expect it will cease to be divided. It will become all one thing or all the other. Either the opponents of slavery will arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction, or its advocates will push it forward till it shall become alike lawful in all the states, old as well as new, North as well as South.”

In this introduction it is seen that Lincoln comes at once to the point: “I believe this government cannot endure permanently half slave and half free.” He makes his introduction complete by repeating this idea so that no

one can fail to understand the point he is making. The two sentences which precede his statement and the three sentences which follow it state the same idea in different forms. In an introduction the speaker must not only make his position so plain that it can be understood, but he must make it so plain that it cannot be misunderstood. This is what Lincoln does in the introduction to his Springfield speech and it is what must be done in every effective speech of this character.

The introduction quoted above touches lightly upon the origin and history of the question with the simple statement: "We are now far into the fifth year since a policy was initiated with the avowed object and confident promise of putting an end to slavery agitation. Under the operation of that policy, that agitation has not only not ceased, but has been constantly augmented." More extended statements of the history here alluded to are given further on in the argument at such places as they are needed. Here in the Introduction merely the significant results of origin and history are stated in the briefest possible form. This method of stating the introduction well illustrates the application of the general principle that extensive treatment of facts of origin and history should not be allowed to interfere with the immediate statement of the purpose of the argument.

B. Illustrative story.

Sometimes the fixed attention of the audience or reader may be gained by the use of an illustrative story. No speaker or writer should attempt to use this method of introduction unless he is absolutely confident of his ability to carry it through successfully. A story must conform to the following rules before it can, with safety, be adopted for the purpose of an introduction:

- (1) The story must be interesting.
- (2) The story must be well told.
- (3) The story must be obviously connected with the point which the arguer wishes to bring out.

If the story be of the comic variety, and is to be told orally, the speaker must make sure that the audience will laugh with him and not at him. Nothing is more fatal to natural attention than a story which "falls flat." Regarding the aptness of the story as illustrating the point which the speaker wishes to make, it need only be suggested that the connection must

be obvious. If any explanation is required after the story is told it usually serves to kill attention rather than to create it. The connection must be so obvious that the speaker is able to lead his auditors skillfully from the story directly to the point at issue.

C. Quotations.

A third method of introducing an argument is by the giving of a familiar quotation, or a quotation of the opposing speaker or someone concerned in the controversy. Such a quotation must be very plainly connected with the subject, and its bearing on the point which the speaker wishes to make must be evident. In this respect the requirements of an introductory story and an introductory quotation are identical. An example of an introduction in which a quotation is used is that of the speech of Roscoe Conkling in which he urges the nomination of Ulysses S. Grant for President. This introduction begins as follows:

“When asked what state he hails from
Our sole reply shall be
He comes from Appomattox,
And its famous apple-tree.”

Likewise a speech advocating the adoption of free silver in our monetary system began with

“There is a tide in the affairs of men,
Which taken at the flood leads on to fortune.”

In some cases the quotation may be used merely to secure the immediate attention of the audience. In such a case it must bear directly on the circumstances of the occasion, as when the third speaker in a college contest took advantage of the two preceding speakers, who had both forgotten their speeches and had been compelled to retire from the platform, by beginning his speech with the quotation,

“Lord God of Hosts, be with us yet
Lest we forget, lest we forget.”

The effort was a decided success, if success were to be judged by the amusement of the audience, but it only prolonged the time required to get the attention of the audience fixed on the serious subject which the speaker wished to present. Such a quotation may attract attention, and if that is all that is required, well and good; but the usual requirement is to attract attention in such a way that it will be fixed on the subject in hand. Therefore the temptation to attempt comedy should be carefully guarded against, and quotations should be used which will procure more substantial results.

Of the three methods for securing proper attention herein given the first is by far the most important and the most useful. The second and third methods should be attempted only when the circumstances are most favorable as measured by the principles stated in this discussion. The student must keep constantly in mind the object to be gained by the introduction, namely,—the natural fixed attention of the audience.

II. Interest—maintained by the proof.

1. Necessity.

The necessity of maintaining the attention of the reader or hearer throughout the proof is obvious. No permanent results can follow an argument which is not fully comprehended. Even though the closing paragraphs arouse the emotions, and a strong persuasive appeal is made in the conclusion, they only result in persuasion, and we have learned that in an effective argument conviction and persuasion must exist together.

2. Methods of maintaining interest.

A. Appropriate treatment.

The task of maintaining the interest of auditors or readers is made much easier if the writer will pause in his preparation and consider the

appropriateness of his treatment of the subject. In order to make this treatment appropriate three factors must be considered: (1) The speaker or writer, (2) The audience or reader, (3) The time or occasion. The argument in order to be effective must be especially adapted to all of these factors.

a. Adaptation to speaker or writer.

The writer of an argument, whether the argument is to be written out for the purpose of being read or whether it is to be delivered in the form of a speech, must take into consideration his own power and ability. With these clearly in mind he must present his subject in a way which seems natural and spontaneous. Never should an attempt be made to imitate the manner of any particular speaker or writer. Such attempts always appear unnatural, strained, and artificial, as in truth they are. The keynote of adapting a speech to the speaker is sincerity. Sincerity begets naturalness. To be sincere and know that he is in the right leads the speaker to treat his subject in a manner which will show forth the best qualities of his character.

The argument should manifest the utmost fairness. It should be clear that the speaker or writer desires truth and justice to prevail. When stating an opponent's position for purposes of refutation the speaker or writer should be sure that his statements are fair and reasonable and will bear the inspection of unprejudiced judges. If genuine sincerity and absolute fairness are put into an argument they will go far toward adapting it to the personality of the author.

b. Adaptation to audience or reader.

As a basis for this sort of adaptation a real sympathy with those to whom the argument is to be addressed is essential. In fact the arguer must be able to take their view of the subject. He must realize that an argument which is to be presented to a working-man must be, in a way, different from one which is to be presented to a banker. To be sure, the essence of the argument may be the same, but when the task of developing the brief into a finished product is undertaken, these different standpoints must be considered.

Not only must this adaptation be considered from the standpoint of those engaged in different occupations in life, but the predominating political, social, religious, and scholastic temperament must also be considered.

Especially is this true if the beliefs of the audience or readers differ from those of the speaker or writer. Usually the speaker realizes the importance of the latter situation but very often does not know just how to meet it. Here again sympathy is the keynote. Nothing should be said which will give offense. The speaker must prepare carefully each step in his argument so as to lead the audience with him. In the beginning a common basis must be found, then the true attitude of the arguer may be made apparent as he proceeds.

An instance of this gradual leading on of the audience is found in "Julius Caesar," where Mark Antony addresses the citizens after the murder of Caesar. The statements of "a plain blunt man" attach a much different significance to the "honorable men" at the close of the argument from that which was given in its beginning. Had Antony reversed the order of his speech he would have been deliberately killed instead of being hailed as a leader. He adapted his argument to his audience. He led them along step by step until in the end they arrived at the inference which he wished to establish and then with a fiery conclusion he aroused in them the desire for action. Not once did he lose their interest, because his treatment of the subject-matter took into account their personal, financial, social, and political welfare. This classical example illustrates well the maintaining of interest by that method of appropriate treatment which adapts the argument to the audience.

An example of a speaker addressing an audience of an entirely different class from that to which he himself belongs is that of Booker T. Washington on the occasion of the opening of the Atlanta Exposition. Mr. Washington had great difficulty in determining how he should take up his subject. But he was wise enough to apply the principle of sympathy with his audience, and the result was an address which stands as a monument to his wisdom. He, himself, says that: "No two audiences are exactly alike. It is my aim to reach and talk to the heart of each individual audience, taking it into my confidence much as I would a person. When I am speaking to an audience I care little for how what I am saying is going to sound in the newspapers, or to another audience, or to an individual. At the time, the audience before me absorbs all my sympathy, thought, and energy." Again he says, referring to the occasion above mentioned, "I was determined to say nothing that I did not feel from the bottom of my heart to be true and right."

Lincoln had some very strong misgivings about the reception of his Cooper Institute speech. It is said that he felt “miseries of embarrassment from his sense of the unaccustomed conditions, the critical and refined audience, his own ungainliness, and his ill-fitting and wrinkled clothes.” But after he began to speak his embarrassment disappeared. It was merged into sympathy with his audience, the people of New York City, for whom he had especially prepared the address. How well he succeeded in his adaptation we all know, and Nicolay and Hay say in their account:

“Yet, such was the apt choice of words, the easy precision of sentences, the simple strength of propositions, the fairness of every point he assumed, and the force of every conclusion he drew that his listeners followed him with the interest and delight a child feels in its easy mastery of a plain sum in arithmetic.”

Every speech must be so adapted to the audience that it will maintain just this kind of interest from the beginning to the close.

c. Adaptation to time or occasion.

The final requirement of appropriate treatment is that the argument be suited to the time or occasion. Every kind of occasion has an individuality born of its environment. The political argument of a candidate for office will have a somewhat different setting from the same argument delivered in the halls of congress. A brief for an argument might well serve for both occasions, but when that argument is written out the time or occasion of its presentation must be considered. The arguer can almost always foresee the circumstances of the particular occasion or time of presentation and thus adapt his argument to them. Formal college or intercollegiate debates before competent judges and with a definite limit as to the length of the speech would demand that the brief be developed in the most terse and direct manner possible; whereas the same argument to be delivered before a Political Science Club, with no judges and no time limit, might be developed much more fully and adapted to the occasion in a widely different manner. In conclusion, we must not forget that an argument intended to be read must be adapted to the writer, the reader and the time; whereas, an argument written for oral delivery must be adapted to the speaker, the audience, and the occasion.

B. Logical structure.

The very fact that a discourse is to take the form of an argument causes those to whom it is addressed to look for logical structure and clear reasoning. This expectation must not be ignored. The argument must not only *be* logical, but it must *appear* logical. This logical structure can be clearly set forth when the argument is written out, by means of frequent statements of the divisions of the argument and their relation to each other, summaries, and transition sentences and paragraphs. The arguer should first tell what he has to prove, then show all along that he is proving it, and finally call attention to the fact that he has proved it. If this is well done the logical structure of the argument is made obvious.

The argument must also show logical progress. We have already seen the necessity of making the introduction as brief as is consistent with the other requirements. This requirement regarding brevity must be observed throughout the development of the brief. Every statement must be developed to such an extent as to bring out clearly the central thought, but when this has been done the writer must pass at once to the next point, thus showing that some real progress is being made. An argument which moves slowly tires the reader or hearer. Therefore the temptation to elaborate a point in the brief upon which the writer has a large amount of information should be carefully guarded against. Each argument must be stated clearly, with supporting evidence to the point, and the proof furnished by the evidence plainly shown. This logical progress will aid greatly in maintaining interest in the proof of the argument.

C. Style.

Style is the manner of selecting and arranging words, sentences, and paragraphs in such a way that they will produce an intended effect upon the reader or hearer. From this definition it will be seen at once that style is a very important factor in argumentation. The argument is constructed with the express purpose of producing an intended effect upon the reader or hearer, and style is a necessary aid. The outward appearance of things

enhances their usefulness. Manufacturers are on the constant lookout for designs which are really artistic and pleasing to the eye. It is even claimed that the appearance of food affects its digestion. Certainly, therefore, an argument ought to possess such style that it will appear in the most favorable light.

Style, however, must not be considered an external thing. It is not a trick by which an argument may be decorated for parade. Style is the thought and the man behind that thought. It is the thought presented in all its native force and completeness; it is the man with all his earnestness and sincerity put into his words. No writer or speaker can obtain good style by imitating that of another person. It must be the natural expression of his own personality.

a. Elements of style.

(1). Vocabulary.

The selection of the words in which the argument is expressed is highly important. The manuscript should be repeatedly revised with the object of securing a clear and forcible diction. A general term should not be used where a concrete term can be employed. All unusual words should be eliminated and replaced with words which are familiar.

Connotation may enter into the diction of an argument as well as into other forms of prose. There is a fitness possessed by certain words to express certain shades of meaning which must be utilized by the arguer. This regard for the connotative significance of words should guide in their selection throughout the argument.

Significant expressions and combinations of words should also be brought in for the purpose of heightening the effect of the argument. These combinations may be such as are used for political campaign watchwords. Greater force may be given to them by repetition, as in the case of the sturdy Roman orator who always closed his speech with the words "Carthage must be destroyed." Alliteration may also be employed with good effect, as in the case of the college debater who, when opposing a further increase in our navy, designated a battleship as "A devilish device

designed to murder men.” Such suggestions bring ideas to the mind with so much vividness that the impression which they make is not easily effaced.

(2). *Sentences.*

In framing the sentences of an argument the writer must consider whether it is designed for oral delivery or merely for the purpose of being read. If the latter, the rules of ordinary composition furnish a sufficient guide, but, if the former purpose is to be considered special attention must be given to sentence-structure. The writer should test each sentence as it is written by actually reading it aloud or by building a mental concept of the way in which it will sound when stated orally. The meaning must be plain, since if the hearer does not grasp it as the sentence is spoken he cannot grasp it at all. To aid in this clearness, long and involved sentence-structure should be avoided. Short, terse sentences should predominate. Both balanced and periodic sentences may be made to contribute to the oratorical quality which an argument should possess, but they must not interfere with that brevity which makes for clearness. The following extract from the argument of Daniel Webster in the White murder trial well illustrates the clearness which results from the use of terse sentences.

“The criminal law is not founded in a principle of vengeance. It does not punish that it may inflict suffering. The humanity of the law feels and regrets every pain it causes, every hour of restraint it imposes, and more deeply still every life it forfeits. But it uses evil as a means of preventing greater evil. It seeks to deter from crime by the example of punishment. This is its true, and only true main object. It restrains the liberty of the few offenders, that the many who do not offend may enjoy their liberty. It takes the life of a murderer that other murders may not be committed.”

(3). *Paragraphs.*

A paragraph should be devoted to each subdivision of the argument. Each paragraph must be a complete unit. Its length should vary with the importance of the subdivision to which it is confined. The sentence in the brief which it is designed to elaborate should stand as the key sentence of the paragraph.

b. Qualities of style.

(1). Clearness.

The most important quality of style is clearness. Clearness is a valuable aid to interest, for the human mind delights in lucidity. The audience or reader will seldom take the trouble to figure out exactly what idea is intended to be conveyed. Most audiences are lazy and must be assisted to think. The way in which a conclusion is to be reached must be pointed out to them. Hence the necessity of making plain an argument which is to be delivered orally is especially great.

Error can easily be smuggled into an argument under cover of confused language, but clearness shows forth the argument in such a light that any mistake must be apparent. This satisfies the minds of those addressed, because they can see and judge for themselves. Moreover, there is a quality of elegance coming from perfect clearness which carries conviction with it. If clearness is lacking, grave errors may be lurking in the obscure phrasing of the discourse and the reader or hearer cannot feel satisfied in his own mind. Therefore, for the sake of the writer and for the sake of those to whom the argument is addressed, clearness should be the predominating quality of style.

It is not amiss at this point to quote in full the famous description of eloquence from Webster's oration on Adams and Jefferson. It is not only a description but it is a great example of the thing described. The student will do well to ponder over it and try to realize the full significance of every statement.

"Clearness, force, and earnestness are the qualities which produce conviction. True eloquence, indeed, does not consist in speech. It cannot be brought from far. Labor and learning may toil for it, but they will toil in vain. Words and phrases may be marshalled in every way, but they cannot compass it. It must exist in the man, in the subject, and in the occasion. Affected passion, intense expression, and pomp of declamation, all may aspire to it; they cannot reach it. It comes, if it comes at all, like the outbreking of a fountain from the earth, or the bursting forth of volcanic fires, with spontaneous, original, native force. The graces taught in the schools, the costly ornaments and studied contrivances of speech, shock and

disgust men, when their own lives, and the fate of their wives, their children, and their country, hang on the decision of the hour. Then words have lost their power, rhetoric is vain, and all elaborate oratory contemptible. Even genius itself then feels rebuked and subdued, as in the presence of higher qualities. Then patriotism is eloquent; then self-devotion is eloquent. The clear conception outrunning the deductions of logic, the high purpose, the firm resolve, the dauntless spirit, speaking on the tongue, beaming from the eye, informing every feature, and urging the whole man onward, right onward to his object,—this, this is eloquence; or rather it is something greater and higher than all eloquence,—it is action, noble, sublime, godlike action.”

Simplicity of expression is an important aid to clearness. No speaker should strive for effect alone. The simplest words and the simplest sentences should be chosen. Fine writing or high sounding language should be avoided. The writer should make use of that directness which characterizes his conversation when he is in earnest.

Concreteness is a most important aid to clearness, for general statements make little impression upon the average mind. To secure the best effect concrete particulars must be used to amplify and illustrate all general statements. This not only makes the meaning of the speaker more clear but it also gives a force and vigor to the idea presented. In fact, some writers have named concreteness as the most important aid to force. In Alden’s *Art of Debate* a speaker during the time of the Chicago strike is quoted as having moved his hearers to enthusiasm by declaring: “If necessary, every regiment in the United States army must be called out, that the letter dropped by the girl Jennie, at some country post-office back in Maine, may go on its way to her lover in San Francisco, without a finger being raised to stop its passage.” This is concreteness as distinguished from generality. How much less clear and less forcible would be the general abstract statement that “If necessary, the whole force of the United States army will be called into action for the purpose of preventing interference with the mails.”

Instead of making the general statement “There has been a constant improvement in the methods devised by man for killing his fellow men in war,” the idea would be more concrete if expressed in the following terms: “Ever since Shamgar slew the opposing army of the Philistines with an

oxgoad man has been improving the instruments of war until to-day we have the modern dreadnought weighing thousands of tons and costing millions of dollars.” Or, the idea can be presented in a still more concrete manner by stating the following facts: “Ever since David, the shepherd boy, picked a pebble from the brook; placed it in his sling; threw it and killed Goliath, man has been improving the method of throwing things at his fellow men, in order to kill them, until to-day we have the thirteen inch gun, which throws a projectile weighing one thousand pounds a distance of thirteen miles.” These concrete instances when elaborated become illustrations or illustrative instances. In fact, the last statement given above might be dignified with the name illustration. Lincoln in his Cooper Institute speech aptly illustrated the attitude of the South toward secession when he said: “But you will not abide the election of a Republican President! In that supposed event you say you will destroy the Union! and then, you say, the crime of having destroyed it will be upon us! That is cool. A highwayman holds a pistol to my ear and mutters through his teeth ‘Stand and deliver or I shall kill you, and then you will be a murderer.’” Again Lincoln uses a most clear and forcible illustration in his Springfield speech when he presents the following argument from analogy:

“We cannot absolutely know that all these adaptations are the result of preconcert. But when we see a lot of framed timbers, different portions of which we know have been gotten out at different times and places and by different workmen,—Stephen, Franklin, Roger, and James, for instance,—and when we see these timbers joined together, and see they exactly make the frame of a house or a mill, all the tenons and mortices exactly fitting, and all the lengths and proportions of the different pieces exactly adapted to their respective places, and not a piece too many or too few,—not omitting even scaffolding,—or, if a single piece be lacking, we see the place in the frame exactly fitted and prepared yet to bring the piece in—in such a case, we find it impossible not to believe that Stephen and Franklin and Roger and James all understood one another from the beginning, and all worked upon a common plan or draft drawn up before the first blow was struck.”

Such concrete illustrations as are contained in the above quotation should abound in every argument. The homelier the illustration, the more pronounced the effect. It requires no especial insight into human nature to see that such incidents as those quoted above will hold the interest of the audience or reader much more effectively than cold, formal, generalized

statements. Therefore, the student should make use of concreteness, and, in fact of all rhetorical devices, for the purpose of making his argument clear and interesting. Even narratives of some extended length may be introduced when they are especially pertinent to the point at issue.

Clearness is aided by making plain in the argument that unity which exists in the brief. All matter which does not tend to explain or prove the main proposition should be excluded. It is dangerous for the arguer to enter into lengthy explanations, for they may be but digressions from the main argument. It is of course assumed that the brief possesses unity. The temptation to include matter merely because of its interest is always strong, but the student must apply the test of immediate relevancy and be guided by it. The final acceptance of the argument by the reader or hearer is aided or hindered by his impression of the unity or solidity of its construction. The brief should be strictly followed in order that unity may be apparent.

Coherence is also an important aid to clearness. The coherence which exists in the brief must be expressed in the argument. The connective “for,” which is used in the brief to show the relation subordinate statements bear to the main statements, must be expanded in rhetorical style so as to bring out plainly the force of the relation which it expresses. In the effort to secure coherence the arguer should not hesitate to repeat the main issues or even to show how they stand as proof of the proposition. Every fact of evidence must be made to stand out distinctly as proof for some statement in the argument. Otherwise the evidence will be mere dead weight, loading down instead of supporting the contentions of the arguer.

Connective words, such as “for,” “because,” “hence,” “therefore” should abound throughout the proof for the purpose of showing precisely what relation exists between a fact and a statement, or a statement and a main issue, or a main issue and the proposition. Every fact of evidence must be clearly connected with the statement which it proves; every statement supported by evidence must be connected directly with the main issue which it proves; and every main issue must be connected directly with the proposition which it proves. This must be done not by inference, but by an expressed connection. The connection may appear so obvious that it seems foolish to put it in words, but experience shows that the connective must be expressed or it will not be comprehended. If the connections are not expressed the argument will appear incoherent. Therefore, transitional

sentences must be used frequently. When two or more facts of evidence are offered in support of one statement the words “First”, “Second”, and “Third”, or “Moreover”, “Again”, “Furthermore” should be used. At the end of the enumeration what all these facts tend to show regarding the proposition should be stated.

Coherence is not obtained by chance. To obtain it requires the greatest care in the original writing out of the argument. A careful process of revision must then be instituted to make sure that no fact of evidence is left standing without its appropriate relation to the proposition being clearly stated. Any break in coherence may mean the loss of part or all of the evidence offered in support of a main issue.

One of the classical examples of argument noteworthy for its coherence, and the one most often recommended for study in connection with the subject of coherence, is Burke’s *Speech on Conciliation*. In that part of the argument which treats of the American love of freedom, the skill displayed in making transition from part to part, and the general effect of coherence which results from this treatment are most conspicuous.

The following extracts taken from a portion of the argument will illustrate Burke’s method of making his discourse coherent. The dots indicate omissions.^[3]

3. After reading the selections here given the student will do well to make a study of the speech itself and scrutinize closely the substance of the parts which these statements serve to connect as well as the manner of connection. The first sentence may be taken as the main issue which Burke intends to offer evidence to prove; then come the sentences which mark the connection of the most important facts of evidence offered in support of the issue; and finally the summary which again calls attention to the connection existing between these pieces of evidence and the proposition contained in the first statement.

“In the character of the Americans, a love of freedom is the predominating feature which marks and distinguishes the whole ... this (results) from a great variety of powerful causes.... First, the people of the colonies are descendants of Englishmen.... Their governments are popular in a high degree.... If anything were wanting to this necessary operation of the form of government, religion would have given it complete effect.... The people are Protestants; and of the kind which is most adverse to all implicit submission of mind and opinion.... (The Church of England tends to offset this influence in the Southern colonies). There is, however, a circumstance attending these colonies, which in my opinion, fully counterbalances this

difference.... It is, that in Virginia they have a vast multitude of slaves. Where this is the case in any part of the world, those who are free are by far the more proud and jealous of their freedom.... Permit me, Sir, to add another circumstance in our colonies, which contributes no mean part towards the growth and effect of this untractable spirit. I mean their education. In no country perhaps in the world is the law so general a study.... The last cause of this disobedient spirit in the colonies is hardly less powerful than the rest, as it is not merely moral, but laid deep in the natural constitution of things. Three thousand miles of ocean lie between you and them.... Then, Sir, from these six capital sources: of descent; of form of government; of religion in the northern provinces; of manners in the southern; of education; of the remoteness of the situation from the first mover of government; from all these causes a fierce spirit of liberty has grown up....”

These transition sentences seem to imply a strong coherent argument, and, when taken in connection with the context, they form an almost perfect example of argumentative coherence.

Usually the first sentence of a paragraph developing a new argument is the transition sentence. Sometimes a more extended transition becomes necessary, in which case more than one sentence, or even an entire paragraph, may be devoted to the transition from one part to another. All of the methods suggested above may be properly employed in giving the argument coherence.

In this discussion of clearness many things have been considered which must be taken into account when reading the discussions of Force and Elegance. No division of style can be absolute nor can a complete exposition of its qualities be attempted without much repetition. The student must therefore treat this division of subject-matter as helpful only in emphasizing the qualities which his argumentative writing and speaking should possess.

(2). *Force.*

We speak of a “forcible argument” with respect because it indicates something substantial. Force must pervade any writing or speaking which aims to arouse to action. The material must be presented in an impressive

manner. By so doing we create a keener interest and bring to the minds of our readers or hearers a more vivid realization of the significance of our argument. Therefore after all the devices heretofore considered have been employed to make the argument interesting, the finished product should be considered with a view to determining whether it is the most forcible piece of work that can be produced. Perhaps some slight change in the way in which these devices have been employed will give a better effect. If so, the modification should be carefully attended to in order that the argument may possess in its highest degree the quality of force.

The force of an argument depends in large measure upon the proper use of emphasis. Emphasis is the means by which attention is called to the importance or special significance of any portion of the argument. One of the ways in which any part of the subject-matter may be emphasized is by expanding or dwelling upon that part. This must always be done with due consideration for the other parts of the argument. Hence it happens that proportion is used as a means to secure emphasis. The writer must determine the really vital parts of his argument and aim to give emphasis to them alone, because every point cannot be emphasized. An attempt to emphasize everything results in no emphasis whatever. Everything must not be on the same dead level, because if it is the audience or reader will soon lose interest. We sometimes speak of the important points as the “high places” in the argument. These “high places” must exist, because it is impossible for the reader or hearer to remember all the details of a lengthy argument. He will, however, remember the important points, providing they have been properly emphasized.

We now turn to the methods by which the best use can be made of the space devoted to the emphasizing of any particular point. The use of metaphors, similes, and epigrams is an effective mode of emphasis. An apt metaphor or simile will remain in the minds of readers or hearers long after the trend of the argument is forgotten.

Another method frequently employed for the purpose of securing emphasis is that of the rhetorical question. Since such a question implies an answer favorable to the party asking it, it must appear plainly that the answer is bound to be as he desires. In the Lincoln-Douglas debates both speakers made frequent use of this method, and Webster, in emphasizing the necessity of finding the murderer of Captain John White asks, “Should not

all the peaceable and well disposed naturally feel concerned, and naturally exert themselves to bring to punishment the authors of the secret assassination? Was it a thing to be slept upon or forgotten? Did you, gentlemen, sleep quite as quietly in your beds after this murder as you did before? Was it not a case for rewards, for meetings, for committees, for the united efforts of all the good, to find out a band of murderous conspirators, of midnight ruffians, and to bring them to the bar of justice and law?"

The use of repetition for the purpose of emphasis is most important. In employing this method care should be taken not to overdo it, as such a process is always fatal to interest. The central idea should be repeated, but the phrasing should be skillfully varied so as to prevent the repetition from becoming monotonous. Furthermore, the point of view should be changed. This not only serves to change the manner in which the idea is presented but will help to hold the interest. Perhaps one point of view will appeal more strongly to some people than to others. Hence by changing the point of view the greatest number of people are influenced. It must be kept in mind, however, that it is not the point of view of the writer which changes but merely the point of view from which he presents the part of the argument to be emphasized.

(3). *Elegance.*

As has already been suggested, the appearance of an argument has a great deal to do with the manner in which it is received. By appearance is meant the way in which it appears to the mind of the person addressed. If it appears to be a stiff, formal, arrogant piece of work it may only excite intellectual curiosity instead of arousing interest and creating desire. The argument must appeal with freshness and vivacity to the person addressed. It is no small task to form an elegant forensic from a solid, rigid brief.

From the student's study of ease, grace, elegance, and rhythm as found in books of rhetoric, he will have obtained a fair idea of the quality of elegance and can make an intelligent effort to secure it in his own work. But the most effective way in which to acquire a sense of elegance is by the study of those masterpieces of argument which possess this quality to a high degree. Rules cannot be formulated nor practicable principles laid down for obtaining this quality. Just as the musician acquires a sense of what is proper and what is not proper in his art, so, must the writer of an argument

acquire a sense of what is proper and what is not proper by a study of the works of those who have been masters in the art of argumentation. The simple elegance of Lincoln's style, the impressive elegance of the style of Webster, and the fiery elegance of which Patrick Henry was master, must be studied earnestly by the student. The orations of Webster, the speeches of Burke, and the arguments of Lincoln should be read over and over again. Favorite passages should be committed to memory and all the speeches should be read for the purpose of being enjoyed. This will impart a wealth of expression and an elegance of style which can be obtained in no other way.

In considering the subject of "Interest—Maintained by the Proof" let the student remember that all the methods herein suggested stand ready to aid him in his supreme desire to be heard if he will but master them and make them his servants.

III. Desire—created by the conclusion.

Attention has been previously called to the fact that the practical application of introduction, proof, and conclusion to the creating of attention, interest, and desire is approximate rather than absolute. The main part of the argument which is contained in the proof carries forward the work of persuasion. It creates a desire to understand the whole truth about the proposition discussed. When we say that the desire is created by the conclusion we mean that all the good effect produced by the proof is summed up and presented in such a forcible manner that it awakens the desire for action.

The proof has maintained the interest of those to whom the argument is addressed. It has established a firm basis in rational desire. The object of the conclusion is to arouse emotions sufficient to move the will. In order that it may do this it should be in the form of an appeal for the adoption or defeat of the resolution. To understand the way in which this plea or appeal should be made it is necessary to understand the forces which influence the individual to act. These forces are known as the qualities of want. The desire to act results from one or more of the following seven causes.

1. Necessity.

If the proof which has been presented for or against the proposition shows that the proposed measure is necessary the conclusion should make necessity the basis of the plea. Necessity is a strong basis for an argument. If a thing is a necessity, all reasonable persons will agree that it should be adopted, providing there is no predominating circumstance which makes its adoption inadvisable. Lincoln urged upon his hearers the necessity of settling the slavery question, Patrick Henry urged the necessity of resistance to the tyranny of England, and Daniel Webster urged the necessity of holding the Union inviolate. By showing that a thing is necessary, that disaster will follow inaction, orators have aroused the energies of men in order that great reforms might prevail. The speaker who can show that the cause of action which he advocates is necessary to the state, to the community, or to the individual has made a strong plea for its adoption.

2. Interest.

By an appeal to interest we do not mean anything unworthy of either speaker or hearer. Legitimate self-interest is perhaps the strongest motive which incites men to action. This trait of the human character should not be lost sight of by the student of argumentation. In one way or another almost every proposition may be made to appeal to the self-interest of the individual. For the purpose of being systematic we may consider this self-interest under the three heads, Convenience, Pleasure, and Profit.

A. Convenience.

If it can be shown that the adoption of a definite course of action will be for the convenience of the individual a strong point in its favor has been established. If emphasis can be placed upon the fact that it will be for the convenience of the community as a whole the argument will be still stronger, for some people love to flatter themselves that they are considering the interests of their fellow men as well as of themselves, and

many people are honest in this impulse. Moreover, this public spirit is an actual factor in determining the actions of men. Such an argument is especially valuable in discussing local questions. In advocating the building of a new bridge, the granting of concessions to a proposed railroad or street car line the appeal to the convenience of the people of the community is very strong. By the application of a little ingenuity in connecting the points of the argument with the everyday life of the people to whom it is addressed, the effectiveness of the conclusion may be greatly increased.

B. Pleasure.

The average person is inclined to accept that which is pleasing to him and reject that which is displeasing. In the construction of the proof we have been trying to keep interest alive by presenting our subject in an interesting manner. In the conclusion we must sum up this matter in such a way as to conform to the pleasure of those addressed. The building of a new theatre, a town hall, or a park may be made to appeal to many interests of the community, but after all is said the fact remains that the main justification for such buildings rests upon the pleasure which they give to individual members of the community. As in the case of convenience, this element of pleasure may be utilized with practical results in the closing plea.

C. Profit.

The strongest appeal to self-interest can be made by showing that the action advocated will result in profit to the individual. By showing that a proposed plan of taxation will result in lowering the yearly amount of tax which John Jones will have to pay, you will probably secure the vote of John Jones in favor of your proposition. By showing that the purchase of a potato digger will increase the amount of money which a farmer can make raising potatoes, you have gone far toward convincing that farmer that he should buy a potato digger. By showing that consolidation will yield greater profit to the business man you have done much to persuade him to join the combination. By showing that the lowering of the tariff schedule will

reduce the cost of living you may induce many persons to advocate a lower tariff. In every argument self-interest plays an important part. The conclusion should therefore leave firmly fixed in the mind of the reader or hearer the fact that the action advocated will be for his best interests.

3. Jealousy, vanity, and hatred.

An appeal to the baser passions of mankind is not to be commended. Nevertheless, we are here treating of real arguments in a real world. Since the end of argumentation is action, and since jealousy, vanity, and hatred are motives which stir men to action, we must consider them. Personal motives may furnish subsidiary inducements to action. The jealousy which one business man feels toward his competitor may induce him to adopt new methods of doing business in order that he may outdo his rival. The vanity which a manufacturer feels in the superiority of his goods may be the determining factor in the adoption of improved machinery. The hatred which the honest citizen entertains for boss rule may be the determining factor in deciding the way he will vote. The ingenuity of the student must be employed in trying to fathom the unseen causes which guide the activities of his fellows.

4. Ambition.

The ambition of an individual to excel in his business, trade, or profession; the ambition of a community to have the best social and educational advantages; and the ambition of a nation to outreach the world in trade and commerce, may all form the substantial basis for action. By appealing to this praiseworthy ambition the emotional element is added to the element of intellectual conviction.

5. Generosity.

Every human being is moved at times by generous impulses which may arise from a variety of causes. The arguer should study these causes and attempt to stimulate the impulses. Dignify the position of those to whom the appeal is made by showing them that they can well afford to be generous.

6. Love of right and justice.

The arguer should never fail to leave his hearers with the conviction that he champions a just cause. This appeal can always be made, because under no circumstances should anyone champion a cause which is unjust. In this age people as a whole are willing to do the right thing, despite the actions of particular individuals or groups of individuals to the contrary. Abstract justice in its application to the particular proposition should form the basis of the final plea.

7. Love of country, home, and kindred.

The hearts of men have always been stirred by the appeal to patriotism. Action in its most intense form will follow the right appeal to love of country. The protection of home and kindred has from the dawn of history been the prime motive in all great world movements. Other causes may appear on the surface, but underlying these, in one form or another is this primal cause. Wars are waged and nations built up or overthrown because of the use or abuse of this power. Therefore the speaker must make a broad application of his particular argument in the closing paragraph.

With these fundamental suggestions in mind regarding the attitude which the conclusion should take, we will now turn to the form in which it is to be presented.

The conclusion must conform to the brief by summing up the main arguments and putting them clearly before the audience. This summary is necessary in order to make the proof clear and forcible. It should contain the main issues, and, whenever practicable, the subordinate reasons supporting them, in order that the chief points in the proof of the proposition may be recalled by the audience.

An example of the simple summary which is often quoted as a model, is the conclusion of the argument made by Daniel Webster in the case of *Ogden v. Saunders*:—

“To recapitulate what has been said, we maintain, first, that the Constitution, by its grants to Congress and its prohibitions to the states, has sought to establish one uniform standard of value, or medium of payment. Second, that, by like means, it has endeavored to provide for one uniform mode of discharging debts, when they are to be discharged without payment. Third, that these objects are connected, and that the first loses much of its importance, if the last, also, be not accomplished. Fourth, that, reading the grant to Congress and the prohibition on the states together, the inference is strong that the Constitution intended to confer an exclusive power to pass bankrupt laws on Congress. Fifth, that the prohibition in the tenth section reaches to all contracts, existing or in the future, in the same way that the other prohibition, in the same section, extends to all debts, existing or in the future. Sixthly, that, upon any other construction, one great political object of the Constitution will fail of its accomplishment.”

Again in the argument on the Presidential Protest he summarizes with effect and concludes:—

“—We have not sought this controversy; it has met us and been forced upon us. In my judgment, the law has been disregarded, and the Constitution transgressed; the fortress of liberty has been assaulted, and circumstances have placed the Senate in the breach; and, although we may perish in it, I know we shall not fly from it. But I am fearless of consequences. We shall hold on, Sir, and hold out, till the people themselves come to its defense. We shall raise the alarm, and maintain the post, till they whose right it is shall decide whether the Senate be a faction, wantonly resisting lawful power, or whether it be opposing, with firmness and patriotism, violations of liberty, and inroads upon the Constitution.”

In concluding this chapter on constructing the argument, let us again revert to the fact that the conclusion must be presented in such a way as to create a desire for action. The conclusion must “clinch” the argument. The time has come for the reader or hearer to act, or determine upon action. All the labor spent upon the introduction in arousing and fixing the attention, and all the labor spent upon the proof in maintaining the interest and building a firm basis for persuasion in rational conviction, is now lost

unless the conclusion rises supreme above these and presents a culmination forcible and commanding. The conclusion should reap the harvest of persuasion sown throughout the argument. The emotions must be aroused as they have not been aroused in the presentation of the proof; they must be stimulated to the highest pitch. The conclusion must command the best powers of the speaker or writer. It must unite the audience, the subject, and the personality of him who presents the argument into one mighty current of thought and emotion which leads onward to action.

CHAPTER VII

REBUTTAL

Rebuttal consists of defending the constructive argument and weakening or destroying opposing arguments. Rebuttal is both defense and attack. Refutation is attack alone. In formal debate rebuttal refers to the final speech made by each debater after he has presented his constructive argument and his opponents have had a chance to reply. The main speech in a formal debate is usually of ten minutes' duration while the rebuttal speech is of five minutes' duration. Furthermore, after the first affirmative speaker has opened the debate it is customary for each succeeding speaker to introduce his main argument with a short rebuttal speech of one or two minutes, or he may introduce rebuttal at any point in his main speech.

The rebuttal speech must introduce no new argument, but is limited to a discussion of the validity of the arguments already presented. After the salesman has presented his goods and the reasons why the prospective customer should buy, he must answer the questions regarding those reasons and the objections which are made to them. Furthermore, he must overthrow any reasons for not buying which may be advanced by the customer. In arguing with a single individual regarding the advisability of any course of action the arguer must defend his own position as well as overthrow that of his opponent. In organizations and deliberative bodies the speaker who proposes any plan or measure must be prepared to answer any objections which may be made to it; and must also be prepared to weaken or destroy the arguments which may be advanced in support of other plans or measures which conflict with his own. It is thus seen that a knowledge of the preparation and presentation of rebuttal is almost indispensable to the student who would make practical application of the theory and practice of argumentation. Since our work is to take the form of debating, we shall consider the subject largely from this standpoint. Nevertheless, the student should constantly keep in mind the broader application of the principles which are used in formal debating.

I. Preparation for rebuttal.

Rebuttal should never be considered lightly from the standpoint of preparation. The speaker who relies on the “spur” of the moment is quite sure to find that when the moment arrives it has no “spur.” The rebuttal should be prepared as carefully as the constructive argument. It demands exact and far-reaching knowledge. Furthermore, it demands absolute command of that knowledge in order that it may be used effectively. In this preparation the student should consider the sources from which he may derive the appropriate material, and the proper arrangement of that material after it has been collected.

1. Sources of material for rebuttal.

A. Material acquired in constructing the argument.

The investigation which preceded and accompanied the construction of the brief and argument should have yielded a wide knowledge of the subject. Much of the material gathered could not be used because of limitations of time or space, because of its not being adapted to use in the argument as it was to be presented, or because of the abundance of better material. The student will therefore have in his possession a large number of facts which were not used. These should be carefully reviewed in order that the “stock in trade” of rebuttal material may be invoiced. The student should then revert to his original analysis and examine his opponents’ position with a critical eye. He should measure carefully the strength of that position and compare it with his own. All the sources which were consulted in the beginning should again be made to yield information. This can now be done with ease, because the preparation of the constructive argument has given the student a firm grasp upon the subject-matter.

Every possible point of attack which the constructive argument presents must be fortified by full and complete rebuttal material. The debater should begin at his argument as a starting point and work back along the line of evidence supporting each general assertion. Since it was impracticable to

put into the argument all the evidence supporting any one contention, the student must now have this evidence at hand in order to support his argument at the point where the attack can be made. It is almost impossible to construct an argument which cannot be attacked in a plausible manner, but it is entirely possible to construct an argument which can be defended successfully.

After the constructive argument has been fortified, the main contentions of the opposition, which the analysis of the question has revealed, must receive careful attention. Every possible line of attack which the opposition may advance should be considered. The student cannot hope to determine beforehand the form in which these arguments will be presented. Nevertheless, if his analysis of the proposition has been made in a thorough manner, and if his preparation has been thorough, he cannot fail to have grasped the underlying arguments of his opponents' position. These should now be refuted with the best material which the debater can find. He must be as diligent in ferreting out evidence which will overthrow his opponents' position as he was in searching for evidence with which to support his own. No available source of evidence should be neglected. Every weak point in the opposing argument should be exposed and "ammunition" with which to attack these weak places should be collected. This material should be tabulated on cards in the same form that was used in tabulating material for the constructive argument. The following specimens of rebuttal cards, prepared by students for an inter-class debate, may prove suggestive.

<i>Injustice.</i>	<i>D. A. Wells.</i>
“Taxation in aid of private enterprises is to load the tables of the few with bounty, that the many may partake of the crumbs that fall therefrom.”	
<i>The Theory and Practice of Taxation</i>, p. 292.	

<i>Test of Ability.</i>	<i>Philip S. Post.</i>
“By successive stages more equitable standards of taxation have been reached, until now there is a general acceptance of the maxim that income is the best test by which to measure a man’s ability.”	
<i>Outlook</i>, Vol. 85, p. 503 (1907).	

<i>Equality of Sacrifice.</i>	<i>R. T. Ely.</i>
“An income tax honestly assessed and honestly collected answers the canon of Equality of Sacrifice.”	
<i>Taxation in American States</i>, p. 89.	

B. Books, papers, and documents.

It often happens that the question has been debated previously. In such cases books, papers, and documents may be found which contain “ready-made” rebuttal arguments. The debater should never rely on these alone. The preparation suggested in the last section is an absolute prerequisite to successful work in rebuttal. However, these ready-made arguments should be searched out carefully and made to form a part of the material for rebuttal. Such evidence is of course subject to the same requirement regarding its worth and validity as the sources of material consulted in constructing the main argument.

The student should now go over his cards carefully and consider the various books, papers, or documents from which his information was derived. Any of these books, papers, or documents which stand as authority for vital facts, or for facts about which there is likely to be a dispute, should be taken out and placed with the other material which is to be used in rebuttal. Especially should this be done in cases where the debater feels that he has authority which is probably better than that which his opponents will be able to quote. For example, a government document makes a very effective showing when it is quoted as contradicting the statement of some

unknown magazine writer. In like manner statistics from the *United States Census Reports* will prevail over statistics found in an address delivered by some partisan leader. Since such conflicts of authority are likely to arise it is important that the debater have at hand the original sources of the information which forms the basis of his argument or rebuttal. Moreover, a recognized authority sometimes changes his opinion. In this case the debater should be careful to provide himself with the book, paper, or document which contains his latest views on the subject discussed. These become especially valuable when the opposition relies upon the old views of the authority quoted. In this, as in all other cases of authority, the usual tests of sufficiency apply.

C. Questions.

The skillful asking of questions is a most important matter in debating. These are often asked in the main argument, but it is in the rebuttal that the answers are usually threshed out. If the questions are not asked originally in the rebuttal they should at least be reverted to during this part of the debate. No debater can consider himself thoroughly prepared who has not framed some effective questions and who is not ready to answer questions which may be asked by his opponents. The interrogatories which are intended to be discussed in the rebuttal are not rhetorical questions, but questions calling for definite answers.

There are two well defined uses to which these questions may be put. First, they may be used to compel an opponent to take a definite position on some issue which he appears to be attempting to evade. Second, they may be used to force an opponent into a dilemma, in which position he will be at a disadvantage without regard to the answer which he gives. Very often an opponent is more skillful in evading the real point at issue than he is in debating it. In such cases a question or series of questions may be necessary in order to compel him to discuss the subject of dispute. Sometimes an opponent intentionally evades the real point at issue because he knows his position is weak and seeks to cover up the real defect under a plausible show of language. In both of these situations the use of direct questions is effective. The wording of these questions should receive the same careful

consideration which is bestowed upon the wording of a proposition. The questions must be clear and unambiguous and must call for definite and direct answers. No opportunity for evasion should be allowed. Furthermore, these questions must be worded forcibly and emphasized in such a way that an opponent will not dare to leave them unanswered.

On the other hand, if an opponent propounds certain questions to which answers are demanded, the debater must either answer these questions satisfactorily or show good reason why they should remain unanswered. In the famous Lincoln-Douglas debates, which began August, 1858, questions were frequently asked by both parties. In the first debate, which was held at Ottawa, Illinois, Douglas asked Lincoln seven distinct questions. In the second debate which was held at Freeport, Lincoln restated these questions and answered them briefly and to the point in the following manner:

“In the course of that opening argument Judge Douglas proposed to me seven distinct interrogatories. In my speech of an hour and a half, I attended to some other parts of his speech, and incidentally, as I thought, answered one of the interrogatories then. I then distinctly intimated to him that I would answer the rest of his interrogatories on condition only that he would agree to answer as many for me. He made no intimation at the time of the proposition, nor did he in his reply allude at all to that suggestion of mine. I do him no injustice in saying that he occupied at least half of his reply in dealing with me as though I had *refused* to answer his interrogatories. I now propose that I will answer any of the interrogatories, upon condition that he will answer questions from me not exceeding the same number. I give him an opportunity to respond. The Judge remains silent. I now say that I will answer his interrogatories, whether he answers mine or not; and that after I have done so I shall propound mine to him.

“I have supposed myself, since the organization of the Republican party at Bloomington, in May, 1856, bound as a party man by the platforms of the party, then and since. If in any interrogatories which I shall answer I go beyond the scope of what is within these platforms, it will be perceived that no one is responsible but myself.

“Having said this much, I will take up the Judge’s interrogatories as I find them printed in the *Chicago Times*, and answer them *seriatim*. In order that there may be no mistake about it, I have copied the interrogatories in

writing, and also my answers to them. The first one of these interrogatories is in these words:

Question 1—‘I desire to know whether Lincoln to-day stands, as he did in 1854, in favor of the unconditional repeal of the Fugitive Slave law?’

Answer—I do not now, nor ever did, stand in favor of the unconditional repeal of the Fugitive Slave law.

Question 2—‘I desire him to answer whether he stands pledged to-day, as he did in 1854, against the admission of any more Slave States into the Union even if the people want them?’

Answer—I do not now, nor ever did, stand pledged against the admission of any more Slave States into the Union.

Question 3—‘I want to know whether he stands pledged against the admission of a new State into the Union with such a Constitution as the people of that state may see fit to make?’

Answer—I do not stand pledged against the admission of a new State into the Union, with such a Constitution as the people of that State may see fit to make.

Question 4—‘I want to know whether he stands to-day pledged to the abolition of slavery in the District of Columbia?’

Answer—I do not stand to-day pledged to the abolition of slavery in the District of Columbia.

Question 5—‘I desire him to answer whether he stands pledged to the prohibition of the slave trade between the different states?’

Answer—I do not stand pledged to the prohibition of the slave trade between the different states.

Question 6—‘I desire to know whether he stands pledged to prohibit slavery in all the Territories of the United States, north as well as south of the Missouri Compromise line?’

Answer—I am impliedly, if not expressly, pledged to a belief in the *right* and *duty* of Congress to prohibit slavery in all the United States Territories.

Question 7—‘I desire him to answer whether he is opposed to the acquisition of any new territory unless slavery is first prohibited therein?’

Answer—I am not generally opposed to honest acquisition of territory; and, in any given case, I would or would not oppose such acquisition,

according as I might think such acquisition would or would not aggravate the slavery question among ourselves.

“Now, my friends, it will be perceived upon an examination of these questions and answers, that so far I have only answered that I was not *pledged* to this, that, or the other. The *Judge* has not framed his interrogatories to ask me anything more than this, and I have answered in strict accordance with the interrogatories, and have answered truly, that I am not *pledged* at all upon any of the points to which I have answered. But I am not disposed to hang upon the exact form of his interrogatory. I am rather disposed to take up at least some of these questions, and state what I really think of them.”

In the above example of the use of questions and answers it will be noted that Lincoln emphasizes his fairness by offering to answer his opponent's questions provided that opponent will do the same with questions which he propounds. When Judge Douglas does not accept this proposition, Lincoln follows up his just course of conduct by declaring that he will answer his opponent's questions whether that opponent will answer his or not. He then makes an introductory statement in which he limits the responsibility of his answers strictly to himself. He next takes up each question and answers it briefly and directly. He concludes these answers with a paragraph in which he shows that he has answered the questions strictly in accordance with the form in which they were asked. Then he again shows his fairness and even liberality toward his opponent by taking up the more important questions and giving a full and complete discussion of each one. After this fair and comprehensive treatment Lincoln proceeds to propound his questions to Judge Douglas in the following manner.

“I now proceed to propound to the Judge the interrogatories so far as I have framed them. I will bring forward a new installment when I get them ready. I will bring them forward now only reaching to number four.

The first one is:—

Question 1—If the people of Kansas shall, by means entirely unobjectionable in all other respects, adopt a State constitution, and ask admission into the Union under it, before they have the requisite number of inhabitants according to the English bill,—some ninety-three thousand,—will you vote to admit them?

Question 2—Can the people of a United States Territory, in any lawful way, against the wish of any citizen of the United States, exclude slavery from its limits prior to the formation of a State constitution?

Question 3—If the Supreme Court of the United States shall decide that States cannot exclude slavery from their limits, are you in favor of acquiescing in, adopting, and following such a decision as a rule of political action?

Question 4—Are you in favor of acquiring additional territory, in disregard of how such acquisition may affect the nation on the slavery question?”

The foregoing examples of questions and answers will give an idea of the way in which they may be used in a formal debate. The third interrogatory propounded by Lincoln illustrates well the type of question which is designed to force an opponent into a dilemma. This inquiry is an example of the great analytical ability of Lincoln, as the following circumstances will show.

The Dred Scott decision by the United States Supreme Court had held that Congress did not have the power to exclude slavery from any of the territories. Lincoln regarded this decision as wrong and said so. Douglas denounced Lincoln for his attitude in the matter and declared that it was unpatriotic, disloyal, and revolutionary for any man to criticize a decision of the United States Supreme Court. On the other hand Lincoln denounced Douglas on the ground that he, acting in conjunction with other Democrats, was engaged in a conspiracy to nationalize slavery. In support of this charge he offered reasonable evidence, and showed that the conspirators’ efforts would be complete providing they could get a decision of the Supreme Court which would declare that a state could not exclude slavery from its borders. Lincoln charged Douglas with active attempts to secure this decision. It was under these circumstances that Lincoln asked the third question, viz.:—“If the Supreme Court of the United States shall decide that the States cannot exclude slavery from their limits, are you in favor of acquiescing in, adopting, and following such decision as a rule of political action?”

If Douglas answered this question in the affirmative it would put him in the position of substantiating Lincoln’s charge of conspiracy. This would be very embarrassing for Douglas and give Lincoln a decided advantage. On

the other hand, Douglas's position would be just as embarrassing and his opponent would reap as great an advantage, if he answered in the negative, for then he would be opposing a decision of the Supreme Court,—the very thing for which he had so bitterly denounced Lincoln. The question was so worded that an affirmative or a negative answer would be equally disastrous.

By a judicious use of such questions the debater may direct the discussion along the narrow channel which it should take, and bring out in a forcible way any defects in his opponents' position. No debater should consider himself thoroughly prepared for rebuttal until he has worked out carefully a list of questions framed in accordance with the principles here suggested.

Another form of attack which properly belongs under this heading is that of demanding a definite plan. If the speaker is upholding the negative in a debate on the question of the inheritance tax, he should demand that the next affirmative speaker show a definite plan of taxation. If the opponent refuses to present a definite plan he may be charged with impracticability, vagueness, and a fear that no plan which he might present could be defended safely. On the other hand if he presents a definite plan it may be easy to point out glaring defects in its construction. In either case the demanding of a definite plan may be made to work to the advantage of the debater. If a definite plan is demanded it is usually best to reply that the discussion is on principles not plans. In this way attention may be called to the underlying principles of the controversy and it can be shown that, after the difficulties which they present have been solved, a discussion of a definite plan will be in order and its construction will then be a simple matter. This method of procedure, both as regards the demanding of a definite plan and the answering of that demand, affords ample scope for the argumentative mind to display its breadth of perception and its keenness in analysis.

2. Arrangement of rebuttal material.

After a satisfactory amount of rebuttal material has been collected the debater must arrange this material in such a way that any particular part of

it will be readily accessible. Since the amount of evidence must necessarily be so large, that all of it cannot be kept in mind at one time, some easy method of classification is necessary which will include everything that may be of use when the rebuttal is to be presented. The importance of this systematic classification becomes apparent when the debater stops to reflect that he has enough rebuttal material for a one or two hour speech, while the actual time which is allowed for its presentation in a formal debate is usually five or six minutes. Even if there is no time limit the debater must not weary the audience by long delays while he searches for material. The debater must know exactly where each piece of evidence may be found. It is not sufficient that he have a vague recollection that somewhere in his notes is an authoritative fact which will refute the argument his opponent has just advanced. He must know just where to find that fact. If his opponent has misquoted statistics from the Report of the United States Industrial Commission it is not sufficient for him to know that somewhere within the nineteen volumes of that report is a small table of statistics which will prove his opponent to be wrong. He must be able to turn to the exact volume and page. He may be confident that an authority, which he has quoted as favoring his position, is really on his side of the case; but if he cannot give an exact reference to the place where such authority is to be found, his opponent may dispute the assertion with impunity. These and many similar situations which are bound to arise in actual debating make it plain that the task of arranging material is a very important part of the preparation for rebuttal.

A. Classification of cards.

The rebuttal cards should all be classified under a sufficient number of headings to cover the entire field of the evidence collected. The exact number of headings will, of course, vary with different questions. There must be, however, a sufficient number of divisions to separate the cards into groups small enough to be handled easily. On the other hand the number of divisions must not be so great as to become confusing in themselves. In actual practice from four to eight divisions are sufficient for practical purposes. In a debate on the proposition, "Resolved, that the United States

should make no discrimination between the immigrants from China and those from other countries,” the rebuttal cards were divided into the following groups; (1) Economic influence, (2) Social influence, (3) Political influence.

If the number of cards in any one group is too large to be handled easily, that group may be divided under two or more sub-heads. For example, in the division above made the topic “Social influences” was found to include a much larger number of cards than either of the other subdivisions; hence it was divided into two sub-heads, (a) assimilation, (b) morality and crime. This careful division of the material will make the debater so familiar with all his rebuttal evidence that he can without hesitation lay his hands upon just what is wanted. The work of locating particular points of evidence must be done with dispatch. Time is valuable, for the debater will soon be called upon to answer the argument that is being presented. Moreover, if he spends too much time looking over his cards and if the process requires all his attention, he may lose some very important statement which is being made by his opponent.

In a formal debating contest it is sometimes advisable to have the alternate take charge of the entire mass of rebuttal material. In this case the cards should be typewritten so that each member of the team can read any card as well as any other member of the team can read it. The alternate sits at the table with the team and has all the rebuttal cards in a filing box before him. Then as each argument is brought up he quickly finds the most effective rebuttal material on that point and hands it over to the speaker who is to answer that argument. This system of working allows the regular members of the team to give all their attention to what their opponents are saying. The alternate performs the mechanical work of finding the particular evidence required. With a team whose members have worked out the question together in a thorough manner, this method is very effective.

B. Arranging books, papers, and documents.

Following the suggestions regarding sources of material, the debater will have before him a number of books, papers, and documents. When the time comes to use these sources of material the debater cannot delay the

discussion by hunting through them in an aimless fashion in search of the precise information which he needs. He must be able to pick out the volume and turn to the exact page without hesitation and at a moment's notice. This requisite demands the same systematized classification that was employed in the arranging of rebuttal cards. One method of making this classification is to have a card index of the material. The general topic to be refuted should be placed at the top of the card. Below this should be an exact reference to the book, paper, or document in which the material for refutation is found. Then when an opponent puts forth his argument it is only necessary to look it up in the card index and turn to the reference. The places in the books, papers, and documents, to which reference is made in the card index, should be marked with long slips of paper extending beyond the tops of the books and having on the protruding parts the numbers of the pages which they mark. Furthermore, the particular portions of the page which are applicable should be marked with marginal lines. Great care should be taken to mark only those passages which are exactly to the point; otherwise too much time will be wasted in referring to matters which may be relevant but are of no value as proof.

This system of indexing material contained in books, papers, and documents will be found to be almost indispensable when the time for use arrives. The debater must practice this system until he can manipulate it with ease and rapidity. In the case of team work, the alternate may have charge of this index, which can be made a part of the large card classification. He can then provide each rebuttal speaker with the proper material as the occasion for its use arrives. Of course, in the case of a single speaker, where only a very few volumes are to be used in the rebuttal the system of card indexing can be dispensed with, but the system of marking the exact references by means of slips of paper and marginal lines should always be employed.

In the beginning the working of this system, as that of any system, will seem awkward and unwieldy; but the debater must practice using it under all argumentative conditions. In this way he will gain in the ease and rapidity with which he can manipulate its parts. When this is accomplished he will have a most effective aid to the kind of rebuttal work which secures results. The student must not fail to make his preparation in this respect thorough. Every detail must be mastered; every rebuttal card must be so well in mind that a mere glance will be sufficient to reveal its contents. The

reading of rebuttal cards takes all the life out of a rebuttal argument. This part of the argument more than any other must be delivered with native force and enthusiasm. Effective presentation in rebuttal follows only from the most thorough preparation.

C. The summary and closing plea.

After the preparation above outlined has been completed one task yet remains. The debater must have an effective conclusion for his rebuttal speech. He must not rely upon a chance inspiration of the moment. Experience proves that for all but professional speakers, and oftentimes even for them, it is best to have a committed summary or closing plea. In the case of a debating team the work of closing the argument should be left to the last speaker in rebuttal. This summary should be the strongest statement that it is possible to produce. All the main arguments that have been presented should be summarized. The position of both sides of the controversy should be set forth in clear and vigorous language. If questions have been asked, or demands have been made of the opposition, a direct and forcible reference to the effect of these questions or demands should be made. Then, summoning all the powers of eloquent utterance of which he has command, the speaker should make a closing plea for the adoption or defeat of the proposition.

Examples of effective closing pleas are too numerous to need extended discussion. In debating the proposition "Resolved, that the Federal Government should levy a progressive inheritance tax. Granted, that such a tax would be held constitutional," the last speaker for the affirmative delivered the following summary:

"We have asked our opponents, how will the enforcement of present laws reach the evils of congested wealth? What are the benefits derived from the perpetuation of such fortunes? Where will you place the power of control, at Wall Street or at Washington? Have the gentlemen answered these questions to your satisfaction?

"We have accepted the burden that devolved upon the affirmative and we have met that burden by showing that the Federal government needs this revenue because of its rapidly increasing functions; that it is practicable

because it has twice been in actual operation; and that as a Federal tax it possesses the qualities of certainty, elasticity, and regularity.

“We have clearly shown that as a regulative measure it is necessary for the reasons, that the perpetuation of swollen fortunes is productive of industrial inequalities which are un-American and of evils which it is beyond the power of ordinary legislation to control. We have demonstrated its practicability by proposing a definite plan which will remedy the evil, first, by actually taking a part of these enormous accumulations, and second, by compelling their greater distribution. Finally we set forth the beneficial effects of such a measure upon public opinion—resulting in the greater responsibility of wealth and in removing the incentive to corruption.

“In short, while the gentlemen of the opposition are standing as the champions of swollen fortunes, magnates, and a governing aristocracy founded upon wealth and corruption with the center of power at Wall Street, we stand for the suppression of corruption, the resurrection of individual opportunity, and government by the great mass of the common people with the center of power at Washington. The negative would foster an aristocracy; we would perpetuate democracy.

“We plead, therefore, that in passing upon this resolution, you consider the welfare of the whole nation, that you consider this measure as legislation complementary to the regulative laws already enacted; that you consider the opinions of eminent statesmen, and the conservative will of the people—in short, that you adopt this resolution.”

The conclusion for the final rebuttal speech should be prepared with the same care that is exercised in the preparation of the conclusion for the main argument. It differs from the latter in that it takes more into account the arguments of the opposition. It is the last chance the debater has to plead for his cause, and he must make the most of his opportunity.

II. Presentation of rebuttal.

In the presentation of rebuttal all the principles which are laid down in the next chapter should be observed. They are of equal importance and apply with equal force to both the main argument and the rebuttal speeches. However, the conditions under which the two speeches are delivered are

very different and it is therefore necessary that we give special attention to the presentation of rebuttal. The difficulty of the task which now confronts us is even greater than that which we must consider in connection with the delivery of the main argument. The qualities of mind which success demands are of a higher order, and the mental exercise involved is of greater value. The ability to grasp the essential features of a situation as it presents itself, the ability to analyze keenly and determine definitely and without hesitation upon a plain course of action, and finally the power of presenting clearly and forcibly the conclusions which have been reached, are all comprised in the art of debate.

1. Attention to argument of opponent.

The first essential of rebuttal work is a keen interest in, and attention to, the opposing argument. It is impossible to rebut an argument which has not been heard or one which was not understood. If the preparation for rebuttal has been thorough and has conformed to the plan laid down in the first part of this chapter, the student will be so familiar with the possible lines of discussion that he will have no difficulty in grasping his opponents' arguments. The debater should experience a keen interest in the way in which the opposing speakers will present their arguments. He must not let his mind wander from the subject for a single instant. All his mental power must be concentrated on the business in hand. He must not be confused by any unusual method of presentation. If his preparation has been thorough no essentially new argument will be brought forth, although arguments with which he is familiar are quite likely to be presented in a form with which he is unfamiliar. He must grasp quickly the significance of such arguments and reduce them to terms in which they are clear to his own mind. Then he must correlate his own rebuttal material with what he has heard. He must see the relation which each part bears to the whole and be able to weigh the relative values of the contentions. The keynote of effective rebuttal is keen attention to the opposing argument.

2. Selecting the arguments to be refuted.

No attempt should be made to refute everything which the opposing speaker presents. In breaking a chain it is just as effective to break one link as it is to break every link. The successful debater must analyze keenly and sift the essential from the trivial. If his opponent is a skilled debater he will have certain definite main issues and definite evidence and reasoning. The task of refutation is thus made easy. The main issues are refuted directly by showing that he has not analyzed the question rightly, or by showing mistakes in evidence or in processes of reasoning. If his opponent is not skilled in debate his argument must be reduced to certain definite parts and then refuted in like manner. Very often the rebuttal cards will contain the exact arguments presented by an opponent, but more often it becomes necessary for the speaker to select the vital parts of the opposing contentions and write them down briefly. He should be sure that he states the exact position of his opponent. Otherwise he is thrown open to the charge of willful misrepresentation, or carelessness, or lack of ability in grasping what has been said. Only that which is vital should be selected and it should be written down either in clear-cut phrases, or in the exact words of the opponent. The latter plan is often most effective because it offers the least chance for a dispute as to what the argument really is. On the other hand where the position of an opponent is unmistakable, although somewhat ambiguously expressed, a decided advantage is gained by stating his position in a better way than it has previously been stated. In any event an argument is not selected for refutation until it has been set off from all subsidiary material by brief, clear phrasing.

Where several means of proving a proposition have been presented, but only one of them could in reality stand as proof, that is the one to discuss in rebuttal. The debater should be constantly on the lookout for arguments or evidence which may be combined under one heading. By a judicious combination of related arguments the destructive work of rebuttal may be made to cover a wider field. Furthermore, much can be done to widen the field by means of ingeniously arranging the order of rebuttal arguments in such a way that certain arguments may be met by referring them to contentions which have already been answered. In any event the debater should arrange his arguments in their most effective order.

When rebuttal is given in introducing the main argument, it is well to begin by answering the last argument presented by the last speaker for the opposition. This action on the part of the debater shows quickness and

ability and is sure to make a favorable impression on the hearers. This may be followed by a refutation of one or two points which have been especially emphasized by the preceding speaker, after which the debater should swing naturally and easily into his main constructive argument. Furthermore, as will be suggested in connection with the chapter on delivery, the main speech should be so adapted to the contentions of the opposition that the whole constructive argument is used to tear down the case of the opposition as well as to be constructive of one's own case.

3. Reading quotations.

The reading of exact quotations from authority usually plays a very important part in a debate. Especially is this true in cases where a dispute arises as to what a particular authority says on the point at issue. For example, if the controversy hinges on the exact wording of a decision of the Supreme Court, the speaker who produces that decision and reads from it in the proper manner has gained a decided advantage. The production of the large leather bound book, in itself, aids the effect which it is the speaker's intention to produce. It is something tangible, something which the audience can see; it is the visual symbol of superior authority.

Following out the preparation for this reading which has already been suggested, the student should turn without hesitation to the passage to be read. He must be so familiar with the wording that he can follow it with but an occasional glance at the printed page. He must still look directly at the audience and refer to the book only for the purpose of guiding his reading. He should read slowly and deliberately, emphasizing those parts which bear directly on the point at issue. If a statement contradicts flatly the contentions of the opposition it is well to read it over again in order to emphasize it more forcibly.

4. Team work.

In a formal contest the individual debater must work with his team. It is just as important that the members of a debating team work together as it is

that the members of a football team work together. In formal debating contests one team is pitted against another team. It is not a struggle between the individuals composing the teams but a struggle between the teams themselves. Therefore each must sacrifice his own inclinations for the good of the team. When there is a necessity for rebutting an argument which has been advanced by the opposition, the next speaker must rebut such argument. This must be done notwithstanding the fact that the rebuttal for that argument is a pet piece of property belonging to another member of the team who will speak later in the program. This point cannot be emphasized too strongly.

5. Treatment of opponents.

The object of debate is to reveal the truth. One who speaks in public on any question is under obligation to inculcate right principles into the minds of his hearers. Vanity, subterfuge, resentment, and malice have no place in debate. Only the truth should prevail; and nothing but the truth will prevail in the end. Therefore the attitude of the debater toward his work must be one of sincerity and respect. His whole personality should indicate this state of mind. The use of invective, ridicule, or satire towards one's opponents is clearly out of keeping with this spirit, and nothing of such a nature should be allowed to intrude itself into the discussion.

The day has passed when "bullyragging" the opposition passed for argument and won the respect of an audience. The simple fact remains that an opponent's argument, not his personality, is to be refuted. The moment invective, ridicule, or satire enter, they drive out that spirit of calm inquiry after truth which should be the controlling spirit of every controversy. Although the hearers as a whole seem to acquiesce in a vindictive spirit, laugh at sarcastic comments, and appear interested in a belligerent attitude, the moment the excitement has subsided a reaction sets in and their respect for the speaker who has amused and entertained them in this way is dead. If an opponent has used these unkind weapons against you, the most effective reply that you can make is to ignore them and begin at once a continuation of the discussion in a plain, orderly manner.

It is both discourteous and unnecessary to accuse an opponent of dishonesty, or misrepresentation. If he has really indulged in these unfair means the evidence advanced in rebuttal will reveal that fact. When any difference arises it is best to assume that the opponent is honestly mistaken. A favorite method of Lincoln's was to show that his opponent's conclusion appeared to be right on the first consideration, but that a more extended investigation revealed the fact that it was unsound. Sometimes he even took great care to explain that he had himself formerly held the opinions which his opponents were attempting to defend, and then by skillful use of evidence he would show why he had changed his own opinion. In this way, without giving offense to his opponents or to his audience, he was able in many cases to win them to his cause without their looking upon him as an active agency in producing the change.

A debater must deal honestly with his opponents. It is dishonest and immoral to present evidence in such a way that it will appear to show as true that which the debater knows to be untrue. No concealment or suppression of fact designed to mislead the opposition should be tolerated. Sometimes vital issues are ignored or an attempt is made to conceal them under a display of confusing language. Such methods are reprehensible. Nothing but absolute fairness in the treatment of opponents will gain any permanent advantage, for even from the selfish standpoint honesty and fairness are best. A speaker cannot impress his audience with his fair-mindedness unless he is treating his opponents in a fair manner. An appearance of fairness always gains a respectful hearing for a cause. A man must be a man before he can be anything else. That fine sense of personal courtesy which characterizes the gentleman, and the earnest desire for truth which denotes the scholar, are fundamental requisites for him who would persuade.

6. The summary and closing plea.

After the debater has answered what he conceives to be the essential arguments of the opposition, he should present his final summary. Where a time limit is fixed beyond which he may not speak, he must allow himself ample time to deliver this closing plea entire. The necessity of stopping before the end is reached destroys the sense of completeness which this

conclusion is designed to give the argument. The form of this summary has been discussed in a previous section. All aids to a persuasive delivery discussed in the chapter on delivering the argument must be employed to give force and conviction to this last appeal. The end of the discussion has been reached, and the debater, if his preparation has been in accordance with the principles which we have considered, has put forth his best efforts. All the weeks or months of preparation must now be crystalized into one final effort, and the speaker must realize his own responsibility. He should feel sure that his cause will triumph, and the fire and vigor of his delivery must manifest this fact to the audience. He should remember that he is fighting for principles of right which are eternal. Even the defeat of the moment, if it come to him, should in no wise make him afraid. Victory should not elate, nor defeat depress, the spirit of truth which ever should be the sure foundation of those whose high calling it is to persuade men to act in accordance with that which is right.

CHAPTER VIII

DELIVERING THE ARGUMENT

The statement is frequently made by those well versed in the art of public speaking that a poor speech well delivered is much better than a good speech poorly delivered. Again the statement is sometimes made that in judging the efficiency of an oral argument, twenty-five per cent is counted on the substance while seventy-five per cent is counted on the delivery. Be that as it may, the delivery of an argument is certainly a most important factor in determining its effect upon the hearer. Under the head of delivery we might include the whole field of public speaking and oratory, but since we are treating only of argument we must confine our attention to those phases of public speaking which may be applied in a practical way to the oral delivery of argumentative discourse.

I. Methods of delivering the argument.

1. Reading.

To read an argument is certainly the most ineffective way to present it. After all the work of constructing the argument is accomplished, it is certainly poor policy to intrust its delivery to the lazy method of reading it from the manuscript. Such a method presents all the disadvantages of speaking with none of the advantages of reading. If the argument is read, the reader can inform himself fully of its contents, because he can read it slowly or rapidly as he chooses. Passages which he does not thoroughly understand may be re-read. Moreover, he may go back over the argument and review its main points as well as scrutinize all the evidence offered to support them. But if the argument is read from a manuscript, the listener must receive it at the rate of delivery which is chosen by the reader. He

cannot, as a general rule, ask that the passages which are not clear to him, be re-read, and at the end he is not permitted to go back and ponder over parts which appear to him to be of doubtful validity, nor can he very well question the evidence presented. Furthermore, the reader, being tied down to his manuscript, cannot give the force or expression to the argument which would be possible were he speaking directly to the persons addressed. He cannot see by the look of understanding or perplexity on their faces, just what parts of his argument are clear and what parts are not clear to them. Again, the sympathy which should exist between speaker and audience is almost entirely shut out. A manuscript stands like the Chinese wall between the speaker and his audience.

The defects of this method of delivering an argument are pointed out because there is a decided tendency on the part of college men, and a few men of some reputation, to adopt this manner of presentation, which is certainly the easiest way but which is generally as ineffective as it is easy. Whenever it is important that real results be obtained, whether in the class room, in a formal debate, or in real life, this method should be avoided.

2. Memorizing the argument verbatim.

The delivery of a speech memorized verbatim is certainly to be preferred to reading, because it at least affords the speaker the opportunity of stating his case directly to his audience, and permits the use of all the arts of declamation; but since the speech is set in definite form it precludes the modification necessary to adapt the argument to the contentions advanced by the opposition. In college debating this form of delivery is especially objectionable because from it the student derives little practical benefit. As has already been pointed out, the great value of debating lies in its training for the practical affairs of life by teaching the student to frame his argument on the spur of the moment, adapt it to the conditions of the particular situation which he is facing, and present it in an effective manner. All of these advantages are lost if the argument is committed to memory verbatim.

3. Memorizing the argument by ideas.

By this method the written argument which has been prepared is made the basis of the delivery. It furnishes a substantial foundation for the speech. The argument has gone through the process of construction according to the directions heretofore given. It is, therefore, an efficient instrument of persuasion and the greatest results may be most surely obtained by the method of memorizing the argument by ideas. The three steps in this process of memorizing are as follows:

First, the argument should be read over slowly several times in order that the speaker may get an accurate view of the production as a whole. In most cases the student will have this much accomplished by the time he has written out the argument in final form.

Second, the central idea of each paragraph should be memorized. As a general rule, the paragraphs will conform to the topics of the brief. That is, each topic in the brief, with the possible exception of the lowest sub-topic, will be developed by means of a separate paragraph. The central idea will, of course, be the thought expressed by the statement in the brief which the paragraph is designed to develop. However, this idea should be committed in the form in which it appears in the finished argument, and not in the form in which it appears in the brief. In this way each idea will be grasped in its relation to the rest of the argument as well as in its relation to the manner in which it has been elaborated in the paragraph. Each idea presented should then be committed in its proper order so that the speaker can go through the entire argument and state the idea expressed in each paragraph.

Third, the idea contained in each sentence of the paragraph should be committed to memory. If the student has honestly constructed his argument each statement in it means all and more than he expressed when he wrote it out, therefore the committing of the idea contained in each sentence should not be difficult. Furthermore, the idea should be grasped in its completeness without reference to the words in which it is expressed in the manuscript. In most cases it is well to remember the key-word of each sentence, which expresses the central thought. Sometimes more than one word is necessary for this purpose, but in any event, only those words which embody the heart of the thought, should be committed. All subsidiary words, or words explaining, expanding, limiting, or showing transitions or relations should not be committed, but should be left for spontaneous utterance at the moment of delivery.

This method of memorizing gives naturalness, directness, and spontaneity to the delivery. It trains the speaker to keep his mind firmly fixed on the subject in hand and it eliminates the danger of that monotony which is the result of verbatim memorizing. Perhaps the most important advantage of this method of delivery is the fact that it allows the speaker to adapt his argument to the contentions of his opponent. Since he has made himself thoroughly familiar with the material of his argument but has not tied himself to any set form of words, his expression is flexible. If the argument is to be delivered in a debate, the speaker should practice delivering it so as to meet the various contentions which may be advanced by the opposition. Then when the time comes for the final presentation, he will be prepared to so word his speech as to make it directly applicable to what has just been said on the other side. Practice of this kind is needed in everyday life without regard to the occupation in which the student may chance to engage.

There are other methods of delivery, but we need not give them extended consideration. The argument might be delivered extempore from the brief. This method however, is likely to be ineffective, since the speaker does not express himself with definiteness and precision. Furthermore, he is likely to occupy a great deal of time in presenting points which, if carefully framed in forcible sentences, could be stated directly and briefly. Again, the tendency to ramble is great when the purely extempore method is used.

The speaker should first write out his argument even though he expects to follow what he has written only in a general way. The very fact of his having written out the argument will tend to make more definite his own ideas of what he wishes to say. It blazes the trail or wears a sort of path through the mind of the writer from which he is not likely to deviate far when the final delivery is made. The method of extemporaneous delivery, however, is not well adapted to the presentation of a formal constructive argument, because it is too loose and lacks the conciseness characterizing the method of committing by ideas. After long periods of practice the student may be able to use the purely extemporaneous method with good effect, but while he is a student he should keep to the well-beaten path.

Still another method of delivery is to write out an introduction, a conclusion, and certain important passages, and leave the rest to extemporaneous delivery. This method may be used with considerable

success providing the time limit is not a consideration, and providing, furthermore, that the speaker is an expert in making the transitions from the committed to the uncommitted parts of his speech. With the inexperienced speaker, this method usually results in a rapid, fiery delivery of the committed parts and a hesitating, stammering, and woefully ineffective delivery of the uncommitted portions. This attracts the attention of the audience to the way in which the speech has been prepared and takes the attention away from the subject of the debate.

From every standpoint the method of committing by ideas is by far the best for both the experienced and the inexperienced speaker. It gives him a command of his argument which inspires confidence. There is not the haunting fear that the speech may be forgotten, a fear which terrorizes the heart of all speakers who commit word for word.

If the debater chooses he may have a full outline of his argument written out on cards and take these with him when he goes to face the audience. No attempt need be made to hide these notes, for they are a legitimate safeguard against emergencies. They should be carried boldly and laid on a table near the speaker so that he can refer to them readily if occasion demands. He should never take cards or notes from his pocket. Such an action always gives the audience the impression that the speaker is trying to do something which is beyond his powers. The notes should be referred to deliberately and only when it is absolutely necessary. To refer too often to notes indicates a lack of thorough preparation and makes an unfavorable impression. The notes should be ready for use, but they should seldom be used. In fact, the best speakers usually leave their notes untouched.

II. Physical preparation for delivery.

Much harm results from the advice so frequently given to the debater which counsels him to be natural. If accepted in its proper significance this advice is sound and accords well with common sense. Too often, however, it is taken as a license to disregard all rules of physical training for public speaking, and to give no thought to physical appearance and action while on the platform. On the contrary these things are highly important. In a sense, physical preparation is composed of trifles; such as, matters of position, gesture, and so forth. But it is these things that make for perfection, and we

are told with truth that perfection is no trifle. The person who tells the inexperienced debater to be natural has failed to distinguish between natural and *habitual*. James Fox may have acquired a bad habit of standing, when before an audience, with all his weight on one foot. We are then erroneously told that that is his natural way of standing because he always stands that way. On the contrary, that is his habitual way of standing, for no normal individual naturally stands with all his weight thrown upon one foot. Such bad habits must be overcome and good habits formed and strengthened. Then, and then only, may we safely instruct the debater to be natural.

1. Position.

The position of the debater on the platform should indicate ease and dignity of bearing. It should give him an appearance of stability and should make easy and natural the use of gestures. The speaker should not stand rigidly throughout his delivery in the same position which he first took. He should move easily about the platform, and all movements should be made deliberately, not abruptly. The position should not be changed too often but when a change is desired the speaker should not turn away from his audience or move sideways along the platform; he should move back and up again in a V-shaped course.

The object of these suggestions is to enable the speaker to acquire ease and naturalness of bearing, for nothing should be done in a stiff, formal manner. Every position and movement should be so natural and spontaneous that the attention of the audience will not be diverted to the personal eccentricities of the speaker but will follow uninterruptedly the progress of his argument.

2. Voice.

There is no set way of addressing the audience. Good form and manners vary with the locality. Neither is there a set method of delivering an argument. Individual peculiarities vary so widely and the style of delivery adapted to the personality of the debater is so difficult to attain that we can

only point out the most common faults and explain general rules regarding delivery. The best training in actual practice is debating under the direction of a competent instructor.

The voice of the speaker should be clear and strong. We cannot give here any complete treatment of the methods of vocal training which make the voice clear and strong, but, where opportunity affords, the student of debate should have a thorough training in the art of public speaking. Singing, under proper instruction, will also improve the volume and quality of the voice as well as give the speaker greater voice control. A few practical suggestions regarding the use of the voice may be given some attention at this point.

It has been said that breath is the stuff of which the voice is made. Attention must therefore be given to proper breathing. The entire lung capacity should be used. The breath should be directed through the vocal chords so as to produce a pure tone. The speaker should remember to keep the throat muscles relaxed and the tongue, jaws, and lips out of the way. These organs of speech are to be used to mould into clear-cut words the stream of sound issuing from the vocal chords. Their function is not to suppress sound but to modify it.

Words should be formed as near the lips as it is possible to make them. The speaker must not fear to open his mouth and articulate distinctly. Most words should be formed just back of the front teeth. So formed, the sound is thrown out with force and resonance, for the hard palate or roof of the mouth is a natural sounding board. If the speaker forms his words far back in his mouth they issue only in incoherent mutterings. Since an argument must be heard to be believed, the most thorough preparation up to this point may be entirely offset by a poor delivery. The enunciation of the speaker should be so clear and distinct that the attention of those addressed will be fixed upon what he is saying, not upon the way in which he is saying it.

Every word should be pronounced distinctly. Vagueness in delivery is just as harmful as vagueness in language or substance. If one word in a sentence is pronounced so ineffectively that it is not understood, it may be impossible for the person hearing that sentence to grasp its meaning. In any event it requires the listener to make the mental effort of figuring out what the sentence means, and this mental effort tires the hearer, prevents him from giving his undivided attention to the substance of the argument, and

ultimately results in his losing all interest in the discussion. It is therefore plain that clear enunciation is a matter of fundamental importance.

A clear, resonant voice is in itself a valuable asset for the debater. It inspires respect and denotes self-reliance. However, loudness should not be confused with distinctness, for mere loudness often accentuates, rather than remedies poor articulation. The world at large is more ready to believe a person who has a clear-cut, distinct way of speaking than it is to believe one who utters his words in a slovenly manner. It is often true that slovenly habits of speech indicate slovenly habits of thinking and even slovenly morals. The habit of using the voice effectively, however, is not one which can be put on and taken off at will. The voice must be used correctly in everyday conversation as well as in formal debating.

3. Emphasis.

The debater must make plain the important parts of his argument by means of emphasis. In speaking, as in writing, it is useless to try to emphasize everything. Only those parts which have been emphasized in writing out the argument should be emphasized in delivering it. An attempt to emphasize everything results in no emphasis at all. The speaker should therefore study his argument carefully and pick out the parts which are indispensable to his position. The audience will not perform this task of picking out the most important passages; the speaker must do it himself. In the delivery these parts should be emphasized by means of gestures, by speaking them more slowly and deliberately, or by any other legitimate method.

4. Key, rate, and inflection.

The debater should speak in his average key. By key we mean the pitch of the voice in speaking. By average key is meant that key to which the voice of the particular individual is especially adapted. Average key should not be confused with habitual key. One may easily acquire the habit of speaking either above or below the average key. The tendency of the

inexperienced orator is usually to speak in a key which is too high. This defect is tiresome to both audience and speaker and should be overcome at any cost, for the debater should speak in a key which is easy and natural. This enables him to derive the benefit of full inflection both upward and downward, and bestows confidence and ease.

A common fault of the inexperienced speaker is a too rapid rate of delivery. In the beginning of the speech it is especially important that every word be spoken slowly and distinctly. At no part of the speech should the rate be so rapid as to prevent the audience from grasping the full significance of what is being said. The average rate of delivery has been computed to be one hundred and twenty-five words per minute, allowing for pauses and transitions; but the rate should vary according to the speaker, the subject, and the audience. First of all the rate should be adapted to the thought and to the emotion. Simple ideas can be presented rapidly, while complex ideas must be presented slowly. In all cases the audience should be given ample time to grasp the ideas presented. With this caution in mind the speaker may dwell upon the important thoughts and emotions and pass lightly and quickly over the unimportant. Thought and emotion must be fully appreciated by the speaker at the time of delivery, and this appreciation should be indicated in part by the rate of speaking. In general it may be said that the emotions of awe, grandeur, reverence, sorrow, etc., should be voiced with a slow movement, while emotions of joy, anger, indignation, enthusiasm, etc., should be voiced with a rapid movement. However the student should be careful to avoid either a jerky or a drawling delivery. These faults are due usually to a failure to dwell upon the vowel sounds. No set rule can be established, but all of these things should be considered by the speaker when he is preparing to deliver his argument.

Inflection should be used to give variety to the argument, to bring out the special significance of important passages, and to show the bearing which the evidence has upon the general principles. The amateur speaker usually varies his inflection according to the punctuation. This is not a safe rule to follow. The falling inflection indicates that the thought is complete, but not that the end of the sentence has been reached. In argumentative speaking the falling inflection is most frequently used because it indicates positive assertion. It denotes confidence in what is being said. On the other hand, the rising inflection denotes doubt, indecision, negation, or appeal. It is often

necessary to express all of these attitudes in delivering an argument; but the falling inflection, which denotes a positive statement, should predominate.

5. *Gesture.*

The memorizing of gestures is as ineffective as is the memorizing of words. Both tend to make the delivery mechanical and hence should be carefully avoided. The student should never pick out certain emphatic parts in his discourse and seek to emphasize them by means of gestures which he has studied out and practiced. In fact gesturing is not a necessity in the delivering of an argument. It is certain that poor gesturing is worse than none at all. Gestures add to the effectiveness of an argument only when they are simple and natural. As a general rule they are natural only when they are made spontaneously. Here, again, practice before a competent instructor, or at least before a sensible critic, is indispensable. Every gesture that is made must appear as a natural effort to be understood and believed.

The student should learn to use gestures, not in connection with any particular argument but in connection with the expression of his own thought and feeling. Here, again, the instruction to be natural may prove misleading. The speaker may be naturally awkward, or at least his gesturing may be awkward, and thus produce only a desire to laugh on the part of the audience. This natural awkwardness must be overcome and replaced by a natural gracefulness. The gestures used in argumentation need not be elaborate, in fact simple gestures are more effective. The gesture should seem to be a part of the thought or emotion, and training should be resorted to only for the purpose of securing naturalness, gracefulness, and ease. In gesturing, only that which is natural in the right way, that which enforces the thought instead of diverting attention from it, is effective.

6. *Transitions.*

The transition from one part of the speech to another should be clearly indicated. In constructing the argument these transition points were made plain by means of transition sentences showing the division between the

introduction and the proof, the main issues of the proof and each subordinate issue, and the proof and conclusion. When the argument is to be delivered, however, the delivery should make these transition points stand out like white mile posts. In this way two advantages are gained. First, the structure of the argument is vividly impressed upon the mind of the hearer. Second, these transitions break the monotony of the speech and keep alive the interest of the audience. In beginning each new main issue, and often in beginning the presentation of an important piece of evidence, the speaker should drop to the conversational tone. He should talk directly to his audience as though it were an individual. Then he should gradually increase the force of his delivery until he is speaking in his strongest persuasive manner. This method gives variety to the argument, and thus prevents it from growing monotonous. Furthermore, it insures a better appreciation of the argument as a whole.

Other devices which may be used in connection with the above method for marking transitions are, (1) varying the inflections, (2) changing the rate of delivery, (3) using appropriate gestures, (4) changing the mode of emphasis, (5) making use of pauses, and (6) changing position on the platform. All of these devices must be used with skill and ease. Nothing should appear abrupt and fantastic, but each part of the speech should be made to blend gracefully with the whole argument.

7. Presenting charts.

In presenting a series of statistics the necessity for large charts, which may be hung up at the back of the platform and explained by the speaker, is almost absolute. No audience can keep in mind a mass of statistics. The oral presentation of figures makes little real impression upon the minds of the hearers and serves to confuse rather than to enlighten. Therefore these figures must be presented so that the audience can see them. Statistics should be carefully tabulated in accordance with the following form:

	Real Estate	Personal Property
United States	77:13	22:87
New England States	71:50	28:50
Middle States	86:60	13:40
Southern States	70:77	29:23
Western States	74:09	25:91
Territories	46:81	53:19
Source: United States Census Report—1880—Vol. VII—pp. 17.		

The chart and the letters and figures upon it should be large enough to be seen clearly by all auditors.

To set forth tables of statistics is not the only use to which these charts may be put. They may be used to illustrate territorial conditions by means of maps, to show comparisons by means of lines, squares, or circles, and for as many other purposes as the ingenuity of the speaker can invent. In formal debating contests a set of carefully prepared charts usually gives a distinct advantage to their possessors. They stand for something definite, something which the judges and audience may see with their own eyes. These charts may be hung up and left open, but it is often better to have a thin sheet of paper pinned over them. When a chart is to be used either the speaker or one of his colleagues may remove the sheet of paper. It should then be left open to the gaze of the audience throughout the entire discussion. If several charts are used and all of them cannot be left exposed to view, the most important one should be placed in the favored position.

In explaining a chart the speaker should make use of his most conversational delivery. He should take a light pointer in the hand nearest the chart and direct the attention of his hearers to the figures as he states them. In doing this the speaker should always face the audience and talk to them instead of to the chart. He should be so familiar with the material on the chart that he needs only to glance at it for the purpose of directing attention to each new figure as he starts to explain its significance. A carefully prepared chart, clearly explained in accordance with the foregoing directions, is a valuable aid to interest and clearness in the delivery of any argument.

III. Mental preparation for delivery.

In the last section we concerned ourselves with matters relating to the form of delivery; with things primarily physical. We now turn to the substance of delivery and consider things primarily mental. The attitude of mind which the speaker maintains toward his subject and his auditors is a powerful factor in persuasion.

1. Directness.

Clear, intense thinking should always accompany the delivery of an argument. The mental attitude of the speaker must be one of alert, business-like attention. With the attention of the speaker riveted upon the object of his argument, the audience will be compelled to follow him straight to the conclusion. The simple directness of the speaker who keeps his mind firmly fixed on his subject is irresistible.

No ostentation or striving after effect should be allowed to hold a place in the speaker's thoughts, for the day of bombastic oratory is passed. This is a practical age; the world demands results, and results demand directness. Simplicity of thought begets simplicity of expression, and the orator with but a single idea underlying his argument has this irresistible power.

In delivering the argument the debater must forget himself, so far as his preparation and personality are concerned, and think only of what he is saying. The simple conversational style in which two persons discuss a subject of vital interest to them is usually direct. This directness comes from the vital interest of the speakers and their desire to make their ideas plain. The same conversational directness should exist in debating. Very often the speaker can obtain greater directness by picking out two or three people in various parts of the audience and talking to them. In a formal debating contest the debater sometimes picks out the judges and talks to them. The use of this method does not ignore the rest of the audience, because the debater is speaking to the audience as a whole, and it does give force and directness to the delivery.

The greatest orators of modern times have been noted for their simplicity and natural directness. In fact, this was clearly the predominating characteristic of the style of Abraham Lincoln and Wendell Phillips; and even Webster, highly endowed as he was with natural attributes which made

his style grand rather than simple, was above all else noted for his directness.

2. *Earnestness.*

Earnestness is the basis of persuasion. The man who is in earnest about anything is bound to accomplish something. By this earnestness we do not mean that which is assumed for the occasion, but that earnestness which comes from deep convictions. Without the quality of earnestness the debater becomes a mere speaker of words. For any particular occasion, the speaker should prepare himself by forming in his own mind strong convictions regarding his subject. In formal debating a speaker is sometimes compelled to argue against his convictions. In such a case the best he can do is to present his position. As a general rule the questions discussed in class and debating contests are so evenly balanced and so broad in their application that to arrive at a just conclusion requires more investigation than the ordinary debater can well undertake. The debater should, therefore, be content to fulfil his function as a defender of the truth. He should make his investigation thorough before championing any cause in real life. Having found the proper cause for the exercise of his skill he must first convince himself of its worth; then only can he present his case with the earnestness of conviction.

In general the mental preparation of the speaker who strives for earnestness must begin far back in his career. Sincerity is not something which can be brought out for parade on special occasions. The orator who wishes to impress his fellow men with his sincerity must in all his thoughts and actions be sincere himself. If this fundamental preparation in common integrity does not exist within the speaker, that fact will be recognized by his audience. His words will carry neither weight nor conviction because the hearer must inevitably declare with Emerson "What you are speaks so loud, I cannot hear what you say."

The earnestness of the speaker must be the result of high principles, lofty character, and a firm and sincere conviction of the worth of his cause. He must have a deep sympathy with his cause and with his auditors. He must possess a wide knowledge of human nature which will enable him to appeal

to the emotions of his hearers in a sympathetic manner. He must take their point of view and feel as he would have them feel in regard to his subject. Then all the force of his being will awake to fortify and render invincible his argument. In this way it will become a conquering instrument of persuasion. The arts of the orator must be employed to lead men, not to drive them. The speaker must take the attitude that he is merely one of his audience who has found out something worth while and who earnestly desires to share his discovery with his neighbors. Anything approaching a patronizing air, or an "I am holier (or wiser) than thou attitude," is fatal to sympathy and earnestness. He should follow the simple direct method of taking his hearers into his confidence and talking to them as though he feels that they are as wise and good as himself. He should watch the expressions of sympathy or hostility on their faces and lead them quietly along the road of earnestness, the end of which is persuasion.

3. Confidence.

The speaker's confidence in himself and in his cause should be absolute. The time for hesitation and self-questioning has passed when the speaker stands before his audience. Then he should feel himself master of the situation. He must take the attitude of mind which befits an expert or a professional. By this we do not mean an ostentatious show of knowledge or insolent superiority. The directions contained in the last section should be a sufficient guarantee against such an attitude. But the speaker must honestly think that he is engaged in an important and commendable undertaking and that he has the ability to carry it through successfully. In order to do this he must assume an attitude of unbiased fairness and honesty. His manner should indicate that he feels himself responsible for the truth. He must never appear to be concealing anything from his hearers, nor should he appear to be taking advantage of his opponents or depriving them of any credit to which they are justly entitled. Never should he misquote an opponent or put an unfavorable interpretation upon what that opponent has said. An audience loves fair play and the knowledge that he is making a fair fight, with everything above board, gives confidence to the speaker.

A speaker should always exercise self-control. At no time should he put all his force into the language which he uses. He should always maintain a

reserve force which will give a background of power to his delivery. Never should he allow his temper to be ruffled by anything that may happen during the discussion; to indulge in an outburst of temper is positively belittling. Washington's advice to young men was "Conquer the territory under your own hat." This is an apt expression for the debater to keep constantly in mind. The complete self-reliance which puts the speaker at his ease is acquired only by practice. In fact, many great speakers have gone through life facing a period of nervousness just before appearing before their audiences. This trait, however, is not necessarily an evil. The speaker should always appreciate the importance of the occasion and his own responsibility. If he does this to the extent of having his emotions aroused it often makes his delivery more direct, earnest, and confident. The point to be remembered is that he must have that confidence which convinces his hearers that his argument is the result of clean, clear-cut thinking, and persuades them to act in accordance with the truth which that argument reveals.

The power of a speaker does not exist in the development of any one trait. He must study methods of delivery, and must not weary of painstaking physical and mental preparation. Back of all of this must be the man himself, entrenched in mental and moral strength. No defect is too trifling to be overcome by constant vigilance, no improvement so unimportant as not to merit the most arduous striving. The student who is ambitious to acquire the art of persuasion should practice constantly and neglect no opportunity to appear before an audience. For every principle gleaned from these pages the debater must provide himself with ninety-nine opportunities for practice. It is only by actual practice that anyone can hope to travel far along the road which leads to the goal of perfection.

PART II
THE THEORY OF ARGUMENTATION AND
DEBATE

CHAPTER I

INDUCTIVE ARGUMENT

All persons of average intelligence and education are able to distinguish an obviously sound argument from an obviously false argument. No knowledge of argumentation or logic is necessary to enable such persons to perceive the truth of one or the falsity of the other. However, the line which separates the true from the false, or the sound from the unsound, is not always clearly marked. In fact most arguments involve a consideration of so many factors that their truth or falsity is very difficult to determine. It is for this reason that we must study the various theoretical forms in which an argument may be presented.

I. The application of processes of reasoning to argumentation.

Logic deals with the formal process of reasoning. It tests the validity of a reasoning process by applying certain principles which will reveal its strength or weakness. It is not essential to know the science of logic in order to reason or to argue well. Many of our most profound thinkers have possessed only a superficial knowledge of that subject. A knowledge of the forms of reasoning which logic considers, or of the names applied to them, is by no means indispensable to an intelligent argument or debate. Nevertheless, an exact knowledge of logical processes of reasoning as applied to the construction of arguments is absolutely indispensable to him who would become master of the Art of Argumentation and Debate.

There are two uses to which the debater must put these correct processes of reasoning. In the first place, he must use them to test the validity of his own arguments. In the second place, he must use them to test the validity of his opponents' arguments. Both of these uses will suggest to the mind of the student the importance of the application of processes of reasoning to argumentation.

An argument is seldom presented in such a form that it is possible to apply logical reasoning processes to it as it stands. Usually some parts are omitted and others are expanded or modified for the purpose of greater effect in persuasion. The student must therefore grasp the essential parts of his argument before he can arrange them in the formal manner which logic demands. This very exercise of cutting up a discussion into parts for the purpose of determining whether it is rightly constructed is a mental exercise of unusual value. Furthermore, it reveals any weak places in the argument and shows where it must be made strong if it is to be effective. In like manner the debater is able to apply the same processes to the arguments of his opponents to show their weaknesses and enable him to direct his efforts toward these vulnerable points.

II. Inductive reasoning.

Inductive reasoning is the process by which we arrive at a general conclusion through the observation of concrete particulars. I have read *Treasure Island* and I found it interesting. Moreover, I have read *Kidnapped*, *David Balfour*, *Prince Otto*, and *St. Ives*, all of which were interesting to me. All of these books were written by Robert Louis Stevenson, and after I had read them I arrived at the general conclusion that all books written by Robert Louis Stevenson were interesting. I made use of this conclusion by searching in the library for other books by this same author, for I felt sure that if I could find another of his books it would be interesting. However, we are not now concerned with the uses to be made of this process of reasoning, but rather with its exact form. The process by which I arrived at the conclusion that all of Stevenson's works are interesting is a fair example of inductive reasoning. I had five specific instances all pointing to the same conclusion. I had observed five of Stevenson's books and I reached a conclusion regarding all of them. The conclusion included those which I had not read as well as those which I had read. This process conforms to our definition that inductive reasoning is the process by which we arrive at a general conclusion through the observation of concrete particulars.

In this way we arrive at many conclusions upon which we rely in our daily life. We go to a certain place at ten minutes past the hour for the

purpose of boarding a street car which will take us to the city. We do this because for many months we have been accustomed to go to this same place at this particular time and there we have always found a street car which took us to the city. Each one of the instances in which we have done this is a concrete particular tending to support the general conclusion that if we go to a certain place at a certain time we shall find a car which will take us to the city.

A further investigation of this process of inductive reasoning reveals the fact that it may be divided into two sharply defined classes, (1) perfect inductions, and (2) imperfect inductions. A perfect induction is one in which all the particular instances upon which a conclusion is based can be examined directly. For example, if I am aware that each one of the twenty men who are taking this course in Argumentation expect to be civil engineers I may safely state the general conclusion that "All the men who are taking this course in Argumentation expect to be civil engineers." This is a perfect induction, because I have included in the conclusion only those men who are taking this course; there are only twenty men and investigation has shown that each of them expects to be a civil engineer. Therefore, it is plain that there can be no opportunity for error. Every particular instance relied upon can be accounted for and no instance outside of these is brought within the conclusion. The induction is therefore perfect.

An imperfect induction is one in which the conclusion extends beyond the concrete specific instances upon which it is based. The examples already given regarding Stevenson's novels and the street car are imperfect inductions. I have not read all of Stevenson's novels and I may yet find one that is not interesting to me. Regarding the induction about the street car, it is sufficient to note that if the car were late or failed to appear at all, the conclusion would be of no value in that specific instance. Likewise I may state the general inductive conclusion that all roses are fragrant. I base this conclusion upon a great number of specific instances. The rose that I plucked yesterday was fragrant; those which I observed in the conservatory last month were fragrant; the roses which bloom in my door-yard each summer are fragrant; all the roses that I have known since I was old enough to notice such matters have been fragrant. Upon this great number of specific instances I base my inductive conclusion. It will be observed, however, that my conclusion is not confined to the roses which I have seen but that it extends beyond and includes all roses of every kind everywhere.

It is therefore an imperfect induction. As it stands it would be impossible to make this induction a perfect one, because it would be an impossible task to examine every rose in the world. The only way in which the induction can be made perfect is to restrict the conclusion to cover only the specific instances upon which it is based. The conclusion would then be, "All the roses to which I have ever given attention were fragrant."

But it may not suit our purpose thus to restrict the conclusion. We may wish to make use of it in its broad general significance. Every day we are compelled to act upon imperfect inductions, as in the case of the street car. In such cases we must resort to certain rules or tests whereby we can determine the probability of the truth of the imperfect induction. We shall consider these rules or tests after we have discussed the application of inductive reasoning to inductive argument.

III. The application of inductive reasoning to inductive argument.

We have seen the nature of the process of induction and have observed the distinction between the perfect and the imperfect. Let us now consider the application of the inductive process to arguments. The occurrence of this process in all argumentative discourse is frequent. A simple illustration of its application is furnished in connection with the proposition "Resolved, that the Federal Government should levy an income tax." The affirmative in the course of its investigation finds that this tax has proved practicable in Switzerland, Germany, France, and England. Further investigation discloses the fact that these are the only countries in which this particular form of taxation has been adopted. From these particular instances, namely,—Switzerland, Germany, France, and England, the general inductive conclusion may be drawn that "The income tax has proved practicable in all the countries in which it has been adopted." This is a perfect inductive conclusion.

In presenting this induction in an argument, the conclusion should be stated first. Then each of the countries in which the income tax has been adopted should be discussed and evidence introduced to show that it has proved practicable in every case. Finally, evidence should be brought forth to show that the countries named are the only ones in which the tax has been adopted. The conclusion should be stated in the form of a summary,

which leaves the argument complete. It is a perfect inductive argument. While the reasoning process cannot be assailed, the facts upon which the induction is based may be disproved. Those advancing the argument must therefore be sure that the facts alleged are supported by sufficient evidence, while those seeking to overthrow the argument should be diligent in their search for evidence showing the weakness or impracticability of the tax in one or all of the countries cited.

From the above illustration it is plain that the validity of the reasoning of a perfect induction is easily determined. The mind at once determines whether or not the specific instances presented warrant the conclusion reached. The question of the validity of a perfect inductive argument is largely a question of fact. With the imperfect induction, however, the situation is somewhat different, for we have seen that the conclusion extends beyond the actual facts upon which it is based. From an examination of several observed specific instances a conclusion is drawn which covers instances unobserved. By it we pass from the known to the unknown. This process is sometimes called the inductive hazard. The application of this form of reasoning to argument is illustrated by the imperfect induction which is made by Lincoln in his Cooper Institute Address. Here he draws a conclusion as to what all the framers of the original Constitution thought about the slavery problem, by producing evidence to show what a part of them thought about it. After introducing specific evidence to show what each of twenty-three of these men thought, he says:

“Here then we have twenty-three of our thirty-nine fathers ‘who framed the government under which we live’, who have, upon their official responsibility and their corporeal oaths, acted upon the very question which the text affirms ‘they understood just as well, and even better, than we do now’; and twenty-one of them—a clear majority of the whole thirty-nine—so acting upon it as to make them guilty of gross political impropriety and willful perjury, if, in their understanding, any proper division between local and Federal authority, or anything in the Constitution they had made themselves, and sworn to support, forbade the Federal Government to control as to slavery in the Federal Territories. Thus the twenty-one acted; and as actions speak louder than words, so actions under such responsibility speak still louder....

“The remaining sixteen of the ‘thirty-nine’, so far as I have discovered, have left no trace of their understanding upon the direct question of Federal control in the Federal Territories. But there is much reason to believe that their understanding upon that question would not have appeared different from that of their twenty-three compeers, had it been manifested at all....

“The sum of the whole is that of our thirty-nine fathers who framed the original Constitution, twenty-one—a clear majority of the whole—certainly understood that no proper division of local from Federal authority, nor any part of the Constitution, forbade the Federal Government to control as to slavery in the Federal Territories; while all the rest had probably the same understanding. Such, unquestionably, was the understanding of our fathers who framed the original Constitution; and the text affirms that they understood the question ‘better than we.’”

The true test of an imperfect induction is not its sufficiency for the person who uses it, but its sufficiency for those to whom it is addressed. The argument is designed to produce a definite effect and in order to do this it must fulfil certain conditions. Even when these conditions are fulfilled the effect of the argument is problematical. Nevertheless, in order to approach its maximum efficiency an inductive argument must meet the requirements explained in the following section.

IV. Requirements for an effective inductive argument.

1. Perfect inductions.

In a perfect induction in which we have seen that the conclusion includes only the specific instances that have actually been examined, the only requirement is that the facts upon which it is based be true. The student must observe the rules regarding the sufficiency of evidence. He must be sure that he has introduced evidence which shows conclusively that each specific instance cited in support of the conclusion is true as a matter of fact. If he allows conjecture to enter into any one of them he cannot claim for his argument the solidity which characterizes the perfect induction. If in arguing for the necessity of additional sources of revenue for the United States government, he has stated the perfect inductive conclusion that “The

expenditures of the United States government for the last three years have greatly exceeded its receipts,” he must substantiate his induction by exact reference to the reports of the Treasurer of the United States for the last three years. An investigation of these references must reveal the fact that each of these years has shown a large deficit. The greatest temptation against which the student will have to guard is that of careless generalization. He may know that a conclusion includes four specific instances. He may be certain that three of them support the conclusion, but he is not quite sure about the fourth. Nevertheless he conjectures regarding its validity and heedlessly proceeds to his conclusion. This is a bad habit to cultivate, because it results in loose, inaccurate thinking. A perfect induction should never be stated in an argument until each specific instance upon which it is based, and which it includes, has been determined to be an unquestioned fact.

2. Imperfect inductions.

The requirements for an imperfect induction are somewhat involved and demand the exercise of sound judgment in their application. An imperfect induction can never be relied upon with the same confidence that may be reposed in a perfect induction. This truth is apparent from the nature of the imperfect induction. In order to measure up to a high standard of effectiveness an imperfect induction must comply with the following requirements.

A. The number of specific instances supporting the conclusion must be sufficiently large to offset the probability of coincidence.

The problem of determining the number of specific instances which will justify us in relying upon an imperfect induction is most difficult. As we shall presently see, this number varies greatly with different classes of persons, events, and things about which we wish to reach conclusions. But before we consider this difficulty we must be sure that we have enough instances at hand to eliminate the element of chance. At least from the

argumentative standpoint this is the most practical method of procedure. Suppose the student in his preparation for an argument finds that during the last year there has been a decrease in the value of manufactured articles produced in the state of Texas, that a similar decrease is shown in the state of New York, and that statistics relating to the state of Delaware show the same result. These facts could not be used to support the conclusion that the value of manufactured products of all the states of the Union has decreased during the last year, because it may be only a coincidence that their value has decreased in the states named. In all the other states of the Union there may have been an increase. The conclusion stated should belong to a perfect induction and could only stand upon proof of the fact that the value of the products manufactured in each and every one of the states showed a decrease. Moreover, it would not be safe to state the conclusion that the value of manufactured products in general shows a falling off in value during the past year and to cite the three instances named in support of that contention. In fact, the probability of coincidence is too great to enable us to arrive at any inductive conclusion other than that the manufactured products of Texas, New York, and Delaware for the past year show a decrease in value.

The student must be constantly on guard against this loose method of inductive reasoning. It is most prolific in indefinite and loosely stated conclusions seeking to masquerade under an appearance of validity. He should always examine his own conclusions as well as those of his opponent for the purpose of finding out whether the instances used to support them are merely the result of chance or coincidence. Let us suppose that the decrease observed in the three states named above has suggested the probability of the truth of one of the conclusions. The investigator should at once pick out a few of the most prominent manufacturing states and find statistics showing manufacturing values in them. For example, he might consult Massachusetts, Pennsylvania, Ohio, Michigan, Illinois, and Wisconsin. If the same decrease is found to have existed in these states the truth of the inductive conclusion becomes much more probable and at the same time the probability of coincidence becomes correspondingly less. The student, however, should continue his investigations and examine the statistics regarding all the manufacturing states of the Union. He should then frame his conclusion in such a way that it will stand supported by the evidence of all the specific instances.

B. The class of persons, events, or things about which the induction is made must be reasonably homogeneous.

After we have seen three or four elephants we feel pretty safe in saying that all elephants have trunks. After we have seen three or four red schoolhouses we do not feel safe in saying that all schoolhouses are red. The first class of objects is homogeneous, the second is not. Therefore we may safely generalize regarding the appearance and characteristics of all elephants from the three or four specimens which have come beneath our notice. As a class they possess in a marked degree common traits of character and appearance. No one member of the species is radically different from any other member. With schoolhouses, however, the situation is quite different. All schoolhouses in a given community may be built alike and the first three or four seen by an individual might be painted red; but since the class of schoolhouses is not homogeneous, he cannot therefore correctly arrive at the imperfect inductive conclusion that all schoolhouses are red. This illustration should indicate to the student who would employ imperfect induction that it is necessary to be careful in drawing a broad conclusion covering a class of persons, events, or things whose members he does not know to be reasonably homogeneous with respect to the point about which he wishes to argue.

To advance a step further in the consideration of this requirement, we must remember that it applies only to the homogeneity of the particular characteristic of the class regarding which a conclusion is desired. For example, if it is desired to arrive at some conclusion regarding the color of all schoolhouses, the inductive process could not well be applied because the class is by no means homogeneous in regard to this particular characteristic. However, if it is desired to arrive at a conclusion regarding the use to which all schoolhouses are put the imperfect induction may safely be used because the class is reasonably homogeneous in this characteristic.

C. The specific instances cited in support of the conclusion must be fair examples.

In an imperfect inductive argument the instances upon which the conclusion is based must be fairly representative of the class of persons, events, or things which it includes. A debater in an interscholastic contest took three examples of cities having the commission plan of city government as a basis for his argument in support of the proposition that all American cities should adopt the commission form of city government. He began by showing that the three cities,—Galveston, Des Moines, and Grand Rapids, were fair examples of American cities. He showed that they did not represent the exceedingly large cities nor the exceedingly small cities but that they possessed the chief characteristics of both. He produced evidence to prove that they were directly representative of nine-tenths of the cities in America and that the principles of government which would work well in these three cities, taken as examples, would work equally well in any American city. He then showed that the commission plan of city government had worked well in the three examples which he had proved to be fairly representative of all American cities.

The greatest temptation to error is that of selecting examples or incidents which are most favorable to the debater's contentions. Such action is a flagrant violation of the great principle which should govern all argumentative discourse—the principle that truth should stand supreme over all contentions. It is not only dishonest to select unfair examples, but it is disloyal to those who uphold the debater in his efforts to persuade. Never should an example be presented which possesses characteristics unusual to the class which it purports to represent. An earnest effort should always be made to obtain the fairest examples possible.

D. Careful investigation must disclose no exceptions.

A person should seldom rely upon his own uncontradicted experience to support an inductive conclusion. The small child concludes that all children have fathers and mothers because it has a father and mother. The tropical savage concludes that all parts of the earth are warm because the part in which he lives is warm. Similarly we find reasonable persons adopting like generalizations based upon their own uncontradicted experience. The business man denounces all public officials as dishonest because he has

found that two or three are dishonest. The farmer denounces all lawyers as dishonest because one lawyer has treated him dishonestly. In each of these cases it is evident that a little careful investigation would disclose enough exceptions to overthrow the conclusion.

The debater should examine his own inductions as well as those of his opponent for the purpose of discovering possible exceptions. The man who declared that all trades-union men are anarchists would have found the exceptions to his rule so overwhelming as to make his conclusion appear ridiculous. The difficulty is that the abnormal and exceptional instances which we know loom so large in our minds that they become prejudices and crowd out calm reason. The few union men who have destroyed life and property should not be made the specific instances supporting an induction regarding the whole class of trades-union men. The few college men who drink, swear, and carouse should not be made the specific instances supporting an induction regarding the whole class of college men. Every induction should be examined carefully for the purpose of discovering exceptions.

E. The conclusion must be reasonable.

After all the foregoing requirements have been met there still remains one essential. The conclusion must be reasonable. This is the ultimate test of validity. We have become so familiar with the usual course of nature that we instinctively question that which appears to run contrary thereto. Nothing occurs without an adequate cause. Upon this principle we base our judgment regarding all matters which transcend our own experience. Most of us have passed the superstitious days when the breaking of a looking glass was regarded as a sure sign that someone in the family would die before the end of the year. Even the time-honored Friday and number thirteen with their attendant superstitious disasters no longer have a large following. Scientific investigation and the present age of commercialism have crowded out superstition and put common sense in its place. The average mind is highly reasonable and requires some causal connection between the breaking of a looking glass and the death of a person. It would refuse to believe that one caused the other, or that one was the sign of the

other, even though there might be a hundred instances to warrant the induction and not one to contradict it. The final requirement for an imperfect inductive argument is that it be reasonable.

SUMMARY OF REQUIREMENTS FOR AN IMPERFECT INDUCTIVE ARGUMENT

1. The number of specific instances supporting the conclusion must be sufficiently large to offset the probability of coincidence.
2. The class of persons, events, or things about which the induction is made must be reasonably homogeneous.
3. The specific instances cited in support of the conclusion must be fair examples.
4. Careful investigation must disclose no exceptions.
5. The conclusion must be reasonable.

EXERCISES

1. Are the following inductions perfect or imperfect?
 - (1) All men are mortal.
 - (2) All Irving's books are interesting (or uninteresting).
 - (3) All the presidents of the United States who have been assassinated were Republicans.
 - (4) "Pythagoras was misunderstood, and Socrates, and Jesus, and Luther, and Copernicus, and Galileo, and Newton, and every pure and wise spirit that ever took flesh. To be great is to be misunderstood."

Emerson, *Self-Reliance*

- (5) Money is the root of all evil.
2. Give in full the specific instances upon which each of the foregoing inductions is based.
3. Apply the requirements for validity to each of the inductions in exercise one, and state the result.
4. Write an inductive argument of four hundred words.

CHAPTER II

DEDUCTIVE ARGUMENT

Deductive argument consists of the application of deductive processes of reasoning to argumentative discourse. This process of applying logical principles is somewhat more complicated than that involved in induction. In some respects it is more important that the student thoroughly master deduction than it is that he master induction. Fallacies are more easily concealed in the deductive process than in the inductive process. Nevertheless, when the fallacy is once detected it can be set forth clearly by anyone who understands this form of reasoning. Neither the inductive nor the deductive form of reasoning is often found alone. Most arguments contain both of these processes and in some cases they are very closely interwoven. This fact necessitates a thorough study of both processes. From this standpoint a knowledge of one form is as important as a knowledge of the other. In order that we may thoroughly understand the application of the deductive process to argument we must first consider separately that process of reasoning.

I. Deductive reasoning.

By deductive reasoning we arrive at a conclusion regarding a particular person, event, or thing by reason of our knowledge regarding the whole class to which the particular person, event, or thing belongs. In this sense it is the opposite of induction. We conclude that a particular book is interesting because we know that all the books written by the author of this book are interesting. We may say that deductive reasoning begins where inductive reasoning leaves off. For example, we found that we could arrive at the imperfect inductive conclusion that all of Stevenson's books are interesting because each one of a number of his books which we had read was interesting. Since (1) the number of specific instances cited were

sufficient to offset the probability of coincidence, (2) the class was fairly homogeneous, (3) the examples were fair, (4) we found upon investigation that there were no exceptions, and (5) from the character of the author and other circumstances the conclusion seemed reasonable, we concluded that our induction was sound. Now, taking this conclusion as true we may apply it to any one of Stevenson's works not yet examined and thus determine that that work is interesting. It must be kept in mind, however, that a deduction based upon an imperfect induction is no stronger than that imperfect induction. The imperfect induction gains no strength by reason of its having a valid deduction based upon it. Nevertheless, unsound arguments are often given a superficial appearance of validity by this means.

We may more clearly indicate the relation of the inductive and the deductive process by arranging the material of the foregoing illustration in the following manner.

A. Inductive process.

1. Specific instances.

- (1) *Treasure Island*, written by Stevenson is interesting.
- (2) *Kidnapped*, written by Stevenson is interesting.
- (3) *David Balfour*, written by Stevenson is interesting.
- (4) *Prince Otto*, written by Stevenson is interesting.
- (5) *St. Ives*, written by Stevenson is interesting.

2. Conclusion: All books written by Stevenson are interesting.

B. Deductive process.

- 1. Major Premise: All books written by Stevenson are interesting.
- 2. Minor Premise: *The Silverado Squatters* was written by Stevenson.
- 3. Conclusion: Therefore *The Silverado Squatters* is interesting.

It will be observed that the inductive conclusion forms the first statement, the basis, or what is called in logic, the major premise of the deductive process. By induction we build several specific instances into a conclusion, and from that conclusion we reason down again to one particular instance. This illustration should serve to make plain to the student the relation between induction and deduction and the reason why the two processes are so often combined in an argument.

In logic the deductive form presented above is called a syllogism. It consists of three statements called Major Premise, Minor Premise, and Conclusion. This syllogism occurs in different forms, but we are concerned with only the typical form above presented, because it is to this form that we intend to reduce our own arguments and the arguments of our opponents in order that we may test their validity.

Each statement in a syllogism is composed of two parts, called terms. The names of these terms as well as their proper location in the syllogism are indicated by the following form:

	Middle term.	Major term.
1. Major Premise:	All college men	should study argumentation.
	Minor term.	Middle term.
2. Minor Premise:	Paul Morton	is a college man.
	Minor term.	Major term.
3. Conclusion:	Therefore Paul Morton	should study argumentation.

The student will observe that each statement in the syllogism is composed of two terms and that each term appears twice in the entire syllogism, but only once in any one statement. The major term represents the largest element in the syllogism namely,—the class of persons who should study argumentation. The minor term represents the smallest element in the syllogism namely,—Paul Morton, the particular person about whom a conclusion is reached. The middle term serves as an intermediary or connecting link which binds the minor term to the major term. It does not appear in the conclusion but is cast away after it has served its purpose in assigning the minor term,—Paul Morton, to the major term,—those who should study argumentation.

In the typical form of the syllogism with which we are concerned the major premise should always be in the universal affirmative-form. By universal affirmative is meant that the assertion is made with regard to the class as a whole as: “All men are mortal,” “All laws should be obeyed,” “All students should pay their bills,” etc. No part of the class of persons, events, or things about which an assertion is made should be left outside the

statement as would be the case if the statements read—“Some laws should be obeyed,” “Some students should pay their bills.”

From the foregoing discussion it is evident that the deductive syllogism, in order to be valid, must be constructed in accordance with certain well defined rules. In books of logic the student will find these rules discussed at some length and their application set forth in detail. For our purpose it is only necessary to refer to them and keep them clearly in mind in connection with the discussion here given. The rules of the syllogism with which we are concerned are as follows:

1. A syllogism must contain three terms, Major term, Minor term, and Middle term.

2. A syllogism must consist of three complete statements, Major Premise, Minor Premise, and Conclusion.

3. The middle term must be distributed at least once in the premises. A term is distributed when it is universal in its application or taken in its whole length of meaning.

4. A term cannot be distributed in the conclusion unless it is distributed in the premises.

5. No conclusion can be drawn from two negative premises.

6. A negative conclusion always follows one negative premise and a negative conclusion cannot be obtained unless one of the premises is negative.

For the purpose of making more plain the relation between the terms and the statements in a syllogism let us consider the old method of graphical representation by means of circles.

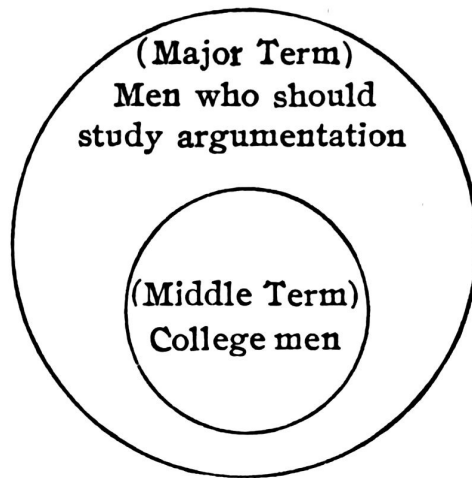
- I. All college men should study argumentation.

- II. Paul Morton is a college man.

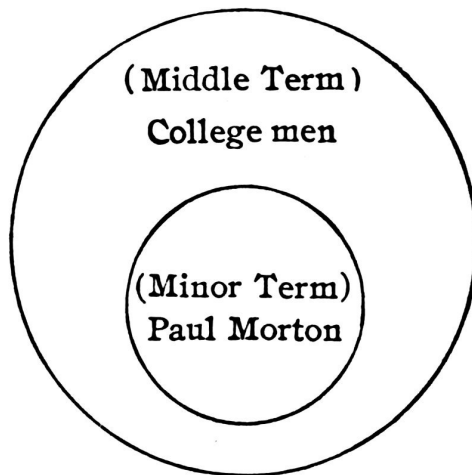
- III. Paul Morton should study argumentation.

From the diagrams on the following page it is seen that in the major premise the middle term must be wholly included within the major term. The entire class of college men must be included within the class of those who should study argumentation. Not one single college man must be left outside the class. In the minor premise the minor term must be clearly and unmistakably included within the middle term. Paul Morton must be a college man. He must not be a banker or a janitor. In the conclusion the

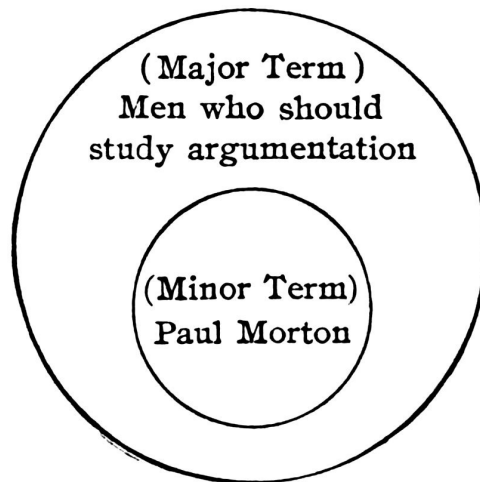
minor term must be included within the major term. This position inevitably results from the two preceding situations. If the middle term, college men, is wholly included within the major term, those who should study argumentation, and if the minor term, Paul Morton, is wholly included within the middle term, college men, then it cannot be otherwise than that the minor term is included within the major term. In other words, Paul Morton is definitely assigned to the class of those who should study argumentation.



I MAJOR PREMISE

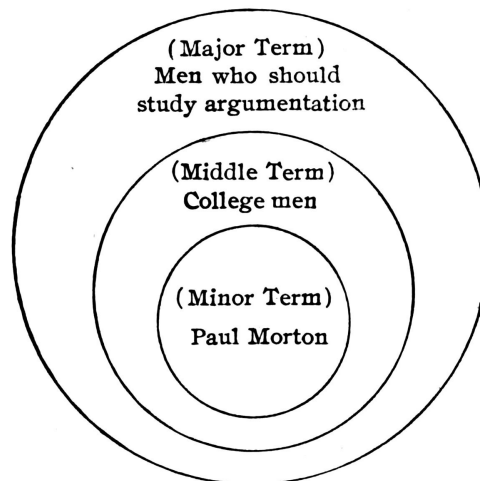


II MINOR PREMISE



III CONCLUSION

We may represent the whole syllogism in the following manner:



The student should be sure that he has mastered each step in the construction of a valid syllogism of the typical form before he passes on to the following section of this chapter.

II. The application of deductive reasoning to deductive argument.

From our examination of the deductive process of reasoning we cannot but realize its importance when applied to the construction of an argument.

One cannot advance far into any argumentative discourse without encountering deduction in some form. A student in a class debate defended the following proposition with the inductive arguments given below: “Resolved that tariff should be imposed for revenue only.” In his introduction the student declared that the protective tariff should be removed. In support of his contention he offered five substantial reasons which he claimed included the vital points at issue. These reasons were as follows:

- A. High duties encourage the formation of trusts.
- B. The high cost of living results from protection.
- C. Protection is unjust to the American people.
- D. Protection breeds corruption.
- E. The usefulness of the protective tariff has long ceased.

Each of the above reasons for the removal of the protective tariff is a deductive argument. The complete deductive process is seen when we state each argument in syllogistic form.

A

1. All things which encourage the formation of trusts should be abolished.
2. The protective tariff encourages the formation of trusts.
3. Therefore the protective tariff should be abolished.

B

1. All things which are the cause of the high cost of living should be abolished.
2. The protective tariff is a cause of the high cost of living.
3. Therefore the protective tariff should be abolished.

C

1. All things which are unjust to the American people should be abolished.
2. The protective tariff is unjust to the American people.
3. Therefore the protective tariff should be abolished.

D

1. All things which breed corruption should be abolished.
2. The protective tariff breeds corruption.

3. Therefore the protective tariff should be abolished.

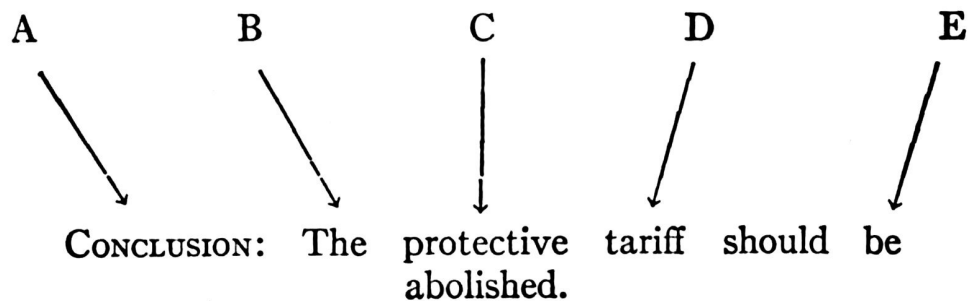
E

1. All governmental policies the usefulness of which has long since ceased should be abolished.

2. The protective tariff is a governmental policy the usefulness of which has long since ceased.

3. Therefore the protective tariff should be abolished.

Each of the above syllogisms stands as an argument for the abolition of the protective tariff; or, to take the standpoint of the proposition each supports the contention that the tariff should be imposed for revenue only. All of the five reasons lead to a single conclusion. We may represent this relation by the following diagram:



This use of deductions is very simple, but in dealing with a combination of induction and deduction the process may become very complicated. For example, the major premise of the first syllogism above stated has back of it another logical process of reasoning. Why should all things which encourage the formation of trusts be abolished? What proof can we show to establish the conclusion (in A, the major premise) that the formation of trusts should be discouraged rather than encouraged? It must be established in a logical manner. We may establish it by induction by showing that each one of a large number of trusts has had injurious effects. After we have introduced positive evidence establishing a perfect or an imperfect induction we have laid a sufficiently strong foundation for the deductive syllogism.

On the other hand, we may establish the major premise of the above syllogism by means of deduction. To do this we might find evidence which would prove that trusts increase the cost of producing commodities and decrease their quality. In this case it would be necessary to introduce

evidence only along the line which would show that this evil was characteristic of all trusts. This would be an induction, because the general principle used as a major premise would be based upon specific instances. Beginning with this induction we would build up the following syllogism, the conclusion of which supports the major premise of the foregoing syllogism.

1. All forms of business organization which increase the cost of producing commodities and decrease their quality are an industrial evil.

2. The trust is a form of business organization which increases the cost of production and decreases the quality of commodities.

3. Therefore the trust is an industrial evil.

Then to continue our deductive reasoning we would construct the following syllogism based upon the foregoing:

1. All industrial evils should be discouraged.

2. The formation of trusts is an industrial evil.

3. Therefore the formation of trusts should be discouraged.

The exact phraseology has not been kept throughout the above line of reasoning, because seldom in any practical work do we find the exact words repeated except for emphasis. However, it requires the exercise of only ordinary ingenuity to follow precisely the entire reasoning processes involved in the foregoing argument.

An excellent example of the use of the deductive syllogism for the purpose of showing that an opponent's deductive argument is unsound is the following extract from Lincoln's reply to Douglas in the Fifth Joint Debate at Galesburg:

"In the second clause of the sixth article, I believe it is, of the Constitution of the United States we find the following language, 'This Constitution and the laws of the United States which shall be made in pursuance thereof, and all the treaties made, or which shall be made under the authority of the United States, shall be the supreme law of the land; and the judges in every state shall be bound thereby, anything in the Constitution or laws of any state to the contrary notwithstanding.

"The essence of the Dred Scott case is compressed into the sentence which I will now read, 'Now as we have already said in an earlier part of this opinion, upon a different point, the right of property in a slave is distinctly and expressly affirmed in the Constitution.' I repeat it, '*The right of property in a slave is distinctly expressed and affirmed in the Constitution.*' What is it to be 'affirmed in the Constitution? Made firm in the Constitution,—so made that it cannot be separated from the Constitution without breaking the Constitution; durable as the Constitution, and part of the Constitution. Now remembering the provision of the Constitution which I have read; affirming that that instrument is the supreme law of the land; that the Judges of every state shall be bound by it, any

law or constitution of any state to the contrary, notwithstanding; that the right of property in a slave is affirmed in that Constitution, is made, formed into, and cannot be separated from it without breaking it; durable as the instrument; part of the instrument; what follows as a short and even syllogistic argument from it? I think it follows, and I submit to the consideration of men capable of arguing whether as I state it, in syllogistic form, the argument has any faults in it? (1) Nothing in the constitution or laws of any state can destroy a right distinctly and expressly affirmed in the Constitution of the United States. (2) The right of property in a slave is distinctly and expressly affirmed in the Constitution of the United States. (3) Therefore nothing in the Constitution or laws of any state can destroy the right of property in a slave.

“I believe that no fault can be pointed out in that argument; assuming the truth of the premises, the conclusion, so far as I have capacity at all to understand it, follows inevitably. There is a fault in it as I think, but the fault is not in the reasoning; but the fault in fact is a fault of the premises. I believe that the right of property in a slave is not expressly and distinctly affirmed in the Constitution, and Judge Douglas thinks it is. I believe that the Supreme Court and the advocates of that decision may search in vain for the place in the Constitution where the right of property in a slave is distinctly and expressly affirmed. I say, therefore, that I think one of the premises is not true in fact.”

To give examples of all the forms in which deduction may be applied to argument is impossible. The foregoing examples are merely suggestive. They serve to make plain the practical use which can be made of this logical process. The student must master the underlying principles herein suggested and apply them to his own work.

III. The enthymeme.

An enthymeme is an incomplete syllogism. It is a syllogism in which only one or two of the statements are expressed. An example of an enthymeme is the following proposition, “The protective tariff should be abolished because it encourages the formation of trusts.” This is the form in which we most commonly encounter deductive reasoning. Seldom is the complete syllogism expressed. It therefore becomes our task to construct from this enthymeme a complete syllogism. Our first duty, then, is to find out what parts of the syllogism are contained in the enthymeme and then strive to supply the missing parts. Usually the major premise is omitted. This requires that it be supplied from a consideration of the minor premise and the conclusion. In almost all cases the conclusion is expressed. If it is not expressed it is clearly implied. This supplies the minor term (the thing about which something is said) and the major term (the thing that is said about it). From these two terms it is usually easy to find a middle term which will serve as a connecting link. The process of building syllogisms upon enthymemes is comparatively simple if the student will always find

the conclusion and then divide it into the two terms of which it is composed.

In order to illustrate the application of the principles above expressed, let us reduce an enthymeme to the syllogistic form. We shall take for our example the enthymeme, “The railroads of the United States should be under Federal control because they are a natural monopoly.” The parts of a syllogism which are expressed in this statement must be found and of these the conclusion should be first determined. In this case the conclusion is “The railroads of the United States should be under Federal control.” “Railroads of the United States,” is the minor term, and “should be under Federal control” is the major term. Now, to represent what we have thus far discovered we apply the order of statements and terms which were employed in the discussion of Deductive Reasoning. The result is as follows:

I. Major Premise:

	Major term
	should be under Federal control.

II. Minor Premise:

Minor term	
The railroads of the United States	

III. Conclusion:

Minor term	Major term
The railroads of the United States	should be under Federal control.

We thus have the entire syllogism completed with the exception of the middle term. Our next task is to find this middle term. It *must include* the minor term and it *must be included in* the major term. A reference to the diagrams given in connection with the discussion of Deductive Reasoning will make this plain. With this requirement in mind we consider the enthymeme and find that the reason assigned for placing railroads under Federal control is that they are a natural monopoly. This gives us the middle term as it appears in the minor premise. We then take this middle term and cast it into the universal affirmative form, “All natural monopolies.” We now have the enthymeme with which we started out, reduced to the following syllogistic form:

Major Premise: All natural monopolies should be under Federal control.

Minor Premise: The railroads of the United States are a natural monopoly.

Conclusion: Therefore the railroads of the United States should be under Federal control.

This places clearly before us the deductive argument contained in the enthymeme. The syllogism is complete. The statements and terms are in their proper order and form, and the conclusion follows logically and inevitably from the premises. The form of the syllogism as it stands is therefore sound. If the two premises are true as a matter of fact, the conclusion must be true. Having determined these matters we now scrutinize each of the premises to see whether there is sufficient evidence to establish its truth. In the first place is it true that all natural monopolies should be under Federal control? What is a natural monopoly and why should it be under Federal control? All the sources of evidence must be searched for facts and statements of authority to substantiate this assertion. On this point opinions differ and the student must strive to find out the truth for himself. The other question which he must answer is, "Are the railroads of the United States a natural monopoly?" Here again the student must resort to the sources of evidence and by their aid answer the question in the affirmative or in the negative. If he can introduce enough evidence to prove that all natural monopolies in the United States should be under Federal control, and that the railroads are a natural monopoly, then he has completed a sound deductive argument in favor of the Federal control of railroads. This example ought to make clear the method of reducing an enthymeme to the syllogistic form and the use to which this form may then be put.

Before leaving this subject a word of caution is necessary. Do not be confused by the form in which the enthymeme appears. Be sure that you have the real conclusion before you begin the construction of the rest of the syllogism. If you have failed to grasp what the enthymeme really says you are liable to get a wrong conclusion, and if you get a wrong conclusion the whole syllogism will be wrong. High sounding oratorical phrases and sentences are often confusing. Plainness is sometimes avoided by the speaker for the express purpose of concealing a fault in his argument. Even truth expressed in an unusual form is often misleading when we seek to reduce it to logical terms.

Some difficulty is usually experienced in reducing the beatitudes to the typical syllogistic form. For example, in reducing the enthymeme “Blessed are the pure in heart, for they shall see God,” the inexperienced student usually says that the conclusion is, “The blessed shall see God.” A syllogism built upon this conclusion would appear as follows:

1. All those who are pure in heart shall see God.
2. The blessed are pure in heart.
3. Therefore the blessed shall see God.

This is a valid syllogism so far as the form is concerned; but it is of no use in throwing light upon the truth or falsity of the enthymeme, because the conclusion with which we started was not the true conclusion. This fault is fatal to the success of the argument, because after the syllogism is completed the student usually devotes his entire attention to proving the truth or falsity of the two premises and seldom gives any further attention to the conclusion.

Another erroneous statement of the conclusion expressed in the above enthymeme is often given. It is “All those who are blessed shall see God.” With this conclusion as a starting point we may construct the following syllogism:

1. All those who are blessed shall see God.
2. The pure in heart are blessed.
3. Therefore the pure in heart shall see God.

Again we have an invalid syllogism, because the conclusion from which we built it is not the true conclusion expressed in the enthymeme. Likewise there are many pitfalls for him who seeks to find the true meaning of any statement worded in a manner different from that in which we are accustomed to speak. The very difficulty, however, suggests the remedy. The student should always reduce the complicated statement to plain, ordinary, everyday English before attempting to find the conclusion. Reducing the enthymeme under consideration in this manner we have this simple statement, “The pure in heart are blessed because they shall see God.” When we have put the statement in this form the real conclusion is readily seen. It is “The pure in heart are blessed.” The remainder of the enthymeme is a statement of the reason why the pure in heart are blessed. With this as a basis we easily construct a valid syllogism.

1. All those who shall see God are blessed.

2. The pure in heart shall see God.
3. Therefore the pure in heart are blessed.

In closing this discussion it may be remarked that actual practice in the use of the deductive process as well as its application to argument is the only way in which real practical benefit may be derived from the knowledge here gained. This knowledge should not be reserved for use in the class room but should be used all the time and everywhere.

EXERCISES IN DEDUCTIVE ARGUMENT

- I. Construct valid syllogisms showing the reasoning involved in each of the following enthymemes:
 1. Since large corporations are gaining control of all industries a Federal incorporation law should be enacted.
 2. As swollen fortunes are an evil, a progressive inheritance tax should be enacted.
 3. Commercial reciprocity between the United States and Canada would be for the best interest of the United States because it would reduce the high cost of living.
 4. Because compulsory insurance has been successful in Germany, it should be adopted in the United States.
 5. On account of the growth of the divorce evil in the United States, there should be a Federal law regulating marriage and divorce.
 6. There should be a state censorship of the stage because many immoral productions are being brought before the public.
 7. "Blessed are the meek for they shall inherit the earth."
- II. Diagram, by means of circles, the syllogisms constructed under exercise I.
- III. State three instances in which you have recently employed deductive argument.
- IV. Write a deductive argument of not less than three hundred words.

CHAPTER III

ARGUMENT FROM CAUSAL RELATION

Arguments from causal relation are divided into three classes, I. Arguments from Effect to Cause, II. Arguments from Cause to Effect, and III. Arguments from Effect to Effect. All arguments from causal relation may be classed under one or the other of these divisions. These arguments are based upon a fact which human experience has demonstrated to be true—the fact that everything that occurs has back of it some adequate cause. In ancient times this belief in the laws of universal causation did not exist. Hence every occurrence of any importance was attributed to the commands of one of the numerous heathen gods. Instead of attributing the defeat of a general to poor management it was customary to say, “The gods decreed that this general should be defeated in war.”

We still have remnants of this belief. These remnants consist of popular superstitions, such as the supposition that Friday is an unlucky day, that the number thirteen is unlucky, that the breaking of a looking glass portends bad luck, or that the sight of a black cat in the path is sure to be followed by some disaster. Modern science has abolished most of these superstitions by pointing out the fact upon which all causal relation arguments are based, viz.—that everything that happens has back of it a reasonable cause—or in other words, if a thing is true there must be some sufficient reason for it. So well has this fact been established that, with the exception of the less enlightened members of society, the belief in the laws of causation is universal. Upon this sound basis must every argument find its ultimate justification. Even inductions and deductions may be traced to their source where the law of cause and effect will finally determine their validity. It is therefore of the utmost importance that we give careful consideration to this class of arguments. As in the case of imperfect induction, we are reasoning from the known to the unknown; from things of which we are conscious to things that are beyond the realm of our perception. We shall consider the

form of these arguments and the conditions with which they must comply in order to be valid.

I. Argument from effect to cause.

The argument from effect to cause is one which relies upon an observed effect to prove the operation of an unobserved cause. Upon arising in the morning I observe that the ground which was bare the evening before is now white with snow. Therefore I reason that snow must have fallen during the night, although no snow is now falling and I have not seen any snow in the actual process of falling. The snow-covered ground is the effect which I observe and the unobserved fall of snow during the night is the only possible cause for this effect. If a friend who has not yet seen the snow disputes my assertion that there was a snowfall during the night by saying that it is too warm to snow, I may effectively establish my argument and refute his own by calling him to the window and pointing to the snow. I should point to the effect as establishing the existence of the cause. This would be conclusive evidence of the truth of my statement.

The argument from effect to cause is based upon things observed after the disputed fact. This process is called *a posteriori* reasoning which means reasoning *from that which comes after*. This is the process of reasoning employed by the detective in tracing a criminal. The detective by means of skillful observations taken after a crime is committed reasons back to the person who is guilty. The fact that the criminal has usually made an attempt to avoid leaving any traces that may be used as a basis of *a posteriori* reasoning makes this process a most interesting one and accounts for much of the popularity of detective stories.

This use of reasoning from effect to cause was first popularized by the detective stories of Edgar Allan Poe and appears to have reached its climax in the *Adventures of Sherlock Holmes*, the creation of Sir A. Conan Doyle. Sherlock Holmes possesses remarkable powers of observation. He notices that a young lady who calls to see him has finger tips that are slightly spatulate. From this effect he reasons back to the cause and determines that it is the result of much use of the piano. From this and other observations he reasons that the young lady is a musician. He observes that a farmer has a certain kind of mud on his boots and reasons that the man has just come

from a particular town near London where such mud is to be found. The certain kind of mud on the farmer's boots is the effect; the recent presence of the farmer in that particular town near London is the cause. Observing the effect Holmes reasons back to the cause, or in other words, he constructs an argument from effect to cause.

The application of this process of reasoning to the practice of argumentation and debate is easily seen. The politician who says that the high cost of living is due to the growth of monopolies employs an argument from effect (*i. e.*, the high cost of living) to cause (*i. e.*, the growth of monopolies). The minister who declares that the prevalence of drunkenness is due to the licensed saloon expounds an argument from effect (*i. e.*, the prevalence of drunkenness) to cause (*i. e.*, the licensed saloon). The student who asserts that his class dues are excessive because the business of the class is poorly managed uses an argument from effect (*i. e.*, excessive class dues) to cause (*i. e.*, poor management).

In order to be sound an argument from effect to cause must conform to the following requirements:

1. The alleged cause must be sufficient to produce the effect.

When the existence of a definite cause is alleged to have produced an observed effect, the burden of proving the sufficiency of that cause rests upon him who asserts its operation. No fault of reasoning is more common than that of regarding an insufficient cause as sufficient. If a man is successful we attribute his success to one quality, such as perseverance; whereas his success may be due to a combination of qualities. There may be a hundred other men who possess more perseverance and yet fail. When a financial panic occurs we attribute it to the rule of a certain political party; whereas the action of that party may have been the smallest of the factors causing the panic. Perseverance may be a quality contributing to success, but perseverance alone is not sufficient to secure success. The action of a political party may aid in producing a panic, but seldom are conditions such that its action alone is sufficient to produce a panic. The question of what is sufficient cause demands the exercise of sound judgment. A fall of three feet would hardly be regarded as a sufficient cause for the death of a man; a

fall of one hundred feet would be regarded as sufficient cause for his death. Between these two extremes the individual judgment considering other circumstances connected with such an event, must determine the adequacy of the cause to produce the result in any given case. It is therefore plain that the debater who points to a result as produced by a definite cause must show the adequacy of that cause.

2. No other cause must have intervened between the alleged cause and the effect.

A clear field must be shown for the operation of the alleged cause. This can be done by proving that no other cause could have produced the observed effect. Other causes which might possibly have produced the effect must be shown to have been inoperative or inadequate. For example, a student fails in his studies. He is called before the delinquent board of the faculty and explains his failure by arguing that he has had poor health. He alleges poor health as the cause of the observed effect—the failure in his studies. A member of the board, however, is skeptical regarding the validity of the argument and asks him if it is not true that each week he attends the theatre at least once and sometimes as often as four times. The student is forced to admit that such is the case. Further inquiry reveals the fact that he has been attending a dancing school one night each week; that he belongs to a club which meets every Tuesday and Friday night; and that he is known to spend much of his time in a public billiard room. These facts show an independent cause (*i. e.*, general dissipation) which has intervened between the alleged cause (*i. e.*, poor health) and the effect (*i. e.*, failure in his studies). The student has therefore failed to prove his argument that poor health, which is a legitimate cause, is responsible for his failure. The evidence shows that general dissipation, which is not a legitimate cause, has intervened between the alleged cause and the effect.

If the student had been able to show that he had been diligent in his efforts, had attended to business in a reasonable manner, and that his previous record had been satisfactory he would have established his argument that ill health was the cause of his failure. In every argument from effect to cause the adequacy of the alleged cause must first be shown and

then evidence must be produced establishing the fact that no cause, other than the one alleged, produced the effect.

3. The alleged cause must not have been prevented from operating.

As stated in the preceding section the alleged cause must have a clear field for action. Not only must no other cause have intervened to produce the effect attributed to the alleged cause, but no forces must have intervened to prevent the alleged cause from operating. Any circumstance which appears to have prevented the operation of the alleged cause should be examined carefully. One morning a man was found dead near the railroad. As there were some bruises on his body, the cause of his death was attributed to his being struck by a local freight which passed that point at midnight. No other train passed over this road at night and the man had been killed sometime within six or eight hours of the time when he was found. The case seemed clear. The result (death) was apparently due to the alleged cause (a freight train). Investigation, however, revealed the fact that the freight train had not run that night on account of a wreck on a branch line. Therefore an outside force,—viz., the wreck, had prevented the alleged cause from operating. Hence it could not be the true cause. The inquiry into the alleged cause ultimately resulted in the revealing of the true cause—willful murder.

In arguing from effect to cause the adequacy of the alleged cause must be proved, the fact that no other cause intervened between the alleged cause and the observed effect must be clearly demonstrated, and the circumstances of the case must show that the alleged cause was not prevented from operating. With these requirements fulfilled such an argument may be regarded as sound. It will be seen that the application of these rules requires sound judgment and practical common sense. The argument will be effective in persuading others only when every requirement is met in a plain, straightforward manner.

II. Argument from cause to effect.

The argument from cause to effect is one which relies upon an observed cause to prove or foretell the existence of an unobserved effect. For example, I observe that the temperature is very low; the thermometer registers below zero and the exposed parts of my body tingle with cold when I am out of doors. This is a cause of several effects. One of them is that the pond near my home will be frozen over. I observe the cause (*i. e.*, the low temperature) and at once state the effect (*i. e.*, the ice on the pond). The process by which I reached this conclusion is called *a priori* reasoning. The conclusion is based upon circumstances observed before the disputed fact. Likewise, I observe that it is now beginning to rain and that appearances indicate a heavy downpour. I at once come to the conclusion that the path across the meadow will be muddy when I pass over it in half an hour from now.

This case differs from the preceding one only in the fact that in the first case the effect existed when the cause was observed, whereas in the latter case the effect did not exist when the cause was observed. In both cases the observed cause is the basis for determining the unobserved effect. In this way we may reason from the past to the present, from the remote past to the less remote past, from the present to the future, from the near future to the more remote future, or from the past to the future.

The student will doubtless have observed that the argument from cause to effect as well as that from effect to cause is a special form of deduction. The syllogistic form may be applied to either of these processes of reasoning for the purpose of testing their strength. Applying the syllogistic form to the *a priori* reasoning involved in one of the preceding illustrations we have:

- A. Low temperature is always followed by the forming of ice.
- B. This is low temperature.
- C. Therefore it is followed by the forming of ice.

Applying the syllogistic form to the *a posteriori* reasoning involved in one of the examples given under the discussion of that process we have:

- A. All times when the ground is covered with snow are times when there has been a snowfall.
- B. This is a time when the ground is covered with snow.
- C. Therefore this is a time when there has been a snowfall.

For the purpose of extreme simplicity we may represent these two processes by the following formula:

- I. *A posteriori* reasoning.

1. A is *preceded* by B
2. This is A
3. Therefore it is preceded by B.

II. *A priori* reasoning.

1. A is *followed* by B
2. This is A
3. Therefore it is followed by B.

The advocates of a high protective tariff argue that if the tariff is removed financial disaster will overwhelm the country. They support this contention by showing that the large manufacturing industries are now able to sell their products at a reasonable price; import duties prevent foreign manufacturers from shipping their goods into this country and selling them much cheaper than our manufacturers can make them. But if the tariff is removed foreign made goods will drive out American made goods, as the foreign goods can be sold much cheaper. Therefore factories and mills must cease operations because there will be no demand for their products. Workmen will be thrown out of employment and capital will be idle. Starvation will overtake the working man and financial ruin will overtake the business man. This is a typical example of an argument from cause to effect. The operation of the cause (the removal of the protective tariff) will produce the alleged effect (industrial disaster). This argument appears to be valid, but an equally plausible argument may be constructed against protection. We must, therefore, look at the foundations of each argument for the purpose of determining its validity. As in the case of argument from effect to cause we must exercise sound judgment in applying certain requirements to each particular argument. An argument from cause to effect must conform to the following requirements:

1. The observed cause must be sufficient to produce the alleged effect.

This requirement implies absolute sufficiency of cause, not probable sufficiency. Habitual inattention to business or professional duties is a sure cause for failure. Habitual drunkenness is a sure cause for ill health. Being run over by a locomotive is a sure cause of death. There may be some exceptions to the above general rules, but the certainty of the effect

following the cause is so great that for all practical purposes we may rely absolutely upon the sequence.

2. When past experience is invoked it must show that the alleged effect has always followed the observed cause.

An observed cause may possibly have an alleged effect even though there is not one chance in a thousand that it will have this effect. No valid argument can be constructed upon such a chance. In pure science this rule is absolute. A combination of the same chemicals under the same conditions always produces the same effect. The bringing of a magnet near a piece of steel always results in the same effect so far as the force which one exerts upon the other is concerned. When we depart from the realm of exact science the working out of the rule becomes less certain. Nevertheless, if human experience has sanctioned the adoption of the rule we may rely upon it even though there are exceptions. A rise in the tax rate is always followed by more revenue to the government. A scarcity in the supply of iron is always followed by a rise in the price. A drouth in the wheat belt is always followed by an increase in the price of flour. There may be exceptions to these examples, but the exceptions are so few and the number of instances supporting the rule is so great that we feel safe in relying upon it. It is this kind of certainty, rather than the absolute certainty of science, which argumentation demands.

3. No force must intervene to prevent the observed cause from operating to produce the alleged effect.

A drouth in the wheat belt naturally causes an advance in the price of flour. Past experience has proved this to be the case, and, furthermore, the cause is adequate to produce the alleged effect. Nevertheless, a lowering of the duty on wheat might permit wheat from foreign countries to be imported in such quantities that there would be no rise in the price of flour. The lowering of the duty on wheat would be another force intervening to prevent the observed cause (the drouth in the wheat belt) from producing the alleged effect (the rise in the price of flour). Therefore we must always

examine the circumstances of each case to determine whether there are any forces at work which will prevent the observed cause from producing the alleged effect.

4. The conclusion established should be verified by positive evidence wherever possible.

After all the other tests have been satisfied the argument from cause to effect may be established or overthrown by the production of positive evidence. A disappears and B is accused of his murder. A perfect case is made out and B is convicted and sentenced to death. Then A suddenly appears. The innocence of B is effectively established. Cases of this kind are not unknown to the criminal law, though unfortunately the missing man is usually discovered after his supposed murderer has been put to death. This illustration suggests that too much care cannot be exercised in substantiating an argument from cause to effect.

The argument from cause to effect is most frequently employed in criminal trials. In such cases the motive for committing the crime is regarded as the cause and the crime as the effect. The argument is usually begun by proving the existence of strong motives such as an abnormal desire to acquire more money or property, to work revenge on bitter enemies, or to avert financial or domestic disaster. With these strong motives shown it is easy to connect them with the crime. This is the method of argument from cause to effect which is used by Daniel Webster in the White murder trial. He showed clearly that the Knapps believed that they could obtain the fortune of White by destroying his last will and murdering him. He argued that this was the cause which produced the effect of murder. The following extract from Webster's speech before the jury will show the application made of the argument from cause to effect.

“When we look back, then, to the state of things immediately on the discovery of the murder, we see that suspicion would naturally turn at once, not to the heirs at law, but to those principally benefited by the will. They, and they alone, would be supposed to have a direct object for wishing Mr. White's life terminated. And, strange as it may seem, we find counsel now insisting, that, if no apology, it is yet mitigation of the atrocity of the

Knapps' conduct in attempting to charge this foul murder on Mr. White, the nephew and principal devisee, that public suspicion was already so directed. As if assassination of character were excusable in proportion as circumstances may render it easy. Their endeavors, when they knew they were suspected themselves, to fix the charge on others, by foul means and by falsehood, are fair and strong proof of their own guilt.

"The counsel say that they might safely admit that Richard Crowninshield, Jr., was the perpetrator of this murder.

"But how could they safely admit that? If that were admitted everything else would follow. For why should Richard Crowninshield, Jr., kill Mr. White? He was not his heir; nor was he his devisee; nor his enemy. What could be his motive? If Richard Crowninshield, Jr., killed Mr. White he did it at some one's procurement who himself had a motive. And who having any motive, is shown to have had any intercourse with Richard Crowninshield, Jr., but Joseph Knapp and this principally through the agency of the prisoner at the bar? It is the infirmity, the distressing difficulty of the prisoner's case, that his counsel cannot and dare not admit what they yet cannot disprove, and what all must believe. He who believes, on this evidence, that Richard Crowninshield, Jr., was the immediate murderer cannot doubt that both the Knapps were conspirators in that murder."

III. Argument from effect to effect.

An argument from effect to effect is one in which an argument from effect to cause is combined with an argument from cause to effect. To illustrate this kind of argument we may explain a simple example frequently used in this connection. A boy announces that there is skating this morning because the thermometer registers below zero. Now the thermometer registering below zero is not the cause of the skating. Both the registering of the thermometer and the skating are the effects of a common cause, viz. —low temperature. The boy has observed one of the effects and at once concludes that the other effect must exist. His is an argument from effect to effect, or to be more exact, an argument from one effect of a cause to another effect of the same cause. The whole process of reasoning involved as well as the relation between the two parts of an argument from effect to effect may be represented by the following tabulation:

A. Argument from effect to cause.

1. All times when the thermometer registers below zero are times when the temperature is far below freezing.
2. This is a time when the thermometer registers below zero.
3. Therefore this is a time when the temperature is far below freezing.

B. Argument from cause to effect.

1. All times when the temperature is far below freezing are times when skating ice is formed.
2. This is a time when the temperature is far below freezing.
3. Therefore this is a time when skating ice is formed.

The above analysis of the reasoning involved in an argument from effect to effect will suggest the method of procedure to be employed in testing its validity. The first step consists of dividing the argument into the two essential processes employed, viz.—argument from effect to cause, and argument from cause to effect. The second step consists of applying the rules already considered in connection with each of these processes to the parts revealed by the first step. In this way the validity of any argument from effect to effect may be determined.

SUMMARY OF THE REQUIREMENTS FOR ARGUMENTS FROM CAUSAL RELATION

I. Arguments from Effect to Cause.

1. The alleged cause must be sufficient to produce the effect.
2. No other cause must have intervened between the alleged cause and the effect.
3. The alleged cause must not have been prevented from operating.

II. Argument from Cause to Effect.

1. The observed cause must be sufficient to produce the alleged effect.
2. When past experience is invoked it must show that the alleged effect has always followed the observed cause.
3. No other force must intervene to prevent the observed cause from operating to produce the alleged effect.
4. The conclusion established should be verified by positive evidence wherever possible.

III. Argument from Effect to Effect.

1. The argument must be resolved into its two parts, the argument from effect to cause, and the argument from cause to effect, and the rules under I and II applied.

EXERCISES IN ARGUMENT FROM CAUSAL RELATION

I. State the kind of argument involved in each of the following passages.

1. If a Socialist president is elected, financial disaster is sure to overtake our country.
2. This has been the coldest winter ever known in the United States. The rapid destruction of our forests is directly responsible for this undesirable change of climate and we are to reap still further evils from this same cause.
3. Since we have conclusive proof that the savages of the island have murdered this missionary, we can no longer be in doubt as to what became of his companions.
4. "Every word uttered by a speaker costs him some physical loss; and in the strictest sense, he burns that others may have light—so much eloquence, so much of his body resolved into carbonic acid, water and urea."—Huxley.
5. "The Constitution of the United States is so concise and so general in its terms, that even had America been as slowly moving a country as China, many questions must have arisen on the interpretation of the fundamental law which would have modified its aspect. But America has been the most swiftly expanding of all countries. Hence the questions that have presented themselves have often related to matters which the framers of the Constitution could not have contemplated. Wiser than Justinian before them or Napoleon after them, they foresaw that their work would need to be elucidated by a judicial commentary. But they were far from conjecturing the enormous strain to which some of their expressions would be subjected in the effort to apply them to new facts."—Bryce.
6. "The last cause of this disobedient spirit in the colonies is hardly less powerful than the rest, as it is not merely moral but laid deep in the natural constitution of things. Three thousand miles of ocean lie between you and them. No contrivance can prevent the effect of this distance in weakening government. Seas roll and months pass, between the order and the execution; and the want of a speedy explanation of a single point is enough to defeat a whole system."—Burke.
7. "Permit me, Sir, to add another circumstance in our colonies, which contributes no mean part towards the growth and effect of this untractable spirit. I mean their education. In no country perhaps in the world is the law so general a study. The profession itself is numerous and powerful; and in most provinces it takes the lead. The greater number of the deputies sent to the Congress were lawyers. But all who read (and most do read), endeavor to obtain some smattering in that science. I have been told by an eminent bookseller, that in no branch of his business, after tracts of popular devotion, were so many books as those on the law exported to the plantations. The colonists have now fallen into the way of printing them for their own use. I hear that they have sold nearly as many of Blackstone's *Commentaries* in America as in England. General Gage marks out this disposition very particularly in a letter on your table. He states that all the people in his government are lawyers, or smatterers in the law; and that in Boston they have been enabled, by successful chicane, wholly to evade many parts of one of your capital penal constitutions. The smartness of debate will say that this knowledge ought to teach them more clearly the rights of legislature, their obligation to obedience, and the penalties of rebellion. All this is mighty well. But my honorable and learned friend on the floor, who condescends to mark what I say for animadversion, will disdain that ground. He has heard, as well as I, that when great honors and great emoluments do not win over this knowledge to the service of the State, it is a formidable adversary to

Government. If the spirit be not tamed and broken by these happy methods, it is stubborn and litigious. *Abeunt studia in mores*. This study renders men acute, inquisitive, dexterous, prompt in attack, ready in defence, full of resources. In other countries, the people, more simple, and of a less mercurial cast, judge of an ill principle in government only by an actual grievance; here they anticipate the evil, and judge of the pressure of the grievance by the badness of the principle. They augur misgovernment at a distance; and snuff the approach of tyranny in every tainted breeze.”—Burke.

- II. Attach definite circumstances to each of the foregoing arguments and then apply the requirements for validity to each one. State the results.
- III. Point out the kind of reasoning which may be employed in reaching each of the following conclusions.
 1. The record of our debating teams as compared with that of our opponents shows that we shall win this debate.
 2. Harold Small has been put on probation.
 3. Under these conditions an inheritance tax should be levied.
 4. International arbitration will ultimately take the place of war as a method of settling disputes between nations.
- IV. Analyze completely the reasoning processes employed in Exercise III. Where they may be reduced to syllogistic form, determine the validity of the resulting syllogisms.
- V. Write an argument from causal relation in support of any proposition which you wish to discuss. Employ each of the three classes of argument from causal relation.

CHAPTER IV

ARGUMENT FROM ANALOGY

Analogy is such a resemblance between some of the known characteristics of two different things as will lead to the conclusion that they are alike in other characteristics. For example, an egg and a seed are two different things but they have many characteristics in common. From the characteristics in which we know that an egg is like a seed we reason that they must be alike in other characteristics which we know one to possess but which we do not know the other to possess. We know that heat is required to develop an egg and by analogy we may conclude that heat is required to develop a seed. In this, as in other forms of reasoning, we proceed from the known to the unknown. The basis of inference is the general resemblance which one thing bears to another thing. Experience has led us to expect that when we find two different things alike in many points we shall find them alike in many other points regarding which no actual investigation has been made.

The argument applies the principle above suggested to the subject-matter of the discussion. The standard illustration of this form of argument usually quoted in books of logic and argumentation is found in Reid's *Intellectual Powers*. It is as follows:—

“We may observe a very great similitude between this earth which we inhabit, and the other planets, Saturn, Jupiter, Mars, Venus, and Mercury. They all revolve around the sun, as the earth does, although at different distances and at different periods. They borrow all their light from the sun, as the earth does. Several of them are known to revolve on their axis like the earth, and by that means have like succession of day and night. Some of them have moons that serve to give them light in the absence of the sun, as our moon does to us. They are all in their motions subject to the same law of gravitation as the earth is. From all this similitude it is not unreasonable to think that these planets may, like our earth, be the habitation of various

orders of living creatures. There is some probability in this conclusion from analogy.”

Another frequently quoted illustration of the argument from analogy is the reply of Abraham Lincoln to those who urged him to carry on the war more vigorously.

“Gentlemen, I want you to suppose a case for a moment. Suppose that all the property you were worth was in gold, and you had put it in the hands of Blondin, the famous rope-walker, to carry across the Niagara Falls on a tight rope. Would you shake the rope while he was passing over it, or keep shouting to him, ‘Blondin, stoop a little more! Go a little faster!’ No, I am sure you would not. You would hold your breath as well as your tongue, and keep your hands off until he was safely over. Now the government is in the same situation. It is carrying an immense weight across a stormy ocean. Untold treasures are in its hands. It is doing the best it can. Don’t badger it! Just keep still and it will get you safely over.”

The argument from analogy is most effective when a comparison is made to something that is plain, ordinary, and commonplace. In this way abstract arguments may be made simple and concrete. No debater of modern times has shown more discrimination in the use of material which would make an analogy strong and convincing than has Lincoln. The strength of the argument is greatly increased if it is apparent that the analogy is perfect so far as the point at issue is concerned. In the following quotation no exercise of the imagination is necessary to bring the two factors of the analogy together. The argument is presented by David Dudley Field in favor of the training of homeless children by the state.

“The question of safety is more vital still. Every one of these boys may be a voter in ten or twenty years hence. His vote will then be as potent as yours or mine. In countries where the sovereign is a prince it has ever been thought prudent to bestow especial care upon the training of an heir to the throne.—Here the people are sovereign, and the little boy, now wandering about the streets, neglected or led astray, is in one sense joint heir to the throne. Every dictate of prudence points to his being fitted to fulfill the duties of his station.”

The foregoing examples with the accompanying explanations will serve to make plain the meaning of argument from analogy and to suggest the innumerable circumstances under which it may be used. Seldom is a

situation encountered in which an apt analogy cannot be employed. The homelier the comparison, the more vivid and lasting will be the impression conveyed, provided, of course, that the analogy is apt and appropriate.

The search for an appropriate analogy is best begun by gaining a clear conception of the universal principle upon which the proposition is based. The student must be able to see the broadest application of the reason which he offers in support of any particular contention. Having grasped this fundamental principle it is easy to see its application in other things of a more tangible form and which are more familiar to the average mind. For example, Lincoln saw that it would not do to pursue the Civil War too vigorously. He realized that the government was in a very perilous position, that every step must be taken with care and deliberation and that the least disturbance from those whose interests were at stake might mean failure and the loss of everything. This was the principle underlying the situation which he was facing. Now, he must make this situation plain and its gravity clear to those who were demanding that he hasten the progress of the war. Therefore he began looking for the application of this principle in something which was more familiar and more real and tangible. The newspapers had been full of the wonderful feats of Blondin, the rope-walker. In this circumstance Lincoln saw an opportunity to give a tangible exhibition of the application of the principle under which he was acting.

The argument from analogy which he constructed is a model of completeness. He compared abstract things which could not be seen and appreciated with tangible things which could be seen and appreciated. He compared the Government to Blondin. Blondin, walking on a rope across Niagara Falls, was in a very dangerous position where it was necessary that he move slowly and cautiously because the least misstep would dash him to destruction. The situation of the government was analogous. It was engaged in a very dangerous undertaking, a great civil war. It had to move slowly and cautiously because the least misstep would mean destruction. In order to make the analogy more complete Lincoln supposed the case of Blondin performing this feat carrying with him all the worldly possessions of the men who were urging that the war be pushed more vigorously. The government was carrying out the dearest desire of the people, the patriotic desire to save the grandest of all nations. If the government failed it would mean the blighting of their dearest hopes and to many it would mean financial ruin. Therefore the analogy was complete in that particular. Now

these men were here in Washington doing the same thing to the government that they would be doing if, under the above circumstances, they shook the rope or scolded Blondin while he was walking across Niagara Falls. The forcibleness of the analogy and the vividness of the impression which it conveyed was an argument powerful enough to silence those who were demanding more aggressive action on the part of the government.

An argument from analogy is never conclusive proof of the truth or falsity of a proposition. At best it creates only a high degree of probability. Its greatest use is to give force and vividness to an argument already established by other means. Nevertheless, its probative value is great provided it is properly constructed. The chance for error, however, is a constant source of danger to him who relies upon analogy, for the very facts upon which it is based may constitute the reason for its falsity. A large oil refining company was recently organized. People were induced to buy stock in the new enterprise by means of argument from analogy. It was argued that this company was similar to the Standard Oil Company. Now it is well known that the Standard Oil Company pays large dividends. The argument was advanced by the promoters of the new organization that since it was similar to the Standard Oil Company and since the latter corporation pays large dividends, therefore the new corporation would pay large dividends. The analogy, of course, proved untrustworthy. The companies, though similar in many ways, were entirely different in one essential particular effecting the conclusion: the old company had entirely monopolized the field of activity, while the new company had no territory in which to work. Thus a false analogy led to the loss of many thousands of dollars.

Instances of unsound arguments from analogy might be multiplied indefinitely. It is therefore evident that certain requirements exist which must be strictly complied with if the argument from analogy is to prove effective. The requirements necessary for a valid argument from analogy are as follows:

I. The two factors in the analogy must be alike in all particulars which affect the conclusion.

The two factors in the analogy are the thing about which the analogy is made and the thing to which it is compared. For example, in the argument

from analogy which we have quoted from Lincoln, the first factor is the position of the government during the Civil War and the second factor is the rope-walker. The former is the thing about which the argument is made; the latter is the thing to which the first factor is compared. These two parts exist in every argument from analogy and the first requirement is that they agree in everything which affects the conclusion. The conclusion Lincoln wished to establish was that the government must not be disturbed in its action because it was in a dangerous position. A rope-walker crossing Niagara Falls must not be disturbed because he is in a dangerous position. These are the facts which affect the conclusion in each case. The two factors are alike in this particular.

From the above example it will be seen that the two factors must agree in the essential particulars. What is essential depends upon the nature of the conclusion to be reached. In particulars affecting things other than the conclusion to be established, it matters not whether they agree or disagree. In comparing an illegal private monopoly to a highwayman the particular method of robbing the victim is immaterial. The fact that the two methods are not exactly alike does not weaken the force of the analogy.

Burke made use of the argument from analogy in defending the policy of conciliation which he favored. After urging that the colonies be granted representation in Parliament, he declared that so far as government was concerned there were four similar cases,—Ireland, Wales, Chester, and Durham. He urged that the acts of Parliament with regard to these territories be applied to America. He then proceeded to show that the analogy was sound by pointing out that the two factors agreed in all particulars which affected the conclusion. He said,

“Are not the people of America as much Englishmen as the Welsh? The preamble of the Act of Henry the Eighth says the Welsh speak a language no way resembling that of his Majesty’s English subjects. Are the Americans not as numerous? If we may trust the learned and accurate Judge Barrington’s account of North Wales, and take that as a standard to measure the rest there is no comparison. The people cannot amount to above 200,000, not a tenth part of the number in the colonies. Is America in rebellion? Wales was hardly ever free from it. Have you attempted to govern America by penal statutes? You made fifteen for Wales. But your legislative authority is perfect with regard to America. Was it less perfect in

Wales, Chester, and Durham? But America is virtually represented. What! does the electric force of virtual representation more easily pass over the Atlantic than pervade Wales, which lies in your neighborhood—or than Chester and Durham, surrounded by an abundance of representation that is actual and palpable? But, Sir, your ancestors thought this sort of virtual representation, however complete, to be totally insufficient for the freedom of inhabitants of territories that are so near and comparatively so inconsiderable. How then can I think it sufficient for those which are infinitely greater and infinitely more remote?”

It will be observed that there is a slight difference in the analogy here employed and the one of which Lincoln made use. In the latter the factors are entirely unlike, in the former they are similar. In all analogies similar to that employed by Burke the points of similarity in the two factors must be clearly shown to bear directly upon the conclusion, whereas if any points of difference exist they must be shown to have no vital bearing on the question at issue.

A failure to observe this application of the rule was made by a student who argued that because an income tax had worked well in other countries it would work well in the United States. His opponent pointed out the unsoundness of the analogy by showing that the income tax proposed for the United States was a progressive tax, whereas the income tax in the foreign countries cited was not a progressive tax. He further revealed the falsity of the analogy by showing that the proposed income tax for the United States was to be levied by the national or Federal government, whereas the income tax in the foreign countries cited was levied by the states or smaller governmental units of those countries. The analogy was shown to be false in that the two factors did not agree in all particulars affecting the conclusion because (1) in one factor the tax was progressive while in the other it was not, and (2) in one factor the tax was levied by the national government and in the other it was not.

The argument from analogy can be made stronger if it is shown that what is true of the analogous case is much more likely to be true and to be true in a greater degree, of the case in dispute. The example of analogy quoted from Burke shows this phase of the process. Some writers call this process an intensification of the argument from analogy. In logic it is *a fortiori* reasoning. The Scriptures abound in this kind of argument, such as “Are not

two sparrows sold for a farthing? and one of them shall not fall on the ground without your Father. Fear ye not therefore; ye are of more value than many sparrows.” Another passage illustrating the intensification of the argument from analogy is, “Consider the ravens; for they neither sow nor reap; which neither have storehouse nor barn; and God feedeth them; how much more are ye better than the fowls?”

In a debate on the proposition, “Resolved, that courses of instruction in the care and training of children should form a part of the curriculum of every college and university,” a speaker for the affirmative developed an analogy based upon the similarity between such a course and the practical courses in the College of Agriculture on the raising of live stock. He then gave force to his analogy by suggesting that if it were worth while to give college courses dealing with the raising of colts, calves, and pigs, it certainly would be much more worth while to give courses dealing with the raising of children.

II. The alleged facts upon which the analogy is based must be true.

The facts alleged to be true in regard to each of the factors in the analogy must be true as a matter of fact. A deviation from the truth in either factor will invalidate the conclusion. In arguing in favor of the municipal ownership and operation of the street railway system in an eastern city a debater declared that the proposed plan would be successful because it had been tried in Chicago with great success. He then spent much time in showing that so far as street railway ownership was concerned conditions in the two cities were exactly alike. This argument from analogy, however, was promptly overthrown by the next speaker, who introduced evidence which proved that the city of Chicago did not own its street railway system. The analogy was unsound because one of the alleged facts upon which it was based was not true.

The above example illustrates one of the chief sources of error in the use of this class of argument. The student must be constantly on his guard when inspecting his own work and that of his opponent. The argument from analogy demands extensive and accurate knowledge of both the factors involved and the result is almost always in favor of him whose knowledge of the subject-matter is the most comprehensive. The temptation to color the

facts in order to fit the analogy is sometimes great and to refrain from deceiving one's self as well as one's hearers requires a high degree of intellectual honesty. In no other form of argument is the demand for absolute impartiality more imperative. An analogy which extends beyond the sound foundation of real facts is a constant source of danger both for him who proposes it and for him who receives it. All the alleged facts upon which this kind of argument is based must be true.

III. The conclusion established by analogy should be verified by positive evidence whenever possible.

The suggestion has already been made that no matter how perfect an analogy may be, it can never amount to absolute proof. At its best analogy creates only a high degree of probability. In order to strengthen the conclusion a diligent search should be made for other lines of reasoning which will fortify it. One of the most important uses to which analogy may be put is to suggest possible conclusions which may be substantiated by other processes of reasoning, as induction, deduction, or causal relation. If two or more lines of reasoning can be made to support the same conclusion the probability of its truth is greatly strengthened; hence its argumentative value is increased. Where all available processes of reasoning may be made to establish one conclusion the probability of its truth is so strengthened that it amounts to moral certainty, but no cumulation of probabilities can ever amount to absolute certainty.

The fact that analogy must be substantiated by other processes of reasoning should not lead the student to underestimate its importance. The examples and explanations which have been given should lead him to appreciate fully the fact that analogy has two well defined uses aside from its value as proof of the truth or falsity of a conclusion. In the first place it is a most important agency in suggesting conclusions which may be verified or discredited by other processes of reasoning. In the second place it affords a most valuable method of stating a case so plainly that even the most ignorant may understand. A striking analogy makes a most vivid impression on the mind and is retained long after more formal processes of reasoning are forgotten.

SUMMARY OF THE REQUIREMENTS FOR AN ARGUMENT FROM ANALOGY

- I. The two factors in the analogy must be alike in all particulars which affect the conclusion.
- II. The alleged facts upon which the analogy is based must be true.
- III. The conclusion established by analogy should whenever possible be verified by positive evidence.

EXERCISES IN ANALOGY

- I. Apply the requirements for validity to each of the arguments from analogy quoted in this last chapter.
- II. Suggest arguments from analogy in support of each of the following conclusions:
 1. College students should be allowed to select their own courses of study.
 2. A course in public speaking is a necessity for those who expect to teach.
 3. The greatest moral strength is fostered among many temptations.
 4. An inheritance tax is an exceedingly just method of taxation.
 5. All colleges should be coeducational.
 6. Military drill should be compulsory for all college freshmen.
 7. The use of clear and correct English is a prerequisite to success in any profession.
- III. Write an argument from analogy in support of one of the propositions given in the appendix.

CHAPTER V

FALLACIES

A fallacy is an error in the argumentative process. It may arise from a mistake in the process of reasoning or from a mistake regarding the facts upon which the reasoning is based. The task of detecting and eliminating fallacies in his own argument and of detecting and exposing fallacies in the argument of his opponent is one of the most important phases of a debater's work.

Self-evident fallacies are few. A fallacy is almost always concealed under cover of language which makes it appear in the guise of valid reasoning. It is usually embedded in an otherwise sound argumentative structure. To detect and to separate it from that which is entirely trustworthy is one of the severest tests of argumentative skill. Just as in a mathematical computation one wrong figure will invalidate the accuracy of the result though all the other figures be correct, so will one false statement in an argument produce the same disastrous effect. A fallacy may occupy but a very small part of the argument and yet be fatal to the solidity of the entire structure. It may consist of only one sentence in several pages of printed matter. It may be but a single statement which makes an unwarranted transition or assumption. Nevertheless it is as fatal to the argument as though it comprised a greater part of the entire discussion.

While an opponent may cover up a fallacy with the deliberate intention to deceive, yet the existence of most fallacies is not suspected by those who use them. Therefore the use of fallacious arguments is seldom evidence of dishonesty but is almost always the result of careless reasoning or inability to detect and remedy such errors. To classify fallacies into groups for the purpose of discussion is a most difficult undertaking. Any division that can be made will not prove all inclusive and all exclusive in practical application. Hard and fast divisions are sure to overlap, and a particular fallacy may be treated under one division or another according to the standpoint of the student and the combination of circumstances under which

it exists. For the purpose of this discussion we shall divide fallacies according to the kind of argument in which they occur and according to the form in which they are usually found. This method of division will best serve our practical object, which is the detecting and eliminating of fallacies.

I. Fallacies of Induction.

In a perfect induction a fallacy may be detected by scrutinizing the conclusion to make sure that it includes only the specific instances upon which it is based, and then examining each of these specific instances to see that it is true as a matter of fact. If the conclusion includes more than the facts warrant or if the alleged facts are false the perfect induction is fallacious.

In searching for fallacies in an imperfect induction the rules which have already been pointed out as governing the construction of such an inductive argument should be applied. In order to make a systematic search for fallacies in arguments involving this kind of reasoning, the following steps should be taken.

1. The number of specific instances relied upon to support the inductive conclusion should be determined.

It is comparatively easy to determine the number of incidents claimed to support the conclusion, provided they are all stated in the argument. In such a case the searcher for fallacies merely counts these incidents and passes on to the next step in his investigation. Seldom, however, is the task so easy. In most arguments the writer or speaker extends his conclusion far beyond the actual facts offered in its support. Often the speaker states that “hundreds of other cases,” or “incidents too numerous to mention,” or “thousands of similar cases,” etc., can be produced to show the validity of the induction. The debater should never be overawed by such sweeping statements or allow them to cause him to cease his search for fallacies. He must be insistent in his demand that the number of incidents upon which the conclusion is based be exactly stated or at least that the number be shown as

large enough to offset the probability of coincidence. *The fallacy of the induction can then be shown to exist by pointing out that the number of incidents in support of the induction is not sufficiently great to warrant its acceptance.*

2. The class of persons, events, or things about which the induction is made should be scrutinized with a view to determining whether it is homogeneous.

The discussion of this requirement for a valid imperfect induction which has been previously given will make plain the nature of the investigation under it. A fallacy may be exposed in such an argument by showing that *the class of persons, events, or things about which the induction is made is not homogeneous in respect to the particular about which the conclusion is stated.*

3. Whether or not the specific instances cited in support of the conclusion are fair examples should be determined.

It is usually easier to detect unfair examples in an opponent's argument than in one of the debater's own construction. The person who uses an induction is almost always prejudiced in favor of the instances which support it, but to the unprejudiced mind the fairness of a given example is not hard to determine. It is therefore important that the investigator assume an unprejudiced attitude towards the examples offered as representative of the class about which the induction is made. *The existence of a fallacy in an argument based upon an imperfect induction may be repealed by showing that the specific instances cited in support of the conclusion are not fair examples.*

4. A search should be made for exceptions to the rule stated by the induction.

One of the most effective ways to overthrow a generalization is to present exceptions. Even the existence of one exception will greatly weaken the effect of a conclusion, while several exceptions, clearly established, will entirely destroy it. To prove the existence of more exceptions to the rule than there are instances supporting it is to prove it entirely fallacious. The search for exceptions should be made by the same means employed in finding instances to support the induction. *The fallacy of an induction may be shown by proving the existence of exceptions to the rule which it states.*

5. The induction should be examined with a view to determining its reasonableness.

An induction which appears on its face to be contrary to usual experience is not an effective instrument of persuasion. By showing that it is contrary to natural law or that no process of reasoning other than induction can be made to uphold it, the student may weaken its force. If clear proof of its validity can be established in this way it is not necessary that other methods of showing a fallacy be introduced. *The fallacy of an induction may be established by clear proof of its unreasonableness.*

II. Fallacies of deduction.

A thorough study of the chapter on Deductive Argument has revealed the fact that such an argument in order to be valid must be constructed according to certain definite principles. The knowledge of these principles thus acquired should enable the student to detect fallacies in this form of argument. Nevertheless, some of the fallacies to which deduction is liable are so important and so easily concealed that a separate treatment of them is necessary. Fallacies of deduction may be divided into two classes, 1. Material fallacies, and 2. Logical fallacies.

1. Material Fallacies.

We have already learned that the deductive argument is seldom found in the form of a syllogism but is mostly encountered in the form of an enthymeme, which must be reduced to the syllogistic form. The method of reduction has been explained in the chapter on Deductive Argument and exercises in the use of that method have been given. It is therefore assumed that the student is so familiar with this process that he can readily reduce any argument to the syllogistic form. In the search for fallacies we may begin at this point. After the argument has been reduced to syllogistic form our first task is to examine the major and minor premises for the purpose of discovering any material error, or error of fact. In constructing our own argument we have been cautioned to see to it that both of these statements in the syllogism are true. Now we are examining our own arguments or our opponents' arguments for the very purpose of finding out whether they contain any error. A sophomore urges John Pitt to come out for the class football team by saying that all sophomores ought to be candidates for places on the team. Reduced to the syllogistic form the argument would stand as follows:

1. All sophomores ought to be candidates for the class football team.
2. John Pitt is a sophomore.
3. Therefore John Pitt ought to be a candidate for the class football team.

Upon examining the major premise we find that it is not true as a matter of fact, because it is obvious that one who is not physically capable of taking part in such a game ought not to do so even though he is a sophomore. The deduction is therefore fallacious. But suppose the major premise to be sound, the next step in the search for fallacies would be to examine the minor premise and find out whether it is true as a matter of fact. An examination of this premise may disclose the fact that John Pitt is a junior. The deduction is therefore fallacious, because the minor premise is not true as a matter of fact. *A fallacy in a deductive argument may be exposed by showing that either the major premise or the minor premise is not true as a matter of fact.*

2. Logical fallacies.

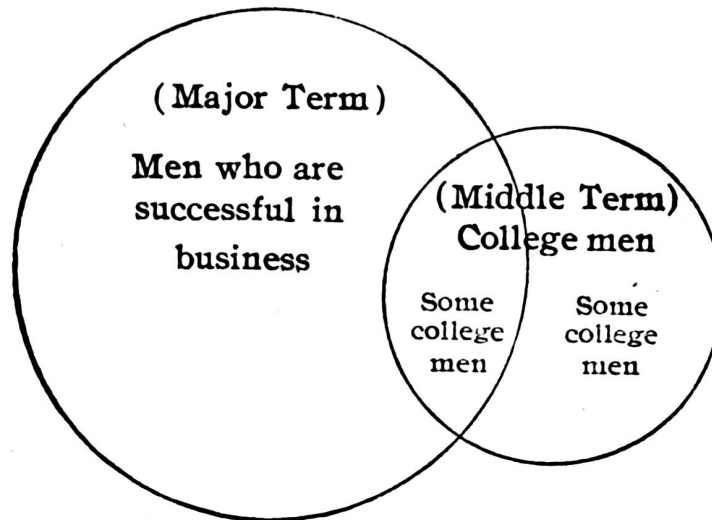
We now come to the class of fallacies which inhere in deductive reasoning independent of the truth or falsity of the alleged facts contained in the premises. These are called logical fallacies. They consist of many forms of error in reasoning, but we shall concern ourselves only with those most likely to be encountered. These are four in number, (1) The undistributed middle, (2) The illicit process, (3) Irrelevancy of premises, or ignoring the question, and (4) Begging the question.

(1). *The undistributed middle.*

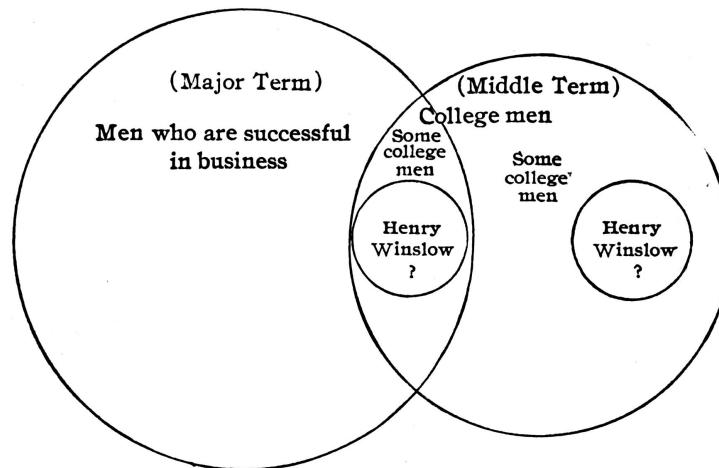
One of the most common errors of deductive argument is called the fallacy of the undistributed middle. It consists of a defect in the major premise. This defect is the failure of the major term to include the middle term. The following syllogism is a typical illustration of this error:

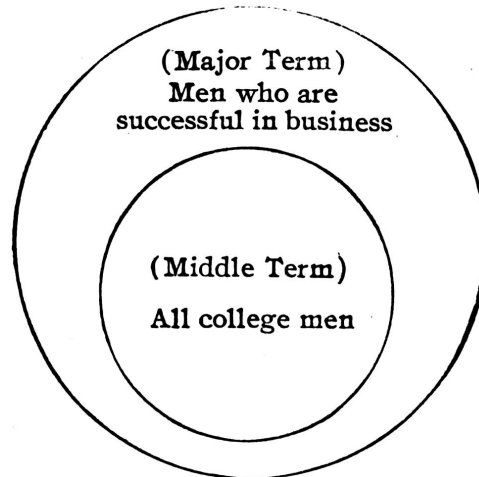
1. Some college men are successful in business.
2. Henry Winslow is a college man.
3. Therefore Henry Winslow is successful in business.

The student will observe that the major term, “men who are successful in business,” does not include the middle term, “college men,” but only includes a part of that class of men. This is true because the middle term reads “Some college men.” Therefore it is evident that there are some college men who are not successful in business as well as some who are. To represent this defect graphically the device of circles employed in discussing the construction of valid deductions may again be used. The result is as follows:



It is thus made plain that some college men are within the class of those who are successful in business, while some college men are not within that class. Now, all that we know about Henry Winslow is that he is a college man. Therefore we cannot tell whether he belongs to that part of the class of college men who are successful in business, or to that part of the class of college men which is not included in the class of men who are successful in business. We may represent the complete fallacy as follows:





In order to eliminate the logical fallacy contained in the foregoing syllogism it would be necessary to include the middle term in the major term of the major premise. The relation of the terms of the major premise would then be represented by the diagram above.

The completed syllogism would then read as follows:

1. All college men are successful in business.
2. Henry Winslow is a college man.
3. Therefore Henry Winslow is successful in business.

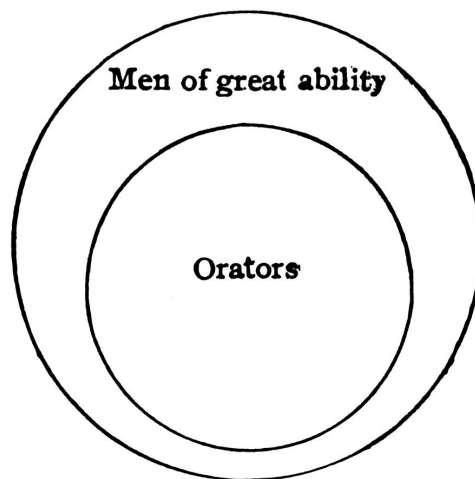
The student must not delude himself with the false impression that he has remedied the defect and that the syllogism may therefore be used as the basis of a sound argument. On the contrary he must now treat the result of his efforts as a new syllogism and begin the search for fallacies all over again. The first step in this process, as we have already seen, is to inquire into the truth of the facts contained in the premises. Let us first examine the major premise. Is it true that all college men are successful in business? A little investigation and reflection will prove that it is not. Therefore the argument is still as fallacious as it was in the beginning. We have merely changed the logical fallacy into a material fallacy. The result of our investigation has been to disclose the fallacy of an enthymeme which reads, "Henry Winslow is successful in business because he is a college man."

Another form in which the fallacy of the undistributed middle appears in a manner less easy to detect is shown by the following syllogism:

1. All orators are men of great ability.
2. Herbert Lang is a man of great ability.

3. Therefore Herbert Lang is an orator.

Each of the premises in the above syllogism may be perfectly true as a matter of fact, but it is obvious that there is something wrong with the syllogism as a whole. The nature of the defect is not apparent until we begin to apply the rules for constructing a valid syllogism. This reveals the fact that instead of the major term including the middle term, the middle includes the major. If we diagram the major premise by the system of circles previously employed the following result is obtained:



If the conclusion to be established had been that Herbert Lang is a man of great ability and the minor premise had stated that Herbert Lang was an orator then the major premise as outlined above would have been perfectly valid. But the conclusion that Herbert Lang is an orator does not follow from the fact that he is a man of great ability and that all orators are men of great ability. The only fact that we can draw from these statements is that some men of great ability are orators. Because we say that all orators are men of great ability we cannot be sure of the converse, that is, that all men of great ability are orators. Only some of them are orators, others may be ministers, doctors, lawyers, or business men. Therefore all that we can conclude is that, "Some men of great ability are orators." It is now plain that when we construct the completed syllogism from this major premise, the same defect will exist which was revealed in the preceding illustration.

1. Some men of great ability are orators.
2. Herbert Lang is a man of great ability.

3. Therefore Herbert Lang is an orator.

By examining the facts expressed in the invalid syllogism we have found that the fallacy consists of an undistributed middle term. This fallacy becomes obvious in some propositions in which the conclusion shows the absurdity of the reasoning process. If we could maintain that Herbert Lang is an orator because he is a man of great ability and all orators are men of great ability, we could argue with equal reason that he is a ground hog because he is an animal and all ground hogs are animals.

(2). *The illicit process.*

The illicit process of either the major or minor term in the syllogism consists of one of these terms appearing in the conclusion in a form essentially different from that in which it appeared in the major or minor premises. In this fallacy the major term which is in the affirmative form in the major premise becomes negative in the conclusion. The following fallacious syllogism illustrates this error:

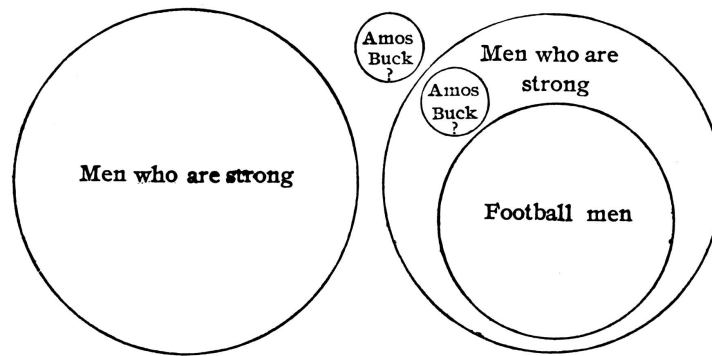
1. All football men are strong.
2. Amos Buck is not a football man.
3. Therefore Amos Buck is not strong.

The fallacy is evident; the class of football men does not include all the strong men. There are some men who are not football men that are strong. The fact that Amos Buck is not included in the class of football men does not prove that he is not included in the larger class of strong men. To be more concrete let us again make use of the diagrams.

From the diagram on page [245](#) it is seen that the fact that all football men are strong and that Amos Buck is not a football man, does not prove anything regarding his strength. He may be within the class of strong men or he may be outside. Hence the syllogism is fallacious. Usually the fallacy is not so apparent as in the above illustration but by reducing the statements to syllogistic form in the manner indicated above the error becomes apparent.

The minor term in a syllogism sometimes appears in the minor premise as undistributed or particular and then appears in the conclusion as

distributed or universal. This is another form of the illicit process. The same result follows when the minor term becomes either larger or smaller or in any way different in the conclusion from what it was in the minor premise. For example, a business man says, “I will not send my son to college because some college men are ‘sports’ and I detest ‘sports’.” This error in reasoning results from the failure to phrase each term in the same form throughout the syllogism. A scrutiny of the terms of the syllogism will therefore reveal the presence of this fallacy.



(3). Irrelevancy of the premises, or ignoring the question.

This fallacy consists in ignoring the conclusion to be established and arguing toward some other conclusion. In logic it is called *ignoratio elenchi*. It is a very important fallacy, because no error is more common than that of wandering from the real point at issue and discussing some related but irrelevant matter. The error may arise from a deliberate attempt on the part of the speaker to deceive his hearers by taking their attention from the real point at issue, from a failure to analyze the question properly, or from inability to reason correctly.

In discussing this fallacy the first step is to analyze the argument in its relation to the point to be proved. It should be reduced to the syllogistic form, and the irrelevancy between the premises and the conclusion should be made plain. After the premises are found it becomes an easy task to determine whether they establish the right conclusion or some other conclusion.

There are certain ways in which the question may be ignored that are so common that they demand special attention. Of these the most important are the following:

A. The appeal to passion, prejudice, or humor.

Very often the speaker, instead of refuting the arguments of his opponent, will attempt to cast ridicule upon them and thus by humorous treatment divert attention from the real point at issue. Very often the appeal is made to the passion or prejudice of the persons addressed instead of to their reason.

B. The personal attack upon an opponent.

A favorite method of the old time lawyer was to “bullyrag” his opponent in a law suit and thus merge the case at issue into a personal conflict with the opposing counsel. While this practice has long ago disappeared from the court room it is very often encountered in other places. A speaker who has a weak case will sometimes attack the personal character of his opponent and thus seek to change the issue from a debate on the proposition to a wrangle over the personal virtues of the participants.

C. The personal attack upon the person or persons concerned in the controversy.

We argue beside the point when we infer from the moral character, position, or conduct of an individual, the truth or falsity of a particular proposition. If the question is whether or not John Jones killed John Smith, we make no progress by showing that John Jones cheated John Doe out of his farm. If we are told that a certain person advocates prohibition it is no refutation of his arguments to call attention to the fact that he is a drunkard. The *validity* of a drunkard’s arguments in favor of prohibition are not affected by his conduct, although their influence upon other persons would doubtless be greatly affected by it. We always argue beside the point when we attempt to defend or condemn a principle by praising or condemning the person who advocates it. Neither can we establish the guilt or innocence of an accused person by praising or condemning traits of his character which have nothing to do with the charges against him.

D. The appeal to customs and tradition.

The popular appeal to “let well enough alone,” “what has been should be,” and other conservative arguments of this class entirely ignore the question at issue. If the world had followed these precepts we should be no farther advanced to-day than at the beginning of time. To follow them now would mean that all progress must cease. A hundred years ago no argument could have convinced the average individual that man would be able to travel a mile a minute or that one man could hear another talk at a distance of one thousand miles, or that a machine could be made which would talk. Twenty years ago few people could have been convinced that one could see through solid matter or that a man could fly, or that a wireless telegraph was a possibility. Nevertheless all of these seemingly impossible things have come to pass. Similar things are constantly happening in the less material world of education, politics, and religion. Therefore small weight attaches to the argument which relies solely upon an appeal to custom and tradition.

E. Shifting ground.

This fallacy usually arises from using a word in a double capacity. For instance, “Every American citizen should be democratic in his conduct; therefore he should vote the Democratic ticket,” is an example of this fallacy. Here the term democratic is used in more than one sense. It is first used to indicate an attitude of kindly sympathy towards one’s fellow men; then it is used to designate a political party. Likewise we might argue in an equally fallacious manner that because this country is a republic, every man should vote the Republican ticket. The cause of this fallacy is usually a failure on the part of the arguer to define exactly his own position and to state the meaning of vital words used in the proposition. An unscrupulous debater will take advantage of this fallacy as soon as he is cornered by shifting to a different meaning of the words employed. Whenever a debater begins to prove one proposition and ends by upholding another proposition he has shifted ground. This fallacy is usually so concealed in a maze of words that its detection is difficult.

F. Refuting an argument which has not been advanced.

This form of ignoring the question may arise from a deliberate attempt to misrepresent the opposition or from an honest mistake as to just what argument has been advanced. In either case it ignores the question at issue and is a useless expenditure of time and effort. Sometimes a debater cannot refute the arguments advanced by his opponents and he therefore seeks to occupy his time by arguing against contentions which he thought would be advanced but which in reality have not been mentioned. It is far better not to argue at all than to ignore the real points at issue in this manner.

G. Arguing on a related proposition.

This is a very common way of ignoring the question. For example, in support of prohibition, a debater often proves that temperance is a benefit to the community. The real question is whether prohibition is advisable as a means of dealing with the liquor traffic. The question as to whether temperance benefits the community is only related. Therefore to argue in support of the related question is to ignore the real one. In a debate on the proposition "Resolved, that the compulsory arbitration of strikes is practicable in the United States" the affirmative devoted its efforts to proving that the system would be of great advantage to the country and that it had worked well in New Zealand. The question, whether compulsory arbitration is practicable in the United States, was entirely ignored by its advocates arguing in support of two related propositions which might be stated as follows: "Resolved, that the compulsory arbitration of strikes would be of great advantage to the United States," and "Resolved, that compulsory arbitration of strikes has worked well in New Zealand." The real question at issue was entirely ignored.

(4). *Begging the question.*

To beg the question is to assume its truth or falsity without proof. This does not mean a direct assumption of truth or falsity but an indirect assumption reached in a circuitous manner by an appearance of logical reasoning. In logic this error is called *petitio principii*. It may appear in many different forms but the following are the most frequently encountered:

A. Arguing in a circle.

This error involves more than one syllogism. It begins by assuming the truth of a premise, next upon this premise a conclusion is built and then finally this very conclusion is used in an attempt to prove the premise with which the syllogism was begun. For example, a student is urged to take the course in corporation law in the Harvard Law School because it is the best in the country. When the student inquires why it is the best in the country he is told that it is the best because it is given in the Harvard Law School. In other words no reason is given but the statement stripped of its semblance of reasoning is merely that the Harvard Law School is the best because it is the best.

An excellent example showing the refutation of a circular argument is found in Percival and Jelliffe's *Specimens of Exposition and Argument*. It is taken from the argument of Felix Adler against the evils of child labor in the United States.

“There is one other argument so un-American and so inhuman that I am almost ashamed to quote it, and yet it has been used, and I fear is secretly in the minds of some who would not openly stand for it. A manufacturer standing near the furnace of a glasshouse and pointing to a procession of young Slav boys who were carrying the glass on trays, remarked ‘Look at their faces, and you will see that it is idle to take them from the glasshouse in order to give them an education; they are what they are, and will always remain what they are.’ He meant that there are some human beings—and these Slavs of the number—who are mentally irredeemable, so fast asleep intellectually that they cannot be awakened; designed by nature, therefore, to be hewers of wood and drawers of water. This cruel and wicked thing was said of Slavs; it is the same thing which has been said from time immemorial by the slave owners of their slaves. First they degrade human beings by denying them opportunity to develop their better nature; no schools, no teaching, no freedom, no outlook; and then, as if in mockery, they point to the degraded condition of their victims as a reason why they should never be allowed to escape from it.”

B. Directly assuming the point at issue.

In directly assuming the truth of the point at issue much language is employed which tends to conceal the lack of real proof. Stripped of their wealth of expression such so-called arguments appear as bare unsupported assertions. The following is a good example of this fallacy: "Up to the time when the crime was committed, the character of the prisoner was above reproach, for his conduct was always characterized by honest respect for law and order."

Often a single word may directly assume the truth or falsity of the proposition under discussion. In opposing the proposition "Resolved, that the boycott is a proper policy for organized labor," the first speaker began by saying, "It is our purpose to prove that the *wicked and pernicious* system of boycotting is not a proper policy for organized labor." This statement begged the whole proposition by assuming at the outset that boycotting is *wicked and pernicious*. A subsequent speaker committed the same fallacy by saying, "We contend that there are ways by which organized labor can accomplish its purpose that are—unlike the boycott—legitimate and proper." In some cases such question-begging words as those employed above are used in defining the terms of the proposition. This manner of defining terms begs the question as effectively and directly as any of the other fallacious practices discussed under this heading.

C. Indirectly assuming the point at issue.

One of the most common ways of begging the question is to assume the truth of a broad general proposition which includes the one under discussion. This does not directly assume the truth of the proposition, but does it indirectly. For instance, a student declared that "Our football team will win the championship, because the captain of the team says we cannot lose it." This begs the point at issue, namely—whether our team will win the championship, by assuming the truth of a broader proposition, namely—that whatever the captain of the team says is true.

The same result follows the assumption of particular truths which the proposition involves. In supporting the proposition, "Resolved, that the state should prescribe uniform text-books for the public schools" a student attempted to prove that public instruction should be uniform throughout the state. He thus assumed that uniform text-books would secure uniform public instruction throughout the state. This was a particular proposition

involved in the main proposition, and it was the duty of the debater to show that uniform text-books would bring about uniform public instruction.

III. Fallacies of causal relation.

We have already considered the importance of causal relation in argumentation. A relation clearly established between a cause and an effect affords a substantial basis for valid reasoning. The failure to establish such relation results in error. Of course the causal relation may exist although undiscovered. Nevertheless, the failure to show such relation should always be considered as a warning to look out for fallacies.

1. Fallacies of the argument from effect to cause.

The argument from effect to cause may be shown to contain a fallacy by proving any one of the following contentions:

1. That the alleged cause was not sufficient to produce the effect.
2. That an independent cause intervened between the alleged cause and the effect.
3. That the alleged cause was prevented from operating.

In arguing from a known effect to an unknown cause certain fallacies occur with such frequency that we must give them special attention. Of these common errors the following are the most important:

(1). *Mistaking coincidence for cause.*

Most superstitions are due to this fallacy of mistaking coincidence for cause. A black cat crosses our path as we are starting out on a journey. If some misfortune overtakes us before our return our minds immediately revert to the old superstition that if a black cat crosses our path we must turn back and make a fresh start if we wish to ward off disaster. The black cat is regarded by the superstitious as the cause of the disaster. Obviously there is no causal relation between the appearance of the black cat and the occurrence of the disaster. It is merely a coincidence. If we regard it in any other light we are mistaking coincidence for cause.

Political campaign oratory abounds in this kind of fallacy. One political party comes into power and a period of industrial prosperity follows. The party leaders point to their administration as the cause of the prosperity. On the other hand if a period of depression follows the election, the opponents of the successful party point to it as the cause of the disaster. Seldom in such cases is any real causal relation established. It is more often merely coincidence.

No fallacy is more inexcusable than that which asserts a mere prior occurrence as a cause. Because it rained last Sunday and to-day I lose my pocketbook is no reason why I should maintain that last Sunday's rain was the cause of my loss. Yet many arguments are advanced based upon a lack of causal relation as evident as that of the above coincidence. In an inter-class debate one of the speakers maintained that the large number of Chinese in a certain city was the cause of the greater amount of crime which existed in that city as compared with other cities of the same size. No causal relation was established, but the mere fact of the presence of the Chinese was set forth as proof that the Chinese were responsible for the crime. One of the critics of the debate pointed out that it was just as reasonable to suppose that the unusually cold weather of the winter just passed was caused by the large number of Congregationalists in the state.

Even when two events are repeatedly associated so far as time is concerned we should not regard the repetition as proof of the causal relation but only as an indication that a causal relation probably exists. We should

not arrive at any definite conclusion until the existence of the causal relation has been finally established.

(2). *Mistaking an effect for a cause.*

The fallacy of mistaking an effect for a cause consists in pointing to one effect as the cause of another effect when in reality both effects are the result of one cause. For example, a recent writer attributes the anarchistic tendency of the masses of Russia to the arrogance of the soldiery in that country. This reasoning is criticised on the ground that both the anarchistic tendencies of the masses and the arrogance of the soldiery are effects of the same cause, viz.—the despotic government of Russia.

(3). *Mistaking a subsequent cause for a real cause.*

This fallacy arises when an effect is observed and in the search for the cause we accept something which in reality happened after the effect was observed. A striking example of this fallacy occurred in a recent municipal election. The increased cost of city government was charged to the present mayor. His opponents pointed to him as the cause of this increase in the city's expenses. The mayor's friends revealed the fallacy by showing that the expense had really been incurred under the former mayor. The acts of the present mayor could not have been the cause of the increased expense because that expense had been incurred before he went into office. Therefore those who made the unjust charge had committed the fallacy of mistaking a subsequent cause for the real cause.

(4). *Mistaking an insufficient cause for a sufficient cause.*

This fallacy differs from those previously discussed in that there exists some causal relation between the effect and the alleged cause. The error

consists of a failure to recognize the insufficiency of the cause to produce the effect without the help of some other cause.

In a discussion of the proposition, “Resolved, that department stores have proved a benefit to municipal communities,” one speaker argued that such stores were the cause of the low price at which small necessities such as hardware and dry-goods novelties could be purchased by the consumer. The next speaker exposed the fallacy of this argument by admitting that department stores had been a factor in lowering the cost of such commodities, but that this could not have been done except for the assistance of another and more powerful cause, viz.,—the invention of machinery by which such articles could be manufactured in enormous quantities.

2. Fallacies of the argument from cause to effect.

Fallacies of the argument from cause to effect may be exposed by showing

1. That the observed cause is insufficient to produce the alleged effect.
2. That past experience shows that the alleged effect does not always follow the observed cause.
3. That an independent force has intervened to prevent the observed cause from operating.
4. That the conclusion established by the argument is overthrown by positive evidence.

It must be kept in mind that the argument from cause to effect is subject to errors similar to those discussed in connection with fallacies of the argument from effect to cause. In his desire to predict the course of future events man is led to ignore the complex nature of human affairs. A certain individual believes that if he puts all his money into a business and then gives all his attention to its management that that is a sufficient cause for success. Nevertheless, so much depends upon the nature of the man and of the business that it is extremely difficult to foretell the effect. The principle underlying this situation is common to practically every argument from cause to effect. Unless the fallacy is obvious it requires a broad and penetrating intellect to fathom it.

3. Fallacies of the argument from effect to effect.

The fallacies of the argument from effect to effect are discovered by resolving it into the argument from effect to cause and from cause to effect, of which it is composed, and examining the validity of each of these processes.

IV. Fallacies of the argument from analogy.

The chapter on Argument from Analogy treated of the requirements for validity to which such an argument must conform. We may expose the fallacy of an argument from analogy by showing—

1. That the two factors in the analogy are not alike in all the particulars affecting the conclusion.
2. That the alleged facts upon which the analogy is based are not true.
3. That the conclusion established by analogy is disproved by positive evidence.

No test of an analogy is absolute. Its very nature makes it more susceptible to fallacy than are the other forms of argument. At its best it creates only a high degree of probability. As already stated, its chief use is to give clearness and force to persuasive writing and speaking. In the search for fallacies, here as well as elsewhere, the best guarantee of success is an unprejudiced mind equipped with a thorough working knowledge of all the argumentative processes of reasoning and of the numerous fallacies to which they are subject.

EXERCISES IN FALLACY

I. Point out clearly the kind of fallacies, if any, involved in the following arguments.

1. The only people excluded from the privilege of voting are children, idiots, foreigners, convicts, and women. How much longer will the civilized nations of the earth permit their women to be classed with the incompetent and the criminal classes of society?
2. Political parties are a necessity to free institutions. The United States is the oldest democracy on earth and in it political parties have always ruled.
3. The election of a Republican president in 1896 was followed by a period of prosperity unrivalled in our history. Who can doubt that had a Democratic president been elected it would have worked the beginning of a sure decline of our industrial supremacy?

4. The rapid increase in wages for the past twenty years shows the superior advantage gained by the organization of the working men.
5. Is not the Spanish-American war proof of the fact that the government can meet its expenditures in time of great national emergencies without resorting to the income tax?
6. England, France, and Germany are the great powers of Europe. Both England and Germany have signified their willingness to sign this treaty. We are therefore certain that the great powers of Europe will become parties to this treaty provided we give them the opportunity.
7. Soon after the great flood the city of Galveston was grappling with serious municipal problems. By adopting the commission form of city government all these difficulties were solved. Therefore all American cities, oppressed by governmental difficulties, may secure prompt relief by adopting this plan of municipal administration.
8. (1) Some Italians are good musicians.
(2) This man is an Italian.
(3) Therefore this man is a good musician.
9. (1) All college students are interested in athletics.
(2) Ira Simpson is not a college student.
(3) Therefore Ira Simpson is not interested in athletics.
10. My opponent must remember that the finger of suspicion has pointed to him as the one who willfully misrepresented that great mine disaster. Does he dare to assert that he is now telling the truth?
11. The capitalistic class has always oppressed the working man. It has ground into the dust the man who toils for his living. It has enjoyed its ill-gotten wealth by living in luxury while the laboring man has earned his bread by the sweat of his brow. Now, my fellow workmen, shall we cast our vote for one of the most vicious members of this class?
12. Never in its history has the town of Grogan stooped to borrow money for public improvements. No one will dare maintain that this time honored custom, founded upon reason and common sense, should now be broken.
13. Brown County is overwhelmingly Republican in politics; it is therefore quite probable that your cousin who lives in that county is a Republican.
14. The very foundation of this great republic is the idea of democracy. Why, then, should not every right minded citizen recognize his duty to support the Democratic party in the coming election?
15. This climate is very healthful, for if it were not healthful the people who live here would not be free from disease.
16. There must be a substantial reason back of the opinion that the tariff should be lowered, for the prevalence of this opinion throughout the country shows that it has a sound foundation.
17. The inhuman method of killing murderers by electrocution should be abolished.
18. It is evident that the recommendations of the Simplified Spelling Board should be adopted because one of the members of that board is the most eminent authority on the English Language in this country.

19. The price of wheat is bound to increase rapidly within the next few months because the recent flood of the Arkansas River has destroyed many hundred acres of this crop.
 20. James was quite sure that something disagreeable would occur because only last night he saw the new moon over his left shoulder.
 21. Since this tax has worked well in England there can be no doubt of its practicability if it is adopted in the United States.
- II. Each student should write out and bring to the class at least one fallacy which he has found in the conversation of his fellow-students.
- III. Whenever possible use diagrams to show the fallacies in the specimens under I.

CHAPTER VI

REFUTATION

In discussing the Practice of Argumentation and Debate we have considered the importance of refutation in both the main argument and in rebuttal. We have seen that refutation must be introduced into the main arguments whenever the prominence of opposing arguments makes it necessary. We have seen that rebuttal consists largely of refutation. In fact, rebuttal and refutation are used by some writers as synonymous terms. However, in the chapter on rebuttal a distinction was made by which that term was used to indicate the practical work of defending an argument and attacking an opponent. In this chapter on Refutation we shall consider the theory of the various methods employed in attacking an opponent's argument.

Refutation is entirely destructive as distinguished from constructive argument. While the work of rebuttal includes both a defense of one's own argument and an attack upon that of an opponent, refutation consists of weakening or destroying the arguments of the opposition. From the destructive nature of refutation it is plain that it must be adapted to the argument against which it is directed. This involves keen powers of analysis and adaptation, an exact knowledge of the theory and practice of argumentation, and a thorough insight into both sides of the proposition under discussion. The first essential in refutation is that the writer or speaker make perfectly plain the exact argument that he is refuting. He must then show just how the refutation which he is making bears upon that argument. Finally he must show plainly that his refutation has weakened or destroyed the argument against which it was directed. These three steps in refutation must be indicated plainly.

In refutation it is proper to establish a contrary proposition or to refer to the fact that such a contrary proposition has been established. The actual destructive work may be accomplished in any legitimate manner. Of the methods employed in refutation the following are the most important.

I. Revealing a fallacy.

The chapter on fallacies has pointed out the argumentative defects of reasoning most frequently encountered. The student must not assume that these errors will always occur in the exact form in which they have been treated in any text-book. They are sure to appear in many and varied guises. To identify and expose them requires the keenest qualities of mind. Each student should pride himself on his ability to detect a fallacy quickly and should look back with humiliation upon any occurrence when he has allowed a fallacious argument to pass by unchallenged.

Familiarity with the valid forms of logical reasoning and with the errors to which they are subject are prerequisites to success. It is not sufficient that the student have a vague feeling that there is something wrong with an argument; he must be able to locate the defect exactly and to point it out to others in such a way that they will see it. Vagueness and ambiguity are the very substance of fallacies. Sometimes the student must use his knowledge of constructive logic to build up a parallel argument in the way it ought to stand and show more plainly by means of contrast the defects of the unsound argument. In such cases it often happens that the evidence points in an opposite direction from that which is needed to support a valid argument. All of these devices should be utilized in making plain the existence of fallacies.

II. Reductio ad absurdum.

This method of refutation adopts for the time being the argument of an opponent and then by carrying out that argument to its logical conclusion shows that it is absurd. For example, Beecher answered those who favored the South, during the late Civil War, because they were “the weaker party,” by reducing their argument to an absurdity. He said,

“Nothing could be more generous than your doctrine that you stand for the ‘weaker’ party in a controversy, when that weak party stands for its own legitimate rights against imperious pride and power. But who ever sympathized with a weak thief, because three constables had got hold of him? And yet the one thief in three policemen’s hands is the weaker party. I suppose you would sympathize with him.”

The following quotation from Laycock and Scales' *Argumentation and Debate* still further illustrates this method of refutation.

"This method is effective because of its simplicity and directness. It also has in it an element of ridicule that is persuasive against an opponent. William Ellery Channing, in a reply to Henry Clay on the slavery question, used this method as follows:—

"“But this property, we are told, is not to be questioned on account of its long duration. “Two hundred years have sanctioned and *sanctified* negro slaves as property.” Nothing but respect for the speaker could repress criticism on this unhappy phraseology. We will trust it escaped him without thought. But to confine ourselves to the argument from duration; how obvious the reply! Is injustice changed into justice by the practice of ages? Is my victim made a righteous prey because I have bowed him to the earth till he cannot rise? For more than two hundred years heretics were burned, and not by mobs, not by lynch law, but by the decrees of councils, at the instigation of theologians, and with the sanction of the laws and religions of nations; and was this a reason for keeping up the fires, that they had burned two hundred years? In the eastern world, successive despots, not for two hundred years, but for twice two thousand, have claimed the right of life and death over millions, and with no law but their own will, have beheaded, bowstrung, starved, tortured unhappy men without number who have incurred their wrath; and does the lapse of so many centuries sanctify murder and ferocious power?”

“Again:—‘But the great argument remains. It is said that this property must not be questioned, because it is established by law. “That is property which the law declares to be property.” Thus human law is made supreme, decisive, in a question of morals. Thus the idea of an eternal, immutable justice is set at naught. Thus the great rule of human life is made to be the ordinance of interested men. But there is a higher tribunal, a throne of equal justice, immovable by the conspiracy of all human legislatures. “That is property which the law declares to be property.” Then the laws have only to declare you, or me, or Mr. Clay, to be property, and we become chattels and are bound to bear the yoke! Does not even man’s moral nature repel this doctrine too intuitively to leave time or need for argument?’”

III. The dilemma.

The dilemma is one of the most conclusive forms of refutation. It consists in forcing upon an opponent a choice between two possible solutions to the question under discussion, and then showing that both conclusions are unsound. These two conclusions are called the “horns of the dilemma.” It matters not which of the “horns” an opponent selects; the result is disastrous. For example, Lincoln used the dilemma against those who charged that the Republicans stirred up insurrection among the slaves and pointed to John Brown and his men as a specific example showing the truth of that charge. Lincoln said, “John Brown was no Republican; and you have failed to implicate a single Republican in his Harper’s Ferry enterprise. If any member of our party is guilty in that matter, you know it or you do not know it. If you do know it, you are inexcusable for not designating the man and proving the fact. If you do not know it, you are inexcusable for asserting it, and especially for persisting in the assertion after you have tried and failed to make the proof. You need not be told that persisting in a charge which one does not know to be true, is simply malicious slander.” In effect Lincoln said, “You know it or you do not know it. If you know it you are inexcusable. If you do not know it you are inexcusable. Whichever horn of the dilemma you accept, your conduct is inexcusable.”

In order to be conclusive a dilemma must meet two requirements. First, there must be only two possibilities in the case; the alternative must include these exactly. Second, both members of the alternative, or “horns” of the dilemma must be untenable. To ignore or fail to comply with either of these requirements is fatal to this method of refutation. Lincoln, in the following quotation, shows that Douglas has violated the first of these requirements. He refuses to accept either of the horns of the dilemma which Douglas has sought to force upon him, by pointing out a third possibility. On this third possibility, overlooked by Douglas, he can stand with safety. He says:—

“Judge Douglas finds the Republicans insisting that the Declaration of Independence includes all men, black as well as white, and forthwith he boldly denies that it includes negroes at all, and proceeds to argue gravely that all who contend it does, do so only because they went to vote, to eat and sleep, and marry with negroes. He will have it that they cannot be consistent else. Now I protest against this counterfeit logic which concludes that because I do not want a black woman for a slave I must necessarily want her for a wife. I need not have her for either. I can just leave her alone.”

IV. Residues.

The method of residues consists in stating all the possible conclusions regarding the controverted subject and then destroying all of these except one which is then regarded as the true conclusion. For example, there are three possibilities, A, B, and C. A and B are false. Therefore the presumption is that C is true. It will be seen that this process is destructive and hence belongs with refutation. This method of refutation must be used with great care. It is absolutely essential that every possibility be included in the process. If one possibility is overlooked the refutation is worthless. This is true because no one can tell whether the known possibility is the true one or whether the possibility which has been omitted is the true one. In such a case no conclusion is reached. Even when it is apparent that the entire field has been covered, and that every possibility has been stated the residuary part should be supported by direct positive proof. This will offset the suspicion, which is otherwise ever present in the minds of those who are listening to or reading the argument, that perhaps one possibility has been overlooked.

Foster in his *Argumentation and Debate* quotes two excellent examples of this method of refutation. The first of these is taken from Burke's *Speech on Conciliation*. After showing that a fierce spirit of liberty has developed in the American colonies Burke asks what is to be done with that spirit. Answering his own question he says:—

“‘As far as I am capable of discerning there are but three ways of proceeding relative to this stubborn spirit which prevails in your colonies, and disturbs your government. *These are—to change that spirit, as inconvenient, by removing the cause; to prosecute it as criminal; or to cope with it as necessary.* I would not be guilty of an imperfect enumeration; I can think of but these three. Another has indeed been started,—that of giving up the colonies; but it met so slight a reception that I do not think myself obliged to dwell a great while upon it. It is nothing but a little sally of anger, like the frowardness of peevish children, who when they cannot get all they would have, are resolved to take nothing.’

“Burke then proceeds to show that the first and second of these plans are impracticable, and concludes with the following characteristic, logical summary:—

“If, then, the removal of the causes of this spirit of American liberty be for the greater part, or rather entirely, impracticable; if the ideas of criminal process be inapplicable—or if applicable, are in the highest degree inexpedient—what way yet remains? No way is open but the third and last—to comply with the American spirit as necessary; or, if you please, to submit to it as a necessary evil.’

“Huxley, in his first lecture on Evolution, presented three hypotheses regarding the origin of the universe:—

“So far as I know, there are only three hypotheses which ever have been entertained, or which well can be entertained, respecting the past history of Nature. I will, in the first place, state the hypotheses, and then I will consider what evidence bearing upon them is in our possession, and by what light of criticism that evidence is to be interpreted.

“Upon the first hypothesis, the assumption is that phenomena of Nature similar to those exhibited by the present world have always existed; in other words, that the universe has existed from all eternity in what may be broadly termed its present condition.

“The second hypothesis is, that the present state of things has had only a limited duration; and that at some period in the past, a condition of the world, essentially similar to that which we now know, came into existence, without any precedent condition from which it could have naturally proceeded. The assumption that successive states of Nature have arisen, each without any relation of natural causation to an antecedent state, is a mere modification of this second hypothesis.

“The third hypothesis also assumes that the present state of things has had but a limited duration; but it supposes that this state has been evolved by a natural process from an antecedent state, and that from another, and so on; and on this hypothesis, the attempt to assign any limit to the series of past changes is usually given up.’

“Huxley thus destroyed the first two hypotheses and left the third—since called the Theory of Evolution—standing alone. Following this indirect, destructive method of proof, Huxley offered direct, constructive proof of the probable soundness of the Theory of Evolution. Such positive proof should always be offered in corroboration of negative proof, for the method of residues is, at best, only an indirect argument. The chances of overlooking a possibility, or of failing completely to destroy those dealt

with, are so great that the result of the indirect method should be reinforced by direct argument.”

V. Inconsistencies.

When a witness testifies in a court of law he injures his own credibility as soon as one part of his story contradicts another part. His entire account of the events about which he has been called to give testimony must be consistent. Any inconsistency may prove fatal to the acceptance of his testimony. In like manner any inconsistency in an argument may prove fatal to its acceptance. The exposure of such inconsistencies in an opponent’s argument is one of the most important methods of refutation. In most cases the difficulty of the task is greatly increased by the form in which such inconsistencies usually occur. Seldom are they apparent. In most cases the error is revealed only after the argument has been carefully analyzed and the inconsistent parts stripped of their covering of confusing language.

The following quotation taken from the argument of Lincoln in one of the Lincoln-Douglas debates shows the application of this method. Douglas had maintained that slavery could be lawfully excluded from a territory in spite of the Dred Scott decision. In refuting this argument by exposing the inconsistency which it contained, Lincoln said:—

“The Dred Scott Decision expressly gives every citizen of the United States a right to carry his slaves into the United States Territories. Now, there was some inconsistency in saying that the decision was right, and saying, too, that the people of the Territory could lawfully drive slavery out again. When all the trash, the words, the collateral matter, was cleared away from it,—all the chaff was fanned out of it,—it was a bare absurdity: no less than that a thing may be lawfully driven away from a place where it has a lawful right to be. Clear it of all the verbiage, and that is the naked truth for his proposition—that a thing may be lawfully driven from the place where it has a lawful right to stay.”

VI. Adopting an opponent’s evidence.

This method of refutation consists in taking evidence which an opponent has introduced in favor of his own argument and showing that in reality it supports the opposite contention. This method of refutation is so effective that it should never be neglected when an opportunity to use it is presented. The opportunity may arise from the failure of an opponent to grasp the full bearing of the evidence which he offers, or it may arise from an unexpected turn in the discussion. Evidence may be introduced in the beginning of a discussion to support a particular contention by which it favors the writer or speaker who introduces it. Later this same evidence may be interpreted as supporting a contention entirely adverse to the writer or speaker who introduced it. An excellent example of this method of refutation is found in Bouton's *Lincoln and Douglas Debates* in Lincoln's Cooper Institute Speech, where he turns the warning of Washington against those who had been quoting it against him.

"Some of you delight to flaunt in our faces the warning against sectional parties given by Washington in his Farewell Address. Less than eight years before Washington gave that warning, he had, as President of the United States, approved and signed an act of Congress enforcing the prohibition of slavery in the Northwest Territory, which act embodied the policy of the Government upon that subject up to and at the very moment he penned that warning; and about one year after he penned it, he wrote Lafayette that he considered that prohibition a wise measure, expressing in the same connection his hope that we should at some time have a confederacy of free states.

"Bearing this in mind, and seeing that sectionalism has since risen upon this same subject, is that warning a weapon in your hands against us, or in our hands against you? Could Washington himself speak, would he cast the blame of that sectionalism upon us who sustain his policy, or upon you who repudiate it? We respect the warning of Washington, and we commend it to you, together with his example pointing to the right application of it."

We have now considered the important methods of refutation. Their successful use depends upon the conscientious effort of the student. Just as a boy cannot hope to learn to swim by sitting on the bank of a stream and reading a book containing directions on how to swim, so can no student hope to become successful in refutation by a study of the methods explained and illustrated in this chapter. He must master the theory of

refutation, but it does not become an effective instrument in his hands until he has applied it in actual practice. Moreover, just as the boy can better profit by the instructions regarding swimming after he has actually tried to swim, so can the debater better profit by the theory of refutation after he has engaged in some real debates.

EXERCISES IN REFUTATION

- I. Point out the different methods of refutation employed in the arguments in Appendix A; Appendix B; Appendix C.
- II. Refute the following statements and name the method of refutation employed in each case.
 1. High school courses should be wholly prescribed. No electives should be offered.
 2. So far as political rights are concerned all citizens should have equal privileges. Therefore women should have the right to vote.
 3. The term of office of the President of the United States should be extended to eight years because we should not run the risk of losing the services of an efficient president at the end of four years.
 4. Our government should annex Cuba because we must gain possession of all territory adjacent to, or not separated by foreign possessions from, the United States.
 5. There is no ground for anticipating an immediate war with Japan since she has been compelled to come to our terms in the recent disputes.
- III. What methods of refutation are employed by Burke in his Speech on Conciliation? By Webster in his Reply to Hayne?
- IV. In the next class debate point out and name all the methods of refutation employed by your opponents and yourself.

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APPENDIX A

THE LINCOLN-DOUGLAS DEBATE AT ALTON

[OCTOBER 15, 1858]

SENATOR DOUGLAS'S SPEECH

Ladies and Gentlemen: It is now nearly four months since the canvass between Mr. Lincoln and myself commenced. On the 16th of June the Republican Convention assembled at Springfield and nominated Mr. Lincoln as their candidate for the United States Senate, and he, on that occasion, delivered a speech in which he laid down what he understood to be the Republican creed and the platform on which he proposed to stand during the contest. The principal points in that speech of Mr. Lincoln's were: First, that this government could not endure permanently divided into Free and Slave States, as our fathers made it; that they must all become free or all become slave; all become one thing, or all become the other,—otherwise this Union could not continue to exist. I give you his opinions almost in the identical language he used. His second proposition was a crusade against the Supreme Court of the United States because of the Dred Scott decision, urging as an especial reason for his opposition to that decision that it deprived the negroes of the rights and benefits of that clause in the Constitution of the United States which guarantees to the citizens of each State all the rights, privileges, and immunities of the citizens of the several States. On the 10th of July I returned home, and delivered a speech to the people of Chicago, in which I announced it to be my purpose to appeal to the people of Illinois to sustain the course I had pursued in Congress. In that speech I joined issue with Mr. Lincoln on the points which he had presented. Thus there was an issue clear and distinct made up between us on these two propositions laid down in the speech of Mr. Lincoln at Springfield, and controverted by me in my reply to him at Chicago. On the next day, the 11th of July, Mr. Lincoln replied to me at

Chicago, explaining at some length and reaffirming the positions which he had taken in his Springfield speech. In that Chicago speech he even went further than he had before, and uttered sentiments in regard to the negro being on an equality with the white man. He adopted in support of this position the argument which Lovejoy and Coddington and other Abolition lecturers had made familiar in the northern and central portions of the State; to wit, that the Declaration of Independence having declared all men free and equal, by divine law, also that negro equality was an inalienable right, of which they could not be deprived. He insisted, in that speech, that the Declaration of Independence included the negro in the clause asserting that all men were created equal, and went so far as to say that if one man was allowed to take the position that it did not include the negro, others might take the position that it did not include other men. He said that all these distinctions between this man and that man, this race and the other race, must be discarded, and we must all stand by the Declaration of Independence, declaring that all men were created equal.

The issue thus being made up between Mr. Lincoln and myself on three points, we went before the people of the State. During the following seven weeks, between the Chicago speeches and our first meeting at Ottawa, he and I addressed large assemblages of the people in many of the central counties. In my speeches I confined myself closely to those three positions which he had taken, controverting his proposition that this Union could not exist as our fathers made it, divided into Free and Slave States, controverting his proposition of a crusade against the Supreme Court because of the Dred Scott decision, and controverting his proposition that the Declaration of Independence included and meant the negroes as well as the white men, when it declared all men to be created equal. I supposed at that time that these propositions constituted a distinct issue between us, and that the opposite positions we had taken upon them we would be willing to be held to in every part of the State. I never intended to waver one hair's breadth from that issue either in the north or the south or wherever I should address the people of Illinois. I hold that when the time arrives that I cannot proclaim my political creed in the same terms, not only in the northern, but in the southern part of Illinois, not only in the Northern, but the Southern States, and wherever the American flag waves over American soil, that then there must be something wrong in that creed; so long as we live under a common Constitution, so long as we live in a confederacy of sovereign and

equal States, joined together as one for certain purposes, that any political creed is radically wrong which cannot be proclaimed in every State and every section of that Union, alike. I took up Mr. Lincoln's three propositions in my several speeches, analyzed them, and pointed out what I believed to be the radical errors contained in them. First, in regard to his doctrine that this government was in violation of the law of God, which says that a house divided against itself cannot stand, I repudiated it as a slander upon the immortal framers of our Constitution. I then said, I have often repeated, and now again assert, that in my opinion our government can endure forever, divided into Free and Slave States as our fathers made it,—each State having the right to prohibit, abolish, or sustain slavery, just as it pleases. This government was made upon the great basis of the sovereignty of the States, the right of each State to regulate its own domestic institutions to suit itself; and that right was conferred with the understanding and expectation that inasmuch as each locality had separate interests, each locality must have different and distinct local and domestic institutions, corresponding to its wants and interests. Our fathers knew when they made the government that the laws and institutions which were well adapted to the Green Mountains of Vermont were unsuited to the rice plantations of South Carolina. They knew then, as well as we know now, that the laws and institutions which would be well adapted to the beautiful prairies of Illinois would not be suited to the mining regions of California. They knew that in a Republic as broad as this, having such a variety of soil, climate, and interest, there must necessarily be a corresponding variety of local laws,—the policy and institutions of each State adapted to its condition and wants. For this reason this Union was established on the right of each State to do as it pleased on the question of slavery, and every other question; and the various States were not allowed to complain of, much less interfere with, the policy of their neighbors.

Suppose the doctrine advocated by Mr. Lincoln and the Abolitionists of this day had prevailed when the Constitution was made, what would have been the result? Imagine for a moment that Mr. Lincoln had been a member of the Convention that framed the Constitution of the United States, and that when its members were about to sign that wonderful document, he had arisen in that Convention as he did at Springfield this summer, and, addressing himself to the President, had said, "A house divided against itself cannot stand; this government, divided into Free and Slave States

cannot endure, they must all be free or all be slave; they must all be one thing, or all the other,—otherwise, it is a violation of the law of God, and cannot continue to exist;”—suppose Mr. Lincoln had convinced that body of sages that that doctrine was sound, what would have been the result? Remember that the Union was then composed of thirteen States, twelve of which were slaveholding, and one free. Do you think that the one Free State would have outvoted the twelve slaveholding States, and thus have secured the abolition of slavery? On the other hand, would not the twelve slaveholding States have outvoted the one free State, and thus have fastened slavery, by a constitutional provision, on every foot of the American Republic forever? You see that if this Abolition doctrine of Mr. Lincoln had prevailed when the government was made, it would have established slavery as a permanent institution in all the States, whether they wanted it or not; and the question for us to determine in Illinois now, as one of the Free States, is whether or not we are willing, having become the majority section, to enforce a doctrine on the minority which we would have resisted with our heart's blood had it been attempted on us when we were in a minority. How has the South lost her power as the majority section in this Union, and how have the Free States gained it, except under the operation of that principle which declares the right of the people of each State and each Territory to form and regulate their domestic institutions in their own way? It was under that principle that slavery was abolished in New Hampshire, Rhode Island, Connecticut, New York, New Jersey, and Pennsylvania; it was under that principle that one-half of the slaveholding States became free; it was under that principle that the number of Free States increased until, from being one out of twelve States, we have grown to be the majority of States of the whole Union, with the power to control the House of Representatives and Senate, and the power, consequently, to elect a President by Northern votes, without the aid of a Southern State. Having obtained this power under the operation of that great principle, are you now prepared to abandon the principle and declare that merely because we have the power you will wage a war against the Southern States and their institutions until you force them to abolish slavery everywhere?

After having pressed these arguments home on Mr. Lincoln for seven weeks, publishing a number of my speeches, we met at Ottawa in joint discussion, and he then began to crawfish a little, and let himself down. I there propounded certain questions to him. Amongst others, I asked him

whether he would vote for the admission of any more Slave States, in the event the people wanted them. He would not answer. I then told him that if he did not answer the question there, I would renew it at Freeport, and would then trot him down into Egypt, and again put it to him. Well, at Freeport, knowing that the next joint discussion took place in Egypt, and being in dread of it, he did answer my question in regard to no more Slave States in a mode which he hoped would be satisfactory to me, and accomplish the object he had in view. I will show you what his answer was. After saying that he was not pledged to the Republican doctrine of “no more Slave States,” he declared:

“I state to you freely, frankly, that I should be exceedingly sorry to ever be put in the position of having to pass upon that question. I should be exceedingly glad to know that there never would be another Slave State admitted into this Union.”

Here permit me to remark, that I do not think the people will ever force him into a position against his will. He went on to say:

“But I must add, in regard to this, that if slavery shall be kept out of the Territory during the Territorial existence of any one given Territory, and then the people should, having a fair chance and a clear field, when they come to adopt a constitution, if they should do the extraordinary thing of adopting a slave constitution uninfluenced by the actual presence of the institution among them, I see no alternative, if we own the country, but we must admit it into the Union.”

That answer Mr. Lincoln supposed would satisfy the old line Whigs, composed of Kentuckians and Virginians, down in the southern part of the State. Now, what does it amount to? I desired to know whether he would vote to allow Kansas to come into the Union with slavery or not, as her people desired. He would not answer, but in a roundabout way said that if slavery should be kept out of a Territory during the whole of its Territorial existence, and then the people, when they adopted a State Constitution, asked admission as a Slave State, he supposed he would have to let the State come in. The case I put to him was an entirely different one. I desired to know whether he would vote to admit a State if Congress had not prohibited slavery in it during its Territorial existence, as Congress never pretended to do under Clay’s Compromise measures of 1850. He would not answer, and I have not yet been able to get an answer from him. I have

asked him whether he would vote to admit Nebraska, if her people asked to come in as a State with a constitution recognizing slavery, and he refused to answer. I have put the question to him with reference to New Mexico, and he has not uttered a word in answer. I have enumerated the Territories, one after another, putting the same question to him with reference to each, and he has not said, and will not say, whether, if elected to Congress, he will vote to admit any Territory now in existence with such a constitution as her people may adopt. He invents a case which does not exist, and cannot exist under this government, and answers it; but he will not answer the question I put to him in connection with any of the Territories now in existence. The contract we entered into with Texas when she entered the Union obliges us to allow four States to be formed out of the old State, and admitted with or without slavery, as the respective inhabitants of each may determine. I have asked Mr. Lincoln three times in our joint discussions whether he would vote to redeem that pledge, and he has never yet answered. He is as silent as the grave on the subject. He would rather answer as to a state of the case which will never arise than commit himself by telling what he would do in a case which would come up for his action soon after his election to Congress. Why can he not say whether he is willing to allow the people of each State to have slavery or not as they please, and to come into the Union, when they have the requisite population, as a Slave or a Free State as they decide? I have no trouble in answering the question. I have said everywhere, and now repeat it to you, that if the people of Kansas want a Slave State they have a right, under the Constitution of the United States, to form such a State, and I will let them come into the Union with slavery or without, as they determine. If the people of any other Territory desire slavery, let them have it. If they do not want it, let them prohibit it. It is their business, not mine. It is none of our business in Illinois whether Kansas is a Free State or a Slave State. It is none of your business in Missouri whether Kansas shall adopt slavery or reject it. It is the business of her people, and none of yours. The people of Kansas have as much right to decide that question for themselves as you have in Missouri to decide it for yourselves, or we in Illinois to decide it for ourselves.

And here I may repeat what I have said in every speech I have made in Illinois, that I fought the Lecompton Constitution to its death, not because of the slavery clause in it, but because it was not the act and deed of the people of Kansas. I said then in Congress, and I say now, that if the people

of Kansas want a Slave State, they have a right to have it. If they wanted the Lecompton Constitution, they had a right to have it. I was opposed to that constitution because I did not believe that it was the act and deed of the people, but, on the contrary, the act of a small, pitiful minority acting in the name of the majority. When at last it was determined to send that constitution back to the people, and, accordingly, in August last, the question of admission under it was submitted to a popular vote, the citizens rejected it by nearly ten to one, thus showing conclusively that I was right when I said that the Lecompton Constitution was not the act and deed of the people of Kansas, and did not embody their will.

I hold that there is no power on earth, under our system of government, which has the right to force a constitution upon an unwilling people. Suppose that there had been a majority of ten to one in favor of slavery in Kansas, and suppose there had been an Abolition President and an Abolition Administration, and by some means the Abolitionists succeeded in forcing an Abolition Constitution upon those slaveholding people, would the people of the South have submitted to that act for an instant? Well, if you of the South would not have submitted to it a day, how can you, as fair, honorable, and honest men, insist on putting a slave constitution on a people who desire a Free State? Your safety and ours depend upon both of us acting in good faith, and living up to that great principle which asserts the right of every people to form and regulate their domestic institutions to suit themselves, subject only to the Constitution of the United States.

Most of the men who denounced my course on the Lecompton question objected to it, not because I was not right, but because they thought it expedient at that time, for the sake of keeping the party together, to do wrong. I never knew the Democratic party to violate any one of its principles, out of policy or expediency, that it did not pay the debt with sorrow. There is no safety or success for our party unless we always do right, and trust the consequences to God and the people. I chose not to depart from principle for the sake of expediency on the Lecompton question, and I never intend to do it on that or any other question.

But I am told that I would have been all right if I had only voted for the English bill after the Lecompton was killed. You know a general pardon was granted to all political offenders on the Lecompton question, provided they would only vote for the English bill. I did not accept the benefits of

that pardon for the reason that I had been right in the course I had pursued, and hence did not require any forgiveness. Let us see how the result has been worked out. English brought in his bill referring the Lecompton Constitution back to the people, with the provision that if it was rejected, Kansas should be kept out of the Union until she had the full ratio of population required for member of Congress,—thus in effect declaring that if the people of Kansas would only consent to come into the Union under the Lecompton Constitution, and have a Slave State when they did not want it, they should be admitted with a population of 35,000; but that if they were so obstinate as to insist upon having just such a constitution as they thought best, and to desire admission as a free State, then they should be kept out until they had 93,420 inhabitants. I then said, and I now repeat to you, that whenever Kansas has people enough for a Slave State she has people enough for a Free State. I was, and am willing to adopt the rule that no State shall ever come into the Union until she has the full ratio of population for a member of Congress, provided that rule is made uniform. I made that proposition in the Senate last winter, but a majority of the Senators would not agree to it; and I then said to them, If you will not adopt the general rule, I will not consent to make an exception of Kansas.

I hold that it is a violation of the fundamental principles of this government to throw the weight of Federal power into the scale, either in favor of the Free or the Slave States. Equality among all the States of this Union is a fundamental principle in our political system. We have no more right to throw the weight of the Federal Government into the scale in favor of the slaveholding than the Free States, and last of all should our friends in the South consent for a moment that Congress should withhold its powers either way when they know that there is a majority against them in both Houses of Congress.

Fellow-citizens, how have the supporters of the English bill stood up to their pledges not to admit Kansas until she obtained a population of 93,420 in the event she rejected the Lecompton Constitution? How? The newspapers inform us that English himself, whilst conducting his canvass for re-election, and in order to secure it, pledged himself to his constituents that if returned he would disregard his own bill and vote to admit Kansas into the Union with such population as she might have when she made application. We are informed that every Democratic candidate for Congress in all the States where elections have recently been held was pledged

against the English bill, with perhaps one or two exceptions. Now, if I had only done as these anti-Lecompton men who voted for the English bill in Congress, pledging themselves to refuse to admit Kansas if she refused to become a Slave State until she had a population of 93,420 and then returned to their people, forfeited their pledge, and made a new pledge to admit Kansas at any time she applied, without regard to population, I would have had no trouble. You saw the whole power and patronage of the Federal Government wielded in Indiana, Ohio, and Pennsylvania to re-elect anti-Lecompton men to Congress who voted against Lecompton, then voted for the English bill, and then denounced the English bill, and pledged themselves to their people to disregard it. My sin consists in not having given a pledge, and then in not having afterward forfeited it. For that reason, in this State, every postmaster, every route agent, every collector of the ports, and every Federal officeholder forfeits his head the moment he expresses a preference for the Democratic candidates against Lincoln and his Abolition associates. A Democratic Administration which we helped to bring into power deems it consistent with its fidelity to principle and its regard to duty to wield its power in this State in behalf of the Republican Abolition candidates in every county and every Congressional District against the Democratic party. All I have to say in reference to the matter is, that if that Administration have not regard enough for principle, if they are not sufficiently attached to the creed of the Democratic party, to bury forever their personal hostilities in order to succeed in carrying out our glorious principles, I have. I have no personal difficulty with Mr. Buchanan or his Cabinet. He chose to make certain recommendations to Congress, as he had a right to do, on the Lecompton question. I could not vote in favor of them. I had as much right to judge for myself how I should vote as he had how he should recommend. He undertook to say to me, "If you do not vote as I tell you, I will take off the heads of your friends." I replied to him, "You did not elect me. I represent Illinois, and I am accountable to Illinois, as my constituency, and to God; but not to the President or to any other power on earth."

And now this warfare is made on me because I would not surrender my convictions of duty, because I would not abandon my constituency, and receive the orders of the executive authorities as to how I should vote in the Senate of the United States. I hold that an attempt to control the Senate on the part of the Executive is subversive of the principles of our Constitution.

The Executive department is independent of the Senate, and the Senate is independent of the President. In matters of legislation the President has a veto on the action of the Senate, and in appointments and treaties the Senate has a veto on the President. He has no more right to tell me how I shall vote on his appointments than I have to tell him whether he shall veto or approve a bill that the Senate has passed. Whenever you recognize the right of the Executive to say to a Senator, "Do this, or I will take off the heads of your friends," you convert this government from a republic into a despotism. Whenever you recognize the right of a President to say to a member of Congress, "Vote as I tell you, or I will bring a power to bear against you at home which will crush you," you destroy the independence of the representative and convert him into a tool of Executive power. I resisted this invasion of the constitutional rights of a Senator, and I intend to resist it as long as I have a voice to speak or a vote to give. Yet Mr. Buchanan cannot provoke me to abandon one iota of Democratic principles out of revenge or hostility to his course. I stand by the platform of the Democratic party, and by its organization, and support its nominees. If there are any who choose to bolt, the fact only shows that they are not as good Democrats as I am.

My friends, there never was a time when it was as important for the Democratic party, for all national men, to rally and stand together, as it is to-day. We find all sectional men giving up past differences and continuing the one question of slavery; and when we find sectional men thus uniting we should unite to resist them and their treasonable designs. Such was the case in 1850, when Clay left the quiet and peace of his home, and again entered upon public life to quell agitation and restore peace to a distracted Union. Then we Democrats, with Cass at our head, welcomed Henry Clay, whom the whole nation regarded as having been preserved by God for the times. He became our leader in that great fight, and we rallied around him the same as the Whigs rallied around old Hickory in 1832 to put down nullification. Thus you see that whilst Whigs and Democrats fought fearlessly in old times about banks, the tariff, distribution, the specie circular, and the sub-treasury, all united as a band of brothers when the peace, harmony, or integrity of the Union was imperiled. It was so in 1850, when Abolitionism had even so far divided this country, North and South, as to endanger the peace of the Union; Whigs and Democrats united in establishing the Compromise Measures of that year, and restoring tranquillity and good feeling.

These measures passed on the joint action of the two parties. They rested on the great principle that the people of each State and each Territory should be left perfectly free to form and regulate their domestic institutions to suit themselves. You Whigs and we Democrats justified them in that principle. In 1854, when it became necessary to organize the Territories of Kansas and Nebraska, I brought forward the bill on the same principle. In the Kansas-Nebraska bill you find it declared to be the true intent and meaning of the Act not to legislate slavery into any State or Territory, nor to exclude it therefrom, but to leave the people thereof perfectly free to form and regulate their domestic institutions in their own way. I stand on that same platform in 1858 that I did in 1850, 1854, and 1856. The Washington "Union," pretending to be the organ of the Administration, in the number of the 5th of this month, devotes three columns and a half to establish these propositions; first, that Douglas, in his Freeport speech, held the same doctrine that he did in his Nebraska bill in 1854; second, that in 1854 Douglas justified the Nebraska bill upon the ground that it was based upon the same principle as Clay's Compromise Measures of 1850. The "Union" thus proved that Douglas was the same in 1858 that he was in 1856, 1854, and 1850, and consequently argued that he was never a Democrat. Is it not funny that I was never a Democrat? There is no pretence that I have changed a hair's breadth. The "Union" proves by my speeches that I explained the Compromise Measures of 1850 just as I do now, and that I explained the Kansas and Nebraska bill in 1854 just as I did in my Freeport speech, and yet says that I am not a Democrat, and cannot be trusted, because I have not changed during the whole of that time. It has occurred to me that in 1854 the author of the Kansas and Nebraska bill was considered a pretty good Democrat. It has occurred to me that in 1856, when I was exerting every nerve and every energy for James Buchanan, standing on the same platform then that I do now, that I was a pretty good Democrat. They now tell me that I am not a Democrat, because I assert that the people of a Territory, as well as those of a State, have the right to decide for themselves whether slavery can or cannot exist in such Territory. Let me read what James Buchanan said on that point when he accepted the Democratic nomination for the Presidency in 1856. In his letter of acceptance, he used the following language:

"The recent legislation of Congress respecting domestic slavery, derived as it has been from the original and pure fountain of legitimate political

power, the will of the majority, promises ere long to allay the dangerous excitement. This legislation is founded upon principles as ancient as free government itself, and, in accordance with them, has simply declared that the people of a Territory, like those of a State, shall decide for themselves whether slavery shall or shall not exist within their limits.”

Dr. Hope will there find my answer to the question he propounded to me before I commenced speaking. Of course, no man will consider it an answer who is outside of the Democratic organization, bolts Democratic nominations, and indirectly aids to put Abolitionists into power over Democrats. But whether Dr. Hope considers it an answer or not, every fair-minded man will see that James Buchanan has answered the question, and has asserted that the people of a Territory, like those of a State, shall decide for themselves whether slavery shall or shall not exist within their limits. I answer specifically if you want a further answer, and say that while under the decision of the Supreme Court, as recorded in the opinion of Chief Justice Taney, slaves are property like all other property, and can be carried into any Territory of the United States the same as any other description of property, yet when you get them there they are subject to the local law of the Territory just like all other property. You will find in a recent speech delivered by that able and eloquent statesman, Hon. Jefferson Davis, at Bangor, Maine, that he took the same view of this subject that I did in my Freeport speech. He there said:

“If the inhabitants of any Territory should refuse to enact such laws and police regulations as would give security to their property or to his, it would be rendered more or less valueless in proportion to the difficulties of holding it without such protection. In the case of property in the labor of man, or what is usually called slave property, the insecurity would be so great that the owner could not ordinarily retain it. Therefore, though the right would remain, the remedy being withheld, it would follow that the owner would be practically debarred, by the circumstances of the case, from taking slave property into a Territory where the sense of the inhabitants was opposed to its introduction. So much for the oft-repeated fallacy of forcing slavery upon any community.”

You will also find that the distinguished Speaker of the present House of Representatives, Hon. Jas. L. Orr, construed the Kansas and Nebraska bill in this same way in 1856, and also that great intellect of the South, Alex. H.

Stephens, put the same construction upon it in Congress that I did in my Freeport speech. The whole South are rallying to the support of the doctrine that if the people of a Territory want slavery, they have a right to have it, and if they do not want it, that no power on earth can force it upon them. I hold that there is no principle on earth more sacred to all the friends of freedom than that which says that no institution, no law, no constitution, should be forced on an unwilling people contrary to their wishes; and I assert that the Kansas and Nebraska bill contains that principle. It is the great principle contained in that bill. It is the principle on which James Buchanan was made President. Without that principle, he never would have been made President of the United States. I will never violate or abandon that doctrine, if I have to stand alone. I have resisted the blandishments and threats of power on the one side, and seduction on the other, and have stood immovably for that principle, fighting for it when assailed by Northern mobs, or threatened by Southern hostility. I have defended it against the North and the South, and I will defend it against whoever assails it, and I will follow it wherever its logical conclusions lead me. I say to you that there is but one hope, one safety for this country, and that is to stand immovably by that principle which declares the right of each State and each Territory to decide these questions for themselves. This government was founded on that principle, and must be administered in the same sense in which it was founded.

But the Abolition party really thinks that under the Declaration of Independence the negro is equal to the white man, and that negro equality is an inalienable right conferred by the Almighty, and hence that all human laws in violation of it are null and void. With such men it is no use for me to argue. I hold that the signers of the Declaration of Independence had no reference to negroes at all when they declared all men to be created equal. They did not mean negro, nor the savage Indians, nor the Feejee Islanders, nor any other barbarous race. They were speaking of white men. They alluded to men of European birth and European descent,—to white men, and to none others,—when they declared that doctrine. I hold that this government was established on the white basis. It was established by white men for the benefit of white men and their posterity forever, and should be administered by white men, and none others. But it does not follow by any means, that merely because the negro is not a citizen, and merely because he is not our equal, that, therefore, he should be a slave. On the contrary, it

does follow that we ought to extend to the negro race, and to all other dependent races, all the rights, all the privileges, and all the immunities which they can exercise consistently with the safety of society. Humanity requires that we should give them all these privileges; Christianity commands that we should extend those privileges to them. The question then arises, What are those privileges, and what is the nature and extent of them? My answer is, that that is a question which each State must answer for itself. We in Illinois have decided it for ourselves. We tried slavery, kept it up for twelve years, and finding that it was not profitable, we abolished it for that reason, and became a Free State. We adopted in its stead the policy that a negro in this State shall not be a slave and shall not be a citizen. We have a right to adopt that policy. For my part, I think it is a wise and sound policy for us. You in Missouri must judge for yourselves whether it is a wise policy for you. If you choose to follow our example, very good; if you reject it, still well,—it is your business, not ours. So with Kentucky. Let Kentucky adopt a policy to suit herself. If we do not like it, we will keep away from it; and if she does not like ours, let her stay at home, mind her own business, and let us alone. If the people of all the States will act on that great principle, and each State mind its own business, attend to its own affairs, take care of its own negroes, and not meddle with its neighbors, then there will be peace between the North and South, the East and the West, throughout the whole Union.

Why can we not thus have peace? Why should we thus allow a sectional party to agitate this country, to array the North against the South, and convert us into enemies instead of friends, merely that a few ambitious men may ride into power on a sectional hobby? How long is it since these ambitious Northern men wished for a sectional organization? Did any one of them dream of a sectional party as long as the North was the weaker section and the South the stronger? Then all were opposed to sectional parties; but the moment the North obtained the majority in the House and Senate by the admission of California, and could elect a President without the aid of Southern votes, that moment ambitious Northern men formed a scheme to excite the North against the South, and make the people be governed in their votes by geographical lines, thinking that the North, being the stronger section, would outvote the South, and consequently they, the leaders, would ride into office on a sectional hobby. I am told that my hour is out. It was very short.

MR. LINCOLN'S REPLY

Ladies and Gentlemen: I have been somewhat, in my own mind, complimented by a large portion of Judge Douglas's speech,—I mean that portion which he devotes to the controversy between himself and the present Administration. This is the seventh time Judge Douglas and myself have met in these joint discussions, and he has been gradually improving in regard to his war with the Administration. At Quincy, day before yesterday, he was a little more severe upon the Administration than I had heard him upon any occasion, and I took pains to compliment him for it. I then told him to "Give it to them with all the power he had"; and as some of them were present, I told them I would be very much obliged if they would *give it to him* in about the same way. I take it he has now vastly improved upon the attack he made then upon the Administration. I flatter myself he has really taken my advice on this subject. All I can say now is to recommend to him and to them what I then commended,—to prosecute the war against one another in the most vigorous manner. I say to them again: "Go it, husband!—Go it, bear!"

There is one other thing I will mention before I leave this branch of the discussion,—although I do not consider it much of my business, anyway. I refer to that part of the Judge's remarks where he undertakes to involve Mr. Buchanan in an inconsistency. He reads something from Mr. Buchanan, from which he undertakes to involve him in an inconsistency; and he gets something of a cheer for having done so. I would only remind the Judge that while he is very valiantly fighting for the Nebraska bill and the repeal of the Missouri Compromise, it has been but a little while since he was the *valiant advocate* of the Missouri Compromise. I want to know if Buchanan has not as much right to be inconsistent as Douglas has? Has Douglas the *exclusive right*, in this country, of being *on all sides of all questions*? Is nobody allowed that high privilege but himself? Is he to have an entire *monopoly* on that subject?

So far as Judge Douglas addressed his speech to me, or so far as it was about me, it is my business to pay some attention to it. I have heard the Judge state two or three times what he has stated to-day,—that in a speech which I made at Springfield, Illinois, I had in a very especial manner complained that the Supreme Court in the Dred Scott case had decided that

a negro could never be a citizen of the United States. I have omitted by some accident heretofore to analyze this statement, and it is required of me to notice it now. In point of fact it is *untrue*. I never have complained *especially* of the Dred Scott decision because it held that a negro could not be a citizen, and the Judge is always wrong when he says I ever did so complain of it. I have the speech here, and I will thank him or any of his friends to show where I said that a negro should be a citizen, and complained especially of the Dred Scott decision because it declared he could not be one. I have done no such thing; and Judge Douglas, so persistently insisting that I have done so, has strongly impressed me with the belief of a predetermination on his part to misrepresent me. He could not get his foundation for insisting that I was in favor of this negro equality anywhere else as well as he could by assuming that untrue proposition. Let me tell this audience what is true in regard to that matter; and the means by which they may correct me if I do not tell them truly is by a recurrence to the speech itself. I spoke of the Dred Scott decision in my Springfield speech, and I was then endeavoring to prove that the Dred Scott decision was a portion of a system or scheme to make slavery national in this country. I pointed out what things had been decided by the court. I mentioned as a fact that they had decided that a negro could not be a citizen; that they had done so, as I supposed, to deprive the negro, under all circumstances, of the remotest possibility of ever becoming a citizen and claiming the rights of a citizen of the United States under a certain clause of the Constitution. I stated that, without making any complaint of it at all. I then went on and stated the other points decided in the case; namely, that the bringing of a negro into the State of Illinois and holding him in slavery for two years here was a matter in regard to which they would not decide whether it would make him free or not; that they decided the further point that taking him into a United States Territory where slavery was prohibited by Act of Congress did not make him free, because that Act of Congress, as they held, was unconstitutional. I mentioned these three things as making up the points decided in that case. I mentioned them in a lump, taken in connection with the introduction of the Nebraska bill, and the amendment of Chase, offered at the time, declaratory of the right of the people of the Territories to *exclude slavery*, which was voted down by the friends of the bill. I mentioned all these things together, as evidence tending to prove a combination and conspiracy to make the institution of slavery national. In

that connection and in that way I mentioned the decision on the point that a negro could not be a citizen, and in no other connection.

Out of this Judge Douglas builds up his beautiful fabrication of my purpose to introduce a perfect social and political equality between the white and black races. His assertion that I made an “especial objection” (that is his exact language) to the decision on this account, is untrue in point of fact.

Now, while I am upon this subject, and as Henry Clay has been alluded to, I desire to place myself, in connection with Mr. Clay, as nearly right before this people as may be. I am quite aware what the Judge’s object is here by all these allusions. He knows that we are before an audience having strong sympathies southward, by relationship, place of birth, and so on. He desires to place me in an extremely Abolition attitude. He read upon a former occasion, and alludes, without reading, to-day to a portion of a speech which I delivered in Chicago. In his quotations from that speech, as he has made them upon former occasions, the extracts were taken in such a way as, I suppose, brings them within the definition of what is called *garbling*,—taking portions of a speech which, when taken by themselves, do not present the entire sense of the speaker as expressed at the time. I propose, therefore, out of that same speech, to show how one portion of it which he skipped over (taking an extract before and an extract after) will give a different idea, and the true idea I intended to convey. It will take me some little time to read it, but I believe I will occupy the time that way.

You have heard him frequently allude to my controversy with him in regard to the Declaration of Independence. I confess that I have had a struggle with Judge Douglas on that matter, and I will try briefly to place myself right in regard to it on this occasion. I said—and it is between the extracts Judge Douglas has taken from this speech, and put in his published speeches:

“It may be argued that there are certain conditions that make necessities and impose them upon us, and to the extent that a necessity is imposed upon a man he must submit to it. I think that was the condition in which we found ourselves when we established this government. We had slaves among us, we could not get our Constitution unless we permitted them to remain in slavery, we could not secure the good we did secure if we grasped for more; and having by necessity submitted to that much, it does not destroy the

principle that is the charter of our liberties. Let the charter remain as our standard.”

Now, I have upon all occasions declared as strongly as Judge Douglas against the disposition to interfere with the existing institution of slavery. You hear me read it from the same speech from which he takes garbled extracts for the purpose of proving upon me a disposition to interfere with the institution of slavery, and establish a perfect social and political equality between negroes and white people.

Allow me while upon this subject briefly to present one other extract from a speech of mine, more than a year ago, at Springfield, in discussing this very same question, soon after Judge Douglas took his ground that negroes were not included in the Declaration of Independence:

“I think the authors of that notable instrument intended to include *all* men, but they did not intend to declare all men equal *in all respects*. They did not mean to say all men were equal in color, size, intellect, moral development, or social capacity. They defined with tolerable distinctness in what they did consider all men created equal,—equal in certain inalienable rights, among which are life, liberty, and the pursuit of happiness. This they said, and this they meant. They did not mean to assert the obvious untruth that all were then actually enjoying that equality, or yet that they were about to confer it immediately upon them. In fact, they had no power to confer such a boon. They meant simply to declare the *right*, so that the *enforcement* of it might follow as fast as circumstances should permit.

“They meant to set up a standard maxim for free society which should be familiar to all,—constantly looked to, constantly labored for, and even, though never perfectly attained, constantly approximated, and thereby constantly spreading and deepening its influence, and augmenting the happiness and value of life to all people, of all colors, everywhere.”

There again are the sentiments I have expressed in regard to the Declaration of Independence upon a former occasion,—sentiments which have been put in print and read wherever anybody cared to know what so humble an individual as myself chose to say in regard to it.

At Galesburgh, the other day, I said, in answer to Judge Douglas, that three years ago there never had been a man, so far as I knew or believed, in the whole world, who had said that the Declaration of Independence did not include negroes in the term “all men.” I reassert it to-day. I assert that Judge

Douglas and all his friends may search the whole records of the country, and it will be a matter of great astonishment to me if they shall be able to find that one human being three years ago had ever uttered the astounding sentiment that the term “all men” in the Declaration did not include the negro. Do not let me be misunderstood. I know that more than three years ago there were men who, finding this assertion constantly in the way of their schemes to bring about the ascendancy and perpetuation of slavery, *denied the truth of it*. I know that Mr. Calhoun and all the politicians of his school denied the truth of the Declaration. I know that it ran along in the mouth of some Southern men for a period of years, ending at last in that shameful, though rather forcible, declaration of Pettit of Indiana, upon the floor of the United States Senate, that the Declaration of Independence was in that respect “a self-evident lie,” rather than a self-evident truth. But I say, with a perfect knowledge of all this hawking at the Declaration without directly attacking it, that three years ago there never had lived a man who had ventured to assail it in the sneaking way of pretending to believe it, and then asserting it did not include the negro. I believe the first man who ever said it was Chief Justice Taney in the Dred Scott case, and the next to him was our friend Stephen A. Douglas. And now it has become the catchword of the entire party. I would like to call upon his friends everywhere to consider how they have come in so short a time to view this matter in a way so entirely different from their former belief; to ask whether they are not being borne along by an irresistible current,—whither, they know not.

In answer to my proposition at Galesburgh last week, I see that some man in Chicago, has got up a letter, addressed to the Chicago “Times,” to show, as he professes, that somebody *had* said so before; and he signs himself “An Old Line Whig,” if I remember correctly. In the first place, I would say he *was not* an old line Whig. I am somewhat acquainted with old line Whigs from the origin to the end of that party; I became pretty well acquainted with them, and I know they always had some sense, whatever else you could ascribe to them. I know there never was one who had not more sense than to try to show by the evidence he produces that some man had, prior to the time I named, said that negroes were not included in the term “all men” in the Declaration of Independence. What is the evidence he produces? I will bring forward *his* evidence, and let you see what *he* offers by way of showing that somebody more than three years ago had said negroes were not included in the Declaration. He brings forward part of a

speech from Henry Clay,—*the* part of *the* speech of Henry Clay which I used to bring forward to prove precisely the contrary. I guess we are surrounded to some extent to-day by the old friends of Mr. Clay, and they will be glad to hear anything from that authority. While he was in Indiana a man presented a petition to liberate his negroes, and he (Mr. Clay) made a speech in answer to it, which I suppose he carefully wrote out himself and caused to be published. I have before me an extract from that speech which constitutes the evidence this pretended “Old Line Whig” at Chicago brought forward to show that Mr. Clay didn’t suppose the negro was included in the Declaration of Independence. Hear what Mr. Clay said:

“And what is the foundation of this appeal to me in Indiana to liberate the slaves under my care in Kentucky? It is a general declaration in the act announcing to the world the independence of the thirteen American colonies, that all men are created equal. Now, as an abstract principle, *there is no doubt of the truth of that declaration*; and it is desirable, *in the original construction of society and in organized societies*, to keep it in view as a great fundamental principle. But, then, I apprehend that in no society that ever did exist, or ever shall be formed, was or can the equality asserted among the members of the human race be practically enforced and carried out. There are portions, large portions,—women, minors, insane, culprits, transient sojourners,—that will always probably remain subject to the government of another portion of the community.

“That declaration, whatever may be the extent of its import, was made by the delegations of the thirteen States. In most of them slavery existed, and had long existed, and was established by law. It was introduced and forced upon the colonies by the paramount law of England. Do you believe that in making that declaration the States that concurred in it intended that it should be tortured into a virtual emancipation of all the slaves within their respective limits? Would Virginia and other Southern States have ever united in a declaration which was to be interpreted into an abolition of slavery among them? Did any one of the thirteen colonies entertain such a design or expectation? To impute such a secret and unavowed purpose, would be to charge a political fraud upon the noblest band of patriots that ever assembled in council,—a fraud upon the Confederacy of the Revolution; a fraud upon the union of those States whose Constitution not only recognized the lawfulness of slavery, but permitted the importation of slaves from Africa until the year 1808.”

This is the entire quotation brought forward to prove that somebody previous to three years ago had said the negro was not included in the term “all men” in the Declaration. How does it do so? In what way has it a tendency to prove that? Mr. Clay says *it is true as an abstract principle* that all men are created equal, but that we cannot practically apply it in all cases. He illustrates this by bringing forward the cases of females, minors, and insane persons, with whom it cannot be enforced; but he says it is true as an abstract principle in the organization of society as well as in organized society and it should be kept in view as a fundamental principle. Let me read a few words more before I add some comments of my own. Mr. Clay says, a little further on:

“I desire no concealment of my opinions in regard to the institution of slavery. I look upon it as a great evil, and deeply lament that we have derived it from the parental government and from our ancestors. But here they are, and the question is, How can they be best dealt with? If a state of nature existed, and we were about to lay the foundations of society, *no man would be more strongly opposed than I should be to incorporate the institution of slavery among its elements.*”

Now, here in this same book, in this same speech, in this same extract, brought forward to prove that Mr. Clay held that the negro was not included in the Declaration of Independence, is no such statement on his part, but the declaration *that it is a great fundamental truth* which should be constantly kept in view in the organization of society and in societies already organized. But if I say a word about it; if I attempt, as Mr. Clay said all good men ought to do, to keep it in view; if, in this “organized society,” I ask to have the public eye turned upon it; if I ask, in relation to the organization of new Territories, that the public eye should be turned upon it,—forthwith I am vilified as you hear me to-day. What have I done that I have not the license of Henry Clay’s illustrious example here in doing? Have I done aught that I have not his authority for, while maintaining that in organizing new Territories and societies, this fundamental principle should be regarded, and in organized society holding it up to the public view and recognizing what *he* recognized as the great principle of free government?

And when this new principle—this new proposition that no human being ever thought of three years ago—is brought forward, *I combat it* as having

an evil tendency, if not an evil design. I combat it as having a tendency to dehumanize the negro, to take away from him the right of ever striving to be a man. I combat it as being one of the thousand things constantly done in these days to prepare the public mind to make property, and nothing but property, of the *negro in all the States of this Union*.

But there is a point that I wish, before leaving this part of the discussion, to ask attention to. I have read and I repeat the words of Henry Clay:

“I desire no concealment of my opinions in regard to the institution of slavery. I look upon it as a great evil, and deeply lament that we have derived it from the parental government and from our ancestors. I wish every slave in the United States was in the country of his ancestors. But there they are; the question is, How can they best be dealt with? If a state of nature existed, and we were about to lay the foundations of society, no man would be more strongly opposed than I should be to incorporate the institution of slavery among its elements.”

The principle upon which I have insisted in this canvass is in relation to laying the foundations of new societies. I have never sought to apply these principles to the old States for the purpose of abolishing slavery in those States. It is nothing but a miserable perversion of what I *have* said, to assume that I have declared Missouri, or any other Slave State, shall emancipate her slaves; I have proposed no such thing. But when Mr. Clay says that in laying the foundations of societies in our Territories where it does not exist, he would be opposed to the introduction of slavery as an element, I insist that we have *his warrant*—his license—for insisting upon the exclusion of that element which he declared in such strong and emphatic language *was most hateful to him*.

Judge Douglas has again referred to a Springfield speech in which I said “a house divided against itself cannot stand.” The Judge has so often made the entire quotation from that speech that I can make it from memory. I used this language:

“We are now far into the fifth year since a policy was initiated with the avowed object and confident promise of putting an end to the slavery agitation. Under the operation of this policy, that agitation has not only not ceased, but has constantly augmented. In my opinion it will not cease until a crisis shall have been reached and passed. ‘A house divided against itself cannot stand.’ I believe this government cannot endure permanently, half

slave and half free. I do not expect the house to fall, but I do expect it will cease to be divided. It will become all one thing or all the other. Either the opponents of slavery will arrest the further spread of it, and place it where the public mind shall rest in the belief that it is in the course of ultimate extinction, or its advocates will push it forward till it shall become alike lawful in all the States,—old as well as new, North as well as South.”

That extract and the sentiments expressed in it have been extremely offensive to Judge Douglas. He has warred upon them as Satan wars upon the Bible. His perversions upon it are endless. Here now are my views upon it in brief.

I said we were now far into the fifth year since a policy was initiated with the avowed object and confident promise of putting an end to the slavery agitation. Is it not so? When that Nebraska bill was brought forward four years ago last January, was it not for the “avowed object” of putting an end to the slavery agitation? We were to have no more agitation in Congress; it was all to be banished to the Territories. By the way, I will remark here that, as Judge Douglas is very fond of complimenting Mr. Crittenden in these days, Mr. Crittenden has said there was a falsehood in that whole business, for there was *no slavery agitation at that time to allay*. We were for a little while *quiet* on the troublesome thing, and that very allaying plaster of Judge Douglas stirred it up again. But was it not understood or intimated with the “confident promise” of putting an end to the slavery agitation? Surely it was. In every speech you heard Judge Douglas make, until he got into this “imbroglio,” as they call it, with the Administration about the Lecompton Constitution, every speech on that Nebraska bill was full of his felicitations that we were *just at the end* of the slavery agitation. The last tip of the last joint of the old serpent’s tail was just drawing out of view. But has it proved so? I have asserted that under that policy that agitation “has not only not ceased, but has constantly augmented.” When was there ever a greater agitation in Congress than last winter? When was it as great in the country as to-day?

There was a collateral object in the introduction of that Nebraska policy, which was to clothe the people of the Territories with a superior degree of self-government, beyond what they had ever had before. The first object and the main one of conferring upon the people a higher degree of “self-government” is a question of fact to be determined by you in answer to a

single question. Have you ever heard or known of a people anywhere on earth who had as little to do as, in the first instance of its use, the people of Kansas had with this same right of “self-government”? In its main policy and in its collateral object, *it has been nothing but a living, creeping lie from the time of its introduction till to-day.*

I have intimated that I thought the agitation would not cease until a crisis should have been reached and passed. I have stated in what way I thought it would be reached and passed. I have said that it might go one way or the other. We might, by arresting the further spread of it, and placing it where the fathers originally placed it, put it where the public mind should rest in the belief that it was in the course of ultimate extinction. Thus the agitation may cease. It may be pushed forward until it shall become alike lawful in all the States, old as well as new, North as well as South. I have said, and I repeat, my wish is that the further spread of it may be arrested, and that it may be placed where the public mind shall rest in the belief that it is in the course of ultimate extinction. I have expressed that as my wish. I entertain the opinion, upon evidence sufficient to my mind, that the fathers of this government placed that institution where the public mind did rest in the belief that it was in the course of ultimate extinction. Let me ask why they made provision that the source of slavery—the African slave-trade—should be cut off at the end of twenty years? Why did they make provision that in all the new territory we owned at that time slavery should be forever inhibited? Why stop its spread in one direction, and cut off its source in another, if they did not look to its being placed in the course of its ultimate extinction?

Again: the institution of slavery is only mentioned in the Constitution of the United States two or three times, and in neither of these cases does the word “slavery” or “negro race” occur; but covert language is used each time, and for a purpose full of significance. What is the language in regard to the prohibition of the African slave-trade? It runs in about this way: “The migration or importation of such persons as any of the States now existing shall think proper to admit, shall not be prohibited by the Congress prior to the year one thousand eight hundred and eight.”

The next allusion in the Constitution to the question of slavery and the black race is on the subject of the basis of representation, and there the language used is:

“Representatives and direct taxes shall be apportioned among the several States which may be included within this Union, according to their respective numbers, which shall be determined by adding to the whole number of free persons, including those bound to service for a term of years, and excluding Indians not taxed,—three-fifths of all other persons.”

It says “persons,” not slaves, not negroes; but this “three-fifths” can be applied to no other class among us than the negroes.

Lastly, in the provision for the reclamation of fugitive slaves, it is said: “No person held to service or labor in one State, under the laws thereof, escaping into another, shall in consequence of any law or regulation therein be discharged from such service or labor, but shall be delivered up, on claim of the party to whom such service or labor may be due.” There again there is no mention of the word “negro” or of slavery. In all three of these places, being the only allusions to slavery in the instrument, covert language is used. Language is used not suggesting that slavery existed or that the black race were among us. And I understand the contemporaneous history of those times to be that covert language was used with a purpose, and that purpose was that in our Constitution, which it was hoped and is still hoped will endure forever,—when it should be read by intelligent and patriotic men, after the institution of slavery had passed from amongst us,—there should be nothing on the face of the great charter of liberty suggesting that such a thing as negro slavery had ever existed among us. This is part of the evidence that the fathers of the government expected and intended the institution of slavery to come to an end. They expected and intended that it should be in the course of ultimate extinction. And when I say that I desire to see the further spread of it arrested, I only say I desire to see that done which the fathers have first done. When I say I desire to see it placed where the public mind will rest in the belief that it is in the course of ultimate extinction, I only say I desire to see it placed where they placed it. It is not true that our fathers, as Judge Douglas assumes, made this government part slave and part free. Understand the sense in which he puts it. He assumes that slavery is a rightful thing within itself,—was introduced by the framers of the Constitution. The exact truth is, that they found the institution existing among us, and they left it as they found it. But in making the government they left this institution with many clear marks of disapprobation upon it. They found slavery among them, and they left it among them because of the difficulty—the absolute impossibility—of its

immediate removal. And when Judge Douglas asks me why we cannot let it remain part slave and part free, as the fathers of the government made it, he asks a question based upon an assumption which is itself a falsehood; and I turn upon him and ask him the question, when the policy that the fathers of the government had adopted in relation to this element among us was the best policy in the world, the only wise policy, the only policy that we can ever safely continue upon, that will ever give us peace, unless this dangerous element masters us all and becomes a national institution,—*I turn upon him and ask him why he could not leave it alone.* I turn and ask him why he was driven to the necessity of introducing a *new policy* in regard to it. He has himself said he introduced a new policy. He said so in his speech on the 22d of March of the present year, 1858. I ask him why he could not let it remain where our fathers placed it. I ask, too, of Judge Douglas and his friends why we shall not again place this institution upon the basis on which the fathers left it. I ask you, when he infers that I am in favor of setting the Free and Slave States at war, when the institution was placed in that attitude by those who made the Constitution, *did they make any war?* If we had no war out of it when thus placed, wherein is the ground of belief that we shall have war out of it if we return to that policy? Have we had any peace upon this matter springing from any other basis? I maintain that we have not. I have proposed nothing more than a return to the policy of the fathers.

I confess, when I propose a certain measure of policy, it is not enough for me that I do not intend anything evil in the result, but it is incumbent on me to show that it has not a *tendency* to that result. I have met Judge Douglas in that point of view. I have not only made the declaration that I do not *mean* to produce a conflict between the States, but I have tried to show by fair reasoning, and I think I have shown to the minds of fair men, that I propose nothing but what has a most peaceful tendency. The quotation that I happened to make in that Springfield speech, that “a house divided against itself cannot stand,” and which has proved so offensive to the Judge, was part and parcel of the same thing. He tries to show that variety in the domestic institutions of the different States is necessary and indispensable. I do not dispute it. I have no controversy with Judge Douglas about that. I shall very readily agree with him that it would be foolish for us to insist upon having a cranberry law here in Illinois, where we have no cranberries, because they have a cranberry law in Indiana, where they have cranberries.

I should insist that it would be exceedingly wrong in us to deny to Virginia the right to enact oyster laws, where they have oysters, because we want no such laws here. I understand, I hope, quite as well as Judge Douglas or anybody else, that the variety in the soil and climate and face of the country, and consequent variety in the industrial pursuits and productions of a country, require systems of law conforming to this variety in the natural features of the country. I understand quite as well as Judge Douglas that if we here raise a barrel of flour more than we want, and the Louisianians raise a barrel of sugar more than they want, it is of mutual advantage to exchange. That produces commerce, brings us together, and makes us better friends. We like one another the more for it. And I understand as well as Judge Douglas, or anybody else, that these mutual accommodations are the cements which bind together the different parts of this Union; that instead of being a thing to “divide the house,”—figuratively expressing the Union,—they tend to sustain it; they are the props of the house, tending always to hold it up.

But when I have admitted all this, I ask if there is any parallel between these things and this institution of slavery? I do not see that there is any parallel at all between them. Consider it. When have we had any difficulty or quarrel amongst ourselves about the cranberry laws of Indiana, or the oyster laws of Virginia, or the pine-lumber laws of Maine, or the fact that Louisiana produces sugar, and Illinois flour? When have we had any quarrels over these things? When have we had perfect peace in regard to this thing which I say is an element of discord in this Union? We have sometimes had peace, but when was it? It was when the institution of slavery remained quiet where it was. We have had difficulty and turmoil whenever it has made a struggle to spread itself where it was not. I ask, then, if experience does not speak in thunder-tones, telling us that the policy which has given peace to the country heretofore, being returned to, gives the greatest promise of peace again. You may say, and Judge Douglas has intimated the same thing, that all this difficulty in regard to the institution of slavery is the mere agitation of office-seekers and ambitious Northern politicians. He thinks we want to get “his place,” I suppose. I agree that there are office-seekers amongst us. The Bible says somewhere that we are desperately selfish. I think we would have discovered that fact without the Bible. I do not claim that I am any less so than the average of men, but I do claim that I am not more selfish than Judge Douglas.

But is it true that all the difficulty and agitation we have in regard to this institution of slavery springs from office-seeking, from the mere ambition of politicians? Is that the truth? How many times have we had danger from this question? Go back to the day of the Missouri Compromise. Go back to the Nullification question, at the bottom of which lay this same slavery question. Go back to the time of the Annexation of Texas. Go back to the troubles that led to the Compromise of 1850. You will find that every time, with the single exception of the Nullification question, they sprung from an endeavor to spread this institution. There never was a party in the history of this country, and there probably never will be, of sufficient strength to disturb the general peace of the country. Parties themselves may be divided and quarrel on minor questions, yet it extends not beyond the parties themselves. But does *not* this question make a disturbance outside of political circles? Does it not enter into the churches and rend them asunder? What divided the great Methodist Church into two parts, North and South? What has raised this constant disturbance in every Presbyterian General Assembly that meets? What disturbed the Unitarian Church in this very city two years ago? What has jarred and shaken the great American Tract Society recently, not yet splitting it, but sure to divide it in the end? Is it not this same mighty, deep-seated power that somehow operates on the minds of men, exciting and stirring them up in every avenue of society,—in politics, in religion, in literature, in morals, in all the manifold relations of life? Is this the work of politicians? Is that irresistible power, which for fifty years has shaken the government and agitated the people, to be stilled and subdued by pretending that it is an exceedingly simple thing, and we ought not to talk about it? If you will get everybody else to stop talking about it, I assure you I will quit before they have half done so. But where is the philosophy or statesmanship which assumes that you can quiet that disturbing element in our society which has disturbed us for more than half a century, which has been the only serious danger that has threatened our institutions,—I say, where is the philosophy or the statesmanship based on the assumption that we are to quit talking about it, and that the public mind is all at once to cease being agitated by it? Yet this is the policy here in the North that Douglas is advocating,—that we are to care nothing about it! I ask you if it is not a false philosophy. Is it not a false statesmanship that undertakes to build up a system of policy upon the basis of caring nothing

about the *very thing that everybody does care the most about*?—a thing which all experience has shown we care a very great deal about?

The Judge alludes very often in the course of his remarks to the exclusive right which the States have to decide the whole thing for themselves. I agree with him very readily that the different States have that right. He is but fighting a man of straw when he assumes that I am contending against the right of the States to do as they please about it. Our controversy with him is in regard to the new Territories. We agree that when the States come in as States they have the right and the power to do as they please. We have no power as citizens of the Free States, or in our Federal capacity as members of the Federal Union through the General Government, to disturb slavery in the States where it exists. We profess constantly that we have no more inclination than belief in the power of the government to disturb it; yet we are driven constantly to defend ourselves from the assumption that we are warring upon the rights of the *States*. What I insist upon is, that the new Territories shall be kept free from it while in the Territorial condition. Judge Douglas assumes that we have no interest in them,—that we have no right whatever to interfere. I think we have some interest. I think that as white men we have. Do we not wish for an outlet for our surplus population, if I may so express myself? Do we not feel an interest in getting to that outlet with such institutions as we would like to have prevail there? If *you* go to the Territory opposed to slavery, and another man comes upon the same ground with his slave, upon the assumption that the things are equal, it turns out that he has the equal right all his way, and you have no part of it your way. If he goes in and makes it a Slave Territory, and by consequence a Slave State, is it not time that those who desire to have it a Free State were on equal ground? Let me suggest it in a different way. How many Democrats are there about here [“A thousand”] who have left Slave States and come into the Free State of Illinois to get rid of the institution of slavery? [Another voice: “A thousand and one.”] I reckon there are a thousand and one. I will ask you, if the policy you are now advocating had prevailed when this country was in a Territorial condition, where would you have gone to get rid of it? Where would you have found your Free State or Territory to go to? And when hereafter, for any cause, the people in this place shall desire to find new homes, if they wish to be rid of the institution, where will they find the place to go to?

Now, irrespective of the moral aspect of this question as to whether there is a right or wrong in enslaving a negro, I am still in favor of our new Territories being in such a condition that white men may find a home,—may find some spot where they can better their condition; where they can settle upon new soil and better their condition in life. I am in favor of this, not merely (I must say it here as I have elsewhere) for our own people who are born amongst us, but as an outlet for *free white people everywhere*, the world over,—in which Hans, and Baptiste, and Patrick, and all other men from all the world, may find new homes and better their conditions in life.

I have stated upon former occasions, and I may as well state again, what I understand to be the real issue in this controversy between Judge Douglas and myself. On the point of my wanting to make war between the Free and the Slave States, there has been no issue between us. So, too, when he assumes that I am in favor of introducing a perfect social and political equality between the white and black races. These are false issues, upon which Judge Douglas has tried to force the controversy. There is no foundation in truth for the charge that I maintain either of these propositions. The real issue in this controversy—the one pressing upon every mind—is the sentiment on the part of one class that looks upon the institution of slavery *as a wrong*, and of another class that *does not* look upon it as a wrong. The sentiment that contemplates the institution of slavery in this country as a wrong is the sentiment of the Republican party. It is the sentiment around which all their actions, all their arguments, circle, from which all their propositions radiate. They look upon it as a being a moral, social, and political wrong; and while they contemplate it as such, they nevertheless have due regard for its actual existence among us, and the difficulties of getting rid of it in any satisfactory way and to all the constitutional obligations thrown about it. Yet, having a due regard for these, they desire a policy in regard to it that looks to its not creating any more danger. They insist that it should, as far as may be, *be treated* as a wrong; and one of the methods of treating it as a wrong is to *make provision that it shall grow no larger*. They also desire a policy that looks to a peaceful end of slavery at some time, as being wrong. These are the views they entertain in regard to it as I understand them; and all their sentiments, all their arguments and propositions, are brought within this range. I have said, and I repeat it here, that if there be a man amongst us who does not think that the institution of slavery is wrong in any one of the aspects of

which I have spoken, he is misplaced, and ought not to be with us. And if there be a man amongst us who is so impatient of it as a wrong as to disregard its actual presence amongst us and the difficulty of getting rid of it suddenly in a satisfactory way, and to disregard the constitutional obligations thrown about it, that man is misplaced if he is on our platform. We disclaim sympathy with him in practical action. He is not placed properly with us.

On this subject of treating it as a wrong, and limiting its spread, let me say a word. Has anything ever threatened the existence of this Union save and except this very institution of slavery? What is it that we hold most dear amongst us? Our own liberty and prosperity. What has ever threatened our liberty and prosperity, save and except this institution of slavery? If this is true, how do you propose to improve the condition of things by enlarging slavery,—by spreading it out and making it bigger? You may have a wen or cancer upon your person, and not be able to cut it out, lest you bleed to death; but surely it is no way to cure it, to engraft it and spread it over your whole body. That is no proper way of treating what you regard a wrong. You see this peaceful way of dealing with it as a wrong,—restricting the spread of it, and not allowing it to go into new countries where it has not already existed. That is the peaceful way, the old-fashioned way, the way in which the fathers themselves set us the example.

On the other hand, I have said there is a sentiment which treats it as *not* being wrong. That is the Democratic sentiment of this day. I do not mean to say that every man who stands within that range positively asserts that it is right. That class will include all who positively assert that it is right, and all who, like Judge Douglas, treat it as indifferent, and do not say it is either right or wrong. These two classes of men fall within the general class of those who do not look upon it as a wrong. And if there be among you anybody who supposes that he, as a Democrat, can consider himself “as much opposed to slavery as anybody,” I would like to reason with him. You never treat it as a wrong. What other thing that you consider as a wrong do you deal with as you deal with that? Perhaps you say it is wrong, *but your leader never does, and you quarrel with anybody who says it is wrong.* Although you pretend to say so yourself, you can find no fit place to deal with it as a wrong. You must not say anything about it in the Free States, *because it is not here.* You must not say anything about it in the Slave States, *because it is there.* You must not say anything about it in the pulpit,

because that is religion, and has nothing to do with it. You must not say anything about it in politics, *because that will disturb the security of "my place."* There is no place to talk about it as being a wrong, although you say yourself it is a wrong. But, finally, you will screw yourself up to the belief that if the people of the Slave States should adopt a system of gradual emancipation on the slavery question, you would be in favor of it. You would be in favor of it. You say that is getting it in the right place, and you would be glad to see it succeed. But you are deceiving yourself. You all know that Frank Blair and Gratz Brown, down there in St. Louis, undertook to introduce that system in Missouri. They fought as valiantly as they could for the system of gradual emancipation which you pretend you would be glad to see succeed. Now, I will bring you to the test. After a hard fight they were beaten, and when the news came over here, you threw up your hats and *hurrahed for Democracy*. More than that, take all the argument made in favor of the system you have proposed, and it carefully excludes the idea that there is anything wrong in the institution of slavery. The arguments to sustain that policy carefully excluded it. Even here to-day you heard Judge Douglas quarrel with me because I uttered a wish that it might some time come to an end. Although Henry Clay could say he wished every slave in the United States was in the country of his ancestors, I am denounced by those pretending to respect Henry Clay for uttering a wish that it might some time, in some peaceful way, come to an end. The Democratic policy in regard to that institution will not tolerate the merest breath, the slightest hint, of the least degree of wrong about it. Try it by some of Judge Douglas's arguments. He says he "don't care whether it is voted up or voted down" in the Territories. I do not care myself, in dealing with that expression, whether it is intended to be expressive of his individual sentiments on the subject, or only of the national policy he desires to have established. It is alike valuable for my purpose. Any man can say that who does not see anything wrong in slavery; but no man can logically say it who does see a wrong in it, because no man can logically say he don't care whether a wrong is voted up or voted down. He may say he don't care whether an indifferent thing is voted up or down, but he must logically have a choice between a right thing and a wrong thing. He contends that whatever community wants slaves has a right to have them. So they have, if it is not a wrong. But if it is a wrong, he cannot say people have a right to do wrong. He says that upon the score of equality, slaves should be allowed

to go in a new Territory, like other property. This is strictly logical if there is no difference between it and other property. If it and other property are equal, his argument is entirely logical. But if you insist that one is wrong and the other right, there is no use to institute a comparison between right and wrong. You may turn over everything in the Democratic policy from beginning to end, whether in the shape it takes on the statute book, in the shape it takes in the Dred Scott decision, in the shape it takes in conversation, or the shape it takes in short maxim-like arguments,—it everywhere carefully excludes the idea that there is anything wrong in it.

That is the real issue. That is the issue that will continue in this country, when these poor tongues of Judge Douglas and myself shall be silent. It is the eternal struggle between these two principles—right and wrong—throughout the world. They are the two principles that have stood face to face from the beginning of time, and will ever continue to struggle. The one is the common right of humanity, and the other the divine right of kings. It is the same principle in whatever shape it develops itself. It is the same spirit that says: “You work and toil and earn bread, and I’ll eat it.” No matter in what shape it comes, whether from the mouth of a king who seeks to bestride the people of his own nation and live by the fruit of their labor, or from one race of men as an apology for enslaving another race, it is the same tyrannical principle. I was glad to express my gratitude at Quincy, and I re-express it here, to Judge Douglas,—*that he looks to no end of the institution of slavery*. That will help the people to see where the struggle really is. It will hereafter place with us all men who really do wish the wrong may have an end. And whenever we can get rid of the fog which obscures the real question, when we can get Judge Douglas and his friends to avow a policy looking to its perpetuation,—we can get out from among that class of men and bring them to the side of those who treat it as a wrong. Then there will soon be an end of it, and that end will be its “ultimate extinction.” Whenever the issue can be distinctly made, and all extraneous matter thrown out so that men can fairly see the real difference between the parties, this controversy will soon be settled, and it will be done peaceably, too. There will be no war, no violence. It will be placed again where the wisest and best men of the world placed it. Brooks, of South Carolina, once declared that when this Constitution was framed its framers did not look to the institution existing until his day. When he said this, I think he stated a fact that is fully borne out by the history of the times. But he also said they

were better and wiser men than the men of these days; yet the men of these days had experience which they had not, and by the invention of the cotton-gin it became a necessity in this country that slavery should be perpetual. I now say that, willingly or unwillingly, purposely or without purpose, Judge Douglas has been the most prominent instrument in changing the position of the institution of slavery which the fathers of the government expected to come to an end ere this,—*and putting it upon Brooks's cotton-gin basis*; placing it where he openly confesses he has no desire there shall ever be an end of it.

I understand I have ten minutes yet. I will employ it in saying something about this argument Judge Douglas uses, while he sustains the Dred Scott decision, that the people of the Territories can still somehow exclude slavery. The first thing I ask attention to is the fact that Judge Douglas constantly said, before the decision, that whether they could or not, *was a question for the Supreme Court*. But after the court had made the decision he virtually says it is *not* a question for the Supreme Court, but for the people. And how is it he tells us they can exclude it? He says it needs “police regulation,” and that admits of “unfriendly legislation.” Although it is a right established by the Constitution of the United States to take a slave into a Territory of the United States and hold him as property, yet unless the Territorial Legislature will give friendly legislation, and, more especially, if they adopt unfriendly legislation, they can practically exclude him. Now, without meeting this proposition as a matter of fact, I pass to consider the real constitutional obligation. Let me take the gentleman who looks me in the face before me, and let us suppose that he is a member of the Territorial Legislature. The first thing he will do will be to swear that he will support the Constitution of the United States. His neighbor by his side in the Territory has slaves and needs Territorial legislation to enable him to enjoy that constitutional right. Can he withhold the legislation which his neighbor needs for the enjoyment of a right which is fixed in his favor in the Constitution of the United States which he has sworn to support? Can he withhold it without violating his oath? And, more especially, can he pass unfriendly legislation to violate his oath? Why, this is a *monstrous* sort of talk about the Constitution of the United States! *There has never been as outlandish or lawless a doctrine from the mouth of any respectable man on earth*. I do not believe it is a constitutional right to hold slaves in a Territory of the United States. I believe the decision was improperly made and I go

for reversing it. Judge Douglas is furious against those who go for reversing a decision. But he is for legislating it out of all force while the law itself stands. I repeat that there has never been so monstrous a doctrine uttered from the mouth of a respectable man.

I suppose most of us (I know it of myself) believe that people of the Southern States are entitled to a Congressional Fugitive Slave law,—that is a right fixed in the Constitution. But it cannot be made available to them without Congressional legislation. In the Judge's language, it is a "barren right," which needs legislation before it can become efficient and valuable to the persons to whom it is guaranteed. And as the right is constitutional, I agree that the legislation shall be granted to it,—and that not that we like the institution of slavery. We profess to have no taste for running and catching niggers,—at least, I profess no taste for that job at all. Why then do I yield support to a Fugitive Slave law? Because I do not understand that the Constitution, which guarantees that right, can be supported without it. And if I believed that the right to hold a slave in a Territory was equally fixed in the Constitution with the right to reclaim fugitives, I should be bound to give it the legislation necessary to support it. I say that no man can deny his obligation to give the necessary legislation to support slavery in a Territory, who believes it is a constitutional right to have it there. No man can, who does not give the Abolitionists an argument to deny the obligation enjoined by the Constitution to enact a Fugitive State law. Try it now. It is the strongest Abolition argument ever made. I say if that Dred Scott decision is correct, then the right to hold slaves in a Territory is equally a constitutional right with the right of a slaveholder to have his runaway returned. No one can show the distinction between them. The one is express, so that we cannot deny it. The other is construed to be in the Constitution, so that he who believes the decision to be correct believes in the right. And the man who argues that by unfriendly legislation, in spite of that constitutional right, slavery may be driven from the Territories, cannot avoid furnishing an argument by which Abolitionists may deny the obligation to return fugitives, and claim the power to pass laws unfriendly to the right of the slaveholder to reclaim his fugitive. I do not know how such an argument may strike a popular assembly like this, but I defy anybody to go before a body of men whose minds are educated to estimating evidence and reasoning, and show that there is an iota of difference between the constitutional right to reclaim a fugitive, and the

constitutional right to hold a slave, in a Territory, provided this Dred Scott decision is correct. I defy any man to make an argument that will justify unfriendly legislation to deprive a slaveholder of his right to hold a slave in a Territory, that will not equally, in all its length, breadth, and thickness, furnish an argument for nullifying the Fugitive Slave law. Why, there is not such an Abolitionist in the nation as Douglas, after all.

MR. DOUGLAS'S REJOINDER

Mr. Lincoln has concluded his remarks by saying that there is not such an Abolitionist as I am in all America. If he could make the Abolitionists of Illinois believe that, he would not have much show for the Senate. Let him make the Abolitionists believe the truth of that statement, and his political back is broken.

His first criticism upon me is the expression of his hope that the war of the Administration will be prosecuted against me and the Democratic party of this State with vigor. He wants that war prosecuted with vigor; I have no doubt of it. His hopes of success and the hopes of his party depend solely upon it. They have no chance of destroying the Democracy of this State except by the aid of Federal patronage. He has all the Federal officeholders here as his allies, running separate tickets against the Democracy to divide the party, although the leaders all intend to vote directly the Abolition ticket, and only leave the greenhorns to vote this separate ticket who refuse to go into the Abolition camp. There is something really refreshing in the thought that Mr. Lincoln is in favor of prosecuting one war vigorously. It is the first war that I ever knew him to be in favor of prosecuting. It is the first war that I ever knew him to believe to be just or constitutional. When the Mexican war was being waged, and the American army was surrounded by the enemy in Mexico, he thought that war was unconstitutional, unnecessary, and unjust. He thought it was not commenced on the right *spot*.

When I made an incidental allusion of that kind in the joint discussion over at Charleston some weeks ago, Lincoln, in replying, said that I, Douglas, had charged him with voting against supplies for the Mexican war, and then he reared up, full length, and swore that he never voted against the supplies; that it was a slander; and caught hold of Ficklin, who sat on the

stand, and said, "Here, Ficklin, tell the people that it is a lie." Well, Ficklin, who had served in Congress with him, stood up and told them all that he recollected about it. It was that when George Ashmun, of Massachusetts, brought forward a resolution declaring the war unconstitutional, unnecessary, and unjust, that Lincoln had voted for it. "Yes," said Lincoln, "I did." Thus he confessed that he voted that the war was wrong, that our country was in the wrong, and consequently that the Mexicans were in the right; but charged that I had slandered him by saying that he voted against the supplies. I never charged him with voting against the supplies in my life, because I knew that he was not in Congress when they were voted. The war was commenced on the 13th day of May, 1846, and on that day we appropriated in Congress ten millions of dollars and fifty thousand men to prosecute it. During the same session we voted more men and more money, and at the next session we voted more men and more money, so that by the time Mr. Lincoln entered Congress we had enough men and enough money to carry on the war, and had no occasion to vote for any more. When he got into the House, being opposed to the war, and not being able to stop the supplies, because they had all gone forward, all he could do was to follow the lead of Corwin of Ohio, and prove that the war was not begun on the right spot, and that it was unconstitutional, unnecessary, and wrong. Remember, too, that this he did after the war had been begun. It is one thing to be opposed to the declaration of a war, another and very different thing to take sides with the enemy against your own country after the war has been commenced. Our army was in Mexico at the time, many battles had been fought; our citizens, who were defending the honor of their country's flag, were surrounded by the daggers, the guns, and the poison of the enemy. Then it was that Corwin made his speech in which he declared that the American soldiers ought to be welcomed by the Mexicans with bloody hands and hospitable graves; then it was that Ashmun and Lincoln voted in the House of Representatives that the war was unconstitutional and unjust; and Ashmun's resolution, Corwin's speech, and Lincoln's vote were sent to Mexico and read at the head of the Mexican army, to prove to them that there was a Mexican party in the Congress of the United States who were doing all in their power to aid them. That a man who takes sides with the common enemy against his own country in time of war should rejoice in a war being made on me now, is very natural. And, in my opinion, no other kind of a man would rejoice in it.

Mr. Lincoln has told you a great deal to-day about his being an old line Clay Whig. Bear in mind that there are a great many old Clay Whigs down in this region. It is more agreeable, therefore, for him to talk about the old Clay Whig party than it is for him to talk Abolitionism. We did not hear much about the old Clay Whig party up in the Abolition districts. How much of an old line Henry Clay Whig was he? Have you read General Singleton's speech at Jacksonville? You know that General Singleton was for twenty-five years the confidential friend of Henry Clay in Illinois, and he testified that in 1847, when the Constitutional Convention of this State was in session, the Whig members were invited to a Whig caucus at the house of Mr. Lincoln's brother-in-law, where Mr. Lincoln proposed to throw Henry Clay overboard and take up General Taylor in his place, giving as his reason that, if the Whigs did not take up General Taylor, the Democrats would. Singleton testifies that Lincoln in that speech urged as another reason for throwing Henry Clay overboard, that the Whigs had fought long enough for principle, and ought to begin to fight for success. Singleton also testified that Lincoln's speech did not have the effect of cutting Clay's throat, and that he (Singleton) and others withdrew from the caucus in indignation. He further states that when they got to Philadelphia to attend the National Convention of the Whig party, that Lincoln was there, the bitter and deadly enemy of Clay, and that he tried to keep him (Singleton) out of the Convention because he insisted on voting for Clay, and Lincoln was determined to have Taylor. Singleton says that Lincoln rejoiced with very great joy when he found the mangled remains of the murdered Whig statesman lying cold before him. Now, Mr. Lincoln tells you that he is an old line Clay Whig! General Singleton testifies to the facts I have narrated, in a public speech which has been printed and circulated broadcast over the State for weeks, yet not a lisp have we heard from Mr. Lincoln on the subject, except that he is an old Clay Whig.

What part of Henry Clay's policy did Lincoln ever advocate. He was in Congress in 1848-9, when the Wilmot Proviso warfare disturbed the peace and harmony of the country, until it shook the foundation of the Republic from its centre to its circumference. It was that agitation that brought Clay forth from his retirement at Ashland again to occupy his seat in the Senate of the United States, to see if he could not, by his great wisdom and experience, and the renown of his name, do something to restore peace and quiet to a disturbed country. Who got up that sectional strife that Clay had

to be called upon to quell? I have heard Lincoln boast that he voted forty-two times for the Wilmot Proviso, and that he would have voted as many times more if he could. Lincoln is the man, in connection with Seward, Chase, Giddings, and other Abolitionists, who got up that strife that I helped Clay to put down. Henry Clay came back to the Senate in 1849, and saw that he must do something to restore peace to the country. The Union Whigs and the Union Democrats welcomed him, the moment he arrived, as the man for the occasion. We believed that he, of all men on earth, had been preserved by Divine Providence to guide us out of our difficulties, and we Democrats rallied under Clay then, as you Whigs in Nullification time rallied under the banner of old Jackson, forgetting party when the country was in danger, in order that we might have a country first, and parties afterward.

And this reminds me that Mr. Lincoln told you that the slavery question was the only thing that ever disturbed the peace and harmony of the Union. Did not Nullification once raise its head and disturb the peace of this Union in 1832? Was that the slavery question, Mr. Lincoln? Did not disunion raise its monster head during the last war with Great Britain? Was that the slavery question, Mr. Lincoln? The peace of this country has been disturbed three times, once during the war with Great Britain, once on the tariff question, and once on the slavery question. His argument therefore that slavery is the only question that has ever created dissension in the Union falls to the ground. It is true that agitators are enabled now to use this slavery question for the purpose of sectional strife. He admits that in regard to all things else, the principle that I advocate, making each State and Territory free to decide for itself, ought to prevail. He instances the cranberry laws and the oyster laws, and he might have gone through the whole list with the same effect. I say that all these laws are local and domestic, and that local and domestic concerns should be left to each State and each Territory to manage for itself. If agitators would acquiesce in that principle, there never would be any danger to the peace and harmony of the Union.

Mr. Lincoln tries to avoid the main issue by attacking the truth of my proposition, that our fathers made this government divided into Free and Slave States, recognizing the right of each to decide all its local questions for itself. Did they not thus make it? It is true that they did not establish slavery in any of the States, or abolish it in any of them; but finding thirteen States, twelve of which were slave and one free, they agreed to form a

government uniting them together as they stood, divided into Free and Slave States, and to guarantee forever to each State the right to do as it pleased on the slavery question. Having thus made the government, and conferred this right upon each State forever, I assert that this government can exist as they made it, divided into Free and Slave States, if any one State chooses to retain slavery. He says that he looks forward to a time when slavery shall be abolished everywhere. I look forward to a time when each State shall be allowed to do as it pleases. If it chooses to keep slavery forever, it is not my business, but its own; if it chooses to abolish slavery, it is its own business,—not mine. I care more for the great principle of self-government, the right of the people to rule, than I do for all the negroes in Christendom. I would not endanger the perpetuity of this Union, I would not blot out the great inalienable rights of the white men, for all the negroes that ever existed. Hence, I say, let us maintain this government on the principles that our fathers made it on, recognizing the right of each State to keep slavery as long as its people determine, or to abolish it when they please. But Mr. Lincoln says that when our fathers made this government they did not look forward to the state of things now existing, and therefore he thinks the doctrine was wrong; and he quotes Brooks, of South Carolina, to prove that our fathers then thought that probably slavery would be abolished by each State acting for itself before this time. Suppose they did; suppose they did not foresee what has occurred,—does that change the principles of our government? They did not probably foresee the telegraph that transmits intelligence by lightning, nor did they foresee the railroads that now form the bonds of union between the different States, or the thousand mechanical inventions that have elevated mankind. But do these things change the principles of the government? Our fathers, I say, made this government on the principle of the right of each State to do as it pleases in its own domestic affairs, subject to the Constitution, and allowed the people of each to apply to every new change of circumstances such remedy as they may see fit to improve their condition. This right they have for all time to come.

Mr. Lincoln went on to tell you that he does not at all desire to interfere with slavery in the States where it exists, nor does his party. I expected him to say that down here. Let me ask him, then, how he expects to put slavery in the course of ultimate extinction everywhere, if he does not intend to interfere with it in the States where it exists? He says that he will prohibit it

in all Territories, and the inference is, then, that unless they make Free States out of them he will keep them out of the Union; for, mark you, he did not say whether or not he would vote to admit Kansas with slavery or not, as her people might apply (he forgot that, as usual, etc.); he did not say whether or not he was in favor of bringing the Territories now in existence into the Union on the principle of Clay's Compromise Measures on the slavery question. I told you that he would not. His idea is that he will prohibit slavery in all the Territories, and thus force them all to become Free States, surrounding the Slave States with a cordon of Free States, and hemming them in, keeping the slaves confined to their present limits whilst they go on multiplying, until the soil on which they live will no longer feed them, and he will thus be able to put slavery in a course of ultimate extinction by starvation. He will extinguish slavery in the Southern States as the French general exterminated the Algerines when he smoked them out. He is going to extinguish slavery by surrounding the Slave States, hemming in the slaves, and starving them out of existence, as you smoke a fox out of his hole. He intends to do that in the name of humanity and Christianity, in order that we may get rid of the terrible crime and sin entailed upon our fathers of holding slaves. Mr. Lincoln makes out that line of policy, and appeals to the moral sense of justice and to the Christian feeling of the community to sustain him. He says that any man who holds to the contrary doctrine is in the position of the king who claimed to govern by divine right. Let us examine for a moment and see what principle it was that overthrew the divine right of George the Third to govern us. Did not these Colonies rebel because the British Parliament had no right to pass laws concerning our property and domestic and private institutions without our consent? We demanded that the British Government should not pass such laws unless they gave us representation in the body passing them; and this the British Government insisting on doing, we went to war, on the principle that the Home Government should not control and govern distant colonies without giving them a representation. Now, Mr. Lincoln proposes to govern the Territories without giving them a representation, and calls on Congress to pass laws controlling their property and domestic concerns without their consent and against their will. Thus, he asserts for his party the identical principle asserted by George III. and the Tories of the Revolution.

I ask you to look into these things and then tell me whether the Democracy or the Abolitionists are right. I hold that the people of a

Territory, like those of a State (I use the language of Mr. Buchanan in his Letter of Acceptance), have the right to decide for themselves whether slavery shall or shall not exist within their limits. The point upon which Chief Justice Taney expresses his opinion is simply this, that slaves, being property, stand on an equal footing with other property, and consequently that the owner has the same right to carry that property into a Territory that he has any other, subject to the same conditions. Suppose that one of your merchants was to take fifty or one hundred thousand dollars' worth of liquors to Kansas. He has a right to go there, under that decision; but when he gets there he finds the Maine liquor law in force, and what can he do with his property after he gets it there? He cannot sell it, he cannot use it; it is subject to the local law, and that law is against him, and the best thing he can do with it is to bring it back into Missouri or Illinois and sell it. If you take negroes to Kansas, as Colonel Jefferson Davis said in his Bangor speech, from which I have quoted to-day, you must take them there subject to the local law. If the people want the institution of slavery, they will protect and encourage it; but if they do not want it they will withhold that protection, and the absence of local legislation protecting slavery excludes it as completely as a positive prohibition. You slaveholders of Missouri might as well understand what you know practically, that you cannot carry slavery where the people do not want it. All you have a right to ask is that the people shall do as they please: if they want slavery, let them have it; if they do not want it, allow them to refuse to encourage it.

My friends, if, as I have said before, we will only live up to this great fundamental principle, there will be peace between the North and the South. Mr. Lincoln admits that, under the Constitution, on all domestic questions, except slavery, we ought not to interfere with the people of each State. What right have we to interfere with the people of each State? What right have we to interfere with slavery any more than we have to interfere with any other question? He says that this slavery question is now the bone of contention. Why? Simply because agitators have combined in all the Free States to make war upon it. Suppose the agitators in the States should combine in one half of the Union to make war upon the railroad system of the other half? They would thus be driven to the same sectional strife. Suppose one section makes war upon any other particular institution of the opposite section, and the same strife is produced. The only remedy and safety is that we shall stand by the Constitution as our fathers made it, obey

the laws as they are passed, while they stand the proper test, and sustain the decisions of the Supreme Court and the constituted authorities.

APPENDIX B

THE LINCOLN-DOUGLAS DEBATE AT ALTON

(Prepared as an exercise in briefing by a class in written argumentation)

Senator Douglas's Speech

Proposition: Vote for Douglas and the Democratic Party

Introduction

Douglas states that there are three points at issue between Lincoln and himself:

1. Whether the Union can exist half slave and half free.
2. Whether the Supreme Court was in error in the Dred Scott Decision.
3. Whether the Declaration of Independence included the negroes.

Proof

Proposition: (Repeated) Vote for Douglas and the Democratic Party, because

- A. The Republican creed is wrong for the reason that it cannot be advocated everywhere, for
 - I. Any creed is radically wrong that cannot be proclaimed alike in every state in the Union.
- B. Refutation: The argument that this government cannot exist half slave and half free is unsound, for
 - I. Each state decides upon its own institutions, for
 - a. Each state is sovereign.
 - II. If the makers of the Constitution had believed Lincoln's doctrine, they would have made a provision establishing slavery, for
 - a. At that time twelve out of thirteen states were slave holding states.

- III. It would be unjust for the Northern states to attack slavery in the slave states, for
 - a. When the free states were in the minority the slave states did not interfere with them.
 - b. It would violate the sovereignty of the states which is guaranteed them in the Constitution.
- C. Lincoln is undecided about the admission of more slave states, for
 - I. He would not answer at Ottawa.
 - II. At Freeport he said he would be very sorry to be put in a position to decide that question.
 - III. He has not answered my question directly, for
 - a. His answer depended upon whether slavery had been kept out during the state's whole territorial existence, etc.
 - IV. He has not said, and will not say, whether, if elected to Congress, he will vote to admit any territory now in existence with such a Constitution as her people may provide.
 - V. He will not say whether he will redeem our pledge with Texas.
- D. Douglas takes a clear and just stand on these questions, for
 - I. He plainly states that he will let the people of any territory come into the Union slave or free as they decide.
- E. Douglas has stood by the principles he advocated, for
 - I. He opposed the Lecompton Constitution because it did not represent the will of the people, for
 - a. When it was submitted to the people of Kansas last August it was rejected by a vote of ten to one.
 - II. He refused to support the English bill, for
 - a. He was right and honest in his opposition to the Lecompton Constitution.
 - b. He believed that whenever Kansas had enough people for a slave state she had enough people for a free state but the English bill was directly opposed to this principle, for
 - 1. The bill provided that if Kansas came in as a slave state it would be admitted with a population of 35,000, but if it desired admission as a free state it must have 93,420 inhabitants.
 - III. He opposes the attempt on the part of the Executive to control the Senate, for
 - a. It will lead to despotism.
 - IV. He stands on the same platform now that he stood on in 1850, 1854, and 1856, for
 - a. Even the Washington Union admits this.
- F. The principle of letting the people of each state decide for themselves about slavery is the right principle, for
 - I. It is the principle advocated by our leading statesmen and patriots, for
 - a. James Buchanan advocates it, for

1. He said so in his letter of acceptance after he received the Democratic nomination for the Presidency in 1856.
 - b. Chief Justice Taney does not deny this principle.
 - c. The Honorable Jefferson Davis took the same view in his speech at Bangor, Maine.
 - d. The Speaker of the House, Mr. Orr, holds the same view.
 - e. Alex. H. Stephens puts the same construction upon it that Douglas does.
- II. The people believe it is right, for
- a. The people made James Buchanan president on this same principle.
- III. It is the principle that can bring peace to the Union, for
- a. If the people of all the states will act on this great principle, and each state mind its own business, take care of its own negroes, and not meddle with its neighbors, there will be no cause for dissension.

Conclusion

- A. A plea for peace by adopting the principles presented in the proof.
- B. A denunciation of those who seek to turn this public controversy to their own personal advantage.

MR. LINCOLN'S REPLY

Proposition: Vote for Lincoln and the Republican party.

Introduction

- A. Lincoln advises Judge Douglas to continue the war upon the other wing of his party.
- B. Douglas should not make too much of Buchanan's inconsistency because he is inconsistent himself, for he once championed the Missouri Compromise but now he opposes it.

Proof

Proposition: (Repeated) Vote for Lincoln and the Republican party, because

- A. Refutation: The statement that I have complained that the Supreme Court in the Dred Scott case had decided that a negro could never be a citizen of the United States is untrue, for
 - I. No such idea can be found in my speech.
 - II. The truth is that I mentioned the Dred Scott Decision only as part of a conspiracy to make slavery national.
- B. Douglas misrepresents my position on the Declaration of Independence, for
 - I. He has garbled my Chicago speech, for
 - a. He omitted between two quotations four sentences necessary to my meaning.

II. Douglas has taken no notice of an extract from my Springfield speech in which my views are clearly expressed.

III. My position is the same as that of Henry Clay, for

- a. Clay declared the Declaration as an abstract principle is true and the new proposition of the Dred Scott Decision is intended to make the negro nothing but property in all the states.
- b. Refutation: The statement that Henry Clay held that the negro was not included in the Declaration of Independence is untrue, for
 1. He never expressed this belief.
 2. The speech referred to in the Chicago Times as showing that this was Mr. Clay's view shows precisely the opposite view, for
 - (a) He says that it is true as an abstract principle that all men are created equal, but that we cannot practically apply it in all cases.

C. Lincoln still says that the proposition that "A house divided against itself cannot stand" is true, for

I. The agitation over slavery will not cease, for

- a. Douglas' Kansas-Nebraska bill has stirred up the whole discussion again, for
 1. Although the Kansas-Nebraska bill was declared to be the end it has stirred up strife in the last Congress and throughout the entire country.
- b. In its pretense to confer local self-government the Kansas-Nebraska bill proved to be a lie.

II. The framers of the Constitution hoped to put slavery in a course of extinction, for

- a. They provided that the slave trade should cease after twenty years.
- b. The Constitution does not contain the words "slavery" or "negro race," for
 1. Its framers thought slavery a temporary thing.
 2. Fugitive slaves are not mentioned.
 3. The representation clause avoids using these words.

III. Refutation: The statement that the framers of the Constitution introduced slavery is not true, for

- a. They found it but marked it with their disapproval.

IV. Lincoln wishes to return to the policy of the framers of the Constitution, for

- a. Refutation: The charge that the Constitution has stirred up this agitation over slavery is false, for
 1. The agitation has been stirred up by Judge Douglas and his friends.
- b. Other local laws have not caused strife, for
 1. The cranberry laws of Indiana caused no strife.
 2. The oyster laws of Virginia have not caused strife.
- c. The slave traffic has caused trouble whenever it has attempted to extend itself, for

1. The Missouri Compromise and the Annexation of Texas prove this.
 2. Slavery has divided political parties and churches.
- D. The real issue between Lincoln and Douglas is not as to states, it is whether Congress shall exclude slavery from the territories while in a territorial condition, for
- I. I agree with Douglas that the states have a right to determine for themselves about slavery.
 - II. I differ from Douglas as to the right of the people to take slaves into the territories of the United States, for
 - a. We must preserve the territories for free white people the world over.
- E. Fundamentally this controversy means that the Republicans believe slavery to be wrong and the Democrats believe it to be right, for
- I. The Republicans insist that slavery shall grow no larger.
 - II. The Democrats never treat slavery as wrong, for
 - a. When the proposition to abolish slavery in Missouri failed the Democrats rejoiced.
 - b. Douglas, unlike Clay, does not care whether slavery is voted up or down.
 - c. Douglas looks to no end of the institution of slavery.
 - d. Douglas has been the most prominent instrument in placing slavery upon "Brooks' cotton-gin basis" where he openly confesses he has no desire to see it ended.
- F. Judge Douglas' position on the Dred Scott Decision is a doctrine of lawlessness, for
- I. Before the Dred Scott decision Douglas said constantly, that whether or not the people of the territories could exclude slavery was a question for the Supreme Court to decide. Now he says it is not a question for the Supreme Court, but for the people.
 - II. Douglas's doctrine of local police regulation is contrary to the Constitution, for
 - a. The territories cannot withhold the legislation which a man needs for the enjoyment of a right fixed in his favor by the Constitution.
 - III. If such a right as Judge Douglas holds to be a right really exists then the fugitive slave law can be made of no effect by the same kind of action.

MR. DOUGLAS'S REJOINDER

Proposition: Vote for Douglas and the Democratic party, because

- A. Mr. Lincoln's tendency is toward abolitionism.
- B. Lincoln's course in Congress with reference to the Mexican War was unpatriotic, for
- I. He voted that it was unnecessary, unconstitutional, and unjust, after it had been begun.
- C. Refutation: Lincoln's claim to be an old line Clay Whig is false, for
- I. In a caucus in 1847 Lincoln wanted to throw Henry Clay overboard and take up General Taylor in his place.
 - II. Lincoln was the bitter enemy of Clay in the National Convention at Philadelphia.
 - III. Singleton says that Lincoln rejoiced greatly at Clay's defeat.
 - IV. Lincoln never supported any of Clay's policies, for

- a. Lincoln voted forty-two times for the Wilmot Proviso, whereas Clay opposed it.
- D. Refutation: Lincoln's statement that the slavery question is the only thing that ever threatened the Union is false, for
 - I. Nullification threatened the Union in 1832.
 - II. In 1813 the Hartford Convention threatened the Union.
- E. The fathers made this government divided into free and slave states, recognizing the right of each to decide all its local questions for itself, for
 - I. They did not abolish or establish slavery in any of the states.
 - II. Refutation: The statement that conditions have changed does not affect the question, for
 - a. Changed conditions do not change the principles of the government.
- F. Lincoln advocates the identical principle asserted by George III and the Tories of the Revolution, for
 - I. He wants Congress to pass laws controlling the property and domestic concerns of the people in the territories, without their consent and against their will.
- G. Douglas's principle of local option on the slavery question is sufficient to preserve peace, for
 - I. It preserves peace on all other local questions.

Conclusion

The only remedy and safety is that we stand by the Constitution as our fathers made it, obey the laws as they are passed, while they stand the proper test, and sustain the decisions of the Supreme Court and the constituted authorities.

APPENDIX C

LINCOLN'S ADDRESS AT COOPER INSTITUTE

[FEBRUARY 27, 1860]

MR. PRESIDENT AND FELLOW-CITIZENS OF NEW YORK: The facts with which I shall deal this evening are mainly old and familiar; nor is there anything new in the general use I shall make of them. If there shall be any novelty, it will be in the mode of presenting the facts, and the inferences and observations following that presentation. In his speech last Autumn at Columbus, Ohio, as reported in the New York "Times," Senator Douglas said:

"Our fathers, when they framed the government under which we live, understood this question just as well, and even better, than we do now."

I fully indorse this, and I adopt it as a text for this discourse. I so adopt it because it furnishes a precise and an agreed starting-point for a discussion between Republicans and that wing of the Democracy headed by Senator Douglas. It simply leaves the inquiry: What was the understanding those fathers had of the question mentioned?

What is the frame of government under which we live? The answer must be, "The Constitution of the United States." That Constitution consists of the original, framed in 1787, and under which the present government first went into operation, and twelve subsequently framed amendments, the first ten of which were framed in 1789.

Who were our fathers that framed the Constitution? I suppose the "thirty-nine" who signed the original instrument may be fairly called our fathers who framed that part of the present government. It is almost exactly true to say they framed it, and it is altogether true to say they fairly represented the opinion and sentiment of the whole nation at that time. Their names, being familiar to nearly all, and accessible to quite all, need not now be repeated.

I take these “thirty-nine,” for the present, as being “our fathers who framed the government under which we live.” What is the question which, according to the text, those fathers understood “just as well, and even better, than we do now”?

It is this: Does the proper division of local from Federal authority, or anything in the Constitution, *forbid* our Federal Government to control as to slavery in our Federal Territories?

Upon this, Senator Douglas holds the affirmative, and Republicans the negative. This affirmation and denial form an issue; and this issue—this question—is precisely what the text declares our fathers understood “better than we”. Let us now inquire whether the “thirty-nine,” or any of them, ever acted upon this question; and if they did, how they acted upon it—*how they expressed that better understanding*. In 1784, three years before the Constitution, the United States then owning the Northwestern Territory, and no other, the Congress of the Confederation had before them the question of prohibiting slavery in that Territory, and four of the “thirty-nine” who afterward framed the Constitution were in that Congress, and voted on that question. Of these, Roger Sherman, Thomas Mifflin, and Hugh Williamson voted for the prohibition, thus showing that, in their understanding, no line dividing local from Federal authority, nor anything else, properly forbade the Federal Government to control as to slavery in Federal territory. The other of the four, James McHenry, voted against the prohibition, showing that for some cause he thought it improper to vote for it.

In 1787, still before the Constitution, but while the convention was in session framing it, and while the Northwestern Territory still was the only Territory owned by the United States, the same question of prohibiting slavery in the Territory again came before the Congress of the Confederation; and two more of the “thirty-nine” who afterward signed the Constitution were in that Congress, and voted on the question. They were William Blount and William Few; and they both voted for the prohibition—thus showing that in their understanding no line dividing local from Federal authority, nor anything else, properly forbade the Federal Government to control as to slavery in Federal territory. This time the prohibition became a law, being part of what is now well known as the Ordinance of ’87.

The question of Federal control of slavery in the Territories seems not to have been directly before the convention which framed the original

Constitution; and hence it is not recorded that the “thirty-nine,” or any of them, while engaged on that instrument, expressed any opinion on that precise question.

In 1789, by the first Congress which sat under the Constitution, an act was passed to enforce the ordinance of '87, including the prohibition of slavery in the Northwestern Territory. The bill for this act was reported by one of the “thirty-nine”—Thomas Fitzsimmons, then a member of the House of Representatives from Pennsylvania. It went through all its stages without a word of opposition, and finally passed both branches without ayes and nays, which is equivalent to a unanimous passage. In this Congress there were sixteen of the thirty-nine fathers who framed the original Constitution. They were John Langdon, Nicholas Gilman, Wm. S. Johnson, Roger Sherman, Robert Morris, Thos. Fitzsimmons, William Few, Abraham Baldwin, Rufus King, William Patterson, George Clymer, Richard Bassett, George Read, Pierce Butler, Daniel Carroll, and James Madison.

This shows that, in their understanding, no line dividing local from Federal authority, nor anything in the Constitution, properly forbade Congress to prohibit slavery in the Federal territory; else both their fidelity to correct principle, and their oath to support the Constitution, would have constrained them to oppose the prohibition.

Again, George Washington, another of the “thirty-nine,” was then President of the United States, and as such approved and signed the bill, thus completing its validity as a law, and thus showing that, in his understanding, no line dividing local from Federal authority, nor anything in the Constitution, forbade the Federal Government to control as to slavery in Federal territory.

No great while after the adoption of the original Constitution, North Carolina ceded to the Federal Government the country now constituting the State of Tennessee; and a few years later Georgia ceded that which now constitutes the States of Mississippi and Alabama. In both deeds of cession it was made a condition by the ceding States that the Federal government should not prohibit slavery in the ceded country. Besides this, slavery was then actually in the ceded country. Under these circumstances, Congress, on taking charge of these countries, did not absolutely prohibit slavery within them. But they did interfere with it—take control of it—even there, to a certain extent. In 1798 Congress organized the Territory of Mississippi. In

the act of organization they prohibited the bringing of slaves into the Territory from any place without the United States, by fine, and giving freedom to slaves so brought. This act passed both branches of Congress without yeas and nays. In that Congress were three of the “thirty-nine” who framed the original Constitution. They were John Langdon, George Read, and Abraham Baldwin. They all probably voted for it. Certainly they would have placed their opposition to it upon record if, in their understanding, any line dividing local from Federal authority, or anything in the Constitution, properly forbade the Federal Government to control as to slavery in Federal Territory.

In 1803 the Federal Government purchased the Louisiana country. Our former territorial acquisitions came from certain of our own States; but this Louisiana country was acquired from a foreign nation. In 1804 Congress gave a territorial organization to that part of it which now constitutes the State of Louisiana. New Orleans, lying within that part, was an old and comparatively large city. There were other considerable towns and settlements and slavery was extensively and thoroughly intermingled with the people. Congress did not, in the Territorial Act, prohibit slavery; but they did interfere with it—take control of it—in a more marked and extensive way than they did in the case of Mississippi. The substance of the provision therein made in relation to slaves was:

1st. That no slave should be imported into the Territory from foreign parts.

2d. That no slave should be carried into it who had been imported into the United States since the first day of May, 1798.

3d. That no slave should be carried into it, except by the owner, and for his own use as a settler; the penalty in all cases being a fine upon the violator of the law, and freedom to the slave.

This act also was passed without ayes or nays. In the Congress which passed it there were two of the “thirty-nine.” They were Abraham Baldwin and Jonathan Dayton. As stated in the case of Mississippi, it is probable they both voted for it. They would not have allowed it to pass without recording their opposition to it if, in their understanding, it violated either the line properly dividing local from Federal authority, or any provision of the Constitution.

In 1819–20 came and passed the Missouri question. Many votes were taken, by yeas and nays, in both branches of Congress, upon the various phases of the general question. Two of the “thirty-nine”—Rufus King and Charles Pinckney—were members of that Congress. Mr. King steadily voted for slavery prohibition and against all compromises, while Mr. Pinckney as steadily voted against slavery prohibition and against all compromises. By this, Mr. King showed that, in his understanding, no line dividing local from Federal authority, nor anything in the Constitution, was violated by Congress prohibiting slavery in Federal territory; while Mr. Pinckney, by his votes, showed that, in his understanding, there was some sufficient reason for opposing such prohibition in that case.

The cases I have mentioned are the only acts of the “thirty-nine,” or of any of them upon the direct issue, which I have been able to discover.

To enumerate the persons who thus acted as being four in 1784, two in 1787, seventeen in 1789, three in 1798, two in 1804, and two in 1819–20, there would be thirty of them. But this would be counting John Langdon, Roger Sherman, William Few, Rufus King, and George Read each twice, and Abraham Baldwin three times. The true number of those of the “thirty-nine” whom I have shown to have acted upon the question which, by the text, they understood better than we, is twenty-three, leaving sixteen not shown to have acted upon it in any way.

Here, then, we have twenty-three out of our thirty-nine fathers “who framed the government under which we live,” who have, upon their official responsibility and their corporal oaths, acted upon the very question which the text affirms they “understood just as well, and even better, than we do now”; and twenty-one of them—a clear majority of the whole “thirty-nine”—so acting upon it as to make them guilty of gross political impropriety and wilful perjury if, in their understanding, any proper division between local and Federal authority, or anything in the Constitution they had made themselves, and sworn to support, forbade the Federal Government to control as to slavery in the Federal Territories. Thus the twenty-one acted; and, as actions speak louder than words, so actions under such responsibility speak still louder.

Two of the twenty-three voted against Congressional prohibition of slavery in the Federal Territories, in the instances in which they acted upon the question. But for what reasons they so voted is not known. They may

have done so because they thought a proper division of local from Federal authority, or some provision or principle of the Constitution, stood in the way; or they may, without any such question, have voted against the prohibition on what appeared to them to be sufficient grounds of expediency. No one who has sworn to support the Constitution can conscientiously vote for what he understands to be an unconstitutional measure, however expedient he may think it; but one may and ought to vote against a measure which he deems constitutional if, at the same time, he deems it inexpedient. It, therefore, would be unsafe to set down even the two who voted against the prohibition as having done so because, in their understanding, any proper division of local from Federal authority, or anything in the Constitution, forbade the Federal Government to control as to slavery in Federal territory.

The remaining sixteen of the “thirty-nine,” so far as I have discovered, have left no record of their understanding upon the direct question of Federal control of slavery in the Federal Territories. But there is much reason to believe that their understanding upon that question would not have appeared different from that of their twenty-three compeers, had it been manifested at all.

For the purpose of adhering rigidly to the text, I have purposely omitted whatever understanding may have been manifested by any person, however distinguished, other than the thirty-nine fathers who framed the original Constitution; and, for the same reason, I have also omitted whatever understanding may have been manifested by any of the “thirty-nine” even on any other phase of the general question of slavery. If we should look into their acts and declarations on those other phases, as the foreign slave-trade, and the morality and policy of slavery generally, it would appear to us that on the direct question of Federal control of slavery in Federal Territories, the sixteen, if they had acted at all, would probably have acted just as the twenty-three did. Among that sixteen were several of the most noted anti-slavery men of those times—as Dr. Franklin, Alexander Hamilton, and Gouverneur Morris—while there was not one now known to have been otherwise, unless it may be John Rutledge, of South Carolina.

The sum of the whole is that of our thirty-nine fathers who framed the original Constitution, twenty-one—a clear majority of the whole—certainly understood that no proper division of local from Federal Authority, nor any

part of the Constitution, forbade the Federal Government to control slavery in the Federal Territories; while all the rest had probably the same understanding. Such, unquestionably, was the understanding of our fathers who framed the original Constitution; and the text affirms that they understood the question “better than we.”

But, so far, I have been considering the understanding of the question manifested by the framers of the original Constitution. In and by the original instrument, a mode was provided for amending it; and, as I have already stated, the present frame of “the government under which we live” consists of that original, and twelve amendatory articles framed and adopted since. Those who now insist that Federal control of slavery in Federal Territories violates the Constitution, point us to the provisions which they suppose it thus violates; and, as I understand, they all fix upon provisions in these amendatory articles, and not in the original instrument. The Supreme Court, in the Dred Scott case, plant themselves upon the fifth amendment, which provides that no person shall be deprived of “life, liberty, or property without due process of law”; while Senator Douglas and his peculiar adherents plant themselves upon the tenth amendment, providing that “the powers not delegated to the United States by the Constitution” “are reserved to the States respectively, or to the people.”

Now it so happens that these amendments were framed by the first Congress which sat under the Constitution—the identical Congress which passed the act, already mentioned, enforcing the prohibition of slavery in the Northwestern Territory. Not only was it the same Congress, but they were the identical, same individual men who, at the same session, and at the same time within the session, had under consideration, and in progress toward maturity, these constitutional amendments, and this act prohibiting slavery in all the territory the nation then owned. The constitutional amendments were introduced before, and passed after the act enforcing the ordinance of '87; so that, during the whole pendency of the act to enforce the ordinance, the constitutional amendments were also pending.

The seventy-six members of that Congress, including sixteen of the framers of the original Constitution, as before stated, were pre-eminently our fathers who framed that part of “the government under which we live” which is now claimed as forbidding the Federal Government to control slavery in the Federal Territories.

Is it not a little presumptuous in anyone at this day to affirm that the two things which that Congress deliberately framed, and carried to maturity at the same time, are absolutely inconsistent with each other? And does not such affirmation become impudently absurd when coupled with the other affirmation, from the same mouth, that those who did the two things alleged to be inconsistent, understood whether they really were inconsistent better than we—better than he who affirms that they are inconsistent?

It is surely safe to assume that the thirty-nine framers of the original Constitution, and the seventy-six members of the Congress which framed the amendments thereto, taken together, do certainly include those who may be fairly called “our fathers who framed the government under which we live.” And so assuming, I defy any man to show that any one of them ever, in his whole life, declared that, in his understanding, any proper division of local from Federal authority, or any part of the Constitution, forbade the Federal Government to control as to slavery in the Federal Territories. I go a step further. I defy anyone to show that any living man in the world ever did, prior to the beginning of the present century (and I might almost say prior to the beginning of the last half of the present century), declare that, in his understanding, any proper division of local from Federal authority, or any part of the Constitution, forbade the Federal Government to control as to slavery in the Federal Territories. To those who now so declare I give not only “our fathers who framed the government under which we live,” but with them all other living men within the century in which it was framed, among whom to search, and they shall not be able to find the evidence of a single man agreeing with them.

Now, and here, let me guard a little against being misunderstood. I do not mean to say we are bound to follow implicitly in whatever our fathers did. To do so would be to discard all the lights of current experience—to reject all progress, all improvement. What I do say is that if we would supplant the opinions and policy of our fathers in any case, we should do so upon evidence so conclusive, and argument so clear, that even their great authority, fairly considered and weighed, cannot stand; and most surely not in a case whereof we ourselves declare they understood the question better than we.

If any man at this day sincerely believes that a proper division of local from Federal authority, or any part of the Constitution, forbids the Federal

Government to control as to slavery in the Federal Territories, he is right to say so, and to enforce his position by all truthful evidence and fair argument which he can. But he has no right to mislead others, who have less access to history, and less leisure to study it, into the false belief that “our fathers who framed the government under which we live” were of the same opinion—thus substituting falsehood and deception for truthful evidence and fair argument. If any man at this day sincerely believes “our fathers who framed the government under which we live” used and applied principles, in other cases, which ought to have led them to understand that a proper division of local from Federal authority, or some part of the Constitution, forbids the Federal Government to control as to slavery in the Federal Territories, he is right to say so. But he should, at the same time, brave the responsibility of declaring that, in his opinion, he understands their principles better than they did themselves; and especially should he not shirk that responsibility by asserting that they “understood the question just as well, and even better, than we do now.”

But enough! Let all who believe that “our fathers who framed the government under which we live understood this question just as well, and even better, than we do now,” speak as they spoke, and act as they acted upon it. This is all Republicans ask—all Republicans desire—in relation to slavery. As those fathers marked it, so let it be again marked, as an evil not to be extended, but to be tolerated and protected only because of and so far as its actual presence amongst us makes that toleration and protection a necessity. Let all the guaranties those fathers gave it be not grudgingly, but fully and fairly maintained. For this Republicans contend, and with this, so far as I know or believe, they will be content.

And now, if they would listen—as I suppose they will not—I would address a few words to the Southern people.

I would say to them: You consider yourselves a reasonable and a just people; and I consider that in the general qualities of reason and justice you are not inferior to any other people. Still, when you speak of us Republicans, you do so only to denounce us as reptiles, or, at the best, as no better than outlaws. You will grant a hearing to pirates or murderers, but nothing like it to “Black Republicans.” In all your contentions with one another, each of you deems an unconditional condemnation of “Black Republicanism,” as the first thing to be attended to. Indeed, such

condemnation of us seems to be an indispensable prerequisite—license, so to speak—among you to be admitted or permitted to speak at all. Now can you or not be prevailed upon to pause and to consider whether this is quite just to us, or even to yourselves? Bring forward your charges and specifications, and then be patient long enough to hear us deny or justify.

You say we are sectional. We deny it. That makes an issue; and the burden of proof is upon you. You produce your proof; and what is it? Why, that our party has no existence in your section—gets no votes in your section. The fact is substantially true; but does it prove the issue? If it does, then in case we should, without change of principle, begin to get votes in your section, we should thereby cease to be sectional. You cannot escape this conclusion; and yet, are you willing to abide by it? If you are, you will probably soon find that we have ceased to be sectional, for we shall get votes in your section this very year. You will then begin to discover, as the truth plainly is, that your proof does not touch the issue. The fact that we get no votes in your section is a fact of your making, and not of ours. And if there be fault in that fact, that fault is primarily yours, and remains so until you show that we repel you by some wrong principle or practice. If we do repel you by any wrong principle or practice, the fault is ours; but this brings you to where you ought to have started—to a discussion of the right or wrong of our principle. If our principle, put in practice, would wrong your section for the benefit of ours, or for any other object, then our principle, and we with it, are sectional, and are justly opposed and denounced as such. Meet us, then, on the question of whether our principle, put in practice, would wrong your section; and so meet us as if it were possible that something may be said on your side. Do you accept the challenge? No! Then you really believe that the principle which “our fathers who framed the government under which we live” thought so clearly right as to adopt it, and indorse it again and again, upon their official oaths, is in fact so clearly wrong as to demand your condemnation without a moment’s consideration.

Some of you delight to flaunt in our faces the warning against sectional parties given by Washington in his Farewell Address. Less than eight years before Washington gave that warning, he had, as President of the United States, approved and signed an act of Congress enforcing the prohibition of slavery in the Northwestern Territory, which act embodied the policy of the government upon that subject up to and at the very moment he penned that

warning; and about one year after he penned it, he wrote Lafayette that he considered that prohibition a wise measure, expressing in the same connection his hope that we should at some time have a confederacy of free States.

Bearing this in mind, and seeing that sectionalism has since arisen upon this same subject, is that warning a weapon in your hands against us, or in our hands against you? Could Washington himself speak, would he cast the blame of that sectionalism upon us, who sustain his policy, or upon you, who repudiate it? We respect that warning of Washington, and we commend it to you, together with his example pointing to the right application of it.

But you say you are conservative—eminently conservative—while we are revolutionary, destructive, or something of the sort. What is conservatism? Is it not adherence to the old and tried, against the new and untried? We stick to, contend for, the identical old policy on the point in controversy which was adopted by “our fathers who framed the government under which we live”; while you with one accord reject, and scout, and spit upon that old policy, and insist upon substituting something new. True, you disagree among yourselves as to what that substitute shall be. You are divided on new propositions and plans, but you are unanimous in rejecting and denouncing the old policy of the fathers. Some of you are for reviving the foreign slave-trade; some for a Congressional slave code for the Territories; some for Congress forbidding the Territories to prohibit slavery within their limits; some for maintaining slavery in the Territories through the judiciary; some for the “gur-reat pur-rinciple” that “if one man would enslave another, no third man should object,” fantastically called “popular sovereignty,” but never a man among you is in favor of Federal prohibition of slavery in Federal Territories, according to the practice of “our fathers who framed the government under which we live.” Not one of all your various plans can show a precedent or an advocate in the century within which our government originated. Consider, then, whether your claim of conservatism for yourselves, and your charge of destructiveness against us, are based on the most clear and stable foundations.

Again, you say we have made the slavery question more prominent than it formerly was. We deny it. We admit that it is more prominent, but we deny that we made it so. It was not we, but you, who discarded the old policy of the fathers. We resisted, and still resist, your innovation; and

thence comes the greater prominence of the question. Would you have that question reduced to its former proportions? Go back to that old policy. What has been will be again, under the same conditions. If you would have the peace of the old times, re-adopt the precepts and policy of the old times.

You charge that we stir up insurrections among your slaves. We deny it; and what is your proof? Harper's Ferry! John Brown!! John Brown was no Republican; and you have failed to implicate a single Republican in his Harper's Ferry enterprise. If any member of our party is guilty in that matter, you know it or you do not know it. If you do know it, you are inexcusable for not designating the man and proving the fact. If you do not know it, you are inexcusable for asserting it, and especially for persisting in the assertion after you have tried and failed to make the proof. You need not be told that persisting in a charge which one does not know to be true, is simply malicious slander.

Some of you admit that no Republican designedly aided or encouraged the Harper's Ferry affair, but still insist that our doctrines and declarations necessarily lead to such results. We do not believe it. We know we hold no doctrine, and make no declaration, which were not held to and made by "our fathers who framed the government under which we live." You never dealt fairly by us in relation to this affair. When it occurred, some important State elections were near at hand, and you were in evident glee with the belief that, by charging the blame upon us, you could get an advantage of us in those elections. The elections came, and your expectations were not quite fulfilled. Every Republican man knew that, as to himself at least, your charge was a slander, and he was not much inclined by it to cast his vote in your favor. Republican doctrines and declarations are accompanied with a continual protest against any interference whatever with your slaves, or with you about your slaves. Surely, this does not encourage them to revolt. True, we do, in common with "our fathers who framed the government under which we live," declare our belief that slavery is wrong; but the slaves do not hear us declare even this. For anything we say or do, the slaves would scarcely know there is a Republican party. I believe they would not, in fact, generally know it but for your misrepresentations of us in their hearing. In your political contests among yourselves each faction charges the other with sympathy with Black Republicanism; and then, to give point to the charge, defines Black Republicanism to simply be insurrection, blood, and thunder among the slaves.

Slave insurrections are no more common now than they were before the Republican party was organized. What induced the Southampton insurrection, twenty-eight years ago, in which at least three times as many lives were lost as at Harper's Ferry? You can scarcely stretch your very elastic fancy to the conclusion that Southampton was "got up by Black Republicanism." In the present state of things in the United States, I do not think a general, or even a very extensive, slave insurrection is possible. The indispensable concert of action cannot be attained. The slaves have no means of rapid communication; nor can incendiary freemen, black or white, supply it. The explosive materials are everywhere in parcels; but there neither are, nor can be supplied, the indispensable connecting trains.

Much is said by Southern people about the affection of slaves for their masters and mistresses; and a part of it, at least, is true. A plot for an uprising could scarcely be devised and communicated to twenty individuals before some one of them, to save the life of a favorite master or mistress, would divulge it. This is the rule; and the slave revolution in Hayti was not an exception to it, but a case occurring under peculiar circumstances. The gunpowder plot of British history, though not connected with slaves, was more in point. In that case, only about twenty were admitted to the secret; and yet one of them, in his anxiety to save a friend betrayed the plot to that friend, and, by consequence, averted the calamity. Occasional poisonings from the kitchen, and open or stealthy assassinations in the field, and local revolts extending to a score or so, will continue to occur as the natural results of slavery; but no general insurrection of slaves, as I think, can happen in this country for a long time. Whoever much fears, or much hopes, for such an event, will be alike disappointed.

In the language of Mr. Jefferson, uttered many years ago, "It is still in our power to direct the process of emancipation and deportation peaceably, and in such slow degrees, as that the evil will wear off insensibly; and their places be, *pari passu*, filled up by free white laborers. If, on the contrary, it is left to force itself on, human nature must shudder at the prospect held up."

Mr. Jefferson did not mean to say, nor do I, that the power of emancipation is in the Federal Government. He spoke of Virginia; and, as to the power of emancipation, I speak of the slaveholding States only. The Federal Government, however, as we insist, has the power of restraining the

extension of the institution—the power to insure that a slave insurrection shall never occur on any American soil which is now free from slavery.

John Brown's effort was peculiar. It was not a slave insurrection. It was an attempt by white men to get up a revolt among slaves, in which the slaves refused to participate. In fact, it was so absurd that the slaves, with all their ignorance, saw plainly enough it could not succeed. That affair, in its philosophy, corresponds with the many attempts, related in history, at the assassination of kings and emperors. An enthusiast broods over the oppression of a people till he fancies himself commissioned by Heaven to liberate them. He ventures the attempt which ends in little else than his own execution. Orsini's attempt on Louis Napoleon, and John Brown's attempt at Harper's Ferry, were, in their philosophy, precisely the same. The eagerness to cast blame on old England in the one case, and on New England in the other, does not disprove the sameness of the two things.

And how much would it avail you, if you could by the use of John Brown, Helper's book, and the like, break up the Republican organization? Human action can be modified to some extent, but human nature cannot be changed. There is a judgment and a feeling against slavery in this nation, which cast at least a million and a half of votes. You cannot destroy that judgment and feeling—that sentiment—by breaking up the political organization which rallies around it. You can scarcely scatter and disperse an army which has been formed into order in the face of your heaviest fire; but if you could, how much would you gain by forcing the sentiment which created it out of the peaceful channel of the ballot-box into some other channel? What would that other channel probably be? Would the number of John Browns be lessened or enlarged by the operation?

But you will break up the Union rather than submit to a denial of your constitutional rights.

That has a somewhat reckless sound; but it would be palliated, if not fully justified, were we proposing, by the mere force of numbers, to deprive you of some right plainly written down in the Constitution. But we are proposing no such thing.

When you make these declarations you have a specific and well-understood allusion to an assumed constitutional right of yours to take slaves into the Federal Territories, and to hold them there as property. But no such right is specially written in the Constitution. That instrument is

literally silent about any such right. We, on the contrary, deny that such a right has any existence in the Constitution, even by implication.

Your purpose, then, plainly stated, is that you will destroy the government, unless you be allowed to construe and force the Constitution as you please, on all points in dispute between you and us. You will rule or ruin in all events.

This, plainly stated, is your language. Perhaps you will say the Supreme Court has decided the disputed constitutional question in your favor. Not quite so. But waiving the lawyer's distinction between dictum and decision the court has decided the question for you in a sort of way. The court has substantially said, it is your constitutional right to take slaves into the Federal Territories, and to hold them there as property. When I say the decision was made in a sort of way, I mean it was made in a divided court, by a bare majority of the judges, and they not quite agreeing with one another in the reasons for making it; that it is so made as that its avowed supporters disagree with one another about its meaning, and that it was mainly based upon a mistaken statement of fact—the statement in the opinion that “the right of property in a slave is distinctly and expressly affirmed in the Constitution.”

An inspection of the Constitution will show that the right of property in a slave is not “distinctly and expressly affirmed” in it. Bear in mind, the judges do not pledge their judicial opinion that such right is impliedly affirmed in the Constitution; but they pledge their veracity that it is “distinctly and expressly” affirmed there—“distinctly,” that is, not mingled with anything else—“expressly,” that is in words meaning just that, without the aid of any inference, and susceptible of no other meaning.

If they had only pledged their judicial opinion that such right is affirmed in the instrument by implication, it would be open to others to show that neither the word “slave” nor “slavery” is to be found in the Constitution, nor the word “property” even, in any connection with language alluding to the thing slave, or slavery; and that wherever in that instrument the slave is alluded to, he is called a “person”; and wherever his master's legal right in relation to him is alluded to, it is spoken of as “service or labor which may be due”—as a debt payable in service or labor. Also it would be open to show, by contemporaneous history, that this mode of alluding to slaves and

slavery, instead of speaking of them, was employed on purpose to exclude from the Constitution the idea that there could be property in man.

To show all this is easy and certain.

When this obvious mistake of the judges shall be brought to their notice, is it not reasonable to expect that they will withdraw the mistaken statement, and reconsider the conclusion based upon it?

And then it is to be remembered that “our fathers who framed the government under which we live”—the men who made the Constitution—decided this same constitutional question in our favor long ago; decided it without division among themselves when making the decision; without division among themselves about the meaning of it after it was made, and, so far as any evidence is left, without basing it upon any mistaken statement of facts.

Under all these circumstances, do you really feel yourselves justified to break up this government unless such a court decision as yours is shall be at once submitted to as a conclusive and final rule of political action? But you will not abide the election of a Republican president! In that supposed event, you say, you will destroy the Union; and then, you say, the great crime of having destroyed it will be upon us! That is cool. A highwayman holds a pistol to my ear, and mutters through his teeth, “Stand and deliver, or I shall kill you, and then you will be a murderer!”

To be sure, what the robber demanded of me—my money—was my own; and I had a clear right to keep it; but it was no more my own than my vote is my own; and the threat of death to me, to extort my money, and the threat of destruction to the Union, to extort my vote, can scarcely be distinguished in principle.

A few words now to Republicans. It is exceedingly desirable that all parts of this great Confederacy shall be at peace, and in harmony one with another. Let us Republicans do our part to have it so. Even though much provoked, let us do nothing through passion and ill temper. Even though the Southern people will not so much as listen to us, let us calmly consider their demands, and yield to them if, in our deliberate view of our duty, we possibly can. Judging by all they say and do, and by the subject and nature of their controversy with us, let us determine, if we can, what will satisfy them.

Will they be satisfied if the Territories be unconditionally surrendered to them? We know they will not. In all their present complaints against us, the Territories are scarcely mentioned. Invasions and insurrections are the rage now. Will it satisfy them if, in the future, we have nothing to do with invasions and insurrections? We know it will not. We so know, because we know we never had anything to do with invasions and insurrections; and yet this total abstaining does not exempt us from the charge and the denunciation.

The question recurs, What will satisfy them? Simply this: we must not only let them alone, but we must somehow convince them that we do let them alone. This, we know by experience, is no easy task. We have been so trying to convince them from the very beginning of our organization, but with no success. In all our platforms and speeches we have constantly protested our purpose to let them alone; but this has had no tendency to convince them. Alike unavailing to convince them is the fact that they have never detected a man of us in any attempt to disturb them.

These natural and apparently adequate means all failing, what will convince them? This, and this only: cease to call slavery wrong, and join them in calling it right. And this must be done thoroughly—done in acts as well as in words. Silence will not be tolerated—we must place ourselves avowedly with them. Senator Douglas's new sedition law must be enacted and enforced, suppressing all declarations that slavery is wrong, whether made in politics, in presses, in pulpits, or in private. We must arrest and return their fugitive slaves with greedy pleasure. We must pull down our free State constitutions. The whole atmosphere must be disinfected from all taint of opposition to slavery, before they will cease to believe that all their troubles proceed from us.

I am quite aware they do not state their case precisely in this way. Most of them would probably say to us, "Let us alone; do nothing to us, and say what you please about slavery." But we do let them alone—have never disturbed them—so that, after all, it is what we say which dissatisfies them. They will continue to accuse us of doing, until we cease saying.

I am also aware they have not as yet in terms demanded the overthrow of our free-State constitutions. Yet those constitutions declare the wrong of slavery, with more solemn emphasis than do all other sayings against it; and when all these other sayings shall have been silenced, the overthrow of

these constitutions will be demanded, and nothing be left to resist the demand. It is nothing to the contrary that they do not demand the whole of this just now. Demanding what they do, and for the reason they do, they can voluntarily stop nowhere short of this consummation. Holding, as they do, that slavery is morally right and socially elevating, they cannot cease to demand a full national recognition of it as a legal right and a social blessing.

Nor can we justifiably withhold this on any ground save our conviction that slavery is wrong. If slavery is right, all words, acts, laws, and constitutions against it are themselves wrong, and should be silenced and swept away. If it is right, we cannot justly object to its nationality—its universality; if it is wrong, they cannot justly insist upon its extension—its enlargement. All they ask we could readily grant, if we thought slavery right; all we ask they could as readily grant, if they thought it wrong. Their thinking it right and our thinking it wrong is the precise fact upon which depends the whole controversy. Thinking it right, as they do, they are not to blame for desiring its full recognition as being right; but thinking it wrong, as we do, can we yield to them? Can we cast our votes with their view, and against our own? In view of our moral, social, and political responsibilities, can we do this?

Wrong as we think slavery is, we can yet afford to let it alone where it is, because that much is due to the necessity arising from its actual presence in the nation; but can we, while our votes will prevent it, allow it to spread into the national Territories, and to overrun us here in these free States? If our sense of duty forbids this, then let us stand by our duty fearlessly and effectively. Let us be diverted by none of those sophistical contrivances wherewith we are so industriously plied and belabored—contrivances such as groping for some middle ground between the right and the wrong: vain as the search for a man who should be neither a living man nor a dead man; such as a policy of “don’t care” on a question about which all true men do care: such as Union appeals beseeching true Union men to yield to Disunionists, reversing the divine rule, and calling, not the sinners, but the righteous to repentance; such as invocations to Washington, imploring men to unsay what Washington said and undo what Washington did.

Neither let us be slandered from our duty by false accusations against us, nor frightened from it by menaces of destruction to the government, nor of

dungeons to ourselves. Let us have faith that right makes might, and in that faith let us to the end dare to do our duty as we understand it.

APPENDIX D
MEMORANDUM OF AGREEMENT FOR HIGH SCHOOL DEBATING
LEAGUE UNDER THE DIRECTION OF A COLLEGE OR UNIVERSITY

The Bangor High School, the Bar Harbor High School, the Bucksport East Maine Conference Seminary, and the Foxcroft Academy, do hereby agree to form an Interscholastic Debating League. The purpose of this League is to hold debates subject to the following conditions:

I

The executive committee of the League shall consist of the principal of each of the above-named institutions and of the Debate Coach at the University of Maine. This committee shall meet once a year at such time and place as agreed upon by the schools and the University. It shall have charge of all matters pertaining to the League, subject to the provisions herein contained.

II

The League shall hold two preliminary debates and one final debate each year, according to the following plan:

The high schools and academies composing this League shall be divided into two equal groups. Each group shall hold a preliminary debate as herein provided. The two winning schools shall then meet in a final debate to be held at the University of Maine. The executive committee shall determine at its first meeting the time, place, and method of rotation to be observed in holding contests for succeeding years.

III

The questions for debate shall be selected in the following manner:

(1) For the preliminary contests. On or before October first, each school at which a debate is to be held shall submit to the visiting school a list of three propositions. The visiting school shall thereupon select one of these propositions and choose the side which it wishes to defend. On or before October fifteenth, notice of this selection must be communicated to the school at which the debate is to be held.

(2) For the final contest. Immediately upon the announcement of a decision in a preliminary contest, the principal of the winning school shall mail notice of the result to the Debate Coach of the University of Maine. The Debate Coach shall determine by lot the school which is to propose the list of propositions to its opponent. Notice of this fact shall immediately be sent to the school thus designated. This school shall prepare immediately a list of three propositions and submit them to its opponent. Within three days the opposing school shall mail to the other school an announcement of the proposition which it has selected from the list proposed and shall state the side of the proposition which it wishes to defend.

IV

The judges for both the preliminary and final contests shall be selected in the following manner:

Four weeks before the contest, the school which has proposed the list of propositions shall submit to its opponent, a list of twelve judges. The opposing school shall select three persons from this list and return their names to the other school. This school shall immediately attempt to secure the persons so named to act as judges. If any or all of the persons selected refuse the invitation to serve, the proposing school shall ask the visiting school to select substitute judges from the list. The school making the final selection of judges may require at any time, a new list of names from the opposing school. No school shall propose as judge any person who is financially or officially interested in, or a graduate or former student of, such school.

V

In the preliminary contests the visiting school shall bear all expenses of its own team. The school at which the contest is held shall bear the expenses of procuring judges and shall have charge of all local arrangements.

In the final contest each participating school shall bear the expense of its own team and one-half the expense of the judges.

VI

Each school shall select for its team three representatives and an alternate, but no one shall be chosen who is not a *bona fide* student of the institution which he represents.

VII

Each debater shall be allowed two speeches, one of ten (10) minutes duration, the other of five (5) minutes. The first series of speeches shall be opened by the affirmative, and shall alternate between affirmative and negative speeches. The second series shall be opened by the negative, and shall alternate between negative and affirmative speeches.

VIII

In preparing for any contest, each school is entitled to three visits from a student of Argumentation and Debate in the University of Maine. This student Coach will give such assistance as is asked for in the training of the debaters representing each school. No charge will be made for this service, but each school must bear the expense of the student sent to coach its team.

IX

In each contest the judges shall be instructed to award the decision on the merits of the argument as presented in the debate, and not upon the merits of the question. It is understood that effectiveness of style and manner of delivery are to be considered.

X

This agreement may be amended at any time by the unanimous vote of the executive committee.

XI

At the close of the final contest, the President of the University of Maine, or some one on his behalf, will present to the winning team the University of Maine Interscholastic Debating Cup. The name of the winning school and the year of the contest will be engraved upon the cup. This cup will be kept in the possession of the winning school until within one week of the next annual contest. At this time it shall be returned to the University of Maine to be awarded to the school winning the final contest for that year.

XII

At the close of the final contest, the President of the University of Maine, or some one on his behalf, will present to the debater whose work is regarded by the judges as the most effective, a scholarship to the value of \$30.00 good for one year in the above-named institution.

XIII

This agreement shall be in full force and operation when one of the two copies herewith submitted to each of the four institutions composing the League is signed by the principal of the institution and mailed to the Head of the Department of English at the University of Maine.

APPENDIX E
DEBATING AGREEMENT FOR A LEAGUE COMPOSED OF FIVE
INSTITUTIONS

CONSTITUTION OF THE CENTRAL DEBATING CIRCUIT OF
AMERICA

ARTICLE I

OBJECT.—The object of this organization shall be to foster interest in debate by holding an annual contest in December on the Friday evening one week before the opening of the holiday recess.

ARTICLE II

DEBATING BOARDS.—Each university shall create a debating board a majority of whose members shall be of the faculty. The members of this board shall be chosen annually as each university may deem wise. The debating board shall have general supervision of all debating matters of the league affecting its university.

ARTICLE III

QUESTIONS.—On April first each university shall submit to each of the others a question properly stated for debate. On April fifteenth each university shall send the five questions to each of the others arranged in the order of its choice. The question ranked highest by all the universities shall

be debated by all the teams. In the case of a tie the selection from the tying questions shall be made by the President of Yale University.

ARTICLE IV

TIME AND ORDER OF SPEAKING.—Each speaker shall have seventeen minutes; twelve minutes for opening and five for rebuttal, but the order of rebuttal speeches on either side may be changed at the wish of the speakers on that side. The negative shall lead in the rebuttal. The visiting team shall support the negative.

ARTICLE V

JUDGES.

(Contests for 1906–1907 and 1910–1911)

<i>Contesting states.</i>	<i>Place of contest.</i>	<i>Residence of Judge.</i>
Minnesota Iowa	Iowa City	Illinois Nebraska
Nebraska Illinois	Urbana	Iowa Wisconsin
Iowa Wisconsin	Madison	Illinois Minnesota
Illinois Minnesota	Minneapolis	Iowa Wisconsin
Wisconsin Nebraska	Lincoln	Iowa

(Contests for 1907–1908 and 1911–1912)

Illinois Iowa	Iowa City	Minnesota Nebraska
Wisconsin Illinois	Urbana	Iowa
Minnesota Wisconsin	Madison	Illinois Iowa
Nebraska Minnesota	Minneapolis	Wisconsin
Iowa Nebraska	Lincoln	Minnesota

(Contests for 1908–1909 and 1912–1913)

Wisconsin Iowa	Iowa City	Illinois Nebraska
Minnesota Illinois	Urbana	Wisconsin Iowa

Nebraska Wisconsin	Madison	Illinois Minnesota
Iowa Minnesota	Minneapolis	Wisconsin Nebraska
Illinois Nebraska	Lincoln	Iowa

(Contests for 1909–1910 and 1913–1914)

Nebraska Iowa	Iowa City	Minnesota Illinois
Iowa Illinois	Urbana	Wisconsin
Illinois Wisconsin	Madison	Minnesota
Wisconsin Minnesota	Minneapolis	Nebraska Iowa
Minnesota Nebraska	Lincoln	Iowa

On April first each university shall submit judges according to the above schedule.

When a single state furnishes the judges for any contest it shall submit a list of 24 names to each of the two competing universities. These lists shall be duplicates.

When two states furnish the judges they shall each submit a list of 12 names.

When a state furnishes judges for two or more contests it shall make up its several lists as impartially as possible with reference to the distribution of able men.

Convenience and economy for the attending judges shall be a factor in their nomination in so far as may be consistent with the choice of able men.

Not later than the first of October preceding the contest the visiting university shall send to the entertaining university a list of six candidates for judges chosen from the proper rolls. Not later than the same date the entertaining university shall send to its opponent a list of twelve judges chosen from the proper rolls. Each university shall arrange the opponent's list of candidates in the order of its choice.

Each university shall have the right to challenge any or all of the number of the candidates submitted by its opponent on presentation of good and sufficient reason. The challenge list, together with objections, shall be returned at once to the sender. The list shall be completed and re-submitted not later than October twentieth.

It is further understood that any person recommended for judge who is a relative, actual or prospective, of any contestant, or who is an alumnus of either university, or who holds or has held, any official relation with either university may be rejected.

The secretary of the entertaining university shall notify the judges by a joint note, the form of which shall be as follows;

The state universities of (name) and (name) will hold a joint debate at (place) on (date). The specific wording of the proposition for debate is, "Resolved, that &c—

We shall consider ourselves especially favored if you can be with us at (place) to hear and judge this contest. (Insert a sentence here stating the names of the other judges who have been invited or who consented to serve.)

We shall of course meet your entire expense. Trusting that we may have an early and favorable reply, we remain,

Respectfully yours,

A. B., University of _____

C. D., University of _____

The entertaining university shall sign the names of both secretaries to the letter and shall enclose a stamped envelop addressed to each for the reply.

Before the contest the judges shall be entertained at a hotel and every semblance of an effort to influence them will be regarded as dishonorable

conduct.

The secretary will secure two judges from the list of the entertaining university and one from the list of the opponent adhering strictly to the order recommended by the respective universities. But if any name or names should be found on both lists they shall be first invited to serve.

The university submitting a list of names shall always report on the qualifications of the judges in the following respects; I. Occupation. II. Where educated. III. Politics. IV. Religion. V. Official relations with any university of the league at any time.

ARTICLE VI

INSTRUCTIONS TO JUDGES.—Each judge shall be instructed to decide for himself what constitutes effective debate, except that he shall consider both thought and delivery. Without consultation he shall vote affirmative or negative on the merits of the debate, *not on the merits of the question*. He shall sign, seal and deliver his vote to the presiding officer who shall open the votes and announce the decision.

ARTICLE VII

EXPENSES.—Each university shall pay all the expenses of its own debaters. All other expenses of the contest shall be paid by the entertaining university.

ARTICLE VIII

CONDUCT OF THE DEBATES.—In the contests of this league all communication with the debaters, by prompting or otherwise, is forbidden; also the introduction of both private correspondence and charts is debarred.

ARTICLE IX

AMENDMENTS.—This constitution may be amended by the authorized representatives of the universities at any special meeting or by correspondence providing twenty days notice be given of the changes desired.

ARTICLE X

SCHEDULE.—The schedule for debates shall be as follows:

<i>First Year</i>	Minnesota	shall send a team to	Iowa City
	Nebraska	“ “ “ “	Urbana
	Iowa	“ “ “ “	Madison
	Illinois	“ “ “ “	Minneapolis
	Wisconsin	“ “ “ “	Lincoln
<i>Second Year</i>	Minnesota	“ “ “ “	Madison
	Nebraska	“ “ “ “	Minneapolis
	Iowa	“ “ “ “	Lincoln
	Illinois	“ “ “ “	Iowa City
	Wisconsin	“ “ “ “	Urbana
<i>Third Year</i>	Minnesota	“ “ “ “	Urbana
	Nebraska	“ “ “ “	Madison
	Iowa	“ “ “ “	Minneapolis
	Illinois	“ “ “ “	Lincoln
	Wisconsin	“ “ “ “	Iowa City
<i>Fourth Year</i>	Minnesota	“ “ “ “	Lincoln
	Nebraska	“ “ “ “	Iowa City
	Iowa	“ “ “ “	Urbana
	Illinois	“ “ “ “	Madison
	Wisconsin	“ “ “ “	Minneapolis

APPENDIX F
MEMORANDUM OF AGREEMENT FOR A TRIANGULAR DEBATING
LEAGUE

Debating Agreement between Indiana University, Ohio State University,
and the University of Illinois

(Adopted by the representatives of the three institutions at Columbus,
June 17, 1905)

ARTICLE 1.—This organization shall consist of the Indiana University, Ohio State University, and the University of Illinois, and shall be known as the State University Debating League.

ARTICLE 2.—Its affairs shall be conducted by an executive committee consisting of one member of the Faculty of each institution, to be selected by that institution.

(a) One of these shall act as President, one as Vice President, and one as Secretary and Treasurer, each holding office for one year.

(b) The three offices shall be filled by the representatives of the three institutions in rotation in the following order: 1905–1906 Presidency, Ohio State University, Vice Presidency, Indiana University, Secretary and Treasurership, University of Illinois; 1906–1907 Presidency, Indiana University, Vice Presidency, University of Illinois, Secretary and Treasurership, Ohio State University; 1907–1908 Presidency, University of Illinois, Vice Presidency, Ohio State University, Secretary and Treasurership, Indiana University; and thereafter in the same rotation.

ARTICLE 3.—The debates shall be held on the second Friday in March—one at Bloomington, Indiana, one at Columbus, Ohio, and one at Urbana, Illinois. In the year 1905–1906 the teams shall come together as follows: University of Illinois and Indiana University at Bloomington; Indiana

University and Ohio State University at Columbus; Ohio State University and University of Illinois at Urbana. In the year 1906–1907 Ohio State University and Indiana University at Bloomington; University of Illinois and Ohio State University at Columbus; Indiana University and University of Illinois at Urbana; and thereafter in the same biennial rotation.

ARTICLE 4.—(a) A question shall be proposed by each institution not later than the 5th of October preceding the debates.

(b) The Secretary shall at once send the three questions to the three institutions, and they shall reply not later than the 25th of October, each institution indicating its ranking of the three questions as first choice, second choice, third choice.

(c) The Secretary shall report the result of this vote not later than the 30th of October, and the question ranked highest in the vote shall be debated by all teams. In case of a tie in the ranking the selection from the three questions shall be made by the President of the University of Minnesota.

(d) After the question has been chosen no modification shall be made in its wording and no definition permitted.

ARTICLE 5.—The home team shall support the affirmative of the question and the visiting team the negative.

ARTICLE 6.—Each speaker shall be allowed twelve minutes for a principal speech and five minutes for a rebuttal speech. No time may be transferred from one speaker to another, but the order of rebuttal speeches on either side may be changed at the wish of the speakers on that side. “The negative shall lead in rebuttal.”

ARTICLE 7.—(a) The visiting institution shall not later than the 15th of January nominate a list of twenty names of persons living within two hundred and fifty miles of the place of the debate, no one of whom shall be or shall have been connected with any of the three institutions concerned either as officer, teacher or student. The home institution shall have the right of veto for cause to be explicitly stated to the other institution within two weeks thereafter, and the visiting institution shall submit other names equal in number to those vetoed. The home institution shall choose three persons from this list to act as judges.

(b) Each judge shall be provided with written instructions in the following form:

Date.....

In rendering your decision, you are asked to consider the merits of the *debate* and not the merits of the question. You are the sole judges of what constitutes effective debating, remembering that both thought and delivery are to be considered.

In my opinion the team has done the most effective debating.

..... Judge

(c) At the close of the debate each judge shall be permitted to withdraw, and within 15 minutes shall present to the chairman in a sealed envelope his individual decision, reached without conference with his colleagues.

ARTICLE 8.—Each institution shall pay the expenses of its debaters. All other expenses of each debate shall be paid by the entertaining institution.

APPENDIX G

PROPOSITIONS

POLITICAL

A. Legislative.

1. Any further centralization of power in the Federal Government of the United States should be condemned.
2. United States senators should be elected by popular vote.
3. The House of Representatives should elect its standing committees.
4. The state of should adopt the legislative referendum.
5. An amendment of the Federal Constitution should be adopted convening the first session of Congress within a few months after the election and compelling the second session to adjourn several days before the following election.
6. The number of representatives to Congress should be reduced.
7. All members of the Senate and House of Representatives should be required to be present during the discussion of all proposed legislation, unless prevented by illness.
8. The United States should adopt the Swiss referendum.
9. The Constitution should be so amended as to make the passing of amendments easier.
10. The United States Senate should adopt a closure rule.
11. Lobbying in Congress and in the state legislatures should be prohibited by law.
12. Direct legislation by means of the initiative and referendum is desirable for our states and their subdivisions.
13. The initiative and referendum offer a desirable relief from the evils arising from the dominance of special interests in our states and their municipalities.

B. Executive.

14. The President of the United States should be elected for one term of seven years, and be ineligible for reelection.

15. The President of the United States should be elected by direct vote of the people.
16. The President should be allowed to veto items in appropriation bills.
17. The President of the United States is justified in calling out the militia to subdue local disturbances, without consent or request of state authorities.
18. Counties in which a lynching occurs should be placed under martial law until they give evidence of capacity to exercise effective local government, not exceeding a term of one year.
19. For the better protection of life, liberty, and property in rural districts a state constabulary is necessary.

C. Judicial.

20. The recall of state and local judges by popular vote is desirable.
21. A two-thirds vote of the jury should constitute a verdict in criminal cases.
22. A two-thirds vote of the jury should constitute a verdict in civil cases.
23. Federal judges should be elected by popular vote.
24. The jury system should be abolished.
25. The courts should be forbidden by law to issue "blanket" injunctions in labor disputes.
26. The detention of innocent witnesses, pending the trial of cases in court, without adequate compensation and without proof of its necessity should be prohibited by law.
27. State judges should be appointed by the governor to hold office during life or good behavior.
28. The law governing judicial process should be so amended as to provide for the more speedy conduct of criminal cases, and fewer opportunities for delay in the execution of the sentences imposed.
29. It would be desirable to elect justices of the United States Supreme Court by popular vote.

D. Franchise.

30. The right of suffrage should be limited to persons who can read and write.
31. There should be an educational test as a qualification for voting.
32. The white citizens of the South are justified in using all peaceable means to secure political supremacy.
33. Men and women should have equal suffrage.
34. The admission to citizenship into the United States should be granted under stricter requirements as to a working knowledge of rights and duties of the privileges conferred.
35. Admission of aliens to the privileges of citizenship should be granted on more restrictive conditions.

36. The admission of native-born and foreign-born citizens to the privilege of voting should be granted only upon evidence of due qualifications both as to knowledge of the rights and obligations and also of respect for the institutions and ideals of our national life.

E. Immigration.

37. The immigration restrictions which now apply to the Chinese should be extended so as to apply to the Japanese.
38. The United States should make no discrimination between the immigrants from China and those from other countries.
39. Admission of further immigration to the United States, so long as the congestion of alien groups persist in our large cities, should be subject to Federal control of such arrivals for a definite period of years for purposes of better distribution with regard to the requirements of the different sections of the country.
40. The immigration of all Japanese and Chinese laborers to the United States should be prohibited by law.

F. Miscellaneous.

41. Party lines should be disregarded in all elections.
42. Public advocacy of violent means for the subversion of government should be suppressed by law in the United States.
43. The United States should have exclusive jurisdiction over Behring Sea.
44. The sharing of public funds for purposes which ignore the constitutional separation of church and state is a menace to our Federal, State, and Municipal institutions and should be abandoned wherever inaugurated and prevented wherever existing or proposed.
45. The short ballot should be adopted in State and Municipal governments.
46. The tendency of political platform making is to overburden the Federal government with proposals whose nature and accomplishment are better adapted to State, Municipal, and other local governmental agencies.
47. Congress should provide for uniform Federal marriage and divorce laws. Constitutionality conceded.
48. All cities in the United States of over 5,000 inhabitants should adopt the commission form of government.
49. The "Galveston Plan" of city government by a board of directors insures increase of efficiency combined with a decrease of corruption in city affairs.
50. There should be a large and immediate increase in the United States Navy.
51. A political reformation in the United States looking to the formation of two new political parties is desirable.

- 52. The states should adopt the recall for all state and local officers except members of the judiciary.
- 53. A commission form of government is preferable to a mayor and council plan.

ECONOMIC

A. Tariff.

- 54. Commercial reciprocity with Canada would be for the best interest of the United States.
- 55. The tariff on goods imported into the United States should be fixed by a bi-partisan commission.
- 56. The United States should impose a tariff on imports from the Philippines. Constitutionality conceded.
- 57. The protective tariff should be removed from trust-made products.
- 58. Raw materials should be admitted to the United States free of duty.
- 59. The tariff on raw materials is justified on the ground of the protection of American industry against foreign competition.
- 60. Sugar should be admitted to the United States free of duty.
- 61. Commercial reciprocity between the United States and South America would be for the best interests of the United States.
- 62. The United States should adopt the policy of tariff for revenue only.
- 63. Steel should be admitted to the United States free of duty.
- 64. All goods, the price of which is controlled by a single capitalist or combination of capitalists, should be admitted to the United States free of duty.

B. Taxation.

- 65. The growth of large fortunes should be checked by means of national progressive income and inheritance taxes.
- 66. The Federal government should levy a progressive inheritance tax. Granted, that such tax would be held constitutional.
- 67. The Federal government should levy a progressive income tax. Constitutionality conceded.
- 68. The single tax as advocated by Henry George, would be an improvement over our present system of taxation.
- 69. The tax on the issue of state banks should be repealed.
- 70. That a graduated income tax would be a desirable addition to the Federal system of taxation.

71. A Federal graduated income tax with an exemption of all incomes below \$5000 per annum would be a desirable modification of the system of Federal taxation.

C. Corporations.

72. Congress should pass laws prohibiting corporate contributions to political campaign funds.
73. The regulating power of Congress should be extended over all corporations doing an interstate business. Constitutionality conceded.
74. All corporations engaged in interstate commerce should be required to take out a Federal license.
75. Physical valuation of the property of a corporation is the best basis for fixing the rate of taxation.
76. Railroad pooling is economically advantageous to the public.
77. The price of "trust-made" products should be regulated by law.
78. The National Bureau of Corporations should have control of industrial and commercial corporations doing interstate business, similar to the control which the Interstate Commerce Commission has over railroads.
79. All corporations engaged in interstate commerce should be required to take out Federal charters; it being conceded that such a requirement would be constitutional and that Federal license shall not be available as an alternative plan.
80. The policy of regulating industrial corporations is preferable to the policy of dissolving them.

D. Labor.

81. The New Zealand system of compulsory arbitration should be adopted in the United States.
82. A system of compulsory arbitration should be adopted in the United States.
83. Employers and employees of all public service corporations such as railroads, street railways, etc., should be compelled to arbitrate labor disputes.
84. Members of trades-unions are justified in refusing to work with non-union men.
85. State boards of arbitration, with compulsory powers, should be established to settle all disputes between employers and employees.
86. Employers are justified in refusing recognition to labor unions.
87. The history of trades-unions for the past ten years shows a tendency detrimental to the industrial development of the United States.
88. The boycott is a legitimate means of enforcing the demands of organized labor.
89. The growth of labor unions is a menace to liberties of the working man.
90. The closed "shop" is justifiable.

91. Employers should be prohibited from setting up contributory negligence or negligence of a fellow servant as a bar to recovery of adequate compensation by an injured employee.
92. The right to strike on the part of public employees should always be subject to referendum on the part of the community immediately concerned.
93. It would be advisable to legalize the strike and the boycott.
94. The movement of organized labor for the closed shop should receive the support of public opinion.
95. The best interests of the laboring classes would be advanced by the development of a separate labor party.

E. Public Ownership.

96. The Federal government should buy and operate the telegraph systems.
97. Municipalities in the United States of over 10,000 inhabitants should own and operate their systems for lighting and local transportation.
98. The United States should own and operate the coal mines within its borders.
99. The forests of the United States should be owned and operated by the Federal government.

F. Miscellaneous.

100. The powers of the Interstate Commerce Commission should be enlarged.
101. The United States should subsidize our merchant marine.
102. It is economically advantageous to the United States to own territory in the tropics.
103. The amount of property transferable by inheritance should be limited by statute.
104. The existing systems of commercial distribution between producers and consumers is chiefly responsible for the high cost of living.
105. The national debt should be paid as rapidly as possible.
106. Mail order stores are a benefit to the public.
107. Prison-made products should be excluded from the open market.
108. The labor of prisoners in the state penitentiary should be utilized in improving the highways of the state.
109. The American coastwise traffic should pass through the Panama Canal toll free.
110. Congress should be given the power by constitutional amendment to regulate manufactures and industry.
111. The Federal government should establish a bank of the United States.
112. The Aldrich plan of a National Reserve Association should be adopted by the Federal government.

- 113. The Federal government should regulate and supervise all fire and life insurance companies doing an interstate business.
- 114. The Federal government should grant financial aid to ships engaged in our foreign trade and owned by citizens of the United States.
- 115. There should be some legislation providing for the guarantee of bank deposits.
- 116. The Federal government should develop the waterway from the Great Lakes to the Gulf.
- 117. A system of compulsory industrial insurance covering accident, sickness, and old age should be adopted in the United States. Constitutionality conceded.
- 118. The inland waterways of the United States should be extensively improved by the Federal government.
- 119. The United States should adopt a double monetary standard.

SOCIAL

A. The Liquor Problem.

- 120. The elimination of private profits offers the best solution of the liquor problem.
- 121. Prohibition of the liquor traffic is preferable to any system of license, wherever public opinion will sanction the passage and enforcement of such a law.
- 122. The United States army should reestablish the use of the canteen.
- 123. The Carolina Dispensary System for controlling the use and sale of intoxicating liquors should be adopted in the state of .
- 124. State prohibition has failed wherever it has been adopted.
- 125. Prohibition is more conducive to temperance than high license.

B. International Peace.

- 126. The United States should at once announce and carry out a policy of total disarmament.
- 127. The present growth of armaments should be checked by mutual agreement between the nations.
- 128. The United States should immediately provide for an increase in its navy.
- 129. International peace is best promoted by extensive warlike preparations.

C. Insurance and Pensions.

- 130. The German system of compulsory insurance should be adopted in the United States.
- 131. The Federal government should control all life insurance companies.
- 132. A system of compulsory industrial insurance should be adopted in the United States.
- 133. The United States government should grant uniform pensions to all citizens over sixty years of age.
- 134. The Federal government should grant old-age pensions.

D. The Church.

- 135. All church property should be taxed.
- 136. The modern church should maintain more rigid rules regarding the personal conduct of its members.
- 137. A union of all Christian churches in the United States would further the cause of Christianity.

E. Miscellaneous.

- 138. Sunday baseball should be prohibited.
- 139. Public libraries, museums, and art galleries should be open on Sunday.
- 140. Lavish social entertainments should be condemned.
- 141. In times of business depression the states and municipalities should furnish employment to the unemployed.
- 142. Capital punishment should be abolished.
- 143. All cities of over 25,000 population should establish free public employment bureaus.
- 144. State institutions should be established providing for the care and training of homeless children.
- 145. The growth of monopolies shows a tendency toward Socialism.
- 146. Congress should enact laws providing for the censorship of the stage.
- 147. Moving picture shows should be compelled to exhibit only such pictures as can be shown to have an educational or cultural value.
- 148. The United States is moving toward Socialism.
- 149. The tendency of the population of the United States to concentrate in the cities is detrimental to the best interest of the people.
- 150. Children under sixteen years of age should be prohibited by Federal law from working in factories.
- 151. A maximum eight hour working day for all occupations should be established by state law.
- 152. Vivisection should be prohibited by law.

- 153. Arctic and Antarctic expeditions should be looked upon with disfavor by the public.
- 154. The United States government should grant permanent copyright.
- 155. Automobiles should be prohibited from running more than fifteen miles an hour.
- 156. Railroads should be required by Federal and state law to adopt all devices such as block signals, steel passenger coaches, etc., which minimize the danger from wreck.
- 157. Greater security should be given by law to wills and bequests.
- 158. The negro is not fitted to exercise the right of suffrage.
- 159. There should be a state censorship of the stage.
- 160. Letter postage should be reduced to one cent.
- 161. Male citizens should be compelled to serve two years in the United States army.
- 162. Popular literature shows a decline in public morals.
- 163. Social settlement organizations offer the best means of conducting charitable work.
- 164. The plea of insanity shall not be available as a bar to punishment for crime.
- 165. Newspapers should be prohibited from publishing matter which has a tendency to corrupt the public morals.

EDUCATIONAL

A. Common School.

- 166. The Bible should be taught in the public schools.
- 167. Free text-books should be furnished to all pupils below the high school grade.
- 168. The state should prescribe uniform text-books for the public schools.
- 169. Public funds should not be appropriated to aid private or sectarian schools.
- 170. No prizes should be offered in public schools.

B. High School.

- 171. Every high school should be compelled to maintain courses in manual training and domestic science.
- 172. Secret societies should be prohibited in public high schools.
- 173. High school courses should be revised so as to furnish more practical educational training.
- 174. The high school course as at present given by almost all high schools is of no practical value to the pupil who does not go to college.

175. Military drill should be compulsory in all public high schools of the United States.

C. College.

176. The honor system of examinations should be adopted by all American colleges.

177. Freshmen at should not be permitted to engage in intercollegiate athletics.

178. All college courses should be completely elective.

179. Athletics, as now conducted, are a detriment to American colleges.

180. No college should be located near a large city.

181. Denominational colleges should not receive financial aid from the state.

182. For the average student the small college is preferable to the large college.

183. Admission to American colleges should be by examination only.

184. Intercollegiate football should be abolished.

185. Segregation of sexes in American colleges and universities is preferable to coëducation.

186. Students in college courses who attain the rank of ninety per cent or higher in daily work should be excused from examinations.

187. Two years of college work should be required for admission to any course in law or medicine.

188. Written term examinations should be abolished.

189. The class rushes at the beginning of the college year should be prohibited.

190. Chapel attendance at the University of should be compulsory.

191. Student government should be established at the University of .

192. The Oxford type of university should be adopted in the United States.

193. For the average man a college education is an aid to business success.

194. The colleges of the state of should be combined into one centrally located university.

D. Miscellaneous.

195. A National University should be established at Washington.

196. Novels should not be placed in circulation by public libraries until two years after publication.

197. The number of subjects taught in high schools and colleges should be greatly reduced.

198. The recommendations of the simplified spelling board should be adopted throughout the United States.

199. Night trade schools should be established as a part of our system of public instruction.

200. Industrial education will solve the negro race problem in the United States.

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3. Footnotes have been re-indexed using numbers.

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